

IN THE HIGH COURT OF KARNATAKA AT BANGALORE

PRESENTATION FORM

W.A. No. 304 /2023

ADVOCATE:

Sri. Murthy.D.L

BANGALORE DISTRICT

BETWEEN

Sri. Narasimhaiah & Others

-VERSUS-

The State of Karnataka & others

SL. NO. DESCRIPTION OF PAPER PRESENTED COURT FEE

NO

1. MEMORANDUM OF WRIT APPEAL

Rs. /-

Rs. /-

TOTAL

Rs. /-

PRESENTED BY

OTHER SIDE SERVED

ADVOCATE FOR PETITIONER

RECEIVED PAPER WITH COURT FEE

LALES AS ABOVE

DATE: -07-2023

BANGALORE

RECEIVING

CLERK

IN THE HIGH COURT OF KARNATAKA AT BANGALORE

WRIT APPEAL No.

/2023

BETWEEN:

Sri.Narasimhaiah & another

...APPELLANTS

AND

The State of Karnataka & others

...RESPONDENTS

INDEX

SL. NO.	PARTICULARS	PAGE NO.
1	SYNOPSIS	1 - 3
2	MEMORANDUM OF WRIT APPEAL	4 - 12
3	CC OF ORDER PASSED IN W.P.535/2022	13 - 25
4	MEMORANDUM OF WRIT PETITION	26 - 35
5	ANNEXURE-A: Copy of order passed by the Govt. dt.21-08-1963 Typed Copy	36 37
6	ANNEXURE-A1: Copy of Saguvali Chit Typed Copy Translated copy	38 - 39 40 - 42 43 - 47
7	ANNEXURE-B: Copy of order dt. 12.9.94 Typed Copy Translated copy	48 - 49 50 - 52 53 - 55
8	ANNEXURE-C: Copies of the Judgment in O.S 394/98 Typed copy.	56 - 69 70 - 74
9	ANNEXURE-D: Copies of the Decree in O.S 394/98 Typed Copy	76 - 80 81 - 82
10	ANNEXURE-E: Copy of the Order dt. 18-03-2009	83 - 85

11	ANNEXURE-F: Copy of Death Certificate Typed Copy	86 - 87
12	ANNEXURE-G: Copy of death certificate Typed Copy.	88 89
13	ANNEXURE-H: Copy of the representation dt.13-07-2009 Typed copy Translated Copy	90 91 92
14	ANNEXURE-H1: copy of representation dt.22-12-2015 Typed Copy	93-98. 99-101
15	ANNEXURE-J: Copy of representation dt. 11-01-2021 Typed copy Translated Copy	102 - 103 104 - 106 107 - 108.
16	ANNEXURE-K: Copy of Endorsement dt.27- 4-2021 Typed Copy Translated Copy	109 110 111
17	ANNEXURE-L: Copy of RTC Typed Copy Translated copy	112 113 - 114 115 - 116
18	ANNEXURE-M to M3: Photographs	117 - 118
19	Statement of Objections filed by the respondent No.1 to 5- State	119 - 128
20	ANNEXURE-R1: Copy of the Judgment .OS 124/1994 C/w O.S 97/2001	129-159
21	ANNEXURE-R2: Copy of MR.7/63-64 Typed Copy Translated Copy	160 161 162.

22	ANNEXURE-R3: Copy of MR Typed copy Translated Copy	163 164 165
23	ANNEXURE-R4: Copy of RTC Typed copy Translated copy.	166-167 168-169 170-171
24	ANNEXURE-R5 : Copy of order dt.12-09-1994. Type Copy Translated Copy	172-173 174-176 177-179
25	Application for Impleading by the Respondent No. 6 & 7	180-184
26	ANNEXURE-R1: Copy of the Order passed in W.P 1570/1964	185 - 209
27	ANNEXURE-R2: Copy of the Memorandum of Writ petition in WP 32578/19	210 - 219
28	ANNEXURE-R3: Copy of RTC: Translated Copy	220 221-222
29	ANNEXURE-R4: Copy of the representation Translated copy.	223-226 227-231
30	MEMO	232
31	Vakalath	233
32	IA No.1/2023 for Stay A/w Affidavit	234 - 238
31	IA No.2/2023 U/s 5 of limitation Act	239 - 243

BANGALORE

ADVOCATE FOR APPELLANTS

DATE: -07-2023

IN THE HIGH COURT OF KARNATAKA AT BANGALORE

WRIT APPEAL No.

/2023

BETWEEN:

Sri.Narasimhaiah & another

...APPELLANTS

AND

The State of Karnataka & others

...RESPONDENTS

SYNOPSIS

Sl. No.	DATE	EVENTS
1	21-08-1963	One Ramalingaiah who is father of the respondent No.6 illegally obtain Saguvali Chit in respect of property bearing Sy.No.159, an extent of 8Acre of Kadabagere Village, Bangalore North Taluk
2	1964	The appellant/Villagers challenged the same before this Hon'ble Court in W.P.No.1570/1964 on the ground said land is Government Gomal Land and requested to preserve the said land for use of Village Pasteurisation
3.	16-12-1966	This Hon'ble Court upon enquiry and verified the documents was pleased to allow the writ petition and set aside the grant order made in favour of the petitioner.
4	12-9-1994	The Deputy Commissioner directed to the Tahsildar to delete the name of the said Ramalingaiah in relevant revenue records and the revision petition was dismissed.
5.	1998	The said Ramalingaiah behind the back of the petitioners who are petitioners before this Hon'ble Court and filed Suit in O.S 394/1998 for seeking declaration by way of adverse possession.

6	22-12-2001	The Hon'ble trial Court decreed the suit of the plaintiff and the defendants-Government placed ex-parte. In the said suit the villagers who are earlier challenged the grant made in favour of the Ramalingiah were not made parties.
7	27-04-2021	The petitioner made representation to change of revenue entries based on Ex-parte Decree. The Tahsidlar issued endorsement stating that, the records are not available.
8	2022	Thus the petitioner approached this Hon'ble Court and challenged the Endorsement dated.27-04-2021 in W.P 535/2022.
9	30-01-2023	The appellants are impleaded as co-respondents in the said Writ petition.
10	06-2-2023	The learned single Judge upon hearing the matter was pleased to allow the Writ petition and set-aside the endorsement.

BRIEF FACTS

The appellants are residents of Kadabagere Village since 1964 opposed the grant made since the land bearing Sy.No.159 originally measuring an extent of 26 Acres 39 Guntas, out of this land, Water Project by the Government in which, portion has been accommodated for rehabilitation, the remaining extent of 17 Acres 19 Guntas continued in the ownership of Government, originally the land is classified as GOMAL land, in and around of the Village Kadabagere, presently Bangalore North Taluk is fully developed with residential layouts and thick population, taking into consideration all these aspects, the Village Panchayath and Villagers made several representations to provide amenities in the land viz., Hospital, School, Women Rehabilitation Centre, Community Hall, Play Ground and other public utility purposes. The Representations made and the manner in which the grant was made by the fraudulent

method has been explained and placed before the Hon'ble Court. It is also stated that the petitioners having played fraud, the Hon'ble Court by exercising extraordinary jurisdiction under Article 226 in support of Law declared in S.P.Changalvaraya Naidu -Vs- Jagannath Rao - State of Andhra Pradesh 1994 - Vol.2 SCC Page 1 - fraud vitiates, the entire proceedings and the Courts shall recall and revoke the orders and judgments. The ratio is squarely applicable to present case in hand to the Learned Single Judge by ignoring these facts provided to allow the writ petition by granting relief for restoration of the entries solely and decree passed Ex-parte in O.S.No.394/1998. Aggrieved by the same, this Memorandum of Writ Appeal.

BENGALURU

ADVOCATE FOR APPELLANT

DATE: /07/2023

4

IN THE HIGH COURT OF KARNATAKA AT BANGALORE
(Civil Appellate Jurisdiction)

WRIT APPEAL No. _____/2023
IN

Writ Petition No.535/2022

Rank of the Parties

Before the	In this
Single Judge	Appeal

BETWEEN:

1. Sri.Narasimhaiah

S/o Era Channaiah
Aged about 72 Years
R/at Kadabagere Village
Dasanapura Hobli
Nelamangala Taluk
PIN: 562 123.

..Respondent no.6 ..Appellant-No.1

2. The Kadabagere Kriya Samithi

Kadabagere Village,
Dasanapura Hobli
Nelamangala Taluk
PIN: 562 123

Rep.,by its President. . **Respondent- No.7 Appellant-No.2**

AND:

1. The State of Karnataka

Represented By Secretary,
Department of Revenue
Vikasa Soudha,
Dr.B.R.Ambedkar Veedhi
Bangalore - 560 001

..Respondent No.1

..Respondent No.1

2. The Deputy Commissioner

Bangalore North
Kempegowda Road,
Bangalore- 560 009.

Respondent No.2 Respondent No.2

3. The Assistant Commissioner

Bangalore North Sub Division
Kempegowda Road,
Bangalore- 560 009.

Respondent No.3 .Respondent No.3

5

4. The Tahasildar

Nelamangala Taluk

Bangalore North

Bangalore- 562 123.

Respondent No.4 .Respondent No.4

5. The Special Tahasildar

Bangalore North Taluk

Bangalore- 562 123

Respondent No.5 .Respondent No.5

6. Dr.Vineeth.B.R.

D/o Late M.T.Ramalingaiah

Aged about 54 Years

R/at No.1427, 2nd Cross

Bandigowda Layout

Mandya City- 571 401

.. Petitioner

.Respondent No.6

**MEMORANDUM OF WRIT APPEAL UNDER SECTION
4 OF THE HIGH COURT ACT.**

The appellants most respectfully submits as under;

I. The address of the Appellant for the service of notice of this Writ Appeal is as stated above in the cause-title and also that of their Counsel, Sri. Murthy.D.L. Arvinda Upadya, Advocate, No.3/10, 4th Cross, Gandhinagar, Bangalore – 560 009.

II. The addresses of the Respondents for the service of notices of this Writ Appeal are as stated above in the cause title.

III. The Appellants aggrieved by the order passed by the learned single Judge in W.P.No.535/2022(KLR-LG), dated 6/02/2023, this Memorandum of Writ Appeal.

— 6 —

FACTS OF THE CASE

1. For the sake of convenience and easy understanding parties are referred to original status. As arrayed in the court below.

2. The Petitioner in the writ petition sought prayer to issue writ in the nature of Certiorari and to quash or any other writ and to quash the endorsement dated 27/4/2021 at Annexure-K and directing the Respondent Authorities to effect entries in the name of Petitioner as Legal Representatives of M.T.Ramalingaiah. In furtherance to the Judgment & Decree in O.S.No. 394/1998 at Annexure-C & D and in furtherance of the order passed in W.P.No.10137/2008 dated 18/03/2009 at Annexure-E.

3. The brief facts of the case is that, the petitioner made a claim under a grant order passed on 21/8/1963, the said grant was assailed before the Hon'ble High Court of Karnataka in W.P No.1570/1964, this Hon'ble Court passed detailed order dated 10/12/1966 and quashed the grant made, consequently the Saguvali Chit is cancelled, but the petitioner maintained possession was never resumed and the grantee M.T.Ramalingaiah continued to cultivate and the revenue entries reflected in his name upto 1993-94. The Appeal

7

preferred by the petitioners before the Assistant Commissioner came to be dismissed. The said M.T.Ramalingaiah filed Civil Suit in O.S.No.394/1998 for declaration to declare him as perfected his title by adverse possession. The suit came to be decreed dated 22/12/2001. Further the entries in the revenue records has been discontinued for which, application was made for restoration. In this regard, writ petition filed numbered W.P. No.10137/2008, which came to be allowed on 18/03/2009. In furtherance, the representation was made, it was not considered by the Respondent Authorities and endorsement was issued dated 27/04/2021 same is assailed.

4. On service of notice, the Respondent authorities entered appearance and filed detailed statement of objection and denied the claim made by the petitioners and have stated in clear positive assertion that the petitioner father M.T.Ramalingaiah has played mischief and fraud in the grant in the year 1963, the grantee being a resident of Mandya District and the grantee's land is in Nelamangala Taluk, Bangalore District. The Karnataka Land Grant Rules prohibited such grants under Sec. 108 of the Karnataka Land Revenue Act. Further, the suit filed by the petitioners is not maintainable for the reason that, soon after the cancellation of grant, the revenue authorities by drawing mahazar, resumed

the land and all the revenue records in the name of Government has been restored. The Statement of objection and the Annexures are produced to evidence that the petitioners have suppressed true and correct facts and also played fraud on the Courts as well as law.

5. The appellants are residents of Kadabagere Village since 1964 opposed the grant made since the land bearing Sy.No.159 originally measuring an extent of 26 Acres 39 Guntas, out of this land, Water Project by the Government in which, portion has been accommodated for rehabilitation, the remaining extent of 17 Acres 19 Guntas continued in the ownership of Government, originally the land is classified as GOMAL land, in and around of the Village Kadabagere, presently Bangalore North Taluk is fully developed with residential layouts and thick population, taking into consideration all these aspects, the Village Panchayath and Villagers made several representations to provide amenities in the land viz., Hospital, School, Women Rehabilitation Centre, Community Hall, Play Ground and other public utility purposes. The Representations made and the manner in which the grant was made by the fraudulent method has been explained and placed before the Hon'ble Court. It is also stated that the petitioners having played fraud, the Hon'ble Court by exercising extraordinary jurisdiction under Article

226 in support of Law declared in *S.P.Changalvaraya Naidu -Vs- Jagannath Rao - State of Andhra Pradesh 1994 - Vol.2 SCC Page 1 - fraud vitiates, the entire proceedings and the Courts shall recall and revoke the orders and judgments. The ratio is squarely applicable to present case in hand to the Learned Single Judge by ignoring these facts provided to allow the writ petition by granting relief for restoration of the entries solely and decree passed Ex-parte in O.S.No.394/1998. Aggrieved by the same, this Memorandum of Writ Appeal on the following amongst other grounds.*

6. GROUNDS

i. The order of the learned Single Judge is otherwise opposed to law, facts and circumstances of the case.

ii. The petitioners having perpetuated fraud on the Court and on the Law in the matter of grant of land in the year 1963, subsequently by filing original suit and obtaining Ex-parte order on the Government property is a scheme of fraud, same is demonstrated with material documents prima-facie case on the Learned Single Judge failed to appreciate and consider the implication of the ratio declared in 1994 Vol.1, SCC Page 1 before the Hon'ble Apex Court, thus a serious illegality, resulted in miscarriage of justice.

iii. The writ jurisdiction to exercise under Article 226 when there is serious disputed facts, Learned Single Judge ought not to have entertained the writ petition and ought to have negative the prayer, but the Single Judge granting writ of certiorari is not only grave error of law, but also miscarriage of justice.

iv. The alleged grant in the year 1963 has been cancelled by virtue of the order passed in the year 1966 in writ petition, the question of possession, adverse possession at any stretch of imagination doesn't arise. This has not been considered by the Learned Single Judge, moreover the appellants/villagers earlier approached this Hon'ble Court way back in the year 1964 in W.P.1570/1970, this Hon'ble Court upon hearing the matter was pleased to set-aside the order of grant made in favour of the M.T.Ramalingaiah and the said land is preserved for village Pasteurization, the learned single Judge without verifying the same, proceeded to allow the Writ Petition. Thus calls for interference liable to setting aside at the hands of this Hon'ble Court.

v. The petitioner/respondent No.6 obtain ex-parte order, in the said suit the present appellants/villagers were not made parties to the suit, since the Villagers necessary parties to the suit

11 -
who are challenged the grant made in favour of the M.T.Ramalingaiah, moreover in O.S. 124/1994, which was filed by M.T.Ramalingaiah, subsequent to obtain ex-parte Judgment, the Hon'ble trial Court discussed the said declaration suit and came to conclusion that, the said suit filed by the M.T.Ramalingaiah behind the back, once the order of grant was set-aside by the Hon'ble High Court, there is no question of adverse possession and dismissed the suit for Injunction. The learned trial Judge not consider the same, thus calls for interference.

vi. The Respondent Authorities having placed material documents to evidence the drawing of Mahazar and survey sketch to indicate that the land is in continuous lawful possession of the Government, added to this, the entries revenue records evidences the Government is the title holder. By ignoring this fact allowing the writ petition is a grave legal error.

vii. Admittedly, father of the petitioner not at all cultivated the land in question, in this regard, this Hon'ble Court as well as Revenue authorities passed suitable orders, despite that, father of the petitioner obtain ex-parte Judgment without making necessary parties, inorder to grab the valuable Government property, thus calls for interference liable to setting aside at the hands of this Hon'ble Court.

12

7. The appellants have not initiated any other proceedings before any other forum on the same cause of action, and the appellants having no other alternate remedy except approach this Hon'ble Court.

8. Limitation: The appeal is well within time.

9. **P R A Y E R**

WHEREFORE, the Appellants most respectfully prays this Hon'ble Court;

a. To call for the entire records in W.P.No.535/2022 (KLR-LG) on the file of Leaned Single Judge of this Hon'ble Court;

b. To set aside the order passed in **WP No.535/2022 (KLR-LG) Dated.06-02-2023** on the file of Learned Single Judge, consequently dismiss the writ petition filed by the respondent No.6/petitioner

c. To grant such other relief, relief's as this Hon'ble Court deems fit and proper in the facts and circumstances of the case.

BANGALORE

DATE: /07/2023

ADVOCATE FOR APPELLANTS

10. List of Authorities:

-Nil-

BANGALORE

DATE: /07/2023

ADVOCATE FOR APPELLANTS

7749 / 23

Venadappa

- 1 -

WP No. 535 of 2022



IN THE HIGH COURT OF KARNATAKA AT BENGALURU

DATED THIS THE 6TH DAY OF FEBRUARY, 2023

BEFORE

THE HON'BLE MR JUSTICE R DEVDAS

WRIT PETITION NO. 535 OF 2022 (KLR-LG)

BETWEEN:

DR. VINEETH B R
D/O LATE M T RAMALINGAIAH
AGED ABOUT 53 YEARS
R/AT NO.1427, 2ND CROSS
BANDIGOWDA LAYOUT
MANDYA CITY 571 401.

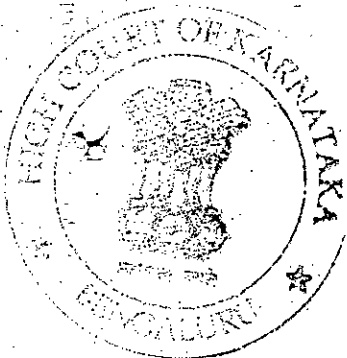
...PETITIONER

(BY SRI. D.R. RAVISHANKAR, SENIOR COUNSEL FOR
SMT. SIRI RAJASHEKAR., ADVOCATE)

AND:

1. THE STATE OF KARNATAKA
REP BY SECRETARY
DEPARTMENT OF REVENUE
VIKASA SOUDHA
DR B R AMBEDKAR VEEDHI
BENGALURU- 560 001.
2. THE DEPUTY COMMISSIONER
BANGALORE NORTH
KEMPEGOWDA ROAD
BANGALORE- 560 009.
3. THE ASST. COMMISSIONER
BANGALORE NORTH SUB DIVISION
KEMPEGOWDA ROAD
BANGALORE -560 009.

Digitally
signed by
JAMES
THEJESWINI-
Location:
HIGH
COURT OF
KARNATAKA



This Certified copy contains.....13.....pages
And Copying charges with of ₹.....39..... is
Received

14

- 2 -

WP No. 535 of 2022



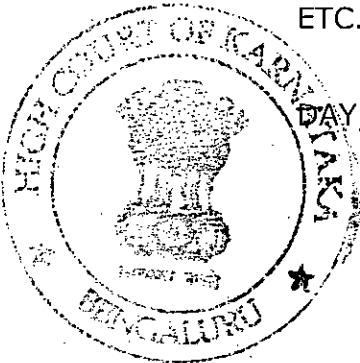
4. THE TAHSILDAR
NELAMANGALA TALUK
BANGALORE NORTH
BENGALURU -562123.
5. THE SPECIAL TAHSILDAR
BANGALORE NORTH TALUK
BENGALURU -562 123.
6. SRI. NARASIMHAIAH
S/O ERA CHAMIAH
AGED ABOUT 71 YEARS
R/AT KADABAGERE VILLAGE
DASANAPURA HOBLI
NELAMANGALA TALUK-562123.
7. THE KADABAGERE KRIYA SAMITHI
KADABAGERE VILLAGE
DASANAPURA HOBLI
NELAMANGALA TALUK-562123.
REP BY ITS PRESIDENT.

...RESPONDENTS

(BY SRI. SESHU V, HCGP FOR R1 TO R5
SRI. M. SHIVAPRAKASH, ADVOCATE FOR R6 TO R7)

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 & 227 OF THE CONSTITUTION OF INDIA PRAYING TO QUASH THE ENDORSEMENT DTD.27.4.2021 ISSUED BY R-5 ANNEXURE-K AND DIRECTING THE RESPONDENTS TO EFFECT THE ENTRIES IN THE NAME OF THE PETITIONER AS THE LRS OF M.T.RAMALINGAIAH IN FURTHERANCE OF THE JUDGEMENT AND DECREE PASSED IN O.S.NO.394/1998 PASSED ON THE FILE OF THE 2ND ADDL. CIVIL JUDGE (SR.DN) BENGALURU RURAL DISTRICT VIDE ANNEXURES-C AND D AND IN FURTHERANCE OF THE ORDERS PASSED BY THIS COURT IN W.P.NO.10137/2008 DTD.18.3.2009 VIDE ANNEXURE-E AND ETC.

THIS WRIT PETITION COMING ON FOR ORDERS, THIS DAY, THE COURT MADE THE FOLLOWING:



15

- 3 -

WP No. 535 of 2022

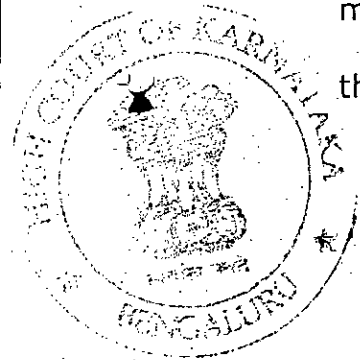


ORDER

R.DEVDAS J., (ORAL):

This writ petition is filed by the petitioner seeking to quash the endorsement dated 27.04.2021 at Annexure-K issued by the fifth respondent-Special Tahsildar, Bangalore North Taluk and the petitioner has further sought a direction to the revenue authorities to enter the name of the petitioner as the legal representative of Late. Sri.M.T.Ramalingaiah, in whose favour the judgment and decree was passed by the II Additional Civil Judge (Sr.Dn.), Bengaluru Rural District, in O.S.No.394/1998.

2. Learned Senior Counsel Sri.D.R.Ravishankar, appearing for the petitioner submits that it is an undisputed fact that Sri.M.T.Ramalingaiah was granted 8 acres of land in Sy.No.159 of Kadabagere village, Dasanapura Hobli, Nelamangala Taluk, Bengaluru Rural District in the year 1963 and the Sagivali Chit was issued in favour of Sri.M.T.Ramalingaiah. However, the grant made in favour Sri.M.T.Ramalingaiah was challenged by the local villagers in W.P.No.1570/1964 and this Court by



16

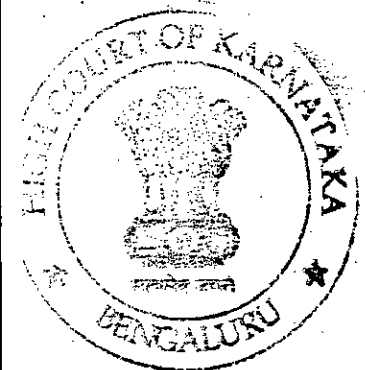
- 4 -

WP No. 535 of 2022



order dated 16.12.1966 held that the grant could not have been made in favour Sri.M.T.Ramalingaiah and accordingly, quashed and set aside the grant.

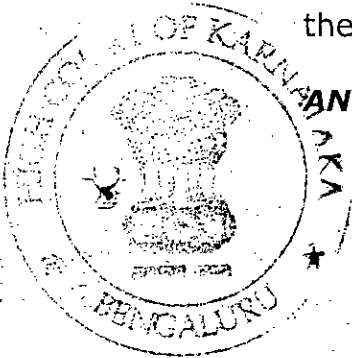
3. However, it appears that Sri.M.T.Ramalingaiah continued to be in occupation of the land in question and in the year 1998, he filed a suit in O.S.No.394/1998 seeking a declaration that he has perfected his title by way of adverse possession and therefore, he should be declared as the owner of the land. The said suit was decreed by a judgment and decree dated 22.12.2001. For many years, even after the judgment and decree was passed in favour of the petitioner's father, his name was not entered in the land records and therefore, Sri. Sri.M.T.Ramalingaiah filed a petition before this Court in W.P.No.10137/2008, seeking a direction to the revenue authorities to effect the khatha in his name in terms of the judgment and decree passed by the civil court. Objections were raised at the hands of the respondent-State Government and the revenue authorities that the





judgment and decree passed by the civil court was an *ex parte* judgment and decree and therefore the same should not be considered. However, by order dated 18.03.2009, this Court held that the respondents are bound to effect the khatha in favour of the petitioner/plaintiff in the revenue records and therefore, directed the revenue authorities to consider the representation given by Sri.M.T.Ramalingaiah and pass necessary orders within a period of three months from the date of receipt of a copy of the order.

4. When a pointed question was put to the learned Senior Counsel appearing for the petitioner as to why this Court should go on issuing writs of mandamus to the revenue authorities, since one such mandamus was already issued by this Court directing the revenue authorities to consider the grievance of the petitioner, learned Senior Counsel has placed reliance on a decision of the Hon'ble Supreme Court in the case of **COMPTROLLER AND AUDITOR-GENERAL OF INDIA, AND ANOTHER VS.**



18

- 6 -

WP No. 535 of 2022



K.S.JAGANNATHAN AND ANOTHER, (1986) 2 SCC 679

and submits that if for any reason the person who has got a writ of mandamus issued in his favour with a direction to the concerned authorities and yet the same was not complied, the writ court is entitled to give directions to compel the performance in a proper and lawful manner.

5. Per contra, objections are also sought to be raised at the hands of the newly impleaded respondents, who claimed to be the local villagers and an Association of the local villagers, who are trying to protect the Government land and they also contended that the lands have been earmarked for various other purposes for the benefit of the local villagers and the name of the petitioner should not be entered in the land records. Learned Counsel appearing for the newly impleaded respondents No.6 and 7 would also submit that the petitioner is a resident of Manday city and objections were raised on that ground when an application was made by Sri.M.T.Ramalingaiah, that since he is a resident of Mandya District, he should

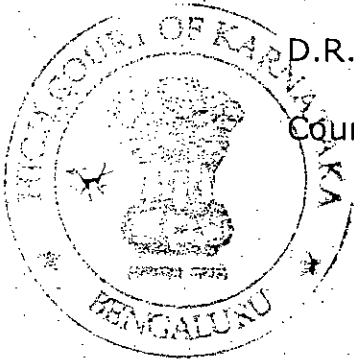




not be granted the land in question, which is outside Mandya District. It is also sought to be contended that the revenue authorities are hand-in-glove with the petitioner and her father and therefore, they have not protected the interest of the State.

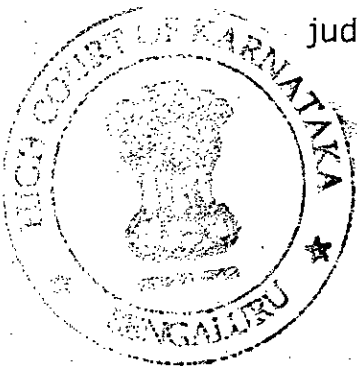
6. Statement of objections have also been filed at the hands of the respondent-State Government and the revenue authorities, wherein it is mainly sought to be contended that the judgment and decree obtained by Sri.M.T.Ramalingaiah was an *ex parte* decree and therefore, this Court should hold that no rights would flow to the plaintiff, who obtained an *ex parte* decree. Learned High Court Government Pleader would also pointed out from Annexure-R5 that such a request earlier made by Sri.M.T.Ramalingaiah was rejected by the revenue authorities.

7. Having heard the learned Senior Counsel D.R.Ravishankar appearing for the petitioner, learned Counsel Sri.M.Shivaprakash for respondents No.6 and 7,





learned High Court Government Pleader and on perusing the petition papers, this Court finds that there can be no *cavil* to the settled position of law that even if an *ex parte* judgment and decree is passed by a competent civil court, it would be binding on the defendants. As rightly pointed out by the learned Senior Counsel that it has been noticed in a decision of the Hon'ble Supreme Court in the case of **PANDURANG RAMACHANDRA MANDLIK AND ANOTHER VS. SMT.SHANTABAI RAMACHANDRA GHATGE AND OTHERS, AIR 1989 SC 2240** that *ex parte* decrees operate to render the matter decided '*res judicata*' and the defendants' failure to appear will not deprive the plaintiff of the benefit of the decree. However, it was also held that in such an *ex parte* decree, matter that was 'directly and substantially in issue' is the matter in respect of which relief has been claimed by the plaintiff in the plaint and only such issue would become '*res judicata*' and not any other aspect which has not been touched upon by the judgment and decree.



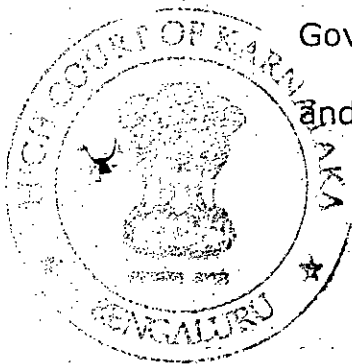
21

- 9 -

WP No. 535 of 2022



8. What is more intriguing is that inspite of the fact that the petitioner's father has been knocking at the doors of the revenue authorities to have his name entered in the land records by virtue of the decree passed by a competent civil court and it was brought to the notice of the revenue authorities such an *ex parte* decree has been passed by the civil court, nevertheless, till date no action has been taken by the State to challenge the *ex parte* decree. What is even more glaring is that when such contention was raised by the State Government and the revenue authorities on the previous occasion when the petitioner's father had approached this Court in W.P.No.10137/2008, nevertheless, no action has been taken by the State Government and the revenue authorities to challenge the said *ex parte* judgment and decree. That being the position, the conduct of the revenue authorities in not appraising the State Government to raise a challenge to the *ex parte* judgment and decree cannot be condoned or countenanced.





9. As a matter of right, more particularly, having regard to the provisions contained in sub-section (3) of Section 132 of the Karnataka Land Revenue Act, 1964, it is clear that the Deputy Commissioner is bound to enter the decree or decision of the court in the Record of Rights or Register of Mutation. In fact, it is provided in sub-section (3) that such orders passed not only by the court but also by an appellate court or revisional court is also bound to be entered in the land records or the Record of Rights.

10. Having regard to the rule of law, this Court is of the considered opinion that the claim of the petitioner to have her name entered in the land records cannot be denied by the revenue authorities. Taking note of the directions given by the Hon'ble Supreme Court that the High Courts in India exercising their jurisdiction under Article 226 have the power to issue a writ of mandamus or a writ in the nature of mandamus or to pass orders and give necessary directions where the Government or a





public authority has failed to exercise or has wrongly exercised the discretion conferred upon it by a statute or a rule or a policy decision of the Government or has exercised such discretion *mala fide* or on irrelevant considerations or by ignoring the relevant considerations and materials or in such a manner as to frustrate the object of conferring such discretion or the policy for implementing which such discretion has been conferred, and in all such cases, where this Court deems it fit and proper to exercise its jurisdiction under Article 226, the writ court may give directions to compel the performance in a proper and lawful manner, that this Court itself may pass an order or give directions which the Government or the public authority should have passed or given had it properly and lawfully exercised its discretion, this Court proceeds to pass the following:

ORDER

(i)

The writ petition is allowed.



24

- 12 -

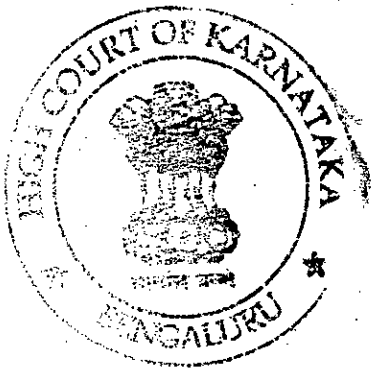
WP No. 535 of 2022



(ii) The impugned endorsement dated 27.04.2021 at Annexure-K issued by the respondent-Special Tahsildar is hereby quashed and set aside.

(iii) A specific direction is issued to the respondent-Tahsildar, Nelamangala Taluk to enter the name of Late. Sri.M.T.Ramalingaiah in the land records in respect of 8 acres of land in Sy.No.159 of Kadabagere village, Dasanapura Hobli, Nelamangala Taluk, Bengaluru Rural District, as expeditiously as possible and at any rate within a period of four weeks from the date of receipt of a certified copy of this order.

(iv) The Tahsildar shall also consider the claim of the petitioner to have her name entered in the land records, by way of inheritance by issuing notice to all the



25

- 13 -

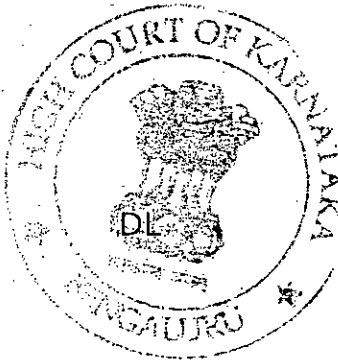
WP No. 535 of 2022



concerned, who claim to have inherited the property along with the petitioner from Sri.M.T.Ramalingaiah.

- (v) If such an application/representation is filed, the Tahsildar shall consider and pass necessary orders as expeditiously as possible and at any rate within a period of two months from the date of submission of such application/representation.

Ordered accordingly.



Sd/-
JUDGE

TRUE COPY
N.M. Basavaraj
16/12/23
Section Officer
High Court of Karnataka
Bangalore - 560 001

- a) The date on which the application was made
b) The date on which charges and additional charges (if any) are paid for
c) The date on which charges and additional charges, if any are deposited/Paid
d) The date on which the copy is ready
e) The date on which the copy is ready
f) The date on which the copy is ready
g) The date on which the copy is ready
h) The date on which the copy is ready
i) The date on which the copy is ready
j) The date on which the copy is ready
k) The date on which the copy is ready
l) The date on which the copy is ready
m) The date on which the copy is ready
n) The date on which the copy is ready
o) The date on which the copy is ready
p) The date on which the copy is ready
q) The date on which the copy is ready
r) The date on which the copy is ready
s) The date on which the copy is ready
t) The date on which the copy is ready
u) The date on which the copy is ready
v) The date on which the copy is ready
w) The date on which the copy is ready
x) The date on which the copy is ready
y) The date on which the copy is ready
z) The date on which the copy is ready

— 26 — 4

**IN THE HIGH COURT OF KARNATAKA AT
BENGALURU
(ORIGINAL JURISDICTION)**

WRIT PETITION No. 535 /2022 (K4)

BETWEEN:

Dr. Vineeth B R
D/o Late.M.T.Ramalingaiah,
Aged about 53 years,
R/a: No.1427, 2nd Cross,
Bandigowda Layout,
Mandya City-571401

...Petitioner

AND:

1. The State of Karnataka

Rep by Secretary
Department of Revenue
VikasaSoudha,
Dr. B.R.AmbedkarVeedhi,
Bengaluru - 560 001

2. The Deputy Commissioner

Bangalore North,
Kempegowda Road,
Bangalore-560009

3. The Asst. Commissioner

Bangalore North Sub-Division,
Kempegowda Road,
Bangalore-560009

4. The Tahsildar

Nelamangala Taluk,
Bangalore North,
Bengaluru-562123

5. The Special Tahsildar

Bangalore North Taluk,
Bengaluru-562123.

....Respondents

f

**MEMORANDUM OF WRIT PETITION UNDER ARTICLES 226
& 227 OF THE CONSTITUTION OF INDIA**

The petitioners above named most respectfully submits as under:-

1. The petitioner father one Sri.M.T.Ramalingaiah having cultivated and developed fruit bearing trees such as Mango, Tamrind, etc., in Sy No..159 of Kadalgere Village, NelamangalaHobli, Bengaluru Taluk in an extent of 8 acres was the beneficiary of an order of grant by the orders passed by the Government dated 21.08.1963 and the Saguvalli chit was issued on 04.10.1963. The copy of the grant is produced as **Annexure-A & A1.** However, this order of grant appears to have been challenged in WP No. 1570/1964 and this Hon'ble Court by an order dated.16.12.1966 had set aside the grant orders. Notwithstanding such cancellation, the possession was never resumed and the said M.T.Ramalingaiah had continued to cultivate and the revenue entries were also reflected in his name upto 1993-94. He had preferred an application before the Assistant Commissioner for continuation of entries in Revision (P) 11/1994-95 which appears to have been dismissed on 12.09.1994. The copy of the order dated.12.09.1994 is produced as **Annexure-B.** The said Ramalingaiah filed a suit in

J.L.

O.S.No.394/1998 for a relief of declaration to declare him as having perfected his title by adverse possession and for consequential injunction on the file of the II Addl. Civil Judge (Sr.Division), Bengaluru Rural District. The suit has been decreed by the judgement and decree dated.22.12.2001. The copy of the judgement & decree is produced as Annexure-C & D, respectively. And it is necessary to state that the judgement and decree has become final.

2. It is in this interregnum that the entries had already been discontinued from the said M.T.Ramalingaiah and as such he had made an application seeking restoration of entries before and even after the decree to all the respondents. The petitioner father had approached this Hon'ble Court in seeking for a direction to effect khata in respect of the property which is subject matter of the suit in W.P.No.10137/2008. The writ petition has been allowed with by the order dated.18.03.2009 as evident from Annexure-E and the following observations are made:-

"3. Learned Government Pleader appearing for the respondents submitted that by granting reasonable time a

[Signature]

direction may be issued to the respondents to effect the revenue entries in favor of the petitioner/plaintiff.

4. In view of the above submissions and in the light of the judgment and decree passed in O.S.No.394/1998, the respondents are bound to affect khata in favour of the petitioners/plaintiff in all the revenue records. However, the same has not been affected.

5. Hence, I pass the following order;

The writ petition is allowed directing the respondents to pass an appropriate order pursuant to the representation as per Annexure-D dated 30th September 2004 in accordance with law, within a period of three months from the date of receipt of a copy of this order."

3. Though these directions had been issued during March 2009 itself, no entries had been made and the said M.T.Ramalingaiah had died on 10.08.2010. The copy of the death certificate is produced as Annexure-F.

4. The efforts to get the entries changed had been pursued by the widow of M.T.Ramalingaiah namely Susheela during her life time and she also died on 24.05.2016. The copy of the death certificate is produced as Annexure-G. The petitioner is the legal



- 30 -

representative of M.T.Ramalingaiah and P.Susheela. Representations were given by the petitioner's father & mother is produced as Annexure-H & H1.

5. Despite the decree passed in terms of Annexure-C&D and the directions issued by this Hon'ble court as per Annexure-E has become final, the entries continue to be in the name of the government and the petitioner had also filed an application requesting for change of entries but the 5th respondent Special Tahsildar has issued an endorsement dated 27.04.2021 that grant records are unavailable. The copy of representation dated 11.01.2021 and the endorsement dated 27.04.2021 is produced as Annexure-J & K. The possession is also sought to be disturbed after issuance of the endorsement on 27.04.2021 by putting up the board but the petitioner continues to be in possession. The copy of the recent RTC extract is produced as Annexure-L. The photograph of the board put up in the property is produced as Annexure-M to M3.

6. The petitioner is aggrieved by the endorsement dated 27.04.2021 and also the inaction on the part of the respondent authorities despite the decree and the directions in terms of Annexure-C to D and having no other alternative and efficacious



remedy for the redressal of her grievance, prefers this writ petition urging the following amongst other grounds.

7. The petitioner has not filed any other case before any court of law or authority on the same cause of action.

GROUND

8. Chapter 9 of the Karnataka Land Revenue Act which deals with the record of rights requires that any acquisition of rights in any manner requires to be reported. But the exception thereto is under proviso to Section 135 where a suit filed for declaration under Specific Relief Act, would regulate the entries and the language employed under the proviso is that "the entry in record or registers shall be amended in accordance with any such declaration". Annexure-A is the judgement passed in O.S.No. 394/1998 declaring the plaintiffs has having been become the owners by means of adverse possession and an order of injunction is also granted. This judgement and decree have also become final. Further, this Hon'ble Court in W.P.No.10137/2008 vide orders dated.18.03.2008, has specifically recorded the government having considered to effect the entries and also recorded a finding that the judgement and decree is binding on the respondents for effecting the entries. But for the demise of M.T.Ramalingaiah, the further proceedings pursuant to

J.P.

Annexure-C in the nature of contempt or otherwise appears not to have pursued, but a widow had also given several representations followed by the representations given by the petitioner which has now resulted in an endorsement having absolutely no semblance to the nature of rights claimed by means of representations and the orders of the courts. Therefore, endorsement is extraneous to the cause. In such circumstances the endorsement requires to be set aside.

9. The scheme of the Karnataka Land Revenue Act in so far as maintaining the entries are concerned, as also in the dictums of this Hon'ble court in the case of **Smt. Jayamma vs The State of Karnataka ILR 2020 KAR 1449**, It has been held that the revenue entries should follow the outcome of the suit or the judgments which are passed in the civil courts are binding upon the revenue entries for effecting such changes in terms of the decree that may be passed. This is in substance the intent even under the proviso to Section 135 of the KLR act. Despite an earlier direction, the revenue authorities have not effected the entries and therefore it is necessary to direct the change the entries instead of a mere consideration on quashing the endorsement.

D.R.

GROUND FOR INTERIM PRAYER

10. There has been some mistake on the part of the revenue authorities by putting up a board seeking to cause interference. Possibility of creating third party interest or rights also looms large necessitating the seeking of an interim prayer.

PRAYER

WHEREFORE, the petitioner most humbly prays that this Hon'ble Court be pleased to;

a) **ISSUE A Writ in the nature certiorari** or any other writ of appropriate nature to quash the endorsement dated.27.04.2021 issued by the 5th respondent vide. No. RRT(D)/CR600/20-21, **Annexure-K** and directing the respondents to effect the entries in the name of the petitioner as the LR's of M.T Ramalingaiah in furtherance of the Judgment and Decree in O.S.No.394/1998 passed on the file of the 2nd Addl. Civil Judge (Sr.Dvn) Bengaluru Rural District vide **Annexure-C & D** and in furtherance of the orders passed by this Hon'ble Court in W.P.No.10137/2008, dated.18.03.2009 vide **Annexure-E;** and

S.L.

34

b) PASS such other order or orders as this Hon'ble Court deems appropriate in the ends of justice and equity.

INTERIM PRAYER

PENDING disposal of the above writ petition, the petitioner most humbly prays that this Hon'ble Court be pleased to stay the dispossession of the petitioner by the respondents or creation of any third-party rights in respect of Sy.No.159 measuring 8 acres of Kadalagere Village, Nelamangala Hobli, Bengaluru Rural District, to meet the ends of justice and equity.

Place: Bengaluru

Date: 05.01.2022

Address for Service

Smt.SIRI RAJASHEKAR

LEX NEXUS

No.22, 1st Floor, 1st Cross,

Madhavanagar,

Bengaluru-56001

PH:9663311279

Advocate for Petitioner

SIRI RAJASHEKAR

Roll No. KAR/1071/2016

- 13 -

- 35 -

IN THE HIGH COURT OF KARNATAKA AT BENGALURU

W.P.No. _____/2021

Between:

Dr. Vineeth B.R & Ors
And

....Petitioners

State of Karnataka & ors.

.....Respondents

VERIFYING AFFIDAVIT

I, Dr.Vineeth B R d/o Late M.T.Ramalingaiah aged about 53 yrs , residing at No. 1427, 2ND Cross, Bandigowda Layout Mandya City- 571401 today at Bengaluru do hereby solemnly state on oath as follows:-

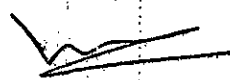
1. I am the Petitioner no-1 in the above case and well conversant with the facts of the case. And swearing on behalf of other petitioners also.

2. I submit that the averments contained in the accompanying petition at para's 1 to 10 are true and correct, to the best of my knowledge, information and belief.

3. Documents produced as Annexure A to m₃ are true copies of originals.

Identified by me


SRI RAJASHEKAR
Roll No. KAR/1071/2016
Place: Bengaluru


Deponent

Date: 05/01/2022.

No. of . Corrections

ANNEXURE-A

Grant of land - Sri M.T. Ramalingiah, 8 Acres
of S.No.159 of Kadabagere, Halamangala
Taluk, Bangalore Rural District - Sanctioned.

PROCEEDINGS OF THE GOVERNMENT OF MYSORE.
ORDER NO.KD 250 LND 63, BANGALORE DATED 21st AUGUST 1963. Bangalore District.

1) Correspondence ending with letter No.LND 1.SR.817/62-63 dated 10th July 1963 of the Divisional Commissioner, Bangalore Division, Bangalore.

Preamble:

One Sri M.T. Ramalingiah has applied for grant of 12 acres of land out of S.No.159 of Kadabagere village, Halamangala Taluk Bangalore District and his request was rejected by the Deputy Commissioner, Bangalore, in his official memorandum No.D.Dis. LND.SR 1.381/60 dated 16th July 1962 on the ground that the Gomal for the village settle is insufficient.

The petitioner presented a petition to the Divisional Commissioner, Bangalore, and the Government stating that he is an adjacent holder of the survey number in question and he is intends to plant fruit bearing trees etc. and requesting for the grant of land payed for by him.

The Divisional Commissioner, Bangalore Division has stated that the applicant is an adjacent land holder of S.No.177 and he has raised fruit bearing trees such as Mango, Tamarind and Cashewnut etc. that the villagers have no objection for the grant of land in favour of the applicant though the Gomal for the village settle is insufficient as the survey number in question is full of rocks and stones and even grass is not growing and has therefore recommended sanction of Government to the grant of 8 acres of land in favour of the applicant at an upset price of Rs.30/- per acre as there is no use or reserving the land as Gomal.

Order:-

Sanction in accord to the appropriation of 8 acres (eight acres) of land out of S.No.159 of Kadabagere village, Halamangala Taluk, and its grant in favour of Sri M.T. Ramalingiah at an upset price of Rs.30/- (Rupees thirty only) per acre for growing fruit trees.

By Order and in the name of
the Governor of Mysore.

Sd/- H. H. Siddiqui

Under Secretary to Government,
Revenue Department.

To

The Divisional Commissioner, Bangalore Division
with records.
The Commissioner for Settlement and Land Records, Bangalore.
The Deputy Commissioner, Bangalore Rural District, Bangalore.
Weekly Gazette.

nr/10

TRUE COPY

ADVOCATE

TYPED COPY of Draft - A
Relevant portion.

37

PROCEEDINGS OF THE GOVERNMENT OF MYSORE.

ORDER NO.RD 250 LND 63, banglore dated 21st august 1963:-

1) Correspondence ending with letter No.LND 1.SR.817/62-63 dated 10th July 1963 of the Divisional memorandum commissioner Bangalore Division, Bangalore.

Preamble:

One Sri M.T.Ramalingiah has applied for grant of 12 acers of land out of S.No.159 of Kadabagera village, Nelamangala taluk Bangalore. district and his request was rejected by the deputy commissioner Bangalore in his official memorandumno. D. DIS.LND.SR 1.381/60 dated od 16th July 1962 on the ground that the gomal, for the village cattle in insufficient.

The petitioner presented a petition to the Divisional Commissioner, Bangalore, and the Government stating that he is an adjacent holder of the survey number in question and He intends to plant fruit bearing trees also and requesting for the grant of land prayed for by him.

The divisional commissioner , Bangalore Division has statedthat the applicant is an adjacent land holder of S.No.177 and the has raised fruitbearing trees such as mango, tamarind ,coconut etc., that the villagers have no objection for the grant of land in favour of the applicant though the Gomal for the village cattle in insufficient as the surveynumber in question is full of rooks and stones and even grass is not Growing and led thereforerecommended sanction of Government to the grant of 8 acres of land in favour of the applicant at an upset price of Rs 30/- per acerof there is no useof reserving the land ofgomal

Order:-

Sanaction in accorded to the appropriation of 8 acres(eight acres) of land out of S.No. 159 of Kadabageravillage, Nelamangala taluk and its grant in favour of Sri M.T Ramalingaiah at an upset price of RS 30/- (rupees thirty only)per acer for growing fruit trees.

-16-

4. ಆದರಂತು, ಆ ಜಮೀನಿನ ಮೂಲಕ ಹಾಗೆಯೇ ಹೋಗುವ ಅಥವಾ ಆ ಜಮೀನಿನ ಸುತ್ತಲೂ ಇ
ಎಲ್ಲ ರಸ್ತೆಗಳ ಮತ್ತು ದಾಂಗಳ ಮತ್ತು ನೀರಿನ ಕೊಂಗಳ ವಿನಯದಲ್ಲಿಯೂ ಸರ್ಕಾರದವರಿಗೆ; ಅಥವಾ ಸದರಿ ಜಮೀನಿನ
ಅಕ್ಕಪಕ್ಕದ ಅಥವಾ ಅದರ ಸಮೀಪದಲ್ಲಿರುವ ಜಮೀನುಗಳ ಮಾಲೀಕರಿಗೆ ಅಥವಾ ಗ್ರಾಮಸ್ಥರಿಗೆ ಹಾಲಿ ಇರತಕ್ಕ ಹಕ್ಕು
ಗಳಿಗೆ ಅಥವಾ ಮಾನ್ಯಾಲು ಮೇರೆಗೆ ನಡೆದುಬಂದಿರುವ ಹಕ್ಕುಗಳಿಗೆ ಆಗಲಿ ಈ ಮಾಲೀಕತೆಯ ದಸ್ತಾವೇಜಿನಲ್ಲಿರುವುದು
ಮಾಪುಮಾ, ಬಂಧನವನ್ನು ಒಟ್ಟುಮಾಡತಕ್ಕದ್ದಲ್ಲ.

ಅಧವಾ ಹೆವಾಲ್ತೆ ದಾರರು ಸದರಿ ಜಮೀನಿನ ಸೇವೆ ಅಥವಾ ಅದರೊಳಗೆ ಯೋಜಿಸಬಹುದಾದ ಲೋಹಗಳು ಅಥವಾ ಕಲ್ಲಿದ್ದಲು ಅಥವಾ ರತ್ನಗಳು ಇವುಗಳನ್ನು ಬಿಟ್ಟು ಇತರ ಖನಿಜಗಳನ್ನು ಎಂದರೆ, ಮುರಡು ಕಲ್ಲು, ಸುಣ್ಣ ಕಲ್ಲು ಮತ್ತು ಇತರ ಸಾಧಾರಣ ಖನಿಜಗಳು ಇವುಗಳನ್ನು ವ್ಯಾಪಾರಕ್ಕಾಗಿ ತೆಗೆದುಕೊಳ್ಳದೆ ಸದರಿ _____ ಎಂಬುದು, ಅವರ ವಾರಸುದಾರರ ಅಥವಾ ಅವರ ಪ್ರತಿನಿಧಿಗಳ ವಾತ್ಸವನಾದ ಸ್ವಂತ ಉಪಯೋಗಕ್ಕಾಗಿ ಉಚಿತವಾಗಿ ತೆಗೆದುಕೊಳ್ಳಲು ಅವರಿಗೆ ಅವಕಾಶವಿರತಕ್ಕದ್ದು.

7. ಪರಂತ್ಪು, ಒಲ್ಲಾಂಡ್ ರೆವಿನ್ಯೂ ಕೋಡಿನ ಮತ್ತು ಸದರಿ ಕೋಡಿನ ಮೇರೆಗೆ ವಿವರಿಸಿರುವ ನಿಯಂತ್ರಣಗಳ ಪ್ರಕಾರ ತತ್ಕಾಲದಲ್ಲಿ ದಾರಿಯಲ್ಲಿ ರಬ್ಬರದಾದ, ಇತರೆ ಹಾನಿಕಾರಕ ನಿಯಮಗಳಿಗೆ ಸಾಮಾನ್ಯವಾಗಿ ಒಳಪಟ್ಟು ಸಹ ಈ ಮೂಲಕ ಅನುಷ್ಠಾನವನ್ನು ಕೊಡಲಾಗಿದೆ.

[illegible]

1963 మార్చి 10
 పూర్వ విరాళము బట్టించు అధికారికి
 శ్రీ పద్మావతి నమోదించబడినది.

19...6.3-ನೆಯ ಇಸವಿ.
Certified that this is a

TRUE COPY

23/12/02 M.P.P.B. on behalf
K. M. MANAMOHAN, W.A., B.L.
ADVOCATE & NOTARY
No. 687, Chickpet
Udupi Hotel Ups, Balepet Circle,
BANGALORE - 560 053.

TRUE COPY
ADVOCATE

00 sheets each—28-5-62

ಗ್ರಾಂಟು ಸರ್ವಿಸಿಟಿಟು ———- ಲ್ಯಾಂಡ್ ರೆವಿನ್ಯೂ ನಿಬಂಧನೆಗಳ ಇ ಪರಿಶಿಷ್ಟ.

ಹಿಡುವಳಿಯಲ್ಲಿಲ್ಲದ ಸರ್ಕಾರಿ ಜಮೀನನ್ನು ಸಾಗುವಳಿ ವಿಲೇವಾರಿಮಾಡಿ ಹಿಡುವಳಿ ಹಕ್ಕನ್ನು ಕೊಡುವುದಕ್ಕೆ ಏರ್ಪಟ್ಟ ನಿಬಂಧನೆಗಳ ಮೇರೆಗೆ ಈ ಕೆಳಗೆ ಬರೆಯಲ್ಪಟ್ಟಿರುವ ಷೆಡ್ಯೂಲ್‌ನಲ್ಲಿ ವಿವರಿಸಲ್ಪಟ್ಟಿರುವ ಜಮೀನು. ವಿಕ್ರಯಿಸಲ್ಪಟ್ಟು ಶ್ರೀ. ಎಂ.ಟಿ.ರಾಮಲಿಂಗಯ್ಯ ಬಿನ್ ದೊಡ್ಡ ತಿಮ್ಮಯ್ಯ ಎಂಬುವರ ಬಹಿರಂಗವಾದ ಹರಾಜಿನಲ್ಲಿ ಅಥವಾ ನಿಯಮಿತವಾದ ಸರ್ಕಾರಿ ಕೆಮ್ಮತ್ತಿಗೆ ಕೊಂಡುಕೊಂಡಿರುವುದರಿಂದಲೂ ಮತ್ತು ಸದರಿ ಹರಾಜು ಕ್ರಮವಾಗ ಮಂಜೂರಾಡಲ್ಪಟ್ಟಿರುವುದಲ್ಲದೆ ಎಂಬುವರು ಸದರಿ ಜಮೀನಿನ ಕ್ರಯದಾರರೆಂದು ಕ್ರಮವಾಗಿ ಪ್ರಕಟ

ಸಲ್ಪಟ್ಟಿರುವುದರಿಂದಳು ಮತ್ತು ಸದರಿ _____ ಎಂಬವರು _____ ಸಲ್ಪಟ್ಟಿರುವುದರಿಂದಳು ಮತ್ತು ಸದರಿ _____ ಪೂರಾ ಹಣವನ್ನು ಸರ್ಕಾರಿ ಖಜಾನೆಗೆ ರೂಪಾಯಿಗಳ ಕ್ರಯದ ಮೊಬಲಗಿನ _____ ನೆಲಮಂಗಲ ತಾಲ್ಲೂಕಿನ ಪಾವತಿಮಾಡುವುದರಿಂದಲೂ _____ ಅವಮಂತ್ರನಾದ ಶ್ರೀ ಬಿ.ಹನುಮಂತಯ್ಯ ಬಿ.ಎ ಎಂಬ ನಾನು ಸದರಿ ಶ್ರೀ. ಎಂ.ಆಡಿ ರಾಮಲಿಂಗಯ್ಯ ಬಿನ್ ದೊಡ್ಡ ತಿಮ್ಮಯ್ಯ ಎಂಬಬರಿಗೆ ಸದರಿ ಜಮೀನಿನ ಹಿಡುವಳಿಯನ್ನು ಹೊಂದಲು ಈ ಮೂಲಕ ಅಪ್ಪಣೆಯನ್ನು ಕೊಟ್ಟಿರುತ್ತೇನೆ. ಅಲ್ಲದ ಆ ಜಮೀನನ್ನು ಸದರಿ _____ ಎಂಬವರಿಗೂ ಅವರ ವಾರಸುದಾರರಿಗೂ ಅವರ ಪ್ರತಿ ನಿಧಿಗಳಿಗೂ ಮತ್ತು ಹೆವಾಲ್ವಿದಾರರಿಗೂ ಸರ್ವೆ ಖಾತರಿ (ಸರ್ವೆಗ್ರಾರಂಟಿ) ನಿಬಂಧನೆಯ ಪರತ್ತುಗಳ ಮೇರೆಗೆ ಈ ಮೂಲಕ ಕೊಟ್ಟು ಖಾಯಂ ಮಾಡಿರುತ್ತೇನೆ. ಈ ರೀತಿಯಾಗಿ ಕೊಟ್ಟು ಖಾಯಂ ಮಾಡಿರುವುದು ಲ್ಯಾಂಡ್ ರೆವೆನ್ಯೂ ಕೋಡಿನ ನಿಯಮಗಳಿಗನುಸಾರವಾಗಿ ಬರುವ ಆಪೀಲಿನಲ್ಲಿ ಅಥವಾ ರಿವಿಜ್ ತೀರ್ಮಾನಸಲ್ಲಿರದಾಗುವುದಕ್ಕೆ ಅಥವಾ ಬದಲಾಯಿಸಲ್ಪಡುವುದಕ್ಕೆ ಓಳ ಪಟ್ಟಿರುತ್ತದೆ. ಮತ್ತು ಈ ಮುಂದೆ ನಮೂದಿಸಲ್ಪಡುವ ಷರತ್ತಿನ ನಿಯಮಗಳಿಗೂ, ಆಯಾ ಕಾಲದಲ್ಲಿ ಜಾರಿಯಲ್ಲಿರುವ ಕಾನೂನಿನ ಮೇರೆಗೆ ಆದು ಪುನರ್ವಿಮರ್ಶೆಯಿಂದ ಬದಲಾಯಿಸಲ್ಪಡುವವರಿಗೆ ಕ್ರಮವಾಗಿ ಕೊಡುತ್ತಾ ಬರಬೇಕೆಂಬ ಷರತ್ತಿಗೂ ಒಳಪಟ್ಟ ಆದು ಮೇಲೆ ಹೇಳಿದಂತೆ ಅವರೆಲ್ಲರಿಗೂ ನಡೆದುಬರತಕ್ಕದ್ದು.

1. ಷರಂತು, ಈ ಕಂದಾಯವನ್ನು ಲ್ಯಾಂಡ್ ರೆವೆನ್ಯೂ ಕೋಡಿನ ನಿಯಮಗಳ ಮೇರೆಗೆ ಅಗಿಂದಾಗೈ ಈ ಸಂಬಂಧದಲ್ಲಿ ವಿಧಿಸಬಹುದಾದ ನಿಬಂಧನೆಗಳ ಪ್ರಕಾರ ಪ್ರತಿಯೊಂದು ರೆವೆನ್ಯೂ ಸಾಲಗೂ ಕೊಡುತ್ತಾ ಬರಬೇಕು, ಇದಕ್ಕೆ ತಪ್ಪಿದಲ್ಲಿ ಈ ಮೊಬಲಗನ್ನು ಲ್ಯಾಂಡ್ ರೆವಿನ್ಯೂ ಕೋಡಿನಿಂದಲೂ ಮತ್ತು ಅದರ ಮೇರೆಗೆ ಏರ್ಪಟ್ಟಿರುವ ನಿಬಂಧನೆಗಳಿಂದಲೂ ವಿಧಾಯಕವಾಗಿರುವ ರೀತಿಯಲ್ಲಿ ಬಲಾತ್ಕಾರದ ನಡೆವಳಿಕೆಗಳನ್ನು ಜರುಗಿಸಿ ವಸೂಲಾಡಲಾಗುವುದು.

2. ಷರಂತು, ಸಾಮಾನ್ಯವಾದ ಉದ್ದೇಶಗಳಿಗಾಗಿ ಅಥವಾ ಮುನಿಸಿಪಲ್ ಅಥವಾ ಇತರ ಸ್ಥಳಿ ಉದ್ದೇಶಗಳಿಗಾಗಿ ಕಾನೂನಿನಿಂದ ವಿಧಾಯಕವಾಗಿರುವ ಅಥವಾ ವಿಧಾಯಕವಾಗಿರುವ ಅಥವಾ ವಿಧಾಯಕಮಾಡಲ್ಪಡಬಹುದಾದ ಜಮೀನು ಕಂದಾಯವಲ್ಲದ ಇತರೆ ವರಿಗಳನ್ನೂ ಮತ್ತು ಸೆಸ್ಸುಗಳನ್ನು ಈ ಜಮೀನಿನ ಮೇಲೆ ವಿಧಿಸುವುದಕ್ಕೆ ಈ ಮಾಲೀಕತೆಯ ದಾಸ್ತಾವೇಜಿನ ದೆಸೆಯಿಂದ ಯಾವ ಅಭ್ಯಂತರವೂ ಇರತಕ್ಕದ್ದಲ್ಲ.

3. ಷರಂತು, ಆ ಗ್ರಾಮದಲ್ಲಿ ಜೀರ್ಣೋದ್ಧಾರಮಾಡಲ್ಪಟ್ಟ ಯಾವ ಮೇಜರ್ ಮತ್ತು ಮೈನರ್ ಕೆರೆಗಳನ್ನು ಸರಿಯಾದ ದುರಸ್ತಿನಲ್ಲಿಡಬೇಕಾದ ಮಾಮೂಲ್ಯ ಜವಾಬ್ದಾರಿಯು ಸದರಿ ಸರ್ವೆ ನಂಬರಿನ ಹಿಡುವಳಿದಾರರಾದ ಕಾರಣದಿಂದ ಅಥವಾ ಇತರ ನ್ಯಾಯಸಮ್ಮಿತವಾದ ಮಾಲೀಕರಾದ ಕಾರಣದಿಂದ ಸದರಿ _____ ಎಂಬವರ ಮೇಲೆ ಹೊರಿಸಲ್ಪಡುತ್ತದೆಯೋ ಆ ಗ್ರಾಮದ ಅಂಥಾ ಕೆರೆಗಳನ್ನು ಮೇಲ್ಕಂಡ _____ ಎಂಬವರು ಅಥವಾ ಸದರಿ ಜಮೀನಿನ ನ್ಯಾಯ ಸಮ್ಮಿತವಾದ ಇತರ ಮಾಲೀಕರು ಇನ್ನು ಮುಂದೆ ಎಲ್ಲ ಕಾಲಗಳಲ್ಲಿಯೂ ತಮ್ಮ ಸ್ವಂತ ವೆಚ್ಚದಿಂದ ಒಳ್ಳೆ ದುರಸ್ತಿನಲ್ಲಿಡತಕ್ಕದ್ದು ಮತ್ತು ಅವರು ಸದರಿ ಜಮೀನಿನಲ್ಲಿಯೂ ಅದರ ಸುತ್ತಲೂ ಇರುವ ಎಲ್ಲೆಯ ಗುರುತುಗಳನ್ನೂ ಸರಿಯಾದ ಸ್ಥಿತಿಯಲ್ಲಿ ಕಾದಾಡಿಕೊಂಡು ಬರತಕ್ಕದ್ದು. ಅವರು ಈ ಕೆಲಸಗಳನ್ನು ಮಾಡದೆ ತಪ್ಪಿದಲ್ಲಿ ಅವರಿಗೆ ಕ್ರಮವಾಗಿ ನೋಟೀಸನ್ನು ಕೊಟ್ಟಿರುವಾಯ ಈ ವಿಚಾರದಲ್ಲಿ ಅವರ ಜವಾಬ್ದಾರಿಯು ಇರುವಷ್ಟರ ಮಟ್ಟಿಗೆ ಸದರಿ

ಕೆರೆಗಳನ್ನು ದುರಸ್ತಿನಲ್ಲಿಟ್ಟುಕೊಳ್ಳತಕ್ಕ ಕೆಲಸಗಳನ್ನು ಮಾಡಿಸುವುದೂ ಸದರಿ ಎಲ್ಲೆಯ ಗುರುತುಗಳ ದುರಸ್ತಿ ಕೆಲಸಗಳನ್ನು ಮಾಡಿಸುವುದೂ ಮತ್ತು ಅಂಥ ದುರಸ್ತಿ ಕೆಲಸಗಳಿಗೆ ತಗಲುವ ಖರ್ಚನ್ನು ಸದರಿ _____ ಎಂಬುವರಿಂದ ಅಥವಾ ಆ ಜಮೀನಿನ ನ್ಯಾಯವಾದ ಮಾಲೀಕನಾದ ಇತರೆ ಮನುಷ್ಯನಿಂದ ಕಂದಾಯದ ಬಾಕಿಯಂತೆ ವಾಸೂಲ್ಯಾಡುವುದು ಸಹ ಮೈಸೂರು ಸರ್ಕಾರದವರಿಗೆ ನ್ಯಾಯ ಸಮ್ಮತವಾಗಿರತಕ್ಕದ್ದು.

4. ಷರಂತು, ಆ ಜಮೀನಿನ ಮೂಲಕ ಹಾಯ್ದು ಹೋಗುವ ಅಥವಾ ಆ ಜಮೀನಿನ ಸುತ್ತಲೂ ಇಷ್ಟೆಲ್ಲ ರಸ್ತೆಗಳ ಮತ್ತು ದಾರಿಗಳ ಮತ್ತು ನೀರಿನ ಝರಿಗಳ ವಿಷಯದಲ್ಲಿಯೂ ಸರ್ಕಾರದವರಿಗೆ, ಅಥವಾ ಸದರಿ ಜಮೀನಿನ ಅಕ್ಕಪಕ್ಕದ ಅಥವಾ ಅದರ ಸಮೀಪದಲ್ಲಿರುವ ಜಮೀನುಗಳ ಮಾಲೀಕರಿಗೆ ಅಥವಾ ಗ್ರಾಮಸ್ಥರಿಗೆ ಹಾಲಿ ಇರತಕ್ಕ ಹಕ್ಕುಗಳಿಗೇ ಅಥವಾ ಮಾಮೂಲು ಮೇರೆಗೆ ನಡೆದುಬಂದಿರುವ ಹಕ್ಕುಗಳಿಗೇ ಆಗಲಿ ಇ ಮಾಲೀಕತೆಯ ದಸ್ತಾವೇಜಿನಲ್ಲಿರುವುದು ಯಾವುದೂ ಬಾಧಕವನ್ನುಂಟುಮಾಡತಕ್ಕದಲ್ಲ.

5. ಷರಂತು ಸದರಿ ಶ್ರೀ. ಎಂ.ಟಿ.ರಾಮಲಿಂಗಯ್ಯ ಬಿನ್ ದೊಡ್ಡ ತಮ್ಮಯ್ಯ ಎಂಬುವರಿಗಾಗಲಿ ಆತನ ವಾರಸುದಾರರಿಗಾಗಲಿ, ಪ್ರತಿನಿಧಿಗಳಿಗಾಗಲಿ ಅಥವಾ ಹವಾಲ್ತಿದಾರರಿಗಾಗಲಿ ಈ ಜಮೀನಿನ ಮೇಲೆ ಅಥವಾ ಈ ಜಮೀನಿನ ಓಳಗಡೆ ಅಥವಾ ಈ ಜಮೀನಿನ ಪೂರ್ವ ಭಾಗದಲ್ಲಾಗಲಿ ಈಗ ಇರುವ ಅಥವಾ ಮುಂದೆ ಯಾವ ಕಾಲದಲ್ಲಿಯೇ ಆಗಲಿ ಕಂಡುಹಿಡಿಯಲ್ಪಡಬಹುದಾದ ರತ್ನಗಳು, ಚಿನ್ನ ಮತ್ತು ಇತರ ಖನಿಜಗಳು ಅಥವಾ ಕಲ್ಲಿಪ್ಪಲು ಇವುಗಳನ್ನುಳ್ಳ ಅಥವಾ ಇವುಗಳಿವೆಯೆಂದು ಊಹಿಸಲ್ಪಡುವ ಅಥವಾ ಬಂಡೆಯ ವಿಷಯದಲ್ಲಿ ಯಾವ ಹಕ್ಕುಗಳಿ ಸ್ವಾಮ್ಯವಾಗಲಿ ಅಥವಾ ಪ್ರಯೋಜನಾಂಶವಾಗಲಿ ಈ ಮಾಲೀಕತೆಯ ದಸ್ತಾವೇಜಿನ, ದೆಸೆಯಿಂದ ಉಂಟಾಗುವುದೆಂದು ಅಥವಾ ಇರುವಂತೆ ಭಾವಿಸಲ್ಪಡತಕ್ಕದಲ್ಲ. ಈ ಕೆಳಗೆ ಕಂಡ ಷರತ್ತಿಗೊಲಪಟ್ಟ ಇವುಗಳೆಲ್ಲವೂ ಹಾಲಿ ಜಾರಿಯಲ್ಲಿರುವ ಷರತ್ತುಗಳ ಮೇಲೆ ಅಥವಾ ಈ ವಿಚಾರದಲ್ಲಿ ಆಗಿಂದಾಗ್ಗೆ ವಿಧಿಸಲ್ಪಡಬಹುದಾದ ಷರತ್ತುಗಳ ಮೇಲೆ ಮೈಸೂರು ಸರ್ಕಾರಕ್ಕೆ ಈ ಮೂಲಕ ಉಳಿಸಿಕೊಳ್ಳಲ್ಪಟ್ಟಿವೆ.

ಅದರೆ ಸದರಿ _____ ಎಂಬುವರು, ಅವರ ವಾರಸುದಾರರು ಪ್ರತಿನಿಧಿಗಳು ಅಥವಾ ಹವಾಲ್ತಿದಾರರು ಸದರಿ ಜಮೀನಿನ ಮೇಲೆ ಅಥವಾ ಅದರೊಳಗೆ ದೊರೆಯಬಹುದಾದ ಲೋಹಗಳು ಅಥವಾ ಕಲ್ಲಿದ್ದಲು ಅಥವಾ ರತ್ನಗಳು ಇವುಗಳನ್ನು ಬಿಟ್ಟು ಇತರ ಖನಿಜಗಳನ್ನು ಎಂದರೆ ಮುರಡು ಕಲ್ಲು, ಸುಣ್ಣ ಕಲ್ಲು ಮತ್ತು ಇತರ ಸಾಧಾರಣ ಖನಿಜಗಳು ಇವುಗಳನ್ನು ವ್ಯಾಪರಕ್ಕಾಗಿ ತೆಗೆದುಕೊಳ್ಳದೆ ಸದರಿ _____ ಎಂಬುವರ ಅವರ ವಾರಸುದಾರರ ಅಥವಾ ಅವರ ಪ್ರತಿನಿಧಿಗಳ ವಾಸ್ತವವಾದ ಸ್ವಂತ ಉಪಯೋಗಕ್ಕಾಗಿ ಉಚಿತವಾಗಿ ತೆಗೆದು ಕೊಳ್ಳಲು ಅವರಿಗೆ ಅವಕಾಶವಿರತಕ್ಕದ್ದು.

6. ಷರಂತು, ಸದರಿ ಜಮೀನಿನಲ್ಲಿರುವ ಗಂಧದ ಮರಗಳು ಮೈಸೂರು ಸರ್ಕಾರಕ್ಕೆ ಸೇರಿದವುಗಳಾಗಿವೆ, ಅವುಗಳಿಗಾಗಿ ಬೋನಸ್ಸು ಮೊಬಲಗನ್ನು ಕೊಡುವ ವಿಚಾರದಲ್ಲಿ ಹಾಲಿ ಇರುವ ಅಥವಾ ಏರ್ಪಡಿಸಲ್ಪಡುವ ನಿಬಂಧನೆಗಳಿಂದ ಅವಕಾಶವಿರುವಷ್ಟರ ಮಟ್ಟಿಗೆ ಹೊರತು, ಸದರಿ ಗಂಧದ ಮರಗಳ ಮೇಲೆ ಸದರಿ _____ ಎಂಚುಚರಿಗೆ ಅಥವಾ ಅವರ ವಾರಸುದಾರರಿಗೆ, ಪ್ರತಿನಿಧಿಗಳಿಗೆ ಅಥವಾ ಹವಾಲ್ತಿದಾರರಿಗೆ ಈ ಮಾಲೀಕತೆಯ ಪತ್ರದಿಂದ ಯಾವ ಹಕ್ಕು ಉಂಟಾಗದಂತೆಯೂ ಅಥವಾ ಇರುವಂತೆಯೂ ಭಾವಿಸಲ್ಪಡತಕ್ಕದಲ್ಲ.

7. ಷರಂತು, ಲ್ಯಾಂಡ್ ರೆವಿನ್ಯೂ ಕೋಡಿನ ಮತ್ತು ಸದರಿ ಕೋಡಿನ ಮೇರೆಗೆ ಏರ್ಪಟ್ಟಿರುವ ನಿಬಂಧನೆಗಳ ಅಥವಾ ತತ್ಕಾಲದಲ್ಲಿ ಜಾರಿಯಲ್ಲಿರಬಹುದಾದ ಇತರೆ ಕಾನೂನಿನ ನಿಯಮಗಳಿಗೆ ಸಾಮಾನ್ಯವಾಗಿ ಒಳಪಟ್ಟು ಸಹ ಜಮೀನಿನ ಅನುಭವವನ್ನು ಕೊಡಲಾಗಿದೆ.

ಡಿಸ್ಕ್ರಿಪ್ಷನ್	ತಾಲ್ಲೂಕು	ಗ್ರಾಮ	ಹೆಸರು (ಯಾವುದಾರರೂ ಇದ್ದರೆ)	ಚಕ್ಕುಬಂದಿ	ಸರ್ವೆ ನಂಬರು	ವಿಸ್ತೀರ್ಣ ಎಕರೆ ಗುಂಟೆ	ಆಕಾರ ರೂ. ನಪ್ಯ
ಬೆಂಗಳೂರು ಗ್ರಾಮಾಂತರ	ನೆಲಮಂಗಲ	ಕಡಬಗೆರೆ (ಹಾಸನಪ ರ ಹೋಬಳಿ)	ಸರ್ವೆ ನಂ. 159 ರಲ್ಲಿ (ಎಂಟು ಎಕರೆ ಜಮೀನು)		ಗುಮ್ಮಲ್ಲ ಪೂಟು ಖರಾಬು ಮಿಶ್ರ ತರಿ ಬಾಗಾಯಿತು	8-00 --- --- 8-00	10-00

ಪೂಟ್ ಖಾರಾಬನ್ನು ಬಿಟ್ಟಿರುವ ಉದ್ದೇಶವನ್ನು ಇಲ್ಲಿ ಸ್ಪಷ್ಟವಾಗಿ ನಮೂದಿಸಬೇಕು.

1963 ನೇಯ ಇಸವಿ ಜೂಲೈ ತಿಂಗಳು 4ನೇ ಯ ತಾರೀಖಾದ ಈ ದಿನ ಕೊಡಲ್ಪಟ್ಟುದು.

43

Translated copy of Annexure -A1

Form No. I

Grant certificate - Land Revenue E scheduled

Whereas, under the rules for the disposal of unoccupied Government. And for cultivation and the grant of occupancy rights the land and specified in the schedule here under written has been sold **M.T. Ramalingaiah S/o Doddathammaiah** and purchased it in public action for upset price and the same has been duly confirmed, declared the purchaser thereof, and whereas the said 'Do' had paid sum of Rs. 260/- to the Government Treasury. The full sum of the purchase money amount to Rs. 240/- in LR 136 dt.25-09-1963 and Rs.20/- R.D 98 Dt. 25-9-1963.

Now, Nelamangala Taluk Amaldar, **B.Hanumanthaiah** permit the said land and hereby grant to **M.T. Ramalingaiah S/o Doddathammaiah** and confirmed subjected of cancellation or modification in appeal or revision under the provisions of the land revenue act, the said land to the said 'Do' his heirs, personal representatives and assigns subject to the provision herein after mentioned and subject also to the

494

regular payment of the land Revenue assessment on the land as fixed under the rules in force for the time being in force.

1. Provided that this assessment shall be paid for each revenue year as per rules subscribed in this behalf from time to time under the provisions of the land revenue act, failing which it will be recoverable in process in the manner prescribed by the land revenue act and rules framed there under.
2. Provided also that this title deed in no way affects the liability of the abovesaid land to succeed rates, taxes, and cesses other there land revenues and as may be imposed by law whether for general municipal or other local purchase.
3. provided also that the said 'D' or other lawful owner of the said land shall at all times where after at his own expenses maintained in good order, the restored major and minor tanks of the village with respect to which the customary obligation to maintain is imposed on the said 'D' by virtue of his being the occupant or other lawful owner of saidand shall put up re

AP5

and maintained in good order the boundary marks around and the said land, failing which it shall be lawful for the state Government after due notice to come the maintenance work of the saidland in so far, his liability in this behalf extents and the repair of the said boundary marks to be carried out to the cost of such maintenance work and each repair as an revenue demand from the said 'D' or other lawful owner.

4. Provided also that nothing in the title deed continued shall affect the existing or customary rates of Government or propitiators of land adjoining or laying near the said land of the villagers common in all existing roads and paths and in storms of water running through or bounding the said land.
5. Providing also that this title deed shall in no way be considered to grant to in any way west in the said 'M.T.Ramalingaiah' his heirs, persons representatives or assigns any right, title or interest in or to precious stones, gold and other minerals or coal or stone or rock containing or supposed to containing precious stones, gold or

dfb

other minerals or coal known to exist or which may at any time hereafter be discovered or under the said law or any part thereof all of which are hereby respectively reserved to the state Government subject to the conditions now in force or which may be prescribed in this behalf from time to time subject to the condition that the said 'D' his heirs, personal representative or assigns shall always be allowed to use from charge any or precious stone which may be found on under the said land and where may be applied to the bonafide private use of the said 'Do' his heirs personal representatives or assigns and no removed for purpose of sale.

6. provided also that this title deed shall not be considered any way to grant to or vest in the said 'D' heirs, personal representatives or assign the right to sandal trees which are hereby revealed to the state government except in so far as the rural that are or may be framed in the matter of the grant of houses for trees may permit.
7. Provided also that the shall be subject further generals to the provisions of the

47

land revenue act and the rule made there
under or any other law by the time being
in force

Land details: for the assessment year 1963-
64

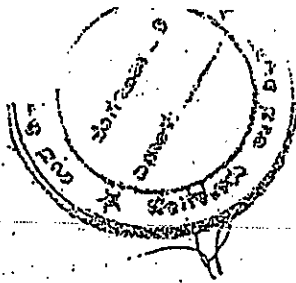
SCHEDULE

District	Taluk	Village	Name if any	Bound array	s. No.	Extent
1	2	3	4	5	6	7
Bangalore	Nelamangala	Kadabagere Dasanapura Hobli	Sy.no. 159 8- Acre land		Total Phutkarab Dry Wet bhagayitu	8-00 Rs.10/ As per Akaarb andh

The purpose for which phutkarab is allowed
to be specifically mentioned here.

Dated this 4th day of October 1963.

Sd/- Tahsildar
Nelamangala Taluk



ලේ. ස. 100

අංක 100-9-65 දින 10 වන සැසි කළ බවට පත් කරන ලදී.

මෙම පත් කිරීමේදී සහභාගී කරගත් සියලුම පක්ෂ මත එකඟ වූහ.

මෙම පත් කිරීමේදී සහභාගී කරගත් සියලුම පක්ෂ මත එකඟ වූහ.

මෙම පත් කිරීමේදී සහභාගී කරගත් සියලුම පක්ෂ මත එකඟ වූහ.

මෙම පත් කිරීමේදී සහභාගී කරගත් සියලුම පක්ෂ මත එකඟ වූහ.

මෙම පත් කිරීමේදී සහභාගී කරගත් සියලුම පක්ෂ මත එකඟ වූහ.

මෙම පත් කිරීමේදී සහභාගී කරගත් සියලුම පක්ෂ මත එකඟ වූහ.

මෙම පත් කිරීමේදී සහභාගී කරගත් සියලුම පක්ෂ මත එකඟ වූහ.

මෙම පත් කිරීමේදී සහභාගී කරගත් සියලුම පක්ෂ මත එකඟ වූහ.

මෙම පත් කිරීමේදී සහභාගී කරගත් සියලුම පක්ෂ මත එකඟ වූහ.

ANNEXURE-B

48

49

- 18 -

(1) ಆದೇಶದ ಗಾ.ಪೂ.ಸಂ. 1530ರ ನಕಲನ್ನು ತನ್ನ ಕಡೆಗೆ
ನಂ.ಆರ್.ಒ.250:ವಲ.ಇ.ಒ. 63 ದಿನಾಂಕ 21-8-63ರಲ್ಲಿ
8-00 ವರ್ಷ ಪೂರ್ಣವನ್ನು ಪೂರೈಸಲು ಸೂಚಿಸುವ ಒಂದು
ತಾಂತ್ರಿಕ ಖಾತೆಯನ್ನು ಹೆಚ್ಚು ಜಮೀನ್ದಾರಿ ಕಂಪೌಂಡ್ ಮಾಡಿ
ಮಾಡುತ್ತ, ಬರಹ, ಮೊ, ಮಹಿ ಸಹ ತನ್ನ ಕಡೆಗೆ ಕಳುಹಿಸುವ
ಬರಹ, ರಾತ್.

Asst. Commr

Asst. Commr's office, Bangalore. ದಿನಾಂಕ 15-6-64ರಲ್ಲಿ ಸೂಚಿಸಲಾಯಿತು.

(3) ಸರ್ಕಾರ ತನ್ನ ಭೂ ಮಂಜೂರಾತಿ ಮಾರ್ಗದರ್ಶಿಯನ್ನು ರದ್ದುಮಾಡಿ
ಸೇಕಾರದ, ಇದಕ್ಕೆ ಮುಕ್ತಾಯವಾದ ಅದೇಶ ಕೊಡುಮಾಡಲಾಗಿದೆ.

(4) ಇದಕ್ಕೆ ಅಡಿಯಲ್ಲಿ ತನ್ನ ಸಗಡುವಳಿಯ ಹೆಚ್ಚು ತನ್ನ ಜಮೀನಿನ ಸುಖೋಪಯೋಗ
ಮಾಡುವುದಕ್ಕಾಗಿ ಪ್ರಯತ್ನಿಸಿದರೆ ಮೇಲೆ ತಾಂತ್ರಿಕ ಖಾತೆಯ ಆಧಾರದ ಮೇಲೆ
ಮುನ್ಸೀಫ ಸೂಚಿಸಲಾಯಿತು. ಇಂಥದೇ ಅದೇಶ ಹೆಚ್ಚುಮಾಡಲಾಗಿದೆ.
ಅದೇ ಹೆಚ್ಚು ಮೊ, ವಿಭಾಗಗಳ ಹೆಚ್ಚುಮಾಡಲಾಗಿದೆ. ಅದೇ ಪ್ರಕಾರವನ್ನು ಇದ್ದು
ಮುಕ್ತಾಯವಾಗುವುದಾಗಿರುತ್ತದೆ.

ಅದೇಶ

ಪ್ರಕಾರವನ್ನು ಪರಿಶೀಲಿಸಲಾಗಿದೆ. ಪ್ರತಿವಾದಿಗಳು ಸರಿ ಇರುವಂತೆ, ಅವನ್ನು
ತಾಗುವ, ಒತ್ತಿಸುವ ಸರ್ಕಾರದ ಅದೇಶ, ಮುನ್ಸೀಫನ, ಮಹಿ ತಾಗುವ ಕಂಪೌಂಡ್
ಮಾಡಲಾಗಿದೆ. ಇದಕ್ಕೆ ಸರ್ಕಾರಗಳನ್ನು ಪರಿಶೀಲಿಸಲಾಗಿದೆ.

ಸರ್ಕಾರದ ಅದೇಶ ನಂ.ಆರ್.ಒ. 250:ವಲ.ಇ.ಒ. 63 ದಿನಾಂಕ 21-8-63ರಲ್ಲಿ
ಭೂ ಮಂಜೂರಾತಿ ಮಾಡಲಾಗಿದೆ.

1570:1964 ದಿನಾಂಕ 16-12-65ರ ಅದೇಶವನ್ನು ವಜಾಕರಿಸಲಾಗಿದೆ. ಅದೇ ಹೆಚ್ಚುಮಾಡಲಾಗಿದೆ.
ಪ್ರತಿವಾದಿಗಳು ಪ್ರಸ್ತಾವಿತ ಜಮೀನನ್ನು ಬಗರ ಪುಟ್ಟು ಆಗಿ ಕೊಂಡುಕೊಳ್ಳುತ್ತಿದ್ದರು.
ಪರಿಗಣಿಸಬೇಕಾಗಿರುತ್ತದೆ. ಅದೇ ಹೆಚ್ಚುಮಾಡಲಾಗಿದೆ. ಭೂ ಕಂಪೌಂಡ್ ಕಾರ್ಯದ ಕಲಂ 25
6ನೇ ಹಾಗೂ 136ರ ಅಡಿಯಲ್ಲಿ ಪ್ರತಿವಾದಿಗಳು ಹೆಚ್ಚುಮಾಡಲಾಗುವ ಖಾತೆಯನ್ನು
ವಜಾಕರಿಸುವುದಾಗಿ ಅದೇಶ ಮಾಡಲಾಗಿದೆ. ಅದೇ ಜಮೀನಿನ ಖಾತೆಯನ್ನು ಸರ್ಕಾರದ
ಹೆಚ್ಚುಮಾಡಲಾಗಿದೆ. ಇದಕ್ಕೆ ಪರಿಶೀಲಿಸಲಾಗಿದೆ. ತಹಶೀಲ್ದಾರರು, ಸುತ್ತ, ತಾಲ್ಲೂಕು
ರವರು ಅದೇಶವನ್ನು ಇದ್ದು ನೀಡುವ ಸೂಚಿಸಲಾಗಿದೆ.

ಅದೇಶ ದಿನಾಂಕ 12-9-64ರಂದು ಅದೇಶವನ್ನು ಹೊರಡಿಸಲಾಗಿದೆ.

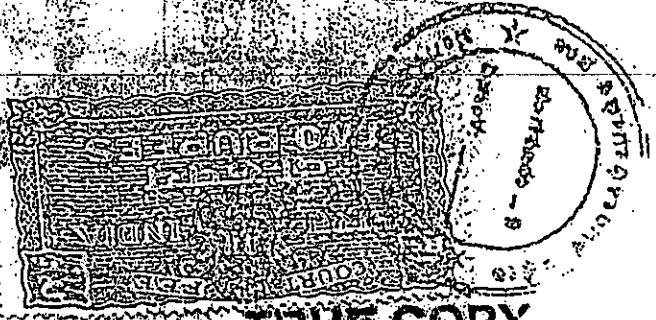
Sal

4 Copy

ಉಪ ವಿಭಾಗಾಧಿಕಾರಿಗಳು
ಬೆಂಗಳೂರು ಉಪ ವಿಭಾಗ
ಬೆಂಗಳೂರು

ಉಪ ವಿಭಾಗಾಧಿಕಾರಿಗಳು
ಬೆಂಗಳೂರು ಉಪ ವಿಭಾಗ
ಬೆಂಗಳೂರು

7/10/64



TRUE COPY

ADVOCATE

Copy applied by H. T. Ramalingaiah
Copy applied on 3-10-64
Copy prepared by [Signature]
Copy compared by [Signature]
Copy ready on 7-10-64

50 -

TYPED COPY

7. ANNEXURE - B

ಪ್ರಕರಣ ಸಂಖ್ಯೆ : ಆರ್. ಆರ್.ಐ. : ಸಿಆರ್ 42: 94-95

ವಾದಿಗಳು

ಪ್ರತಿವಾದಿಗಳು

ರಾಜ್ಯ ಸರ್ಕಾರ

ಶ್ರೀ. ಎಂ.ಐ. ರಾಮಲಿಂಗಯ್ಯ
ವಕೀಲರು,
ನಂ. 918, 18 ನೇ ಎ ಮೈನ್ ರಸ್ತೆ
5ನೇ ಬ್ಲಾಕ್, ರಾಜಾಜಿನಗರ,
ಬೆಂಗಳೂರು

ವಿಷಯ: ಬೆಂಗಳೂರು ಉತ್ತರ ತಾಲ್ಲೂಕು, ದಾಸನಪುರ ಹೋಬಳಿ, ಕಡಬಗೆರೆ
ಗ್ರಾಮದ ಸ.ನಂ. 159 ರಲ್ಲಿ 8-00 ಎಕರೆ ಜಮೀನಿನ ಬಾಬು ಆತೆ
ಮತ್ತು ಪಹಣಿ ತಪ್ಪಾಗಿ ಎಂ.ಐ. ರಾಮಲಿಂಗಯ್ಯನವರ ಹೆಸರಿಗೆ
ಮುಂದುವರೆ ಯುವುದನ್ನು ರದ್ದುಪಡಿಸುವ ಬಗ್ಗೆ ಹಾಗೂ ಜಮೀನಿನಲ್ಲಿ
ಸರ್ಕಾರಕ್ಕೆ ತೆಗೆದುಕೊಳ್ಳುವ ಬಗ್ಗೆ.

ಪ್ರಸ್ತಾವನೆ :-

ತಹಶೀಲ್ದಾರರು, ಉತ್ತರ ತಾಲ್ಲೂಕು, ಅವರ ಪತ್ರ ಸಂ. ಆರ್. ಆರ್. ಐ.

94-95 ದಿನಾಂಕ : 3-6-94 ರ ಪತ್ರದಲ್ಲಿ ಬೇಗೂರು ಉತ್ತರ ತಾಲ್ಲೂಕು,

ದಾಸನಪುರ ಹೋಬಳಿ, ಕಡಬಗೆರೆ ಗ್ರಾಮದ ಸ.ನಂ. 159 ರಲ್ಲಿ 8-00 ಎಕರೆ

ಜಮೀನು, ಸರ್ಕಾರದ ನಂ. ಆರ್.ಡಿ. 250: ಎಲ್.ಐ.ಡಿ. 63 ದಿನಾಂಕ : 21-

8-63 ರಂತೆ ಶ್ರೀ ಎಂ.ಐ. ರಾಮಲಿಂಗಯ್ಯ ಎಂಬುವವರಿಗೆ ಮಂಜೂರಿಯಾಗಿ

ಎಂ. ಆರ್. 7:63-64 ರಂತೆ ಮ್ಯಾಟೀಶನ್ ಖಾತೆ ಆಗೂ ಪಹಣಿ ದಾಕಲೆ

ಬರುತ್ತಿದ್ದು, ಈ ಜಮೀನಿನ ಮಂಜೂರಾಯಿತಿ ಪ್ರಕರಣ ದಾಖಲಾಡಿದ್ದು ರಿಟ್

ಪಿಟಷನ್ ನಂ.1570:64 ದಿನಾಂಕ 16-12-66 ರಲ್ಲಿ ದರಖಾಸ್ತು ಮಂಜೂರಾತಿ

ಯನ್ನು ಉಚ್ಚ ನ್ಯಾಯಾಲಯವು ವಜಾಕರಿಸಿರುತ್ತೆಂದು ಆದರು ದರಖಾಸ್ತು

ಮಂಜೂರಿದಾರರಾಗಿದ್ದ ಎಂ.ಐ. ರಾಮಲಿಂಗಯ್ಯನವರ ಹೆಸರಿಗೆ ಖಾತೆ ಪಹಣಿ

ಬರುತ್ತಿದ್ದು, ಜಮೀನಿನ ಕಂದಾಯ ಕಟ್ಟುತ್ತಾ ಬರುತ್ತಿರುತ್ತಾರೆಂದು ಭೂ

ಮಂಜೂರಾತಿ ವಜಾ ಆಗಿರುವ ಹಿನ್ನೆಲೆಯಲ್ಲಿ ಈ ಖಾತೆ ಹಾಗೂ ಪಹಣಿಯನ್ನು ವಜಾಕರಿಸಬೇಕೆಂದು ಕೋರಿರುತ್ತಾರೆ.

ಈ ವರದಿ ಮೇರೆಗೆ ಶ್ರೀಯುತ ಎಂ.ಟಿ. ರಾಮಲಿಂಗಯ್ಯರವರಿಗೆ ತಿಳುವಳಿಕೆ ನೀಡಿ ಈ ಬಗ್ಗೆ ಅವರ ಪ್ರತಿಜ್ಞೆ ಇದ್ದಲ್ಲಿ ಸಲ್ಲಿಸಬಹುದೆಂದು ವಿಚಾರಣೆಗೆ ಹಾಜರಾಗತಕ್ಕದ್ದೆಂದು ತಿಳಿಯಪಡಿಸಿರುತ್ತೆ.

ಶ್ರೀಯುತ ರಾಮಲಿಂಗಯ್ಯನವರು ಅವರ ದಿನಾಂಕ : 23-6-94 ರ ಅವರ ಲಿಖಿತ ಉತ್ತರದಲ್ಲಿ ಕೆಳಕಂಡಂತೆ ತಿಳಿಸಿರುತ್ತಾರೆ.

1) ಕಡಬಗೆರೆ ಗ್ರಾಮದ ಸ.ನಂ. 159 ರಲ್ಲಿ ಸರ್ಕಾರದ ಆದೇಶ ನಂ. ಆರ್.ಡಿ. 250 ಎಲ್.ಜಿ.ಡಿ. 03 ದಿನಾಂಕ 31-3-63 ರಲ್ಲಿ 8-00 ಎಕರೆ ಜಮೀನನ್ನು ಮಂಜೂರು ಮಾಡಿದ್ದು ಆ ಮೇರೆಗೆ ತಾನು ಖಾತೆಯನ್ನು ಪಡೆದು ಜಮೀನಿಗೆ ಕಂದಾಯ ಪಾವತಿ ಮಾಡುತ್ತ ಬರುತ್ತಿದ್ದು ಪಹಣಿ ಸಹ ತನ್ನ ಹೆಸರಿನಲ್ಲಿಯೇ ಬರುತ್ತಿರುತ್ತೆ.

2) ತಹಶೀಲ್ದಾರರು ತನಗೆ ಈ ಬಗ್ಗೆ ತಿಳುವಳಿಕೆ ಈತನ ಖಾತೆ ವಜಾಕರಿಸಲು ತಿಳಿಸಿ ಉಪ ವಿಭಾಗಾಧಿಕಾರಿಗಳಿಗೆ ವರದಿ ಸಲ್ಲಿಸಿ ವಿಭಾಗಾಧಿಕಾರಿಗಳು ಆರ್.ಆರ್.ಟಿ.ಸಿ ಆರ್ 42:94-95 ದಿನಾಂಕ: 15-6-94 ರಲ್ಲಿ ನೋಟೀಸು ನೀಡುವಂತೆ ಮಾಡಿರುವುದು ಸರಿಯಲ್ಲ.

3) ಸರ್ಕಾರವು ತನಗೆ ಭೂ ಮಂಜೂರಾತಿ ಮಾಡಿರುವುದನ್ನು ರದ್ದು ಪಡಿಸಬೇಕಾದಲ್ಲಿ ಇದಕ್ಕೆ ಮತ್ತೊಂದು ಆದೇಶ ಹೊರಡಿಸಬೇಕಾಗಿರುತ್ತೆ.

4) ಇತ್ತೀಚೆಗೆ ತನಗೆ ಆಗದಂತವರು ಕೆಲವರು ತನ್ನನ್ನು ಜಮೀನಿನ ಸುಬದ್ಧಿನಿಂದ ಹೊರಹಾಕಲು ಪ್ರಯತ್ನಿಸಿದ್ದರೆ ಮೇರೆಗೆ ತಾನು ಅವರ ವಿರುದ್ಧ ಮುನ್ಸೀಪ್ ನ್ಯಾಯಾಲಯದಲ್ಲಿ ಇಂಜಕ್ಷನ್ ಆದೇಶ ಪಡೆದಿರುತ್ತೇನೆ. ಈ

ತರಹ ಎಲ್ಲಾ ವಿಚಾರಗಳ ಹಿನ್ನೆಲೆಯಲ್ಲಿ ಈ ಪ್ರಕರಣವನ್ನು ಇಲ್ಲಿಗೆ ಮುಕ್ತಾಯ ಗೊಳಿಸಬಹುದಾಗಿರುತ್ತೆ.

ಆದೇಶ

ಪ್ರಕರಣವನ್ನು ಪರಿಶೀಲಿಸಲಾಗಿದೆ. ಪ್ರತಿವಾದಿಗಳು ಸಲ್ಲಿಸಿರುವ ಉತ್ತರ ವನ್ನು ಹಾಗೂ ಲಗತ್ತಿಸಿರುವ ಸರ್ಕಾರದ ಆದೇಶ, ಮ್ಯುಟೇಶನ್ ಪಹಣಿ ಹಾಗೂ ಕಂದಾಯ ಪಾವತಿ ರಸೀತಿ ಇವುಗಳ ನಕಲುಗಳನ್ನು ಪರಿಶೀಲಿಸಿರುತ್ತೆ.

ಸರ್ಕಾರವು ಆದೇಶ ನಂ. ಆರ್.ಡಿ. 250 ಎಲ್.ಜಿ. ಡಿ. 63 ದಿನಾಂಕ 21-08-63 ರಲ್ಲಿ ಭೂ ಮಂಜೂರಾತಿ ಮಾಡಿದ ರಿಟ್ ಅರ್ಜಿ ನಂ. 1570:1964 ದಿನಾಂಕ 16-12-65 ರ ಆದೇಶದಲ್ಲಿ ವಜಾಕರಿಸಿರುತ್ತೆ. ಈ ಹಿನ್ನೆಲೆಯಲ್ಲಿ ಪ್ರತಿವಾದಿಗಳು ಪ್ರಸ್ತಾವಿತ ಜಮೀನನ್ನು ಬಗರ್ ಹುಕ್ಕುಂ ಆಗಿ ಹೊಂದಿರುತ್ತಾರೆಂದು ಪರಿಗಣಿಸಬೇಕಾಗಿರುತ್ತೆ. ಈ ಹಿನ್ನೆಲೆಯಲ್ಲಿ ಭೂ ಕಂದಾಯ ಕಾಯ್ದೆ ಕಲಂ 25, 67 ಹಾಗೂ 136 ರ ಅಡಿಯಲ್ಲಿ ಪ್ರತಿವಾದಿಗಳ ಹೆಸರಿಗೆ ದಾಖಲಾಗಿರುವ ಖಾತೆಯನ್ನು ವಜಾಕರಿಸಿರುವುದಾಗಿ ಆದೇಶ ಮಾಡಲಾಗಿದೆ. ಈ ಜಮೀನಿನ ಖಾತೆಯನ್ನು ಸರ್ಕಾರದ ಹೆಸರಿಗೆ ದಾಖಲು ಮಾಡಲು ಸಹ ಆದೇಶಿಸಲಾಗಿದೆ. ತಹಶೀಲ್ದಾರರು ಉತ್ತರ ತಾಲ್ಲೂಕುರವರು ಈ ಆದೇಶವನ್ನು ಜಾರಿಗೆ ನೀಡಲು ಸೂಚಿಸಲಾಗಿದೆ.

ಈ ದಿನ ದಿನಾಂಕ : 12-9-94 ರಂದು ಈ ಆದೇಶವನ್ನು ಘೋಷಿಸಲಾಗಿದೆ.

ಸಹಿ	ಸಹಿ
ಉಪವಿಭಾಗಾಧಿಕಾರಿಗಳು	ಉಪವಿಭಾಗಾಧಿಕಾರಿಗಳು
ಬೆಂಗಳೂರು ಉಪವಿಭಾಗ	ಬೆಂಗಳೂರು ಉಪವಿಭಾಗ
ಬೆಂಗಳೂರು	ಬೆಂಗಳೂರು

53

Translated Copy of Annexure-B

Case No: RRT: CR 42: 94-95

Plaintiffs

State Government

Respondents

Sri. M T Ramalingayya

Advocate

No: 918, 18th A Main Road

5th Block Rajajinagara

Bangalore

Sub: Regarding cancelling Khata and Pahani of 8-00 acre land in Sy No: 159 Kadabagere Village, Dasanapura Hobli Bangalore North Taluk wrongly registered to the name of M T Ramalingayya and taking the land into the custody of Government.

Proposal:-

8-00 acre land bearing Sy No: 159 in Kadabagere Village, Dasanapura Hobli, Begur North Taluk has been sanctioned to Sri. M T Ramalingayya in letter No: RRT 94-95 dated: 3-6-94 of Tahsildar, North Taluk as per the Government Order No: RD 250 LTD 63 dated: 21-08-63 and Mutation khata and Pahani has been registered to their name as per MR 7: 63-64. The Darakhasthu sanction case of this land has been filed in Writ Petition No: 1570: 64 dated: 16-12-66 and the Darakhasthu sanction has been dismissed in High Court. But, khata and Pahani is continued to the name of Darakhasthu grantee M T Ramalingayya. The said is paying the revenue of the land.

54

Since land grant has been discarded, appealed to dismiss this khata and Pahani.

As per this report, the notice has been issued to Sri. M T Ramalingayya, if he has any explanation about this can submit and informed to attend the enquiry.

In their reply of dated: 23-06-94 of Sri. Ramalingayya has stated as below:-

1. 8-00 acre land in Sy No: 159, Kadabagere Village has been granted in Government Order No: RD 250 LBD 03 dated: 31-03-63. As per this, the khata has been registered to his name and he is paying the revenue to said land and Pahani is his name.
2. It is not correct that Tahsildar has submitted report to Assistant Commissioner to dismiss his khata and made Assistant Commissioner to issued notice in RRTC R 42: 94-95 dated: 15-6-94.
3. If government have to cancel my land grant, it is required to issue another order.
4. Since recently some people have tried to push me out of possession of my land, I have received Injunction order from Munsif court against them. In this background, this case can be closed here.

55

ORDER

This case has been examined. The reply submitted by respondents and copy of Government order, Mutation, Pahani and tax paid receipts enclosed are examined.

The land grant made in Government Order No: RD 250 LBD 63 Dated: 21-08-63 has been dismissed in the Writ Petition No: 1570: 1964 dated: 16-12-65. In this background, it is required to consider the respondents have Bagar Hukukum with this land. In this background, it has been ordered by dismissing the khata registered to the name of respondents under Section 25, 67 and 136 as per Land Revenue Act. It has ordered to register the khata of this land to the name of Government. It has instructed to Tahsildar, North Taluk to issue the order.

This order has been pronounced on date: 12-9-94.

Sd/-
Assistant Commissioner
Bangalore Sub division
Bangalore

CR 64436/ - 56
3/1/12

ANNEXURE-C

C.R.P. 67

Govt. of Karnataka

Form No. 9
(Civil)
Title
Sheet for
Judgement
in suits
(R.P. 91)

TITLE SHEET FOR JUDGEMENTS IN SUITS

IN THE COURT OF THE 11th ADDL. CIVIL JUDGE (SR. DV)
BANGALORE RURAL DISTRICT, BANGALORE

Dated: This the 22nd day of December 2001

Present: Sri. A. Manjunath, B.Sc. LL.B.,

O.S. No. 304/98

Plaintiff/s

M. I. Kamalingaiah S/o
Late Doddathammaiah,
Aged about 72 years,
Advocate, residing at
No. 912, 12th-A Main Road,
Vth Block, Rajajinagar,
Bangalore-10.

(By Pleader Sri. K. Suman)

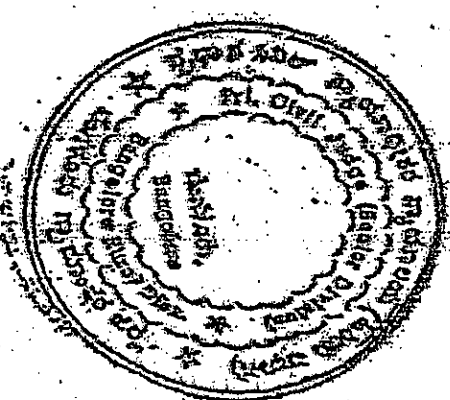
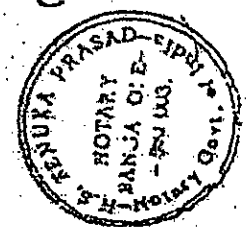
-Vs-

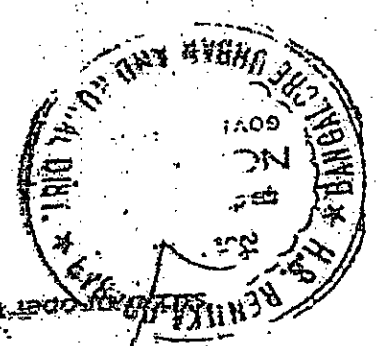
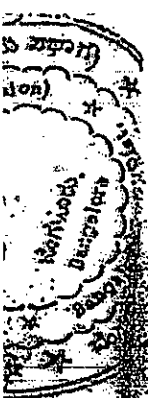
Defendant/s

1. The Secretary
Revenue Department,
Government of Karnataka,
M.S. Building,
Dr. Ambedkar Veedhi,
Bangalore-01.
2. The Deputy Commissioner,
Bangalore District,
Krushi Bhavan,
Bangalore-01.
3. The Assistant Commissioner,
Bangalore North Sub-Division,
Bangalore.

ATTESTED TRUE COPY
(ORIGINAL VERIFIED & RETURNED)

(H.S. REKHA PRASAD)
ADVOCATE AND NOTARY
GOVT. OF INDIA, P.O. 334481,
89, 1st Main, Lower Orchard
BANGALORE - 560 007





The plaintiff has filed this suit against the defendant for a decree for declaration declaring that he is the owner in possession of the suit property by virtue of a possession and mandatory injunction directing the defendant to effect all mutation in his name in the name of the suit property and for permanent injunction restraining the defendants, their agents, assigns and ordnates from doing any act in violation of the order of the court.

JUDGEMENT

Date of institution of the suit : 29.05.1998
 Nature of the suit : Declaration
 Date of the commencement of the evidence : 13.8.1999
 Date on which the judgement was pronounced : 22.12.2001
 Total Duration : 03 Year/s 05 Month/s 23 Day/s

(BY experts)

Both are residing at
 Hosahalli, H.M. Halli Post,
 Bangalore North Taluk,
 Bangalore-562 151.

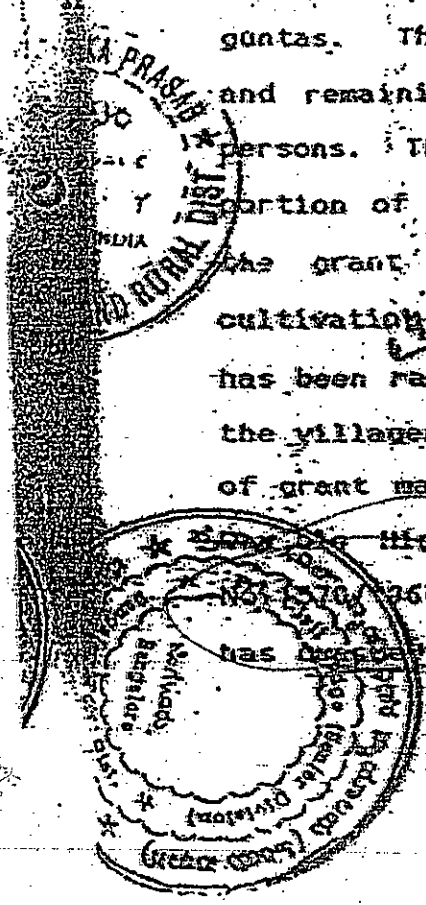
4. The plaintiff
 Bangalore North Taluk,
 Bangalore.

Correlation made
 of the suit at 287

59

5

2. The facts of the plaintiff's case in brief are that the plaintiff is a Freedom Fighter and taking into consideration of his dedicated service rendered by him for the Freedom of this country, he was granted 8 acres of land in Sy.No.159 vide grant order No. ~~MS-250-180~~ 63 dated 17.8.1963 collecting the upset price of Rs.30/- per acre by the Government. The plaintiff was also put in possession of the suit property as per the grant made in his favour. The mutation was also effected in his name. Since the date of grant he has been in possession and enjoyment of the suit property. He has also been paying Kandayam to the suit property. The Sy.No.159 of Kadabagere village totally measured 26 1/2 acres 39 guntas. The plaintiff was granted 8 acres of land and remaining land was also granted to 21 other persons. They are also cultivating their respective portion of lands granted by the Government. After the grant the plaintiff got this land fit for cultivation by investing huge money and labour. He has been raising crops in his land. Facts stood thus the villagers of Kadabagere had challenged the order of grant made in favour of the plaintiff before the Hon'ble High Court of Karnataka in Writ petition No. 1570/1964 and the Hon'ble High Court of Karnataka has ~~annulled~~ the grant made in favour of the plaintiff.



59

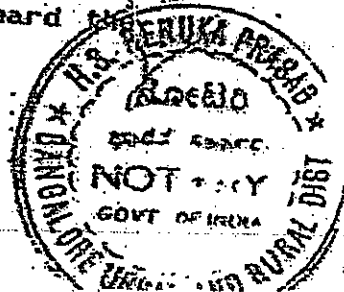
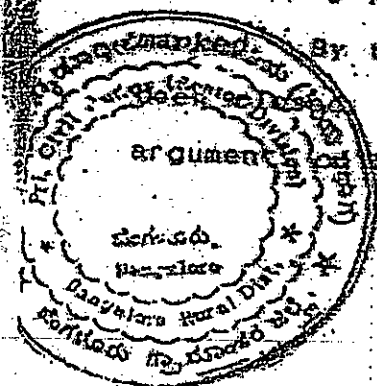
by its order dated 16.12.1966 on technical grounds. Even after the disposal of the writ petition the plaintiff continued to remain in possession of the suit property. Till today the defendants have not taken possession of the suit property. Even after the disposal of the writ petition the Government of Karnataka has not taken any steps to regularise grant which was quashed by the Hon'ble High Court of Karnataka on technical grounds. The plaintiff is in possession and enjoyment of the land openly, adversely against the interest of the defendants for over 30 years making it known to the Government and all others and asserting his right of ownership by adverse possession over the property. After the lapse of more than 30 years in the year 1994 the third defendant has passed an order on 12.05.1994 without hearing the plaintiff and cancelled the grant made in the name of the plaintiff. The plaintiff has preferred a revision petition before the second defendant in No. Rev. (P) 11/94. The second defendant has allowed the revision petition and has made an order on 16.6.1995 whereby the name of the plaintiff has been entered in the revenue records. The plaintiff has paid all the years and he is in possession of the said



land since the date of grant by the Government and further no action was taken against the plaintiff either to evict him or delete his right from the records of right since the date of order passed by the Hon'ble High Court of Karnataka. Further the second respondent ordered to maintain statusquo of the property till the decision of the Government is communicated and should not be disposed till the order of the Government. Later on the defendants started interfering with the plaintiff's peaceful possession and enjoyment of the suit property inspite of the order of the second defendant. and further the plaintiff got issued a legal notice U/s 80 C.P.C. Notices were served on the defendants. Despite the defendants did not take any action for regularising the grant. The plaintiff having enjoyed the property for over 30 years perfected his title to the suit property by adverse possession. Hence this suit.

3. The defendants remained exparte. Having no defence by the defendants, case posted for plaintiff's evidence. On behalf of the plaintiff, PWS.1 to 3 have been examined and Ex.P1 to Ex.P33 By this, the evidence of the plaintiff has

After closure of evidence, heard the learned advocate for plaintiff.



61

6

4. However, in the light of pleadings and the evidence of the PWS. 1 to 3 the points that arise for my consideration are that;

1. Whether the plaintiff has proved that he has perfected his title to the suit property by adverse possession having enjoyed the same for over 30 years?
2. Whether the plaintiff proves that he was in possession of the suit property as on the date of suit?
3. Whether the plaintiff proves the alleged interference by the defendants?
4. Whether the plaintiff is entitled to decree prayed for?

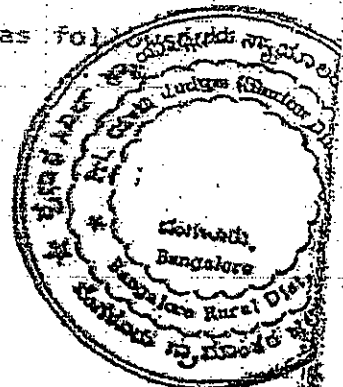
5. My findings on the above points are as follows:

1. In the Affirmative
2. In the Affirmative
3. In the Affirmative
4. As per final order

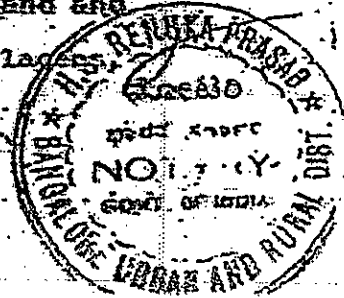
For the following:

REASONS:

6. ~~POINT NO. 1 TO 3~~ It is stated by plaintiff PW. 1 that he was granted suit land in the year 1963 by Government and issued a grant certificate Ex. P1. Pursuant to the grant certificate issued in his favour he has put in possession of the suit property. The name of the plaintiff mutated in the mutation



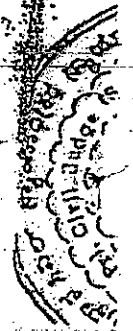
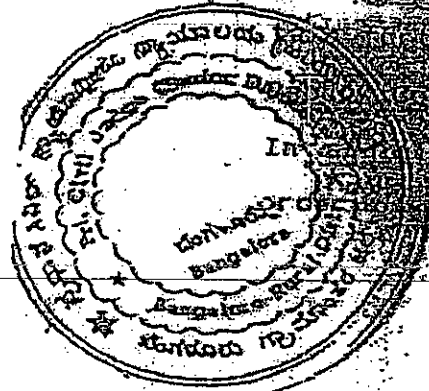
register Ex.P2 to Ex.P5. In addition to that he has stated that he has been in possession of the suit property since the date of grant made as per Ex.P1. To evidence the same he has produced the RTs Ex.P6 to Ex.P10. It stated by plaintiff PW.1 that he has invested huge amount to level the land to make it fit for cultivation. He has also raised loan from the PLD bank. To substantiate the same he has produced the copy of the notice Ex.P11 and the receipts having paid them to the bank as per Ex.P12 to Ex.P14. The defendants also issued an agricultural Passbook and Patta book in favour of the plaintiff. The plaintiff having become the member of the Kadabagere Services Co-operative Society, He has produced the receipts Ex.P15 and Ex.P16. He has also paid kadayam to the suit property. The Patta books issued by the revenue authorities are marked as Ex.P17 and Ex.P18. He has also stated that he has been paying kadayam to the suit property since 1963. To evidence the same he has produced the kadayam receipts Ex.P19 and Ex.P30. It has come in the evidence of PW.1 that he got the land measured in the year 1991-92 by giving application and came to know that he has been in possession of 8 1/2 guntas. He has further stated that out of 8 1/2 guntas he was granted 8 acres of land and remain 1/2 guntas was granted to Manchanabela village.



63

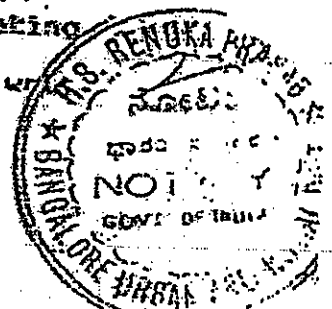
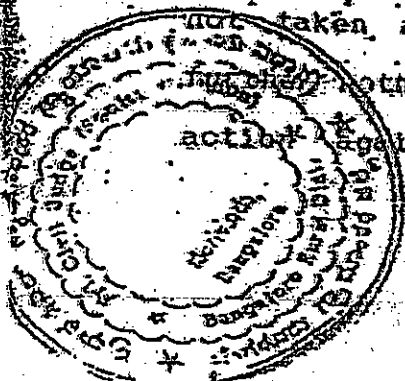
They have also constructed their house in their respective land granted to them. Again he has stated that in the year 1984 the Government has formed sites for the siteless persons in Sy.No.159. To show the

Kadabagere villagers have filed a writ petition before the Hon'ble High Court of Karnataka questioning the grant made in ^{his} favour of the ^{plaintiff}. The said writ petition ^{was} to be allowed and grant made in favour of the plaintiff was quashed on technical ground. Though the grant made in his favour quashed by the Hon'ble High Court of Karnataka in the writ petition as per Ex.P21. The revenue authorities i.e., Assistant Commissioner has cancelled the katha made in favour of the plaintiff and directed to write the name of the Government in the revenue records in respect of the suit property, against which the plaintiff has preferred revision before one Deputy Commissioner. The Deputy Commissioner has allowed the ^{revision} and directed not to possess the possession of the plaintiff till the communication is received from the Government to take further action. The ^{order} of the Commissioner is marked as Ex.P22 and Ex.P23. In to that taking ^{unlawful} advantage of the Assistant Commissioner the defendants



- 27 - 64 -

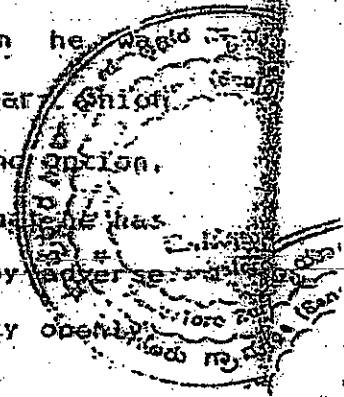
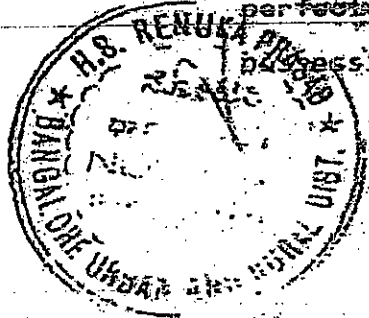
started interfering with the plaintiff's peaceful possession and enjoyment of the suit property. Besides the revenue authorities have also not taken any action to effect the ^{his} ~~the~~ ~~same~~ ~~order~~ ~~plaintiff~~. Therefore, he has issued legal notice on 25.11.1998 as per Ex.P24. The said notice was also received by the defendants. To evidence the same the plaintiff has produced the acknowledgements Ex.P25 to Ex.P28. He has also produced the order passed by the Government at Ex.P29. The entire evidence of the plaintiff PW.1 is supported by the documentary evidence. There is nothing to disbelieve the evidence of the PW.1. The documents, which produced by the plaintiff, clearly indicate that he has been in possession and enjoyment of the suit property since 1963 i.e., from 4.10.1963. The RTC produced by the plaintiff also indicate that he was raising crops in the suit property. His evidence is also supported by the evidence of PWs.2 and 3. If really, the plaintiff was not in possession of the suit property by virtue of the grant made by the Government although it was quashed as per the order of the Hon'ble High Court of Karnataka. The defendants have not taken any action to evict the plaintiff and nothing prevented the defendants from taking action against the defendants. When the



65

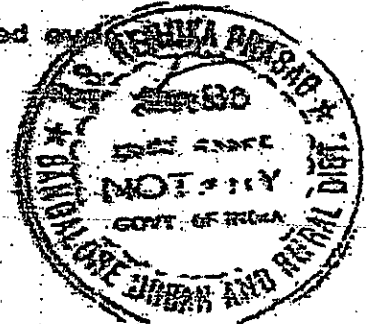
petition was filed even prior to 1966 the Hon'ble High Court of Karnataka has allowed the writ petition on 16.12.1966 which shows since the date of grant the

property. Although the Hon'ble High Court of Karnataka quashed the order of the grant the defendants have not taken any steps to evict the plaintiff. ^{and even after the date of grant of writ} When the defendants have not taken any such steps to evict the plaintiff knowingly since 1966 it can be held that the plaintiff was enjoying the suit property without any interruption continuously, openly and adversely to the interest of the defendants with their full knowledge that he is enjoying the suit property against to their interest. The defendants have also not produced any order of the Government to show that the Government has also passed an order directing them to evict the plaintiff from the suit property. Even otherwise when the plaintiff has been in possession of the suit property since 1966 as per the grant and no eviction proceedings initiated till today and when he would have enjoyed the suit property for over 30 years. ^{which is supported by documentary evidences.} I have no objection, but I would that the plaintiff has proved that he has perfected his title to the suit property by adverse possession, having enjoyed the suit property openly



continuously without any interruption by the defendants and to the knowledge of the defendants that he is enjoying the suit property adversely to their interest. When the plaintiff has proved his title to the by adverse possession. It is also clear that he has been in possession of the suit property since the date of grant and he was also in possession of the suit property on the date of suit. His evidence is not only supported by documents, but also the evidence of Pws. 2 and 3. Besides, the entire evidence of the Pws. 1 to 3 remained unchallenged without cross-examination. Therefore, I hold that the plaintiff has not only proved his acquisition of title as on the date of suit.

7. So far as interference is concerned, it is stated by PW. 1 that the defendants taking advantage of the order of the Hon'ble High Court of Karnataka started interfering with his possession and enjoyment of the suit property. If really, there was no such threat by the defendants, the plaintiff would have not have filed this suit unnecessarily against the defendants. The evidence regarding the interference has also remained unchallenged. I have held that the plaintiff has proved evidence of alleged interference by the defendants.



67

12

foregoing reasons and considering the evidence of the
Pws. 1 to 3, I answer the points 1 to 3 in the
AFFIRMATIVE.

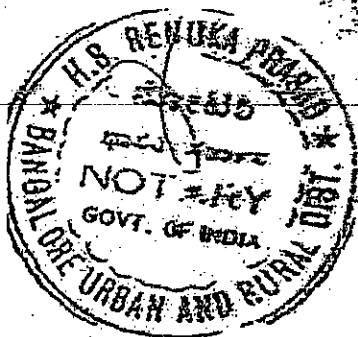
8. POINT NO. 4:- In view of my findings on points 1
to 3 recorded above, the suit of plaintiff is liable
to be decreed and accordingly, in the result I proceed
to pass the following:

ORDER

The suit of plaintiff is hereby decreed against
the defendants declaring that he has acquired title
to the suit property by adverse possession and thus
has become the absolute owner of the suit property.

It is further ordered and decreed for permanent
injunction restraining the defendants from
interfering with the plaintiff's peaceful possession
and enjoyment of the suit property.

It is further ordered and decreed for mandatory
injunction directing the defendants to effect the
katha in the name of the plaintiff in respect of the
suit property.



- 2 - 66 -

13

No order as to cost.

(Dictated to the stenographer, transcribed and typed by him and then corrected, signed and pronounced by me in the open court this the 22nd day of December 1961.)

51
(A. Manjunath)
II Addl. Civil Judge (Sr. Dvn.)
Bangalore Rural District,
Bangalore.

ANNEXURE

1. List of witnesses examined for plaintiff:

PW.1 M.T. Ramalingaiah

PW.2 Ashwath Rao

PW.3 Patil Ramaiah

2. List of witnesses examined for defendants: NIL

3. List of documents marked for plaintiff:

Ex. P1 Copy of grant certificate

Ex. P2 Copy of Mutation

Ex. P3 Register of Dharkast extract

Ex. P4 Index of land

Ex. P5 to P10: RTC extracts

Ex. P11 Notice

Ex. P12 to P14: Payment receipts

Ex. P15 & P16: Receipts

Ex. P17 Patta book

Ex. P18 Krushi Pass book

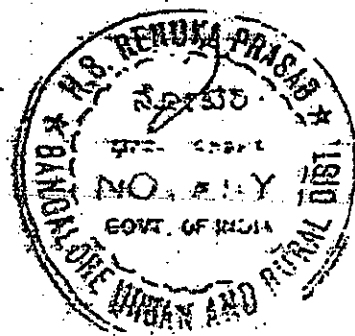
Ex. P19 Tax paid receipts

Ex. P20 Copy of sketch

P20(a) Copy of approved plan

Copy of writ petition order

Order copy of Assistant Commissioner



69-

14

Ex.P23 Order copy of Assistant Commissioner
Ex.P24 Copy of notice
Ex.P25 to Ex.P28: Acknowledgements
Ex.P29 Gazette notification
Ex.P30 Tax paid receipt
Ex.P31 Sketch
Ex.P32 Interim order in O.S.124/94
Ex.P33 RTC extract

3. List of documents marked for defendants: NIL

Sd
(A.Manjunath)
II Addl. Civil Judge (Sr.Dvn.)
Bangalore Rural District,
Bangalore.

Str



TRUE COPY

Handwritten signature



Copy applied on	21.12.22
Working Charges Called for on	
Working Charges Produced on	
Applicant told to appear on	15.2.22
Applicant appeared on	2.2.22
Copy ready on	2.2.22
Copy delivered on	2.2.22
Copy filed by	XEROX
Examined by	<i>Handwritten signature</i>

TRUE COPY

ADVOCATE

Typed Copy of ANN-C

70 -

TITLE SHEET FOR JUDGEMENTS IN SULTS
IN THE COURT OF THE IInd ADDL.CIVIL JUDGE
BANGALORE RURAL DISTRICT, BANGALORE

Dated. This the 22nd day of December 2001

Present: Sri.A. Manjunath. B.Sc. LL.B..

Plaintiff/s

M.1.Ramalingaiah S/o
Late Dodda thammaiah.
Aged about 72 years
Advocate, residing at
No.918 12th-A Main Road
Vth Block. Rajajinagar.
Bangalore-10: ,
(by pleader Sri.K. Suman)

Defendant/s

- 1) The Secretary
Revenue Department.
government of Karnataka
M.S. Building.
Dr Ambedkar Veedhi,
Bangalore-01.
- 2) The Deputy Commissioner
Bangalore district,
Krushi Bhavan,
Bangalore-01.
- 3) The Assistant Commissioner,
Bangalore North Sub-Division,
Bangalore
- 4) The Tahsildar
Bangalore North Taluk,
Bangalore.

(By expert)

71

Date of institution of the suit: : 29.06.1998
Nature of the suit : Declaration
Date of the commencement of the evidence. : 13.8.1999
Date on which the Judgement was pronounced. : 22.12.2001
Total Duration = -Year/s 03 Month/s 05 Day/s 23

JUDGEMENT

The plaintiff has filed this suit against the defendant for decree for declaration declaring that he is the one in possession of the suit property by virtue of adverse possession and mandatory injunction directing t defendant to effect allocation in his name in respect of the suit property and for permanent injunction restraining the defendants , their agents, sub-ordinates to the plaintiff peacefully possession and schedule property and with cost of this suit

2. The facts of the plaintiff's case in brief are that the plaintiff is a Freedom Fighter and taking into consideration of his dedicated service rendered by him for the freedom of this country, he was granted 8 acres of land in. Sy. No. 159 vide grant order. ADDRESS-250-180 63 date TTB. 1963 collecting the upset orice of Rs.30/- per acre by the Government. The plaintiff was also out in possession of the suit property as per the grant made in his favour. The mutation was also affected in his name. Since the date of grant he has been in possession and enjoyment of the suit property. He has also been paying kandaya to the suit property. The Sy No. 159 of . Kadabagere village totally measured 26, areas guntas. 59 The plaintiff was granted 8. acres of land and remaining land was also granted to 21 other persons. They are also cultivating their respective portion of lands granted by the Government. After grant the plaintiff this land fit for cultivation by investing hug money and labour. He has been raising crops in hand. Facts stood thus the villagers of Kadabagere challenged the order of grant made in favour of plaintiff before the High Court of Karnataka in writ petition 70264 and the Hon'ble Court of Karnataka has the grant made in favour of the plaintiff by its order dated 16.12.1966 on technical grounds: Even after the disposal of the writ petition the plaintiff continued to remain in possession of the suit property. Till today the defendants have not taken possession of the suit property. Even after the disposal of the writ petition the Government of Karnataka has not taken any steps to regularise grant which quashed by the Hon'ble High Court of Karnataka on technical grounds. The plaintiff is in

possession and enjoyment of the land openly, adversely against the interest of the defendants for over 30 years making it known to the Government and all others and asserting his right of ownership by adverse possession over the property. After the lapse of more than 30 years in the year 1994 the third defendant has passed an order on 12/09/1994 without hearing the plaintiff and cancelled the katha made in the name of the plaintiff. Hereafter he has preferred revision petition by the second defendant in case no Rev.(p) 11/94-95 challenging the order of the third respondent. The Hon'ble court allowed the revision petition passed the order on 16/06/1995 preserving that the name of the plaintiff mentioned in the revenue records for the 1st year and the plaintiff has paid the land revenue for all the years and he is in the position of the said land since the date of grant by the Government and further no action was taken against the plaintiff either to evict him or delete his right from the records of right since the date of order passed by the Hon'ble High Court of Karnataka. Further the second respondent ordered to maintain status quo of the property till the decision of the Government is communicated and should not be disposed till the order of the Government. Later on the defendants started interfering with the plaintiff's peaceful possession and enjoyment of the suit property in spite of the order of the second defendant, and further the plaintiff got issued a legal notice u/s 80 C.P.C. Notices were served on the defendants. Despite the defendants did not take any action for regularising the grant. The plaintiff having enjoyed the property for over 30 years perfected his title to the suit property by adverse possession. Hence this suit.

3. The defendants remained ex parte. HAVING NO Defence By the plaintiff's evidence. defendants, case posted for On behalf of the plaintiff, PWs. 1 to 3 have been examined and Ex. P1 to Ex. P33 By this, the evidence of the plaintiff has After closure of evidence, Heard THE ARGUMENT OF THE learned advocate for plaintiff.

4. However, in the light of pleadings and the evidence of the PWs. 1 to 3 the points that arise for my consideration are that.

1. Whether the plaintiff has proved that he has perfected his title to the suit property by adverse possession having enjoyed the same for over 30 years?

2. Whether the plaintiff proves that he was in possession of the suit property as on the date of suit?

3. Whether the plaintiff proves the alleged interference by the defendants?

73

4. Whether the plaintiff is entitled to decrees prayed for?

5. My Findings on the above points are as follows

1. In the Affirmative

2. In the Affirmative

3. In the Affirmative

4. As per final order

For the following:

REASONS

6. point No.1 to 3. It is stated by plaintiff PW. I that he granted suit land in the year 1963 by Government land issued a grant certificate Ex. Pl. pursuant to the grant certificate issued in his favour and put in possession at the suit property. The name of the plaintiff mutated in the mutation register Ex. PZ to Ex. PS. In addition to that he has stated that he has been in possession of the suit property since the date of grant made as per Ex. Pl. P2 evidence the same he has produced the RTx FX. P6 to Ex. PIO. It stated by plaintiff that he was invested huge amount to level the land to make it fit for cultivation. He has also raised loan from the PLD bank. To substantiate the same he has produced the copy of the notice Ex. Pl and the receipts having paid them to the bank as per Ex. P12 to Ex. P14. The defendants also issued an agricultural passbook and Patta book in favour of the plaintiff. The plaintiff having become the member of the Kadabagere Services Co-operative Society, he has produced the receipts Ex-P15 and Ex. P16. He has also paid kandyam to the suit property. The Patta books issued by the revenue authorities are marked as- Ex. P17, and Ex. P18. He has so stated that he has been paying kandyam to the suit property since 1963, To evidence the same he has produced the kandaya receipts Ex.P19 and Ex. P30. It has come in the evidence of PW, that he got the land measured in the year 1991-92-by giving application and came to know that he has been in possession of 8 acres 2.guntas. He has further stated that out of, 8 acres 2.guntas he has granted 8 acres of land and remaining land was granted to manchanabele villagers They have also constructed their house in their respective land granted to them. Again he has stated that in the year 1984 the Government has formed sites for the site less persons in Sy. No. 159. To show the Kadabagere villagers have filed a writ petition before the Hon'ble High Court, of

74

Karnataka questioning the grant made in favour of the plaintiff. The said writ petition case to be allowed and grant made in favour of the plaintiff was quashed on technical ground. Though the grant made in his -favour quashed by the Hon'ble High Court of Karnataka ॐ in the writ petition as per ExtPZI. The revenue authorities 1.e.. Assistant Commissioner has cancelled the katha made in favour of the plaintiff and directed to write the name of the Government in the revenue records in respect of the suit property against in which the plaintiff has preferred revision before the Deputy Commission The Deputy commissioner has allowed the appeal and directed not to dispossess the possession of plaintiff till the communication is received by the Government to take further action. The order of the commissioner is marked in Ex.P22 and Ex.P23 in to that taking advantage of the order passed by the Assistant Commissioner the defendants started interfering with the plaintiff's peaceful possession and enjoyment of the suit property. Besides the revenue authorities have also not taken any action to correct the katha the name. Therefore, he has issued legal notice on 25.11.1998 as per Ex. P24. The said notice was also received, by the defendants. To evidence the same the plaintiff has produced the acknowledgements Ex. P25 to Ex. P28. He has also produced the order passed by the Government at Ex.P29. The entire evidence of the plaintiff PW.1 is supported by the documentary evidence. There is nothing to disbelieve the evidence of the PW.1. The documents, which produced by the plaintiff, clearly indicate that he has been in possession and enjoyment of the suit property since 1963 Le., from 5.10.1963. The RTC produced by the plaintiff also indicate that he was raising crops in the suit property. His evidence is also supported by the evidence of PWs.2 and 3: If really, the plaintiff was not in possession of the suit property to virtue of the grant made by the Government although it was quashed as per the order of the Hon'ble High Court of Karnataka, the defendants have not taken, any action to evict the plaintiff and not them aching prevented the defendants from taking action against the defendants. When the writ petition was filed even or lor to 1966 the Hon ble High Court of Karnataka has allowed the writ petition on 16. 12.1966 which shows since the date of grant the property . Although the Hon'ble High Court of Karnataka quashed the order of the grant the defendants have not taken any steps to evict them and even able the issue of legal note it's so ere. Plaintiff. When the defendants have not taken any such steps to evict the plaintiff knowingly since 1966 It can be held that the plaintiff was enjoying the suit property without any interruption continuously, openly and adversely to the interest of the defendants with their full knowledge that he is

75

enjoying the suit property against to their interest. The defendants have also not produced any order of C the Government to show that the Government has also passed order directing them to evict the plaintiff from the suit schedule property. Even otherwise when the plaintiff has been in possession of the suit schedule property as per the grant and no eviction proceedings initiated till today when he was owner in the suit property for over 30 years which showed in the documentary evidence. I have no action but obtained that the plaintiff has proved that he has perfected his title to the suit property by adverse possession having enjoyed the suit property opened continuously without the any interruption by defendants and to the knowledge of the defendants that he is enjoying the suit property adversely to their interest. Whop the plaintiff has proved his title to the by adverse possession. It is also clear that he has been in possession of the suit property since this date of great and he was also in possession of the suit property on the date of suit. evidence is not only supported by documents, but also the evidencia of PW.2 and 3. Besides, the entire evidence of the ps. to 3 remained unchallenged without cross-examination. Therefore, I hold that the plaintiff has not only proved his acquisition of by actress Assessm. title as on the date of suit.

7. far as interference is concerned, it is stated by P. that the defendants taking an advantage of the order of the Hon'ble High Court of Kar bataka started interfering with his possession and enjoyment of the sult property. If really, there was no such threat by the defendants, the plaintiff would have not have filed, this suit unnecessarily against defendants. The evidence regarding the inference the has also remained unchallenged. I hold that the plaintiff has proved and alleged interference by the defendants

Foregoing reasons and considering the evidence of the Pws. 1 to 3, in answer the points 1 to 3 in the AFFIRMATIVE.

8. POINT NO.4:- In view of my findings on points 7 to 3 recorded above, the suit of plaintiff is liable to be decreed and accordingly, in the result I proceed to pass the following:

ORDER

The suit of plaintiff is hereby decreed against the defendants declaring that he has acquired title to the suit property by adverse possession and thus has become the absolute owner of the suit property.

76

It is further ordered and decreed for permanent injunction restraining the defendants from interfering with the plaintiff's peaceful possession of the suit property.

other ordered and decreed for mandatory injunction the defendants to effect the khatha of the plaintiff in respect of the suit property.

No order as to cost.

(Dictated to the Stenographer, transcribed and typed by him and then corrected, signed and pronounced by me in the open court this the 22nd day of December 2001.)

(A. Manjunath)
II Addl. Civil Judge (Sr, Dvn.)
Bangalore Rural District.
Bangalore.

ANNEXURE

1. List of witnesses examined for plaintiff:

PW. 1 M.T.Ramalingalah

PW. 2 Ashwath Rao

PW.3 Patil kamalah

2. List of witnesses examined for defendants: NIL

3. List of documents marked for plaintiff

Ex.P1 Copy of grant certificate

Ex.P2 Copy of Mutation

Ex. P3 Register of Dharkast extract

Ex.P4 Index of land

Ex. PS to P10: RTC extracts

Ex. P11 Notice

Ex. P12 to 14: Payment receipts

Ex. P15 & P16: Receipts

Ex. P17 Patta book-

77

Ex. P18 Krushi Pass book

Ex. P19 Tax paid receipts

Ex. P20 Copy of sketch

Ex. P20(a) Copy of approved plan

Ex. P21 Copy of writ petition-order

Ex. P22 order copy of Assistant Commissioner

Ex. P23 Order copy of Assistant Commissioner

Ex. P24 Copy of notice

Ex. P25 to Ex P28: Acknowledgements Ex. P29 Gazzet notification

Ex. P30 Tax paid receipt

Ex. P31 Sketch

Ex. P32 Interim order in O.S.124/94

Ex. P33 RTC extract

3. List of documents marked for defendants: NIL

(A. Manjunath)
II Add. Civil Judge (Sr.Dvn.)
Bangalore fural District.
Bangalore.

In the court of II Additional Judge (S.D.)
Bangalore Rural District Bangalore

Decree

OS 394/98

Plaintiff,

M. T. Hemalprakash
S/o late M. K. H. Hemalprakash
72, 73, 74, 75, 76, 77, 78, 79, 80, 81, 82, 83, 84, 85, 86, 87, 88, 89, 90, 91, 92, 93, 94, 95, 96, 97, 98, 99, 100, 101, 102, 103, 104, 105, 106, 107, 108, 109, 110, 111, 112, 113, 114, 115, 116, 117, 118, 119, 120, 121, 122, 123, 124, 125, 126, 127, 128, 129, 130, 131, 132, 133, 134, 135, 136, 137, 138, 139, 140, 141, 142, 143, 144, 145, 146, 147, 148, 149, 150, 151, 152, 153, 154, 155, 156, 157, 158, 159, 160, 161, 162, 163, 164, 165, 166, 167, 168, 169, 170, 171, 172, 173, 174, 175, 176, 177, 178, 179, 180, 181, 182, 183, 184, 185, 186, 187, 188, 189, 190, 191, 192, 193, 194, 195, 196, 197, 198, 199, 200, 201, 202, 203, 204, 205, 206, 207, 208, 209, 210, 211, 212, 213, 214, 215, 216, 217, 218, 219, 220, 221, 222, 223, 224, 225, 226, 227, 228, 229, 230, 231, 232, 233, 234, 235, 236, 237, 238, 239, 240, 241, 242, 243, 244, 245, 246, 247, 248, 249, 250, 251, 252, 253, 254, 255, 256, 257, 258, 259, 260, 261, 262, 263, 264, 265, 266, 267, 268, 269, 270, 271, 272, 273, 274, 275, 276, 277, 278, 279, 280, 281, 282, 283, 284, 285, 286, 287, 288, 289, 290, 291, 292, 293, 294, 295, 296, 297, 298, 299, 300, 301, 302, 303, 304, 305, 306, 307, 308, 309, 310, 311, 312, 313, 314, 315, 316, 317, 318, 319, 320, 321, 322, 323, 324, 325, 326, 327, 328, 329, 330, 331, 332, 333, 334, 335, 336, 337, 338, 339, 340, 341, 342, 343, 344, 345, 346, 347, 348, 349, 350, 351, 352, 353, 354, 355, 356, 357, 358, 359, 360, 361, 362, 363, 364, 365, 366, 367, 368, 369, 370, 371, 372, 373, 374, 375, 376, 377, 378, 379, 380, 381, 382, 383, 384, 385, 386, 387, 388, 389, 390, 391, 392, 393, 394, 395, 396, 397, 398, 399, 400, 401, 402, 403, 404, 405, 406, 407, 408, 409, 410, 411, 412, 413, 414, 415, 416, 417, 418, 419, 420, 421, 422, 423, 424, 425, 426, 427, 428, 429, 430, 431, 432, 433, 434, 435, 436, 437, 438, 439, 440, 441, 442, 443, 444, 445, 446, 447, 448, 449, 450, 451, 452, 453, 454, 455, 456, 457, 458, 459, 460, 461, 462, 463, 464, 465, 466, 467, 468, 469, 470, 471, 472, 473, 474, 475, 476, 477, 478, 479, 480, 481, 482, 483, 484, 485, 486, 487, 488, 489, 490, 491, 492, 493, 494, 495, 496, 497, 498, 499, 500, 501, 502, 503, 504, 505, 506, 507, 508, 509, 510, 511, 512, 513, 514, 515, 516, 517, 518, 519, 520, 521, 522, 523, 524, 525, 526, 527, 528, 529, 530, 531, 532, 533, 534, 535, 536, 537, 538, 539, 540, 541, 542, 543, 544, 545, 546, 547, 548, 549, 550, 551, 552, 553, 554, 555, 556, 557, 558, 559, 560, 561, 562, 563, 564, 565, 566, 567, 568, 569, 570, 571, 572, 573, 574, 575, 576, 577, 578, 579, 580, 581, 582, 583, 584, 585, 586, 587, 588, 589, 590, 591, 592, 593, 594, 595, 596, 597, 598, 599, 600, 601, 602, 603, 604, 605, 606, 607, 608, 609, 610, 611, 612, 613, 614, 615, 616, 617, 618, 619, 620, 621, 622, 623, 624, 625, 626, 627, 628, 629, 630, 631, 632, 633, 634, 635, 636, 637, 638, 639, 640, 641, 642, 643, 644, 645, 646, 647, 648, 649, 650, 651, 652, 653, 654, 655, 656, 657, 658, 659, 660, 661, 662, 663, 664, 665, 666, 667, 668, 669, 670, 671, 672, 673, 674, 675, 676, 677, 678, 679, 680, 681, 682, 683, 684, 685, 686, 687, 688, 689, 690, 691, 692, 693, 694, 695, 696, 697, 698, 699, 700, 701, 702, 703, 704, 705, 706, 707, 708, 709, 710, 711, 712, 713, 714, 715, 716, 717, 718, 719, 720, 721, 722, 723, 724, 725, 726, 727, 728, 729, 730, 731, 732, 733, 734, 735, 736, 737, 738, 739, 740, 741, 742, 743, 744, 745, 746, 747, 748, 749, 750, 751, 752, 753, 754, 755, 756, 757, 758, 759, 760, 761, 762, 763, 764, 765, 766, 767, 768, 769, 770, 771, 772, 773, 774, 775, 776, 777, 778, 779, 780, 781, 782, 783, 784, 785, 786, 787, 788, 789, 790, 791, 792, 793, 794, 795, 796, 797, 798, 799, 800, 801, 802, 803, 804, 805, 806, 807, 808, 809, 810, 811, 812, 813, 814, 815, 816, 817, 818, 819, 820, 821, 822, 823, 824, 825, 826, 827, 828, 829, 830, 831, 832, 833, 834, 835, 836, 837, 838, 839, 840, 841, 842, 843, 844, 845, 846, 847, 848, 849, 850, 851, 852, 853, 854, 855, 856, 857, 858, 859, 860, 861, 862, 863, 864, 865, 866, 867, 868, 869, 870, 871, 872, 873, 874, 875, 876, 877, 878, 879, 880, 881, 882, 883, 884, 885, 886, 887, 888, 889, 890, 891, 892, 893, 894, 895, 896, 897, 898, 899, 900, 901, 902, 903, 904, 905, 906, 907, 908, 909, 910, 911, 912, 913, 914, 915, 916, 917, 918, 919, 920, 921, 922, 923, 924, 925, 926, 927, 928, 929, 930, 931, 932, 933, 934, 935, 936, 937, 938, 939, 940, 941, 942, 943, 944, 945, 946, 947, 948, 949, 950, 951, 952, 953, 954, 955, 956, 957, 958, 959, 960, 961, 962, 963, 964, 965, 966, 967, 968, 969, 970, 971, 972, 973, 974, 975, 976, 977, 978, 979, 980, 981, 982, 983, 984, 985, 986, 987, 988, 989, 990, 991, 992, 993, 994, 995, 996, 997, 998, 999, 1000

Defendants

1. The Secretary
Revenue Department
Govt. of Karnataka
M.S. Building, D.
Ambekar Road
Bangalore 56001
2. The Deputy Commr.
Shri. Bangalore
District - Krishna
Bangalore 56001
3. The Asst. Commr.
Bangalore - North
Sub Division
Bangalore
4. The Tahsildar
Bangalore North - 1
Bangalore



Suit for injunction and damages against the
defendants for interfering with the
owner in possession of the suit property
by virtue of a decree of possession and mandamus
injunction direct the defendant to effect all
mutations in his name in respect of the

suit property and for permanent injunction
restraining the defendants their agents or
sub-ordinates from interfering with plain
deceased possession and enjoyment of the
property with cost & this suit

This suit coming on this day for the
disposal before Sri M. Manjunath BSC, L.B.
Addl. Civil Judge (SDM) Bangalore Rural Dist.
Bangalore. In the presence of Sri. K. Suman
Advocate for Plaintiff & to 4 Defendants

The suit of the Plaintiff in here by decree
against the defendants declaring that he has
acquired title to the suit property by adverse
possession and thus has become the absolute
owner in possession of the suit property

It is further ordered and decreed for
Permanent injunction restraining the defend
from interfering with the Plaintiff's peace
possession and enjoyment of the suit property
It is further ordered and decreed for man
datory injunction directing the defendants to

Effect the Khata in the Name of the Plaintiff
the property TRUE COPY

ADVOCATE

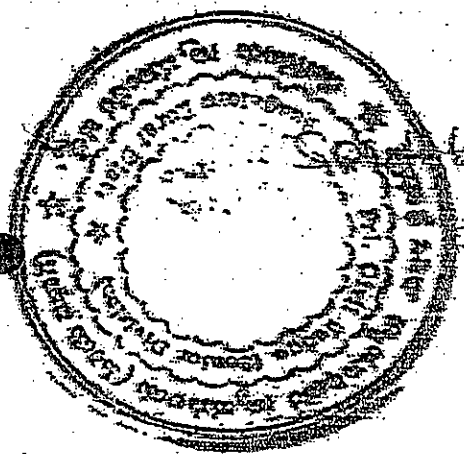
original and Seal of the Court

2001

And Addl. Civil Judge.

South - Venkatappa's land in S. No 176
 Plaintiff's land S. No 177
 and M. Ram Reddy's land S. No 9

North St. Chikahomymauia (and in St. N
185 and water St

Easton on Sea

Particulars	Amount	Signature
Plaintiff	300.00	
Cost of Complaint	100.00	
Power	100.00	
San	100.00	
Process	100.00	
Total	700.00	



 Bangalore District Court, Bangalore.

DMS
 Addl. Civil Judge
 Bangalore District
 Bangalore

1945
Hd. Addl. Civil Judge
Bangalore District.
Bangalore

81- *Typed copy of ANN-D*

**IN THE COURT OF II ADDL CIVIL JUDGE, BANGALORE
RURAL DISTRICT, BANGALORE**

OS 394/98

Decree

PLAINTIFF/S

M.1.Ramalingaiah S/o
Late Dodda thammaiah.
Aged about 72 years
Advocate, residing at
No.918 12th-A Main Road
Vth Block. Rajajinagar.
Bangalore-10.

Defendant/s

- 1) The Secretary
Revenue Department.
government of Karnataka
M.S. Building.
Dr Ambedkar Veedhi,
Bangalore-01.
- 2) The Deputy Commissioner
Bangalore district,
Krushi Bhavan,
Bangalore-01.
- 3) The Assistant Commissioner,
Bangalore North Sub-Division,
Bangalore
- 4) The Tahsildar
Bangalore North Taluk,
Bangalore.

Suit for judgment of decree against the defendant for the relief that there the owner in possession of the suit property by virtue of adverse possession and mandate injunction hence the defendant to effect all mutation in his name in respect of the suit property and for permanent injunction restraining the defendants their agents and subordinates from interfering with peaceful possession and enjoyment of the property with cost

the suit coming on this date for the disposal before Sri M Manusutha BSC LLB II Addl Civil judge SR.Dvn Bangalore Rural District, Bangalore) in the presence of Sri K suman advocate for plaintiffs, defendants placed ex party.

The suit of the plaintiff is here by decreed against the defendants declaring that he has acquired title to the suit property by adverse possession and he has become the absolute owner in possession of the suit property.

It is further ordered and decreed to permanent injunction restraining the defendants from interfering the plaintiff possession and enjoyment of the suit

82

property and decreed further mandatory injunction against the defendants no order of cost.

This is returning by hand and seal of this court affixed on 22nd day December 2001

SCHEDULE

All the piece and parcel of agriculture land in Sy No. 159 , Kadabagere Village, Nelamangala Taluk, Bangalore Rural District here measuring extent 8 Acres 12 Guntas and bounded:

- East by : Venkatappas Land SY No. 176
Plaintiff land is S. No. 177
And M muniramaiah Land Sy No. 9
- West By: Reaming Lands in SY No. 159 Granted to manchanabele Dam
disputed persons and Land is Sy No. 54 and 160.
- North By: Chikkahanumaiah Land in Sy No. 185 and water pit.
- South by: Venkatappa Land in Sy No. 183 and remaining land in Sy no
159 granted to manchamabele dam disputed persons

83 - 1

Annexure - E.

IN THE HIGH COURT OF KARNATAKA, BANGALORE

DATED THIS THE 18TH DAY OF MARCH 2009

BEFORE

THE HON'BLE MR. JUSTICE L.NARAYANA SWAMY

W.P.No.10137 OF 2008 (KLR/RR/SUR)

BETWEEN

SRI.M.T.RAMALINGAIAH,
S/O LATE DODDATHAMAIAH,
83 YEARS, R/AT NO.918,
18TH A MAIN ROAD, 5TH BLOCK,
RAJAJINAGAR, BANGALORE -10.

... PETITIONER

(By Sri. S.NAGARAJ & OMKAR MUTHY G, ADVOCATE)

AND :

1 THE STATE OF KARNATAKA
REPTD.BY THE SECRETARY TO GOVT
REVENUE DEPARTMENT,
VIDHANASOUDA, BANGALORE 1.

2 THE TAHSILDAR
BANGALORE NORTH TALUK,
BANGALORE -560 009.

... RESPONDENTS.

(BY SRI.SATYANARAYANA SINGH, HCGP)

THIS W.P. FILED UNDER ARTICLES 226 AND 227
OF THE CONSTITUTION OF INDIA TO DIRECT THE
RESPONDENTS TO EFFECT THE KHATA IN RESPECT OF THE
LAND BEARING SY.NO.159 SITUATED AT KADABAGERE
VILLAGE, DASANAPURA HOBLI, BANGALORE NORTH TALUK
MEASURING 8 ACRES 12 GUNTAS IN THE NAME OF THE
PETITIONER AND ETC.

4

84

2

THIS W.P. COMING ON FOR PRELIMINARY HEARING
IN 'B' GROUP THIS DAY, THE COURT MADE THE
FOLLOWING:-

ORDER

Government Pleader is directed to take
notice.

2. It is the case of the petitioner that in
view of the decree passed in O.S. No.394/1998
dated 22.12.2001, he made a representation on 30th
September 2004 as per Annexure-D requesting the
revenue authorities to enter his name in all the
revenue records. In the said suit, the Civil
Court by an order dated 22.12.2001 declared that
the plaintiff has acquired title over the suit
property by adverse possession and he has become
the absolute owner in possession of the property
and also directed the respondents/defendants to
affect khata in the name of the plaintiff in
respect of the property. Having received the said
representation, no revenue entries have been
effected in his favour so far. Hence, the present
petition.

3. Learned Government Pleader appearing for the respondents submitted that by granting reasonable time a direction may be issued to the respondents to effect the revenue entries in favour of the petitioner/plaintiff.

4. In view of the above submissions and in the light of the judgment and decree passed in O.S.No.394/1998, the respondents are bound to effect khata in favour of the petitioner/plaintiff in all the revenue records. However, the same has not been affected.

5. Hence, I pass the following order:

The writ petition is allowed directing the respondents to pass an appropriate order pursuant to the representation as per Annexures -D dated 30th September 2004 in accordance with law, within a period of three months from the date of receipt of a copy of this order.

Sd/-
Judge

67 - Typed copy of ANN - 1

ಕರ್ನಾಟಕ

GOVERNMENT OF KARNATAKA
ಜನನ ಮತ್ತು ಮರಣಗಳ ಮುಖ್ಯ ರಿಜಿಸ್ಟ್ರಾರರು

Chief Registrar Of Births And Deaths
ಮರಣ ಪ್ರಮಾಣ ಪತ್ರ

(ಅಧಿನಿಯಮ 1969 ರ 12/17 ನೆಯ ಪ್ರಕರಣ ಹಾಗೂ ಕ.ಜ.ಮ.ನೋ ನಿಯಮಗಳ 1999ರ ನಿಯಮ 8/13 ರ ಮೇರೆಗೆ
ಕೊಡಲಾದ)

DEATH CERTIFICATE

(Issued under Section 12/17 of the RBD Act, 1969 and Rule 8/13 of the KRBD Rules 1999)

ಈ ಕೆಳಕಂಡ ವಿವರಣೆಯನ್ನು ಕರ್ನಾಟಕ ರಾಜ್ಯದ ಬೆಂಗಳೂರು ಜಿಲ್ಲೆಯ ಬೆಂಗಳೂರು ಮಹಾನಗರ ಪಾಲಿಕೆಯ
ರಿಜಿಸ್ಟ್ರಾರರು ಮರಣ ಸಂಬಂಧವಾದ ಮೂಲ ದಾಖಲೆಯಿಂದ ತೆಗೆದುಕೊಳ್ಳಲಾಗಿದೆಯೆಂದು ಪ್ರಮಾಣೀಕರಿಸಲಾಗಿದೆ.

This is to certify that the following information has been taken from the original record of death which
the register for _____ (village/Town) of _____ taluk of _____
District of Karnataka State.

1) ಹೆಸರು

Name. M.T. RAMALINGAIAH

3) ಮರಣದ ದಿನಾಂಕ: 10-02-2010

Date of Death

5) ತಾಯಿಯ ಹೆಸರು

Mother Name. NOT STATED

7) ಮರಣ ಸಮಯದಲ್ಲಿ ಮೃತರ ವಿಳಾಸ

Address of the deceased at the time of death

918, 18th A Main 5th Block

Rajajinagar. Bangalore 10

9) ನೋಂದಣಿ ಸಂಖ್ಯೆ

SR/D/2010/00353AKK1747

11) ಷರಾ (ಯಾವುದಾದರೂ ಇದ್ದಲ್ಲಿ)

Remarks (if any)

13) ಪ್ರಮಾಣ ಪತ್ರ ಕೊಡುವ ಪ್ರಾಧಿಕಾರಿಯ ಸಹಿ

Signature of the issuing authority

2) ಲಿಂಗ ಗಂಡು

Sex Male

4) ಮರಣದ ಸ್ಥಳ .

Place of Death : SUGUNA HOSPITAL

6) ತಂದೆಯ/ಗಂಡನ ಹೆಸರು

Name of the Father/Husband DODDA THAMMAIH

8) ಮೃತರ ಖಾಯಂ ವಿಳಾಸ

Permanent address of the Deceased

10) ನೋಂದಣಿ ದಿನಾಂಕ: 18/08/2010

Date of Registration.

12) ಪ್ರಮಾಣ ಪತ್ರ ನೀಡಿದ ದಿನಾಂಕ: 10/06/2016

Date of issue

14) ಪ್ರಮಾಣ ಪತ್ರ ಕೊಡುವ ಪ್ರಾಧಿಕಾರಿಯ ವಿಳಾಸ

Address of the issuing authority

ಮೋಹರು

ಪ್ರತಿಯೊಂದು ಜನನ ಮತ್ತು ಮರಣದ ನೋಂದಣಿಯನ್ನು ಖಚಿತಪಡಿಸಿಕೊಳ್ಳಿ

"Ensure registration of every birth and death"

ವಹಿಯಲ್ಲಿ ನಮೂದಾದ ರೀತಿಯಲ್ಲಿ ಮರಣದ ಕಾರಣಗಳ ಬಗ್ಗೆ ಬಹಿರಂಗಗೊಳಿಸುವಂತಿಲ್ಲ, ಪ್ರಕರಣ 17(1) ರ ಪರಂತಕ
ನೋಡಿ.

No disclosure shall be made of particulars regarding the cause of the death as entered in the register. See proviso to section 17(1)

88-

ANNEXURE-6

ನಂ.

NO. C

1223856



ನಮೂನೆ - 6

Form No. - 6



ಕರ್ನಾಟಕ ಸರ್ಕಾರ
GOVERNMENT OF KARNATAKA
ಜನನ ಮತ್ತು ಮರಣಗಳ ಮುಖ್ಯ ರಿಜಿಸ್ಟ್ರಾರ್
Chief Registrar of Birth and Death

ಮರಣ ಪ್ರಮಾಣ ಪತ್ರ

(ಜನನೋ. ಅಧಿನಿಯಮ, 1969ರ 12/17 ಮತ್ತು ಮರಣೋ. ಕಾಯಿದೆ 1969ರ ವಿಧಾನ, 1969ರ ವಿಧಾನ 2/13 ರ ಮೇರೆಗೆ ಕೊಡಲಾಗಿದೆ)

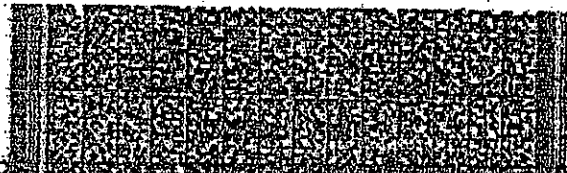
DEATH CERTIFICATE

(Issued under Section 12/17 of the RBD Act, 1969 and Rule 6/13 of the RBD Rules, 1969)

ಈ ಕೆಳಕಂಡ ವಿವರಗಳನ್ನು ಕಾರ್ಡ್‌ನಲ್ಲಿ ದಾಖಲೆ ಮಾಡಿರುವುದು, ಬಹುಶಃ ಬೇಕಾದರೆ ಮರಣದ ದಿನಾಂಕ ಮತ್ತು ಸ್ಥಳದ ಬಗ್ಗೆ ಮಾಹಿತಿ ನೀಡುವ ಮರಣ ಪ್ರಮಾಣ ಪತ್ರವನ್ನು ಹೊಂದಿರುವುದು ತಿಳಿಸಲಾಗಿದೆ.

This is to certify that the following information has been taken from the original record of death which is in the register of Bruhat Bangalore Mahanagara Palike, Bangalore District of Karnataka State.

- | | | | |
|--|---|---|---|
| 1) ಹೆಸರು
Name | SUSHEELA . P | 2) ಲಿಂಗ
Sex | ಹೆಣ್ಣು
Female |
| 3) ಮರಣದ ದಿನಾಂಕ
Date of Death | 24/05/2016 | 4) ಮರಣದ ಸ್ಥಳ
Place of Death | No.918, 18th A Main, 5th Block, Rajajinagar, Bangalore-10 |
| 5) ತಾಯಿಯ ಹೆಸರು
Name of Mother | | 6) ತಂದೆಯ ಹೆಸರು
Name of Father / Husband | LATE . RAMALINGAIAH . M. T. |
| 7) ಮರಣದ ಸ್ಥಳದ ವಿವರ
Address of deceased at the time of death: | No.918, 18th A Main, 5th Block, Rajajinagar, Bangalore-10 | 8) ಮುಕ್ತ ಸ್ಥಳದ ವಿವರ
Permanent address of the deceased: | No.918, 18th A Main, 5th Block, Rajajinagar, Bangalore-10 |
| 9) ನೋಂದಣಿ ಸಂಖ್ಯೆ
Registration No.: | SR/D/2016/00240/000121 | 10) ನೋಂದಣಿ ದಿನಾಂಕ
Date of Registration: | 27/05/2016 |
| 11) ಪರಾಂಶವು ಇದ್ದರೆ (ಇಲ್ಲದಿದ್ದರೆ) | | 12) ಪ್ರಮಾಣ ಪತ್ರ ನೀಡಿದ ದಿನಾಂಕ
Date of Issue | 07/06/2016 |
| 13) ಪ್ರಮಾಣ ಪತ್ರ ಕೊಡುವ ಪ್ರಾಧಿಕಾರಿ ಸಹಿ
Signature of Issuing Authority | | 14) ಪ್ರಮಾಣ ಪತ್ರ ಕೊಡುವ ಪ್ರಾಧಿಕಾರಿ ವಿವರ
Address of the issuing authority | |



"Ensure registration of every birth and death"

ಎಲ್ಲಾ ಜನನ ಮತ್ತು ಮರಣಗಳನ್ನು ದೃಢೀಕರಿಸುವುದು. ಪ್ರಕಾರ 17(1) ರ ಪ್ರಕಾರ ನೋಡಿ
No declaration shall be made of particulars regarding the cause of death as entered in the Register. See proviso to Section 17(1).

TRUE COPY

ADVOCATE

ಕರ್ನಾಟಕ

GOVERNMENT OF KARNATAKA
ಜನನ ಮತ್ತು ಮರಣಗಳ ಮುಖ್ಯ ರಿಜಿಸ್ಟ್ರಾರರು

Chief Registrar Of Births And Deaths

ಮರಣ ಪ್ರಮಾಣ ಪತ್ರ

(ಅಧಿನಿಯಮ 1969 ರ 12/17 ನೆಯ ಪ್ರಕರಣ ಹಾಗೂ ಕ.ಜ.ಮ.ನೋ ನಿಯಮಗಳ 1999ರ ನಿಯಮ 8/13 ರ ಮೇರೆಗೆ
ಕೊಡಲಾದ)

DEATH CERTIFICATE

(Issued under Section 12/17 of the RBD Act. 1969 and Rule 8/13 of the KRBD Rules 1999)

ಈ ಕೆಳಕಂಡ ವಿವರಣೆಯನ್ನು ಕರ್ನಾಟಕ ರಾಜ್ಯದ ಬೆಂಗಳೂರು ಜಿಲ್ಲೆಯ ಬೆಂಗಳೂರು ಮಹಾನಗರ ಪಾಲಿಕೆಯ
ರಿಜಿಸ್ಟ್ರಾರನಲ್ಲಿರುವ ಮರಣ ಸಂಬಂಧವಾದ ಮೂಲ ದಾಖಲೆಯಿಂದ ತೆಗೆದುಕೊಳ್ಳಲಾಗಿದೆಯೆಂದು ಪ್ರಮಾಣೀಕರಿಸಲಾಗಿದೆ.This is to certify that the following information has been taken from the original record of death which
the register for _____ (village/Town) of _____ taluk of _____
District of Karnataka State.

1) ಹೆಸರು

Name. SUSHEELA P

3) ಮರಣದ ದಿನಾಂಕ: 10-02-2010

Date of Death

5) ತಾಯಿಯ ಹೆಸರು

Mother Name. NOT STATED

7) ಮರಣ ಸಮಯದಲ್ಲಿ ಮೃತರ ವಿಳಾಸ

Address of the deceased at the time of death

918, 18th A Main 5th Block

Rajajinagar. Bangalore 10

9) ನೋಂದಣಿ ಸಂಖ್ಯೆ

SRI/D/2016/00240/000121

11) ಷರಾ (ಯಾವುದಾದರೂ ಇದ್ದಲ್ಲಿ)

Remarks (if any)

13) ಪ್ರಮಾಣ ಪತ್ರ ಕೊಡುವ ಪ್ರಾಧಿಕಾರಿಯ ಸಹಿ

Signature of the issuing authority

2) ಲಿಂಗ ಹೆಣ್ಣು

Sex Female

4) ಮರಣದ ಸ್ಥಳ,

Place of Death : 918, 18th A Main 5th Block
Rajajinagar, Bangalore 10

6) ತಂದೆಯ/ಗಂಡನ ಹೆಸರು

Name of the Father/Husband

LATE RAMALINGAIAH M.T

8) ಮೃತರ ಖಾಯಂ ವಿಳಾಸ

Permanent address of the Deceased

918, 18th A Main 5th Block

Rajajinagar. Bangalore 10

10) ನೋಂದಣಿ ದಿನಾಂಕ: 27/05/2016

Date of Registration.

12) ಪ್ರಮಾಣ ಪತ್ರ ನೀಡಿದ ದಿನಾಂಕ: 07/06/2016

Date of issue

14) ಪ್ರಮಾಣ ಪತ್ರ ಕೊಡುವ ಪ್ರಾಧಿಕಾರಿಯ ವಿಳಾಸ

Address of the issuing authority

ಮೋಹರು

ಪ್ರತಿಯೊಂದು ಜನನ ಮತ್ತು ಮರಣದ ನೋಂದಣಿಯನ್ನು ಖಚಿತಪಡಿಸಿಕೊಳ್ಳಿ

"Ensure registration of every birth and death"

ವಹಿಯಲ್ಲಿ ನಮೂದಾದ ರೀತಿಯಲ್ಲಿ ಮರಣದ ಕಾರಣಗಳ ಬಗ್ಗೆ ಬಹಿರಂಗಗೊಳಿಸುವಂತಿಲ್ಲ, ಪ್ರಕರಣ 17(1) ರ ಪರಂತಹ
ನೋಡಿ.

No disclosure shall be made of particulars regarding the cause of the death as entered in the register. See proviso to section 17(1)

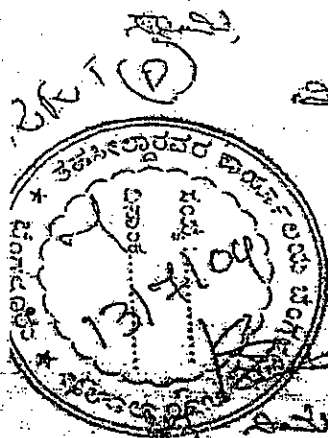
ANNEXURE-H

2002,

01.19.7. ರೂ. 1000000, 83-3000,
 20.918, 1871-2000000,
 5.44 ಸಂಖ್ಯೆ, 200000000,
 2000000-550000.

7,

ಪ್ರದೇಶಾಧಿಕಾರಿ,
 ಸಾರ್ವಜನಿಕ ಕಾರ್ಯ,
 200000000, 200000000,
 200000000, 200000000.



ಪ್ರತಿ: ಸಾರ್ವಜನಿಕ ಕಾರ್ಯ, ಕರ್ನಾಟಕ ಸರ್ಕಾರ,
 ಸಂಖ್ಯೆ 1590 ಮತ್ತು 82000 12-2000
 200000000, 200000000, 200000000
 200000000.

ಈ ಸಂದರ್ಭದಲ್ಲಿ 20-9-2004 ರಂದು ಸಾರ್ವಜನಿಕ ಕಾರ್ಯ
 ಸಂಸ್ಥೆಗೆ ಸಂಬಂಧಿಸಿದಂತೆ ಸಾರ್ವಜನಿಕ ಕಾರ್ಯ. ಈ ಸಂದರ್ಭದಲ್ಲಿ
 ಸಾರ್ವಜನಿಕ ಕಾರ್ಯ ಸಂಸ್ಥೆಗೆ ಸಂಬಂಧಿಸಿದಂತೆ ಸಾರ್ವಜನಿಕ ಕಾರ್ಯ.
 ಸಾರ್ವಜನಿಕ ಕಾರ್ಯ ಸಂಸ್ಥೆಗೆ ಸಂಬಂಧಿಸಿದಂತೆ ಸಾರ್ವಜನಿಕ ಕಾರ್ಯ.
 ಸಾರ್ವಜನಿಕ ಕಾರ್ಯ ಸಂಸ್ಥೆಗೆ ಸಂಬಂಧಿಸಿದಂತೆ ಸಾರ್ವಜನಿಕ ಕಾರ್ಯ.
 ಸಾರ್ವಜನಿಕ ಕಾರ್ಯ ಸಂಸ್ಥೆಗೆ ಸಂಬಂಧಿಸಿದಂತೆ ಸಾರ್ವಜನಿಕ ಕಾರ್ಯ.

ಸಂಖ್ಯೆ 83 ಮತ್ತು ಸಾರ್ವಜನಿಕ ಕಾರ್ಯ, 200000000, 200000000,
 200000000, 200000000, 200000000, 200000000,
 200000000, 200000000, 200000000, 200000000.

ಈ ಸಂದರ್ಭದಲ್ಲಿ ಸಾರ್ವಜನಿಕ ಕಾರ್ಯ ಸಂಸ್ಥೆಗೆ ಸಂಬಂಧಿಸಿದಂತೆ ಸಾರ್ವಜನಿಕ ಕಾರ್ಯ.

2.

M.T.R.

(M.T. ಸಾರ್ವಜನಿಕ ಕಾರ್ಯ)

TRUE COPY

91

TYPED COPY

ANNEXURE - H

ಇಂದ

ಶ್ರೀ. ಎಂ.ಟಿ. ರಾಮಲಿಂಗಯ್ಯ 83 ವರ್ಷ,
ಜನ್ ಲೇಟ್ ದೊಡ್ಡ ತಮ್ಮಯ್ಯ
ನಂ. 918, 18 ಎ ಮುಖ್ಯ ರಸ್ತೆ
5ನೇ ಹಂತ, ರಾಜಾಜಿನಗರ,
ಬೆಂಗಳೂರು-560 010

ಗೆ

ತಹಸೀಲ್ದಾರ್

ದಾಸನಪುರ ಹೋಬಳಿ,

ಬೆಂಗಳೂರು ಉತ್ತರ ತಾಲ್ಲೂಕು,

ಬೆಂಗಳೂರು ನಗರ ಜಿಲ್ಲೆ.

ಸ್ವಾಮಿ,

ವಿಷಯ:ದಾಸನಪುರ ಹೋಬಳಿ, ಕಡಬಗೆರೆ ಗ್ರಾಮದ ಸರ್ವೆ ನಂ. 159 ರ ಪೈಕಿ
8 ಎಕರೆ 12 ಗುಂಟೆ ಜಮೀನಿಗೆ ಖಾತೆ, ಪಹಣಿ, ಮಾಡಲು ಕೋರಿ
ಬರೆದ ಅರ್ಜಿ

ನಾನು ಈ ಹಿಂದೆ ದಿನಾಂಕ 30-9-2004 ರಂದು ಇದೇ ವಿಷಯ
ದಲ್ಲಿ ನಿಮಗೆ ಅರ್ಜಿ ಸಲ್ಲಿಸಿರುವುದು ಸರಿಯಷ್ಟೆ. ಆದರೆ ತಾವುಗಳು ಈ ಬಗ್ಗೆ
ಸೂಕ್ತ ಕ್ರಮಕೈಗೊಳ್ಳದೆ ಇದ್ದ ಕಾರಣ, ನಾನು ಮಾನ್ಯ ಘನ ಕರ್ನಾಟಕ ಉಚ್ಚ
ನ್ಯಾಯಾಲಯಕ್ಕೆ ಅರ್ಜಿ ಸಲ್ಲಿಸಿದ್ದೆ. ಮಾನ್ಯ ನ್ಯಾಯಾಲಯ ನನ್ನ ಹೆಸರಿಗೆ
ಖಾತೆ ಮತ್ತು ಪಹಣಿಯನ್ನು ಮಾಡುವಂತೆ ಆದೇಶ ನೀಡಿರುತ್ತದೆ. ಆದೇಶದ
ನಕಲನ್ನು ಈ ಅರ್ಜಿಯೊಂದಿಗೆ ಲಗತ್ತಿಸಿದೆ.

ನನಗೆ 83 ವರ್ಷ ವಯಸ್ಸಾಗಿದ್ದು, ಓಡಾಡಲು ಸಾಧ್ಯವಿಲ್ಲದ ಕಾರಣ
ನಮ್ಮ ವಕೀಲರ ಮೂಲಕ ಈ ಅರ್ಜಿಯನ್ನು ಸಲ್ಲಿಸುತ್ತಿದ್ದೇನೆ. ಅರ್ಜಿಯ
ಜೊತೆಗೆ ವಕಾಲತನ್ನು ಲಗತ್ತಿಸಲಾಗಿದೆ.

ಈ ಅರ್ಜಿಯೊಂದಿಗೆ ಬೆಂಗಳೂರು ಗ್ರಾಮಾಂತರ ಜಿಲ್ಲೆಯ ಘನ

ಸಹಿ (ಎಂ. ಟಿ. ರಾಮಲಿಂಗಯ್ಯ)

92 -
Translated Copy of Annexure-H

From,
Sri.. M T Ramalingayya. aged about 83 years,
S/o Late Dodda Tamayya,
No: 918, A Main Road,
5th Stage Rajajinagara,
Bangalore - 560 010

To,
Tahsildar,
Dasanapura Hobli,
Bangalore North Taluk,
Bangalore Urban District

Respected,

Sub: Application by appealing for registering Kahata,
Pahani for 8 acre 12 gunta land in Sy No: 159 in
Kadabagere Village, Dasanapura Hobli

Previously I have submitted application on date: 30-
09-2004 about same matter. Since you have not taken any
action, I have filed application in Honourable High Court of
Karnataka. Honourable Court has ordered to register khata
and Pahani to my name. The copy of order has been
enclosed with this application.

I am 83years old, due to my health condition I am
submitting this application through our advocate. The
Vakalath has been enclosed with application.

Along with this application order of Honourable Bangalore
Rural District.

Sd/- (M T Ramalingayya)

93

ANNEXURE-H1

Mob: 9901000299

BASAVAI AH, B.A.L.L.B.,
Advocate

Address:

1203, "Om Nilaya"

3rd Cross, Opp Mahilla Samaj,

Ashoka Nagar, Mandya-571401

Ref Notice. No. 57/15

Date 22.12.15

To:

1) The Chief Secretary,
Government of Karnataka,
Vidhana Souda,
Dr. Ambedkar Veedhi,
BANGALORE-560 001.

2) The Principal Secretary,
Revenue Department,
M.S. Buildings,
Dr. Ambedkar Veedhi,
BANGALORE-560 001.

3) The Deputy Commissioner,
Bangalore North,
Kempegowda Road,
BANGALORE-560 009.

4) The Tahasildar,
Nelamangala Taluk,
Bangalore North.

Sir,

Under the instructions of our client by name Smt.
Susheela P. W/o M.T. Ramalingaiah, resident of No.918,
18th "A" Main Road, 5th Block, Rajajinagar, Bangalore, we
issue the following notice to you as follows:

12

94

~~40~~

(1) The husband of our client was Sri M.T. Ramalingaiah S/o Late Doddathammaiah, who as an Advocate also the Retired Professor. He was the owner and in lawful possession of the ramanu property bearing Sy.No. 159 of Kadabagere village, Nelamangala Taluk, Bangalore North District measuring 8 acres 12 guntas bounded on East by: Others land bearing Sy.No.176 and 177 and others; West by: Land bearing Sy.No.159 and others, North by: Land bearing Sy.No.185 and Chikka Hanumaiah and South by: Venkatappa's land bearing Sy.No.183 and others land. All the title deeds were standing in his name.

(2) There was a civil dispute between M.T. Ramalingaiah and the Government including yourselves. M.T.Ramalingaiah had approached the Hon'ble Second Additional Senior Civil Judge, Bangalore Rural District by filing O.S.No. 394/1998 which suit after contest came to be decreed in favour of M.T.Ramalingaiah declaring that he is the owner and in possession of the said property. Accordingly decree came to be passed against you and others in respect of the said property.

L. 2.

"In view of the submissions and in the light of the Judgment and Decree passed in O.S.No.394/1998 the respondents are bound to effect Katha in favour of the petitioner/plaintiff in all the revenue records. However the same has not been effected."

- (4) Even though the said order came to be passed on 18-3-2009 and in spite of several representations made by M.T.Ramalingaiah, there was no timely action taken at your end to make revenue entries in the name of M.T.Ramalingaiah during his life time. Unfortunately he died intestate leaving behind him our client and children as his legal heirs. Our client is the legally wedded wife of M.T. Ramalingaiah. Even after the death of M.T.Ramalingaiah our client made several representations to you all requesting you and other Revenue Authorities to make revenue khatha and entries in her name in pursuance of right, title and possession of M.T.Ramalingaiah and also in pursuance of the Judgment and Decree passed by the competent Civil Court against you all and also in pursuance of direction given by the Hon'ble High Court of Karnataka in the above referred Writ Petition.

(3) Even though the said property was owned and possessed by M.T. Ramalingaiah and even though it was mandatory on the part of the Revenue

in recognition of the title, there was dereliction of duties on the part of the Revenue Authorities. In spite of repeated representations made by M.T. Ramalingaiah there was no immediate action taken by the Revenue Department to make khatha and also Revenue entries in his name. Left with no other alternative, M.T. Ramalingaiah had approached the Hon'ble High Court of Karnataka by filing a Writ Petition bearing No. W.P.No. 10137/2008 (KLR/RR/SUR) against the State of Karnataka, and also Tahsildar, Bangalore North Tahuk. The Hon'ble High Court of Karnataka, after hearing the matter was pleased to allow the Writ Petition on 18-3-2009 directing you to pass appropriate orders in pursuance of the representation dated 30.09.2004 made by M.T. Ramalingaiah within a period of three months. It is also made clear in para 4 of the Judgment of the Hon'ble High Court of Karnataka in the said Writ Petition as follows:

- (5) It is respectfully submitted that our client being the widow of an Advocate and Retired Professor who fought out the litigation up to the Hon'ble High court and even though the competent Civil Court and Hon'ble High Court of Karnataka have passed the Judgment and Decree favourably, so far no action has been taken at your end in order to protect the rights and interest of a citizen.
- (6) In pursuance of a direction given by the Hon'ble High of Karnataka in the above referred Writ Petition and in pursuance of the Judgment and Decree of the competent Civil Court, you are all legally bound to make khatha and entries in respect of the above referred property in the name of our client who is the legally wedded wife of the Decree Holder M.T. Ramalingaiah you are dodging the matter. This final requisition is submitted to you all concerned to give effect to the Judgment and Decree of the competent Civil Court and also obey the direction given by the Hon'ble High Court of Karnataka. For your reference Xerox copy of the Judgment and Decree passed in O.S.No.394/1998 and also W.P.No. 10137/2008 referred above are enclosed herewith.

98

- 48 -

6

- (7) Under the above such circumstances, on behalf of our client you are hereby requested to consider the matter and make the Revenue Khatha and also pertaining to the above referred 08 acres 12 guntas of property bearing Sy.No. 159 of Kadabagere village, Nelamangala Taluk, Bangalore North District, in the name of our client by name Smt. P. Susheela W/o late M.T. Ramalingaiah within thirty days from the date of receipt of this representation. On your failure to do so our client will be obliged to approach the competent Court of Law including the Hon'ble High Court of Karnataka to initiate contempt proceedings and for such other reliefs and in that event you will be held liable for all the costs and consequences.

(H.BASAVAIAH)
Advocate

TRUE COPY
ADVOCATE

TYPED COPY of
ANN-HI

99 -

To:

dt. 22.12.2015

- 1) The Chief Secretary,
Government of Karnataka,
Vidhana Souda,
Dr.Ambedkar Veedhi,
BANGALORE-560 001.
- 2) The Principal Secretary,
Revenue Department,
M.S. Buildings,
Dr.Ambedkar Veedhi;
BANGALORE-560 001.
- 3) The Deputy Commissioner,
Bangalore North,
Kempegowda Road,
BANGALORE-560 009.
- 4) The Tahasildar,
Nelamangala Taluk,
Bangalore North.

Sir,

Under the instructions of our client by name Smt. Susheela P. W/o M.T. Ramalingaiah, resident of No.918, 18th "A" Main Road, 5th Block, Rajajinagar, Bangalore, we issue the following notice to you as follows:

- (1) The husband of our client was Sri M.T. Ramalingaiah S/o Late Doddathammaiah, who as an Advocate also the Retired Professor. He was the owner and in lawful possession of the rasucu property bearing Sy.No. 159 of Kadabagere village, Nelamangala Taluk, Bangalore North District measuring 8 acres 12 guntas bounded on East by: Others land bearing Sy. No. 176 and 177 and others; West by: Land bearing Sy.No. 159 and others, North by: Land bearing Sy.No. 185 and Chikka Hanumaiah and South by: Venkatappa's land bearing Sy.No. 183 and others land. All the title deeds were standing in his name.
- (2) There was a civil dispute between M.T. Ramalingaiah and the Government including yourselves. M.T.Ramalingaiah had approached the Hon'ble Second Additional Senior Civil Judge, Bangalore Rural District by filing O.S.No. 394/1998 which suit after contest came to be decreed in favour of M.T.Ramalingaiah declaring that he is the owner and in possession of the said property. Accordingly decree came to be passed against you and others in respect of the said property.

- 3) Even though the said property was owned and possessed by M.T.Ramalingaiah and even though it was mandatory on the part of the Revenue

in recognition of the title, there was dereliction of duties on the part of the Revenue Authorities. In spite of repeated representations made by M.T. Ramalingaiah there was no immediate action taken by the Revenue Department to make khatha and also Revenue entries in his name. other Left with no alternative, M.T.Romalinguinh had approached the Hon'le High Court of Karnataka by filing a Writ Petition bearing No. W.P.No. 10137/2008 (KLR/RR/SUR) against the State of Karnataka, and also Tahsildar, Bangalore North Tahuk. The Hon'ble High Court of Karnataka, after hearing the matter was pleased to allow the Writ Petition on 18-3-2009 directing you appropriate orders in directing you to pass pursuance of the representation dated 30.09.2004 made by M.T. Ramalingaiah within a period of three months. It is also made clear in para 4 of the Judgment of the Hon'ble High Court of Karnataka in the said Writ Petition as follows:

"In view of the submissions and in the light of the Judgment and Decree passed in O.S.No.394/1998 the respondents.. are bound to. Effect Katha in -favour of the petitioner/Plaintiff in all the revenue records. However the same has not been affected."

- 4) Even though the said order came to be passed on 18-3-2009 and in spite of several representations made by M.T.Ramalingaiah, there was no timely action taken at your end to make revenue entries in the name of M.T.Ramalingaish during bin life time. Unfortunately he died intestate leaving behind him our client and children as his legal heirs. Chur client is the legally wedded wife of M.T. Ramalingaish. Even after M.T.Ramalingainb our client the death of made several representations to you all requesting you and other Revenue Authorities to make revenue khatha and entries in her name in pursuance of right, title and possession of M.TRamlingaiah and also in pursuance of the Judgment and Decree passed by the competent Civil Court against you all and also in pursuance of direction given by the Hon'ble High Court of Karnataka in the above referred Writ Petition.

- 101
- (5) It is respectfully submitted that our client being the widow of an Advocate and Retired Professor who fought out the litigation up to the Hon'ble High court and even though the competent Civil Court and Hon'ble High Court of Karnataka have passed the Judgment and Decree favourably, so far no action has been taken at your end in order to protect the rights and interest of a citizen.
- (6) In pursuance of a direction given by the Hon'ble High of Karnataka in the above referred Writ Petition and in pursuance of the Judgment and Decree of the competent Civil Court, you are all legally bound to make khatha and entries in respect of the above referred property in the name of our client who is the legally wedded wife of the Decree Holder M.T. Ramalingaiah you are dodging the matter. This final requisition is submitted to you all concerned to give effect to the Judgment and Decree of the competent Civil Court and also obey the direction given by the Hon'ble High Court of Karnataka. For your reference Xerox copy of the Judgment and Decree passed in O.S.No.394/1998 and also W.P.No. 10137/2008 referred above are enclosed herewith.
- 7) Under the above such circumstances, on behalf of our client you are hereby requested to consider the matter and make the Revenue Khatka and also pertaining to the above referred 08 acres 12 guntas of property bearing Sy.No. 159 of Kadabagere village, Nelamangala Taluk, Bangalore North District, in the name of our client by name Smt. P. Susheela W/o late M.T. Ramalingaiah within thirty days from the date of receipt of this representation. On your failure to do so our client will be obliged to approach the competent Court of Law including the Hon'ble High Court of Karnataka to initiate contempt proceedings and for such other reliefs and in that event you will be held liable for all the costs and consequences.

(H.BASAVIAH)

Advocate

ಗೆ
ತಹಶೀಲ್ದಾರರವರು
ಬೆಂಗಳೂರು ಉತ್ತರ ತಾಲ್ಲೂಕು,
ಬೆಂಗಳೂರು ಗ್ರಾಮಾಂತರ ಜಿಲ್ಲೆ,
ಬೆಂಗಳೂರು.

ದಿನಾಂಕ: 11-01-2021

ಅರ್ಜಿದಾರರು :-

ಶ್ರೀಮತಿ ಎನೀಶ್.ಬಿ.ಆರ್. ದಿನ್ ಲೇಟ್ ಎಂ.ಪಿ.ರಾಮಲಿಂಗಯ್ಯ
ಕೋಂ ಕನ್ಸ್ಟ್ರಕ್ಷನ್ ಪ್ರೈವೇಟ್.
ಮನೆ ನಂ:1427, 2ನೇ ಫ್ಲಾ.
ಬಂದಿಪಾಳೆ ಬಡಾವಣೆ, ಮಂಜು ನಗರ.

ತಹಶೀಲ್ದಾರರವರ ಕಛೇರಿ
ಬೆಂಗಳೂರು ಉತ್ತರ ತಾಲ್ಲೂಕು

13 JAN 2021

ಶ್ರೀಮತಿ ಎನೀಶ್.ಬಿ.ಆರ್. ದಿನ್ ಲೇಟ್ ಎಂ.ಪಿ.ರಾಮಲಿಂಗಯ್ಯ

ವಿಷಯ:- ಮೃತ ವಸ್ತು ತಂದೆಯ ಹೆಸರಿನಲ್ಲಿರುವ ಬೆಂಗಳೂರು ಉತ್ತರ
ತಾಲ್ಲೂಕಿನ ಕಡಬಗುಡಿ ಗ್ರಾಮದ ಸರ್ವೆ ನಂ:159ರಲ್ಲಿ ವಿಸ್ತೀರ್ಣ
8.12.00 ಗುಂಟೆ ಜಮೀನಿನ ಮೀತೆ ವರ್ಗಾವಣೆ ಕೋರಿ ಮನವಿ.

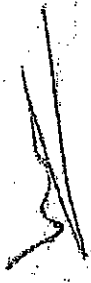
ಮೇಲ್ಕಂಡ ವಿಷಯಕ್ಕೆ ಸಂಬಂಧಪಟ್ಟಂತೆ ತಮ್ಮಲ್ಲಿ ಮನವಿ ಮಾಡಿಕೊಳ್ಳುವುದೇ
ನಂದರೆ, ವಸ್ತು ತಂದೆ ಲೇಟ್ ಎಂ.ಪಿ.ರಾಮಲಿಂಗಯ್ಯರವರು ಪಾಂಡಿ ಸಾಪ್ಪು ತಾಯಿ
ಶ್ರೀಮತಿ ಸುಶೀಲ ಎಂಬವರು ಮೃತರಾಗಿರುತ್ತಾರೆ. ಮೃತರಿಗೆ ಎನೀಶ್.ಬಿ.ಆರ್. ಆದ
ನಾನ್, ವಾಣಿ.ಬಿ.ಆರ್. ರಶ್ಮಿ.ಬಿ.ಆರ್. ಎಂಬ 3 ಜನ ಮಕ್ಕಳು ಇದ್ದು, ನಾವು
ಸದರಿಗಳವರ ಕಾರಣವುಬದ್ಧ ವಾರಸುದಾರರಾಗಿರುತ್ತೇವೆ. ಮೃತ ವಸ್ತು ತಂದೆಯ
ಹೆಸರಿನಲ್ಲಿ ಈ ಹಿಂದೆ ನೆಲಮಂಗಲ ತಾಲ್ಲೂಕಿಗೆ ಸೇರಿದ್ದಂತಹ ಹಾಲಿ ಬೆಂಗಳೂರು
ಉತ್ತರ ತಾಲ್ಲೂಕಿನ ಕಡಬಗುಡಿ ಗ್ರಾಮದ ಸರ್ವೆ ನಂ:159ರಲ್ಲಿ ವಿಸ್ತೀರ್ಣ 8.12.00
ಗುಂಟೆ (ಬೆಕ್ಕುಬಂದಿ ಪೂರ್ವಕ್ಕೆ- ಸರ್ವೆ ನಂ:176 ಮತ್ತು 177 ಮತ್ತು ಇತರ
ಜಮೀನು, ಪಶ್ಚಿಮಕ್ಕೆ- ಸರ್ವೆ ನಂ:159 ಮತ್ತು ಇತರರು, ಉತ್ತರಕ್ಕೆ- ಸರ್ವೆ ನಂ:185
ಮತ್ತು ಬೆಕ್ಕದಮನುಯ್ಯರವರ ಜಮೀನು, ದಕ್ಷಿಣಕ್ಕೆ- ವೆಂಕಟಪ್ಪರವರ ಸರ್ವೆ ನಂ:183ರ
ಮತ್ತು ಇತರರ ಜಮೀನು) ಇದ್ದು, ವಸ್ತು ತಂದೆ-ತಾಯಿಯವರ ಮರಣಾನಂತರ
ನಾವು ಮೃತರ ವಾರಸುದಾರರಾಗಿ ಮೇಲ್ಕಂಡ ಜಮೀನಿಗೆ ಪಾತಿ ವಾರಸು
ಹಕ್ಕುದಾರರಾಗಿ ಸ್ವಾಧೀನಾನುಭವದಲ್ಲಿರುತ್ತೇವೆ. ಮೇಲ್ಕಂಡ ಜಮೀನಿಗೆ ಸಂಬಂಧಪಟ್ಟಂತೆ
ನಮ್ಮ ತಂದೆಯು ತಮ್ಮ ಜೀವಿತ ಕಾಲದಲ್ಲಿ ಬೆಂಗಳೂರು ಗ್ರಾಮಾಂತರ ಜಿಲ್ಲೆಯ 2ನೇ
ಆವರಣ ಹಿರಿಯ ಸಿವಿಲ್ ನ್ಯಾಯಾಧೀಶರವರ ನ್ಯಾಯಾಲಯದಲ್ಲಿ ಓಎಸ್.
ನಂ:34/98ರಂತೆ ಮಾರ್ಗೀಕೃತ ಘೋಷಣಾ ದಾಖಲೆ ಸಲ್ಲಿಸಿದ್ದು, ಸದರಿ ದಾಖಲೆಯಲ್ಲಿ
ನಮ್ಮ ಪರ ದಿಕ್ತಿ ಆದೇಶವಾಗಿರುತ್ತದೆ. ತದನಂತರದಲ್ಲಿ ಬೆಂಗಳೂರಿನ ಮಾನ್ಯ
ಕರ್ನಾಟಕ ಕಾಚ್ ನ್ಯಾಯಾಲಯದಲ್ಲಿ ರಿಟ್ ವೆಟಿಂಗ್ ನಂ:10137/2008
(ಕೆಎಲ್‌ಆರ್/ಆರ್‌ಆರ್/ ಎಸ್‌ಯುಆರ್) ದಾಖಲು ಮಾಡಿರುತ್ತಾರೆ. ಸದರಿ ರಿಟ್

ಪೊಷಾಣವು ಸಹ ದೊರಕಿಲ್ಲ. 18/11/2009ರಂದು ನಮ್ಮ ಪರ ಆದೇಶವಾಗಿದ್ದು, 3 ತಿಂಗಳ ಒಳಗಾಗಿ ಖಾತೆ ಮಾಡುವಂತೆ ಆದೇಶವಾಗಿರುತ್ತದೆ. ತದನಂತರದಲ್ಲಿ ಸಹ ಪಾಲೆಯಾಗದ ಕಾರಣ ನಮ್ಮ ತಂದೆಯು ಮರಣಹೊಂದುವವರೆವಿಗೂ ಸಹ ತಮ್ಮ ಕಛೇರಿಗೆ ಖಾತೆ ಮಾಡುವಂತೆ ಮೊಖೇ ಮತ್ತು ಲೆಖಕ ಮೂಲಕವಾಗಿ ಮನವಿ ಮಾಡಿಕೊಂಡು ಬಂದಿದ್ದು, ನಮ್ಮ ತಂದೆಯ ಮರಣಾನಂತರ ನಮ್ಮ ತಾಯಿ ಸಹ ಮನವಿ ಮಾಡಿಕೊಂಡು ಬಂದು ಅವರೂ ಸಹ ಮರಣಹೊಂದಿರುತ್ತಾರೆ.

ಅಯ್ಯರಿಂದ ತಾವುಗಳಿಗೆ ಹೆಸರುವಾಸಿ ಮತ್ತು ನಮ್ಮ ತಂದೆಯು ಬಾಲ್ಯ ಕಡಲುಗೆ ಗ್ರಾಮದ ಸರ್ವೆ ನಂ:159ರಲ್ಲಿ ವಿಸ್ತೀರ್ಣ 8.12.00 ಗುಂಟೆ ಜಮೀನಿನ ಪಾಕೆಯನ್ನು ನನ್ನ ಹಾಗೂ ನನ್ನ ತಂಗಿಯರಾದ ವಾಣಿ.ಬಿ.ಆರ್., ರಶ್ಮಿ.ಬಿ.ಆರ್. ಎಂಬವರ ಹೆಸರಿಗೆ ಮಾಡಿಕೊಡುವಂತೆ ತಮ್ಮಲ್ಲಿ ಪಾರ್ಟಿಸಿಪೊಳ್ಳುತ್ತೇವೆ. ಈ ಕಡಲ ನಮ್ಮ ತಂದೆ-ತಾಯಿಯವರ ಮರಣ ಪ್ರಮಾಣ ಪತ್ರದ ಪ್ರತಿಗಳು, ವಂಶವೃಕ್ಷ, 8.ಎಸ್.394/98ರ ಆದೇಶದ ಪ್ರತಿ ಮತ್ತು ರಿಟ್ ಪೆಟಿಷನ್ ನಂ: 10127/2008(ಕೆಎಲ್‌ಆರ್/ಆರ್‌ಆರ್/ವಾಣಿಯವರ್)ರ ಆದೇಶದ ಪ್ರತಿಯನ್ನು ತಮ್ಮ ಅವಗಾಹನವಾಗಿ ಹಾಜರುಪಡಿಸಿರುತ್ತೇನೆ.

ವಂದನೆಗಳೊಂದಿಗೆ.

ಇಂತಿ ತಮ್ಮ ವಿಧೇಯ



(ವಾಣಿ.ಬಿ.ಆರ್.)

TRUE COPY

ADVOCATE

104 -

TYPEO COPY

ANNEXURE - J

ದಿನಾಂಕ :13-01-2021

ಗೆ

ತಹಸೀಲ್ದಾರರವರು
ಬೆಂಗಳೂರು ಉತ್ತರ ತಾಲ್ಲೂಕು,
ಬೆಂಗಳೂರು ಗ್ರಾಮಾಂತರ ಜಿಲ್ಲೆ.
ಬೆಂಗಳೂರು

ಅರ್ಜಿದಾರರು : ಶ್ರೀಮತಿ ವಿನೀತ್ ಬಿ.ಆರ್. ಬನ್ ಲೇಟ್ ಎಂ.ಟಿ.
ರಾಮಲಿಂಗಯ್ಯ ಕೋಂ ತಮ್ಮಣ್ಣ ಪಿ.ಎಸ್. ಮನೆ ನಂ.
1427, 2ನೇ ಕ್ರಾಸ್, ಬಂದೀಗೌಡ ಬಡಾವಣೆ, ಮಂಡ್ಯ
ಸಿಟಿ

ವಿಷಯ : ಮೃತ ನನ್ನ ತಂದೆಯ ಹೆಸರಿನಲ್ಲಿರುವ ಬೆಂಗಳೂರು ಉತ್ತರ
ತಾಲ್ಲೂಕಿನ ಕಡಬಗೆರೆ ಗ್ರಾಮ ಸರ್ವೆ ನಂ. 159 ರಲ್ಲಿ ವಿಸ್ತೀರ್ಣ
8-12-00 ಗುಂಟೆ ಜಮೀನಿನ ಖಾತೆ ವರ್ಗಾವಣೆ ಕೋರಿ
ಮನವಿ.

ಮೇಲ್ಕಂಡ ವಿಷಯಕ್ಕೆ ಸಂಬಂಧಪಟ್ಟಂತೆ ತಮ್ಮಲ್ಲಿ ಮನವಿ ಮಾಡಿ
ಕೊಳ್ಳುವುದೇನೆಂದರೆ, ನಮ್ಮ ತಂದೆ ಲೇಟ್ ಎಂ.ಟಿ. ರಾಮಲಿಂಗಯ್ಯನವರು
ಹಾಗೂ ನಮ್ಮ ತಾಯಿ ಶ್ರೀಮತಿ ಸುಶೀಲ ಎಂಬವರು ಮೃತರಾಗಿರುತ್ತಾರೆ.
ಮೃತರಿಗೆ ವಿನಿತ ಬಿ.ಆರ್. ಆದ ನಾನು ವಾಣಿ ಬಿ.ಆರ್. ರಶ್ಮಿ ಬಿ.ಆರ್. ಎಂಬ 3
ಜನ ಮಕ್ಕಳು ಇದ್ದು, ನಾವು ಸದರಿಯವರ ಕಾನೂನುಬದ್ಧ ವಾರಸುದಾರ
ರಾಗಿರುತ್ತೇವೆ. ಮೃತ ನಮ್ಮ ತಂದೆಯ ಹೆಸರಿನಲ್ಲಿ ಈ ಹಿಂದೆ ನೆಲಮಂಗಲ
ತಾಲ್ಲೂಕಿಗೆ ಸೇರಿದ್ದಂತ ಹಾಲ ಬೆಂಗಳೂರು ಉತ್ತರ ತಾಲ್ಲೂಕಿನ ಕಡಬಗೆರೆ
ಗ್ರಾಮದ ಸರ್ವೆ ನಂ. 159 ರಲ್ಲಿ ವಿಸ್ತೀರ್ಣ 8.12.00 ಗುಂಟೆ (ಚಕ್ಕುಬಂದಿ
ಪೂರ್ವಕ್ಕೆ ಸರ್ವೆ ನಂ. 176 ಮತ್ತು 177 ಮತ್ತು ಇತರ ಜಮೀನು, ಪಶ್ಚಿಮಕ್ಕೆ
ಸರ್ವೆ ನಂ. 159 ಮತ್ತು ಇತರರು. ಉತ್ತರಕ್ಕೆ : ಸರ್ವೆ ನಂ. 185 ಮತ್ತು

ಚಿಕ್ಕನುಮಯ್ಯರವರ ಜಮೀನು, ದಕ್ಷಿಣಕ್ಕೆ - ವೆಂಕಟಪ್ಪರವರ ಸರ್ವೆ ನಂ. 183 ರ ಮತ್ತು ಇತರರ ಜಮೀನು) ಇದ್ದು, ನಮ್ಮ ತಂದೆ-ತಾಯಿಯವರ ಮರಣಾನಂತರ ನಾವು ಮೃತರ ವಾರಸುದಾರರಾಗಿ ಮೇಲ್ಕಂಡ ಜಮೀನಿಗೆ ಪೌತಿ ವಾರಸು ಹಕ್ಕುದಾರರಾಗಿ ಸ್ವಾಧೀನಾನುಭವದಲ್ಲಿರುತ್ತೇವೆ. ಮೇಲ್ಕಂಡ ಜಮೀನಿಗೆ ಸಂಬಂಧಪಟ್ಟಂತೆ ನಮ್ಮ ತಂದೆಯು ತಮ್ಮ ಜೀವಿತ ಕಾಲದಲ್ಲಿ ಬೆಂಗಳೂರು ಗ್ರಾಮಾಂತರ ಜಿಲ್ಲೆಯ 2ನೇ ಅಪರ ಹಿರಿಯ ಸಿವಿಲ್ ನ್ಯಾಯಾಧೀಶರವರ ನ್ಯಾಯಾಲಯದಲ್ಲಿ ಓ.ಎಸ್. ನಂ. 394/98 ರಂತೆ ಮಾಲೀಕತ್ವ ಘೋಷಣಾ ದಾವೆ ಸಲ್ಲಿಸಿದ್ದು, ಸದರಿ ದಾವೆಯಲ್ಲಿ ನಮ್ಮ ಪರ ಡಿಕ್ರಿ ಆದೇಶವಾಗಿರುತ್ತದೆ. ತದನಂತರದಲ್ಲಿ ಬೆಂಗಳೂರಿನ ಮಾನ್ಯ ಕರ್ನಾಟಕ ಉಚ್ಚ ನ್ಯಾಯಾಲಯದಲ್ಲಿ ರಿಟ್ ಪಿಟಷನ್ ನಂ. 10137/2008 (ಕೆಎಲ್‌ಆರ್/ ಆರ್ ಆರ್/ಎಸ್‌ಯುಆರ್) ದಾಖಲು ಮಾಡಿರುತ್ತಾರೆ. ಸದರಿ ರಿಟ್ ಪಿಟಷನ್‌ನಲ್ಲಿ ಸಹ ದಿನಾಂಕ 18/03/2009 ರಂದು ನಮ್ಮ ಪರ ಆದೇಶವಾಗಿದ್ದು, 3 ತಿಂಗಳ ಒಳಗಾಗಿ ಖಾತೆ ಮಾಡುವಂತೆ ಆದೇಶವಾಗಿರುತ್ತದೆ. ತದನಂತರದಲ್ಲಿ ಸಹ ಖಾತೆಯಾಗದ ಕಾರಣ ನಮ್ಮ ತಂದೆಯು ಮರಣಹೊಂದುವರೆವಿಗೂ ಸಹ ತಮ್ಮ ಕಛೇರಿಗೆ ಖಾತೆ ಮಾಡುವಂತೆ ಮೌಖಿಕ ಮತ್ತು ಅಖತ ಮೂಲಕವಾಗಿ ಮನವಿ ಮಾಡಿಕೊಂಡು ಬಂದಿದ್ದು, ನಮ್ಮ ತಂದೆಯ ಮರಣಾನಂತರ ನಮ್ಮ ತಾಯಿ ಸಹ ಮನವಿ ಮಾಡಿಕೊಂಡು ಬಂದು ಅವರು ಸಹ ಮರಣ ಹೊಂದಿರುತ್ತಾರೆ.

ಆದುದರಿಂದ ತಾವುಗಳು ದಯಮಾಡಿ ಮೃತ ನಮ್ಮ ತಂದೆಯ ಬಾಬು ಕಡಬಗೆರೆ ಗ್ರಾಮದ ಸರ್ವೆ ನಂ.159 ರಲ್ಲಿ ವಿಸ್ತೀರ್ಣ 8.12.00 ಗುಂಟೆ ಜಮೀನಿನ ಖಾತೆಯನ್ನು ನನ್ನ ಹಾಗೂ ನನ್ನ ತಂಗಿಯರಾದ ವಾಣಿ ಬಿ.ಆರ್. ರಶ್ಮಿ ಬಿ.ಆರ್.ಎಂಬವರ ಹೆಸರಿಗೆ ಮಾಡಿಕೊಡುವಂತೆ ತಮ್ಮಲ್ಲಿ ಪ್ರಾರ್ಥಿಸಿ

— 106 —

ಕೊಳ್ಳುತ್ತೇವೆ. ಈ ಕೂಡ ನಮ್ಮ ತಂದೆ ತಾಯಿಯವರ ಮರಣ ಪ್ರಮಾಣ ಪತ್ರದ ಪ್ರತಿಗಳು, ವಂಶವೃಕ್ಷ ಓ.ಎಸ್. 394/98 ರ ಆದೇಶದ ಪ್ರತಿ ಮತ್ತು ರಿಟ್ ಪೆಟಿಷನ್ ನಂ. 10137/2008 (ಕೆ. ಎಲ್.ಆರ್/ಆರ್ಆರ್ /ಎಸ್‌ಯುಆರ್) ರ ಆದೇಶದ ಪ್ರತಿಯನ್ನು ತಮ್ಮ ಅವಗಾಹನೆಗಾಗಿ ಹಾಜರುಪಡಿಸಿರುತ್ತೇನೆ. ವಂದನೆಗಳೊಂದಿಗೆ,

ಇಂತಿ ತಮ್ಮ ವಿಧೇಯ
ಸಹಿ
(ವಿನೀತ್ ಬಿ.ಆರ್)

107 -

Translated Copy of Annexure-J

Date: 13-01-2021

To,
Tahsildar,
Bangalore North Taluk,
Bangalore Rural District,
Bangalore

Applicant: Smt. Vineeth B R D /o Late M T Ramalingayya
W/o Tammanna P S House No: 1427, 2nd
Cross Bandigowda Layout, Mandya City

Sub: Appeal for transferring the khata of 8-12-
00gunta land in Sy No: 159 in Kadabagere
Village, Bangalore North taluk which is in my
father's name.

As concerned to aforesaid subject, hereby appealing
with you is that, my father Late M T Ramalingayya and my
mother Smt. Susheela have passed away. The deceased
have three children by name I Vineetha B R, Vani B R,
Rashmi B R. We are legal heirs of said. There is 8-12-00
gunta land in Sy No: 159 in Kadabagere Village, Bangalore
North Taluk previously belonged to Nelamangala Taluk
(Bounded on the East by: Sy No: 176 and 177 and other
land, West by: Sy No: 159 and others, North by: Sy No: 185
and land belong to Chikkahanumayya South by: Sy No: 183
land of Venkatappa and other lands) in the name of my
deceased father. After death our parents, we are under
possession of said land as legal heirs of deceased. During

108

their lifetime, our father has filed OS No: 394/98 in 3rd Additional Senior Civil Judge Court Bangalore Rural District concerned to declaration of title and ownership of said land. The suit was decreed in our favour. Later, Writ Petition No: 10137/2008 (KLR/RR/SUR) in Honourable High Court of Karnataka, Bangalore. Even the order has been issued in favour of us in said writ petition on date: 18-03-2009. It has ordered to register the khata within 3months. Since khata was not registered, till his death my father has submitted appeal orally and in writing to your office for registering khata. After the death of my father, my mother has also submitted appeals and even she has passed away.

Therefore, hereby praying with you to kindly register the khata of 8-12-00 gunta land in Sy No: 159 in Kadabagere Village belong to my father to the my and my younger sisters Vani B R and Rashmi B R. The copy of Death Certificate of my parents, copy of Family tree certificate and order copy of OS No: 394/98 and order copy of Writ Petition No: 10137/2008 (KLR/RR/SUR) has been furnished for your perusal.

Thanking You,

Yours Obediently,

Sd/-
(Vineeth B R)

ANNEXURE-K

- 51 -

ಅಧಿಕಾರವಾಹಿನಿ/ಅಧಿಕಾರಿ 600/80-21 ಅಧಿಕಾರವಾಹಿನಿ/ಅಧಿಕಾರಿ, ಬೆಂಗಳೂರು ಉತ್ತರ ಕಾಲೋನಿ, ಬೆಂಗಳೂರು. ದಿ: 27-4-2021

: ಹಿರಿಯರವರ :

ಬೆಂಗಳೂರು ಉತ್ತರ ಕಾಲೋನಿ, ದಾಸನಹಳ್ಳಿ ಹೋಬಳಿ, ಶಿವಮೊಗ್ಗ
ಗ್ರಾಮದ ಸರ್ವೆ ನಂ. 159 ರಲ್ಲಿ ಎಸ್.ಎಸ್.ಎಸ್. ಬಿ.ಆರ್. ಎಸ್.ಎಸ್.ಎಸ್. ಬಿ.ಆರ್. ಆದ ನೀವುಗಳು ದಿನಾಂಕ 31-01-21 ರಂದು
ಅರ್ಜಿ ಸಲ್ಲಿಸಿ, ಪಹಣಿ ತಿದ್ದುಪಡಿ ಮಾಡಿಕೊಡಬೇಕೆಂದು ಹೋರಿರುವುದು ನಮಗೆ ತಿಳಿದು, ಅದರಂತೆ ನಿಮ್ಮ
ಅರ್ಜಿ ಹಾಗೂ ಲಗತ್ತಿಸಿರುವ ದಾಖಲೆಗಳನ್ನು 15-02-2021 ರಂದು 159 ಎಸ್.ಎಸ್.ಎಸ್. ಬಿ.ಆರ್. ಗೆಳೆಯರ
ಶಿವಮೊಗ್ಗ, 27-04-2021 ರಂದು 159 ಎಸ್.ಎಸ್.ಎಸ್. ಬಿ.ಆರ್. ಗೆಳೆಯರ
ಶಿವಮೊಗ್ಗ, 27-04-2021 ರಂದು 159 ಎಸ್.ಎಸ್.ಎಸ್. ಬಿ.ಆರ್. ಗೆಳೆಯರ
ಶಿವಮೊಗ್ಗ, 27-04-2021 ರಂದು 159 ಎಸ್.ಎಸ್.ಎಸ್. ಬಿ.ಆರ್. ಗೆಳೆಯರ

ಈ ಪಾಠ್ಯಗಳಿಂದ ನಿಮ್ಮ ಅರ್ಜಿಯನ್ನು ಮುಕ್ತಾಯ ಗೊಳಿಸಿದೆ ತಿಳಿಯುವುದು.

ಎಸ್.ಎಸ್.ಎಸ್. ಬಿ.ಆರ್.
ಬೆಂಗಳೂರು ಉತ್ತರ ಕಾಲೋನಿ,
ಶಿವಮೊಗ್ಗ.

: ಹಿರಿಯರವರ :

ಎಸ್.ಎಸ್.ಎಸ್. ಬಿ.ಆರ್. 255
ಎಸ್.ಎಸ್.ಎಸ್. ಬಿ.ಆರ್. 255
ಎಸ್.ಎಸ್.ಎಸ್. ಬಿ.ಆರ್. 255
ಎಸ್.ಎಸ್.ಎಸ್. ಬಿ.ಆರ್. 255
ಎಸ್.ಎಸ್.ಎಸ್. ಬಿ.ಆರ್. 255

ಪ್ರತಿಯನ್ನು ರಾಜಸ್ವ ನಿರ್ದೇಶಕರು, ವ್ಯವಹಾರಕ್ಕೆ ರವಾನಿಸುವುದು, ಈ
ಹಂಚಿಕೆಯನ್ನು ಸಂಬಂಧಪಟ್ಟವರಿಗೆ ಹಾರಿ ಮಾಡಿ, ಹಾರಿ ಮಾಡಿದ ಪ್ರತಿಯನ್ನು ಈ ಕಛೇರಿಗೆ ಒಂದು
ಪಾಠ್ಯದೊಳಗಾಗಿ ಸಲ್ಲಿಸಲು ಸೂಚಿಸಿದೆ.

TRUE COPY

ADVOCATE

110

TYPED COPY
7 ANNEXURE - K

ಸಿ.ಆರ್. /600/20-21

ತಹಶೀಲ್ದಾರ್‌ರವರ ಕಾರ್ಯಾಲಯ
ಬೆಂಗಳೂರು ಉತ್ತರ ತಾಲ್ಲೂಕು
ಬೆಂಗಳೂರು ದಿ 27-4-2021

ಹಿಂಬರಹ

ಬೆಂಗಳೂರು ಉತ್ತರ ತಾಲ್ಲೂಕು, ದಾಸನಪುರ ಹೋಬಳಿ, ಕಡಬಗೆರೆ
ಗ್ರಾಮದ ಸರ್ವೆ ನಂ. 159 ರಲ್ಲಿ ----- ವಿಸ್ತೀರ್ಣದ ಜಮೀನಿಗೆ ಶ್ರೀ. /
ಶ್ರೀಮತಿ ವಿನೀತ್ ಬಿ.ಆರ್. ಆದ ನೀವುಗಳು ದಿನಾಂಕ :31-01-21 ರಂದು
ಅರ್ಜಿ ಸಲ್ಲಿಸಿ, ಪಹಣಿ ತಿದ್ದುಪಡಿ ಮಾಡಿಕೊಡಬೇಕೆಂದು ಕೋರಿರುವುದು
ಸರಿಯಷ್ಟೆ. ಅದರಂತೆ ನಿಮ್ಮ ಅರ್ಜಿ ಹಾಗೂ ಲಗತ್ತಿಸಿರುವ ದಾಖಲೆಗಳನ್ನು ಉಪ
ತಹಶೀಲ್ದಾರ್/ರಾಜಸ್ಥಾನಿರೀಕ್ಷಕರವರ ವರದಿ ಪಡೆಯಲಾಗಿ ಕಡಬಗೆರೆ ಗ್ರಾಮದ
ಸ.ನಂ. 159 ಮೂಲತಃ ಸರ್ಕಾರಿ ಗೋಮಾಳದ ಜಮೀನಾಗಿದ್ದು, ಅರ್ಜಿದಾರರ
ತಂದೆಯವರಿಗೆ ಮಂಜೂರಾದ ಬಗ್ಗೆ ಮಂಜೂರಾತಿ ದಾಖಲೆಗಳಲ್ಲದ ಕಾರಣ
ಅರ್ಜಿಯನ್ನು ವಿಲೇ ಇಡಲು ಸೂಚಿಸಿದ್ದು ಅದರಂತೆ ಈ ಕಾರಣಗಳಿಂದ ನಿಮ್ಮ
ಅರ್ಜಿಯನ್ನು ಮುಕ್ತಾಯಗೊಳಿಸಿದೆ ತಿಳಿಯುವುದು.

ವಿಶೇಷ ತಹಶೀಲ್ದಾರರು
ಬೆಂಗಳೂರು ಉತ್ತರ ತಾಲ್ಲೂಕು
ಬೆಂಗಳೂರು

ರವರಿಗೆ

ಶ್ರೀ ವಿನೀತ್ ಬಿ.ಆರ್.

ಜನ್ ಲೇಟ್ ಎಂ. ಟಿ. ರಾಮಅಂಗಯ್ಯ

ಮನೆ ನಂ. 1427, 2ನೇ ಕ್ರಾಸ್,

ಬಂದೀಗೌಡ ಬಡಾವಣೆ, ಮಂಡ್ಯ ಸಿಟಿ

ಪ್ರತಿಯನ್ನು ರಾಜಸ್ಥಾನಿರೀಕ್ಷಕರು -----ವೃತ್ತರವರಿಗೆ ರವಾನಿಸುತ್ತಾ ಈ
ಹಿಂಬರಹವನ್ನು ಸಂಬಂಧಪಟ್ಟವರಿಗೆ ಜಾರಿ ಮಾಡಿ, ಜಾರಿ ಮಾಡಿದ ಪ್ರತಿಯನ್ನು ಈ
ಕಛೇರಿಗೆ ಒಂದು ವಾರದೊಳಗೆ ಸಲ್ಲಿಸಲು ಸೂಚಿಸಿದೆ.

True copy
sd/-
advocate

CR /600/20-21

Translated Copy of Annexure-K

Office of Tahsildar
Bangalore North Taluk
Bangalore Date: 27-04-2021

ENDORSEMENT

You Sri./Smt. Vineeth B R has submitted application on date: 31-01-2021 by appealing for correction of Pahani in respect of ----- land in SY No: 159, Kadabagere Village, Dasanapura Hobli, Bangalore North Taluk. As per this, the report has been received from Upa Tahsildar/Revenue Inspector in respect of your application and enclosed records, Sy No: 159 land in Kadabagere village is originally Gomal land. Since there is no records about sanction of land to applicant's father, it has instructed to dispose your application. As per this, it is formed that you application is disposed.

Special Tahsildar
Bangalore North Taluk
Bangalore

To,
Sri. Vineeth B R,
D/o Late M T Ramalingayya,
House No: 1427, 2nd Cross
Bandhigowda Layout, Mandya City

The copy has been sent to Revenue Inspector ----- circle and instructed to issue the endorsement to concerned and submit the issued copy to this office within a week.

True Copy
Sd/-
Advocate

113

Typed copy
Annexure L

ರೆಕಾರ್ಡ್ ಆಫ್ ರೈಟ್ಸ್ ಗೇಣಿ ಮತ್ತು ಪಹಣಿ ಪತ್ರಿಕೆ (RTC)

ತಾಲ್ಲೂಕು ಬೆಂಗಳೂರು ಗ್ರಾಮ

ಹೋಬಳಿ: ದಾಸನಮರ

ಗ್ರಾಮ : ಕಡಬಗೆರೆ

1. ಸರ್ವೆನಂ 158	3. ಖೇತುವಾರು ಒಟ್ಟು ವಿಸ್ತೀರ್ಣ ಪೋಟು ಖರಾಬ ಪೋಟು ಖರಾಬ ಉಳಿದದ್ದು	ಎ. ಗು. 26.38 0.00	4. ಕಂದಾಯ ಅ) ಭೂ ಕಂದಾಯ ಬ) ಜೋಡಿ ಕ) ಸೆಸ್ಸುಗಳು ಡ) ನೀರಿನ ರೇಟು ಒಟ್ಟು	ರೂ. ಪೈ 0-00 /	9. ಕುಬ್ಜೆದಾರ ಅಥವಾ ಸ್ವಾಧೀನದಾರನ ಹೆಸರು ಮತ್ತು ವಿಳಾಸ ನರ್ಕಾರಿ ಗೋಮಾಳ	ವಿಸ್ತೀರ್ಣ 14.39	ಖಾತೆ ನಂ.	10. ಕಬ್ಜೆ ಅಥವಾ ಸ್ವಾಧೀನತೆಯ ರೀತಿ ಒಟ್ಟುಗೂಡಿಸು	11. ಇತರ ಹಕ್ಕುಗಳು ಮತ್ತು ಮುಣಗಳು ಹಕ್ಕುಗಳು ಭೂವಿಭಾಗಾಧಿಕಾರಿಗಳ ಆದೇಶ ಸಂಖ್ಯೆ ಆರ್.ಆರ್.ಐ. /94-95 11-8-84 ರಂತೆ ನರ್ಕಾರಿ ಗೋಮಾಳ ಬೆಕ್ಕೆ ಕೊಟ್ಟು ಸೇರಿಸಿಕೊಳ್ಳಲಾಗಿದೆ. ಜಲ್ಲಾಧಿಕಾರಿಗಳ ಸ್ವಾಯತ್ತತೆಯ ಆದೇಶ ಸಂಖ್ಯೆ 281/2/ಎನ್ ಎ/07 ರಂತೆ 18-5-13 ಆದೇಶದಂತೆ ಮಾನ್ಯ ಸ್ವಾಯತ್ತತೆಯ ಸಂಖ್ಯೆ 4	ಮುಣಗಳು ಆದೇಶ ಸಂಖ್ಯೆ ಆರ್ ಆರ್.ಟಿ/ಸಿಆಂ - 342/18- 19 ರಂತೆ ದಾಖಲು
5. ಮಣ್ಣಿನ ಸಮೂಹ ಕೆಂಪು		26.38		19.00						
6. ಪಟ್ಟಾ ಸರ್ಕಾರಿ	7. ಮರಗಳ ಸಂಖ್ಯೆ ಹೆಸರು ಸಂಖ್ಯೆ ಅ.ನ ನೀರಾವರಿಯ ಮೂಲ		8. ಖೇತುವಾರು ಪ್ರಕಾರ ನೀರಾವರಿಯ ವಿಸ್ತೀರ್ಣ ಮುಂಗಾರು ಹಿಂಗಾರು ಬಾಗಾಯ್ತು ಒಟ್ಟು ಎ ಗುಂ							
12. ಗೇಣಿಯ ವಿವರಗಳು: ಸದರಿ ವರ್ಷದ ಬೆಳೆ ವಿವರ ಇನ್ನು ದಾಖಲಿಸಿಲ್ಲದ ಕಾರಣ ಹಿಂದಿನ ವರ್ಷದ ಬೆಳೆ ವಿವರ ಮುದ್ರಿಸಲಾಗಿದೆ 13. ಭೂಮಿಯ ಉಪಯೋಗ ಬೆಳೆಗಳ ವಿವರ										

114

ವರ್ಷ ಮತ್ತು ಕಾಲ 1	ವ್ಯವಸಾಯಗಾರನ ಹೆಸರು ಮತ್ತು ವಿಳಾಸ 2	ಸಾಗುವಳಿ ಯಪದ್ಧತಿ 3	ಗೇಣಿಯ ವಿವರ		ಭೂಮಿಯ ಉಪಯೋಗ		ಖುಷ್ಕಿ ತರಿ ಬಾಗಾಯಿತು 8	ಬೆಳೆಯ ಹೆಸರು 9	ವಿಸ್ತೀರ್ಣ			ನೀರಾ ಪರಿಯ ಮೂಲ 13	ಎಕರೆಗೆ ಉತ್ಪತ್ತಿ	ಮಿಶ್ರಬೆಳೆಗಳ ಒಟ್ಟು	
			ವಿಸ್ತೀರ್ಣ 4	ಗುತ್ತಿಗೆ 5 ಎ ಗ	ವರ್ಗ 6	ವಿಸ್ತೀರ್ಣ 7 ಎ ಗು			ಆಮಿಶ್ರ ಮಿಶ್ರ ಒಟ್ಟು					ಮಿಶ್ರಣದ ಹೆಸರು 15	ವಿಸ್ತೀರ್ಣ 16 ಎ ಗು
									10	11	12				
									ಎ ಗು	ಎ ಗು	ಎ ಗು				
2021-22 ಮುಂಗಾರು	ಸರ್ಕಾರಿ ಗೋಮಾಳ ಕೆ. ಶ್ರೀನಿವಾಸಮೂರ್ತಿ ಲೇಟ್ ಕಾಳೇಗೌಡ ಕೆ. ಶ್ರೀನಿವಾಸಮೂರ್ತಿ ಲೇಟ್ ಕಾಳೇಗೌಡ ಕೆ. ಶ್ರೀನಿವಾಸಮೂರ್ತಿ ಲೇಟ್ ಕಾಳೇಗೌಡ ಕೋರಯ್ಯ ಹೊನ್ನಯ್ಯ	ಜ್ವಂತ ಜ್ವಂತ ಜ್ವಂತ ಜ್ವಂತ							0.00 0.00 0.00 0.00 0.00	0.00 0.00 0.00 0.00 0.00					

ಸಹಿ

115

Translated Copy of Annexure-L

RECORD OF RIGHTS, TENANCY AND PAHANI FORM(R.T.C.)

Taluk : Bangalore Rural

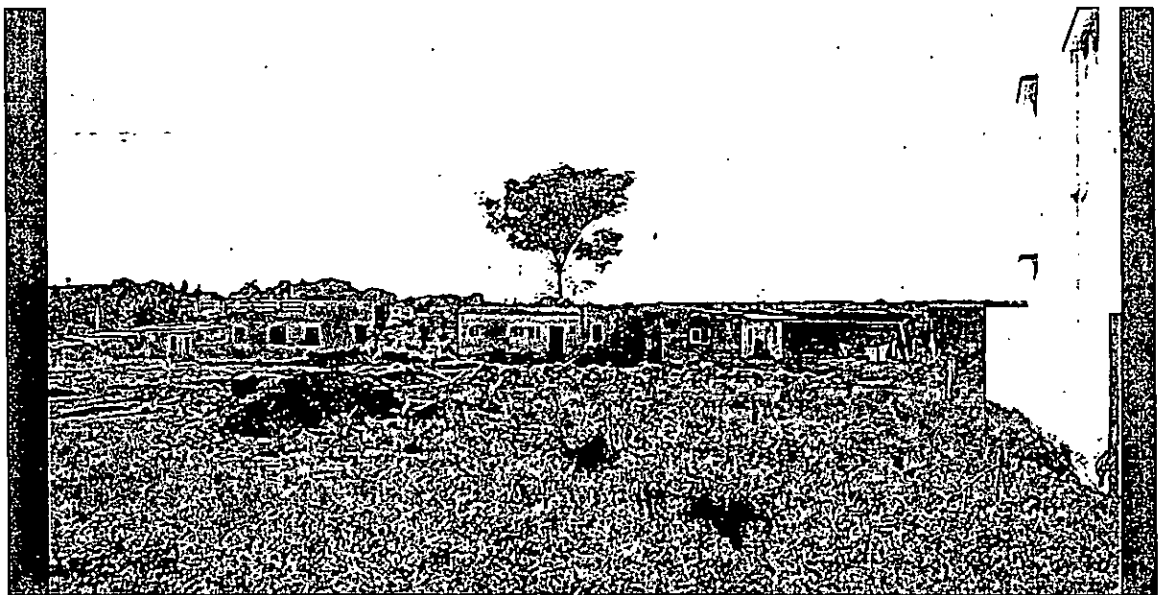
Hobli: Dasanapura

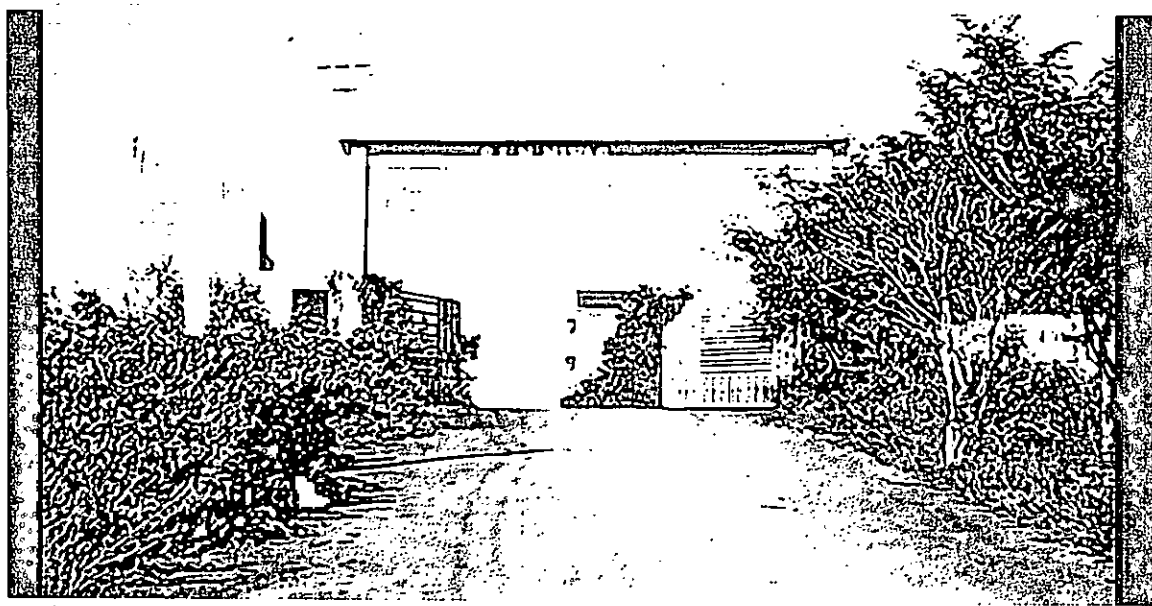
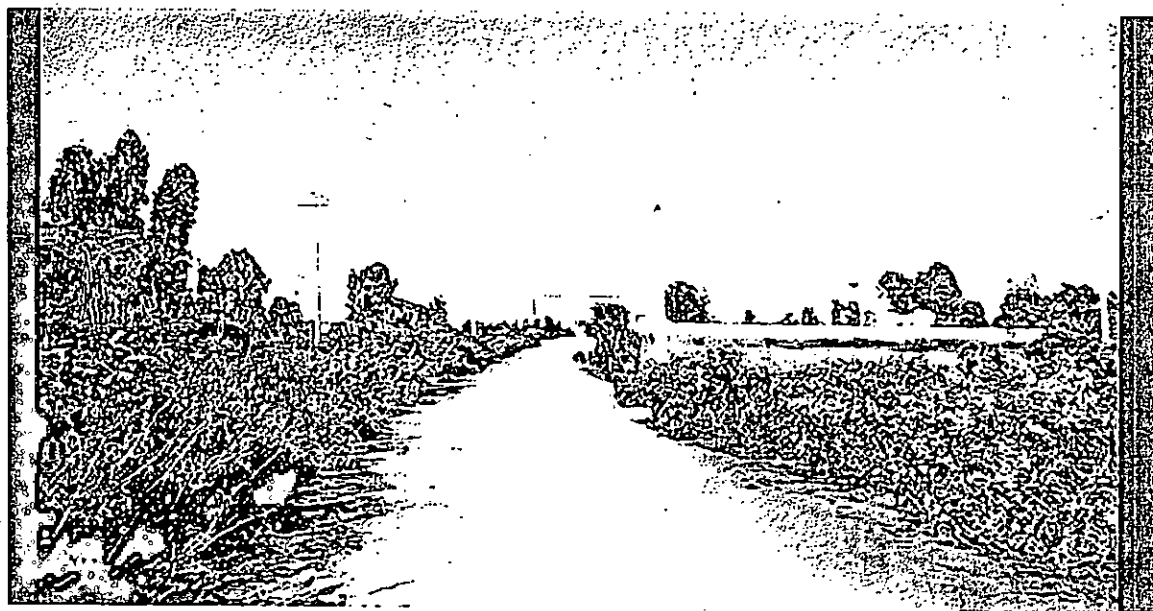
Village: Kadabagere

1. Survey No. 159	3. Khethavaru		A C		4. Tax		Rs		9. Name of Khatedar or Occupant, Father's Name And address:	Extent	Khata No	10. Type of ownership	11. Other rights and alienations.	
	Total Area		26.38		Land Tax		0-00						Rights:	Alienations
	Phut Kharab (A)		0.00		Jodi									
	Phut Kharab (B)				Cesses									
2. Hissa	Balance		26.38		Water Rate				Government Gomal	14.39	12	Merge	It has been included in account of Government Gomal land as per Assistant Commissioner Order No: RRT/9495 dated: 11-18-84 Court Order No: 281/2 N/A/07 dated: 18-5-13 Court No	Register as per Order No: RRT/CR/34 2/18-19
					Total		0-00							
5. colour of Sand Red		7. No. of trees				8. Extent of wet land as per Khatedar								
6. Patta Cultivation Government		Name Nil	No, Nil	A, S	Water source	Monsoon	Winter	Garden	Total					

116

12. Details of tenancy								13. Use of land and details of crop.							
Year And Period	Name of cultivator and his address.	Type of Cultivation	Details of Tenancy		Use of land		Dry, Wet Garden	Name Of The crop	Extent			Source of Water	Produce Per acre	Total of mixed crops	
			extent	Tenancy	Category	Extent A-C			Half mix	Mix	Total			Name Of Mixture	Extent
1	2	3	4	5	6	7	8	9	10	11	12	13	14	15	16
2021-22 Monsoon	Government Gomal	Own							0.00	0.00		0.00			
	K Srinivasa Murthy	Own							0.00	0.00		0.00			
	Late Kalegowda	Own							0.00	0.00		Borewell			
	K Srinivasa Murthy	Own							0.00	0.00		0.00			
	Late Kalegowda	Own							0.00	0.00		0.00			
	Korayya Honnayya	Own							0.00	0.00		0.00			





119 -

**IN THE HIGH COURT OF KARNATAKA AT
BENGALURU**

WRIT PETITION No.535/2022 (KLR)

BETWEEN:

Dr.Vineeth B.R,
Mandya City.

.. PETITIONER

AND:

The Secretary to Govt.,
Revenue Department,
Bengaluru and others.

.RESPONDENTS

**STATEMENT OF OBJECTIONS FILED ON BEHALF OF
RESPONDENTS - STATE**

Under Rule 21 of the Karnataka High Court Writ Proceedings Rules, the Respondents above named respectfully submit as under:-

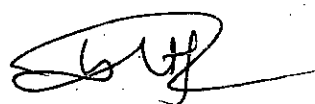
1. In the above Writ Petition, the Petitioner has sought for quashing the Endorsement dated 27.04.2021 issued by the 5th Respondent vide No.RRT(D)/CR600/20-21 and directing the Respondents to effect the entries in the name of the Petitioner as the LR's. of M.T.Ramalingaiah in furtherance of the Judgment and Decree in O.S.No.394/1998 passed on the file of the 2nd Addl., Civil Judge (Sr.Dvn.), Bengaluru Rural District vide Annexures-C & D and in furtherance of the Orders passed



by this Hon'ble Court in W.P.No.10137/2008 dated 18.03.2009 vide Annexure-E and for such other reliefs.

2. At the outset, it is submitted that the above Writ Petition, which involves disputed question of facts, is not maintainable and the same is liable to be rejected.

3. It is submitted that one Mr. M.T.Ramalingaiah, alleged to be the father of the Petitioner herein, was granted as per the G.O. dated 21.08.1963 and Saguvali chit dated 04.10.1963 was also issued in respect of 8-00 acres of land in Sy.No.159, situated at Kadabagere Village, Nelamangala Taluk, Bengaluru District, and that the said Grant Order was set-aside by his Hon'ble Court by its Order dated 16.12.1966 in W.P.No.1570/1964. Consequently, the said land continued to be a Government Gomal Land. Hence, the said Ramalingaiah ceased to have any right, title or interest over the said land. The averment that the notwithstanding such cancellation, the possession was never resumed and the said Ramalingaiah continued to cultivate the said land, is denied as false and baseless. It is submitted that the revenue entries which stood in the name of said Ramalingaiah was being wrongly continued in RTC/Pahani documents inspite of the orders of this Hon'ble Court, the Tahsildar has sought for cancellation of said revenue entries. Pursuant to the same, the Assistant Commissioner, Bengaluru Sub-Division, initiated proceedings and issued notice to the said Ramalingaiah as to why the said revenue entries should not be cancelled. On



receipt of reply of said Ramalingaiah and after hearing him, the Assistant commissioner has passed the Order dated 12.09.1994 in exercise of its power under Section 136 of the Karnataka Land Revenue Act, cancelling the RTC/Katha revenue entries which were in favour of said Ramalingaiah having not challenged the same, the said cancellation order has attained the finality. It is true that the said Ramalingaiah, thereafter in the year 1998, had filed O.S.No.394/1998 for the relief of declaration to declare him as having perfected his title by adverse possession and consequently for an injunction against the Defendants - State. In the said suit, the Defendants - State having remained exparte, the said Suit was decreed on 22.12.2001. It is submitted that the said Decree is void and non-est for the reason that the said Ramalingaiah being an illegal trespasser in the land in question and hence, the same is not binding on these Respondents.

4. In the context, it has to be stated that the local Villagers of Kadabagere Village, had filed a Suit, as long back as in the year 1994 in O.S.No.204/1994 on the file of the II Addl. Civil Judge (Senior Division), against the said Ramalingaiah - Defendant, for Permanent injunction in respect of the very land in question viz., Sy.No.159 of Kadabagere Village, contending that the said land is a Government Gomal Land and that the Villagers of Kadabagere are using the said land for free pasturage for the Village Cattle and that the Villagers are continuously used the same for

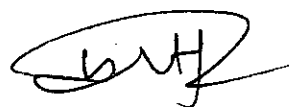


grazing of about 2000 cattle owned by the Villagers from the time immemorial and Villagers have also constructed a Gokatte at a cost of about Rs.10,000/- to 12,000/- about 30 years back and when the said Ramalingaiah tried to interfere in the said land by stating that Government had granted him 8-00 in the said Gomal land, Villagers filed W.P.No.1570/1964 and this Hon'ble Court allowed the same while setting aside the said land granted in favour of Ramalingaiah, and when said Ramalingaiah tried to interfere with the said land on the basis of Land Grant Order and Saguvali Chit which were set-aside by this Hon'ble Court, they filed the aforesaid.

5. It is submitted that, in fact, the said Ramalingaiah had also filed Counter-Suit in O.S.No.124/1994 (Old) New O.S.No.97/2001, for permanent injunction against some of the Villagers, contending that he is in possession of the same. Both the said Suits were clubbed together and after due trial, the Trial Court dismissed both the said Suits by its Judgment dated 05.08.2003. Copy of the same is produced herewith and marked as **ANNEXURE-R1**. In particular holding at Para-13 of the Judgment that the said Ramalingaiah had failed to prove his possession of the land in question evenafter noticing the aforesaid exparte judgment and decree obtained by said Ramalingaiah against the State Government. The Petitioner herein has suppressed this material fact and hence, the above Writ Petition is also liable for suppression of material facts. It is submitted that the Petitioner is trying to tresspass illegally into the land in question.



6. It is true that the said Ramalingaiah filed W.P.No.10137/2008 and this Hon'ble Court passed the Order dated 18.03.2009 vide Annexure-E to the Writ Petition. As stated above, the said Ramalingaiah being not in possession of the land in question as held by the aforesaid Civil Court after due trial in O.S No.124/1994 (Old) New O.S.No.97/2001 and when once he is not in actual possession and cultivation of land in question, the Respondent - Revenue Authorities could not enter the name of the said Ramalingaiah in the RTC/revenue records and that the Grant Records were also unavailable and accordingly, the impugned Endorsement dated 27.04.2021 (Annexure-K) was issued. The averment that the possession of the Petitioner is sought to be disturbed after issuance of the impugned Endorsement dated 27.04.2021, is denied as false and baseless. It is humbly submitted that even if it is presumed for the purpose of arguments only and not conceding that the said Ramalingaiah continued to be in possession of the land in question even after cancellation of the earlier Grant Order, the said person had an alternative statutory remedy of applying for regularization of such unauthorized occupation under the provisions of the Karnataka Land Revenue Act. He had failed to avail such statutory remedy and instead filed the Civil Suit for declaration of his alleged title and obtained an ex-parte decree, which is *void abinitio* and *non-est* in law. It is false to state that the Petitioner is in possession and occupation of the land in question. It is true that the Revenue Authorities have put up



124

the Board in the land in question as the Petitioner and others were trying to trespass and encroach on the land in question with a view to caution them of taking legal action against such persons.

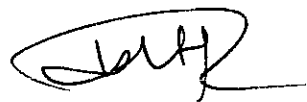
7. The averments made in the Writ Petitions are denied as devoid of any merit and misconceived for the reasons stated hereinabove. It is submitted that the Judgment relied upon by the Petitioner reported in ILR 2020 KAR 1449 is not applicable to the peculiar facts and circumstances of this case.

8. It is submitted that the Sy.No.159 measuring 26.39 acres of land of Kadabagere village, Dasanapura Hobli, Bengaluru North Taluk is originally Government Gomal Land. and in this land earlier in the year 1963, to one Sri.M.T.Ramalingaiah s/o Doddathammaiah, as per the Government order No.RD LBD 63 dated 21.8.1963, @ of Rs.30 per acre is sanctioned. And the Tahsildar in his order LND SR 397 60.61 dated 4.10.1963 for the purpose of growing the fruit bearing trees sanction is accorded and as per the MR 7/63.64 and RR 1287, it is seen 8.00 acres of land is sanctioned. Copy of the MR 7/63.64 and RR 1287 and RTC are herewith marked as ANNEXURE-R2, R3 AND R4 SERIES.



9. It is submitted that the villagers of Kadabagere not to sanction and in this regard as per the WP No.1570/1964 in High Court of Karnataka, Mysore, Bengaluru the petitioner against the Chief Secretary to Mysore State and against the Grantee Sri.M.T.Ramalingaiah have filed the case. And in this case the order passed by the respondent No.1 Chief Secretary, Mysore State on 21.8.1963 is cancelled. And as per this order to the 2nd respondent Sri.M.T.Ramalingaiah sanction order is cancelled, and in the meanwhile of cancellation of sanction order, the villagers have informed that the grantee was not in possession and enjoyment.

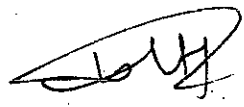
10. It is submitted that, in the year 1994, before the Asst. Commissioner, Bengaluru North Sub Division in case No.RRT/CR/42/94.95 the case was heard and on 12.9.1994 under section 25,367 and 136 of the Land Revenue Act , the katha registered in the name of Sri. M.T.Ramalingaiah was cancelled and is taken into the Government custody. And as per this order to the grantee issued Pahani and Mutation was cancelled and taken into Government possession. And during all these process, the villagers have informed the fact that the grantee is not in enjoyment and any kind of trees are not grown. And on inspection of the revenue officers, it is found that is not in enjoyment and as per section 108F(iii),(iv) and (v) of the Karnataka Land Revenue act 1964, it is clear that the appellant Sri.M.T.Ramalingaiah have violated . on this basis earlier in WP No.1570/1964 writ , the order passed by the Hon'ble High Court is correct. Copy of the Assistant



Commissioner, Bengaluru North Sub-Division in Case No.RRT/CR/42/94-95 dated 12.09.1994 is produced herewith and marked as **ANNEXURE-R5**.

11. It is submitted that Sri.M.T.Ramalingaiah violating all the above material , before the 2nd Additional Civil Judge (Sr.Division)Bengaluru Rural District have filed the suit and ex party order is passed and stating that the appellant is in enjoyment, and have ordered that he is the owner of the land. But as cited in this order, the said person so far is not in enjoyment, and so far he have not done any kind of cultivation, and hence it is seen that the order passed by the Government to the above person is violated under the Karnataka Land Revenue act 1964.

12. It is submitted that Kadabagere Action Committee in connection with the land in question s.No.159, in the court of the 2nd Additional Civil Judge (Sr.Division) Bengaluru Rural District Court in O.S.No.124/1994(Old) , and along with this suit O.S. No. 204/94 and O.S No.97/2001 the cases are registered. And in this case the Kadabagere Action committee for saving the Government Gomal Land, have also become the party in this case. And in this case Sri.M.T.Ramalingaiah earlier to the O.S No.394/98, have filed O.S.No.124/1994, and it is seen that the pending hearing O.S No.124/94 case nowhere in O.S.No.394/98 have not shown and have hidden the same. And in the revenue documents there is no Grant file available. In this connection



in the Hon'ble High Court in W.P No.1570/1964, have dismissed on the basis of the genuineness of Grant/sanction and also the Asst. Commissioner Case No.RRT/Sr/42/94.95 order is also not shown in the O.S.No.394/98 case, and the Kadabagere Action committee filed case, it is seen all the Original Suits are dismissed.

13. It is submitted that during 2008 period, the Hon'ble High Court of Karnataka, Bengaluru in W.P. No.10137/2008 (KLR/RR/SUR), Sri.Ramalingaiah have filed the case and in this case as per the order in O.S.394/1998, till date have sought that any kind of katha proceeding is not done, and in this case as per the documents submitted by Sri.Ramalingaiah, within a period of 3 months, have given instruction to take action as per the O.S No.394/1998 orders. And in this connection Sri.Ramalingaiah submitting an application have requested for initiate katha proceedings. And as per this proposal, to obtain the factual report when sent, and when the said Sri.Ramalingaiah's grant/sanction records were verified and have said that the action can be taken, on that basis, Tahsildar, Bengaluru North Taluk to the applicant as per RRT(D)/Cr/600/21.22 dated 27.4.2021 have disposed the application and have issued suitable endorsement.

14. It is submitted that Sri.Ramalingaiah as per referred case have filed the suit and requested for initiating the katha steps. And the said case is pending hearing, and relating to the said case, it is found that Sri.Ramalingaiah have violated



128

as per Section 108F(iii),(iv) and (v) of the Karnataka Land Revenue act and to the Hon'ble court with the factual report the villagers mahajar is enclosed and submitted for your perusal.

15. Under the circumstances, the Petitioner is not entitled to any of the reliefs sought in the above Petition and hence, the same is liable to be dismissed.

16. All other averments which are not specifically traversed herein, are hereby denied as false and baseless.

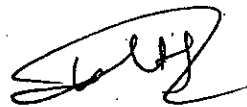
WHEREFORE, it is respectfully prayed that this Hon'ble Court may be pleased to DISMISS the above Writ Petition in the interest of justice and equity.

BENGALURU,

DATED: 04.02.2023

(SESHU.V)
HIGH COURT GOVERNMENT PLEADER
AND
ADVOCATE FOR RESPONDENTS - STATE

SHESHU.V/GE (KTS)/28123 (PWR):d:DA:4223:F1+1
SHESHU fol. SO in 535/2022 doc.



129

ANNEXURE-R

TITLE SHEET FOR JUDGEMENTS IN SUITS

IN THE COURT OF THE II ADDL.CIVIL JUDGE (SR.DVN)
BANGALORE RURAL DISTRICT, BANGALORE

Dated: This the 5th day of August 2003

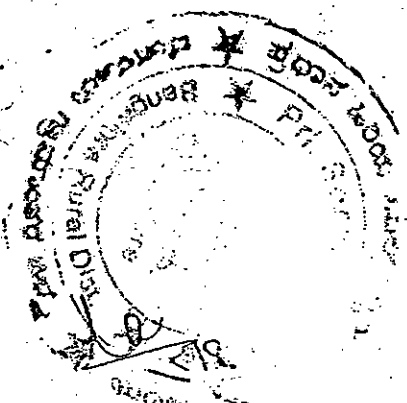
Present: Sri.S.M.PATIL, B.A.LL.B., (Spl.)

O.S.No.204/94 Clubbed with O.S.No.124/94 (old)

Now O.S.No.97/2001

Plaintiff/s :
in O.S.No.204/94

1. Sri.K.C.DoddaShivanna
S/o late Channabasappa,
Hindu, Major.
2. Sri.G.Shivanna S/o late
Girigowda, Hindu Major.
3. Sri.Narasimhaiah
S/o Sri.Veerachannaiah,
Hindu, Aged about 51 years.
4. Sri.K.M.Nagaraju S/o
Sri.Melagiriappa, Hindu,
Aged about 31 years.
5. Sri.Muniraju S/o
Sri.Narasimhaiah, Hindu,
Aged about 33 years.
6. Sri.Siddagangaiah,
S/o Shivalignaiah, Hindu,
Aged about 41 years.
7. Sri.Manjunath S/o
Chikkathimmaiah, Hindu,
Aged about 26 years.
8. Sri.Kempa Anjanaiah,
S/o Sri.Hanumanthaiah,
Aged about 29 years.
9. Sri.Srinivas S/o
Sri.Nellachari, Hindu,
Aged about 36 years.
10. Sri.H.K.Govindaraju
S/o late Hanumantharayappa.



Hindu, Aged about 43 years.

11. Sri. Rajanna S/o late
Muniyappa, Hindu,
Aged about 61 years.

12. Sri. M. A. Srinivasaiah,
S/o Anantharamaiah, Hindu,
Aged about 41 years.

13. Sri. Revanna S/o Muthaiah,
Hindu, Aged about 41 years.

14. Sri. Sundraesha S/o
Sri. Shivalingappa, Hindu,
Aged about 36 years.

15. Sri. Veeregowda S/o
Chikkakempaiah,
Hindu, Aged about 41 years.

16. Sri. Arasegowda S/o
Dasegowda, Hindu,
Aged about 26 years.

17. Sri. Jayaramegowda
S/o Venkataramaiah,
Hindu, Aged about 29 years.

18. Sri. K. C. Jagadisha,
S/o Channaveerappa,
Hindu, Aged about 29 years.

All are residing at
Kadabagere Village,
Dasanapura Hobli,
Bangalore North Taluk,
Bangalore District.

(By Sri. CNR advocate)

-Vs-

Defendant/s :

Sri. M. T. Ramalingaiah,
Advocate, No. 918, 18th
A Main Road, 5th Block,
Rajajinagar, Bangalore-10.
(In person)



131

O.S.No.204/94

Plaintiff/s :
in O.S.No.124/94(old)
New O.S.No.97/2001

Sri.M.T.Ramalingaiah,
Advocate, No.918, 18th
A Main Road, 5th Block,
Rajajinagar, Bangalore-10.

(By Sri.M.T.R advocate)

-Vs-

Defendant/s :

1. Munigangaiah S/o
Govindappa,
Aged about 35 years,
Bangalore City Corporation,
Works Supervisor.
2. Narasimhaiah
S/o Erachannaiah,
Aged about 40 years,
Agriculturist.
3. Doddanaga S/o
Chikkahanumaiah,
Aged about 35 years.
4. Kempa S/o Chikka-
hanumaiah,
Aged about 50 years.
5. Shivaram S/o Chikka-
thimmaiah,
Aged about 40 years,
Contractor.

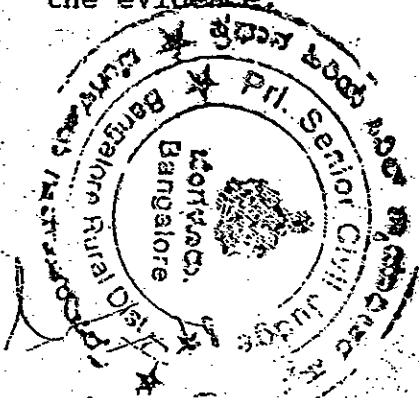
All the above defendants
No.1 to 5 are residents of
Kadabagere Village & Post,
Dasanapura Hobli,
Bangalore North Taluk.

(By Sri KVB Advocate)

Date of institution of the suit: 16.06.1994
02.06.1994

Nature of the suit: Both suit & Permanent injunction

Date of the commencement of:
the evidence. 03.06.1998



132

4

O.S.No.204/94

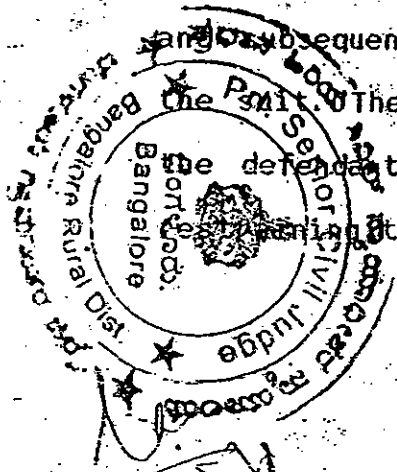
Date on which the Judgement: **05-08-2003**
was pronounced.

	Year/s	Month/s	Day/s
Total Duration:	-09-	-01-	-19-
	-09-	-02-	-03-

COMMON JUDGMENT

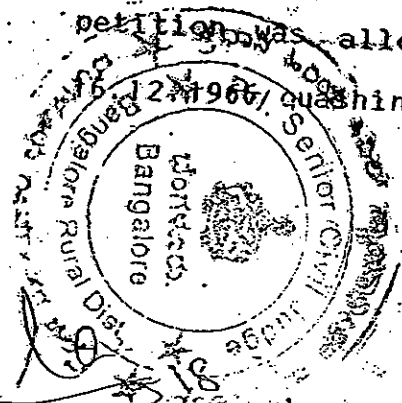
As per the order of the District court Bangalore Rural District, Bangalore, in Criminal Misc.No.26/95, O.S.No.124/94 filed on the file of Civil Judge (Jr.Dvn) Nelamangala transferred to this court with a direction to club the said suit with O.S.No.204/94 and disposed accordingly. Hence O.S.No.124/94 (old) New O.S.No.97/2001 clubbed with O.S.No.204/94 and parties are directed to adduce common evidence in main suit O.S.No.204/94. Accordingly, common judgement is delivered in both the suits.

2. The brief facts of the plaintiff suit in O.S.No.204/94 are that, initially the suit was filed by the plaintiffs No.1 and 2 against the defendant and thereafter the suit was converted as a representative suit on behalf of the villagers of Kadabagere Village and subsequently plaintiffs No.3 to 18 were added to the suit. The plaintiffs have filed this suit against the defendant for the relief of permanent injunction against the defendant, his agent, workmen, servant

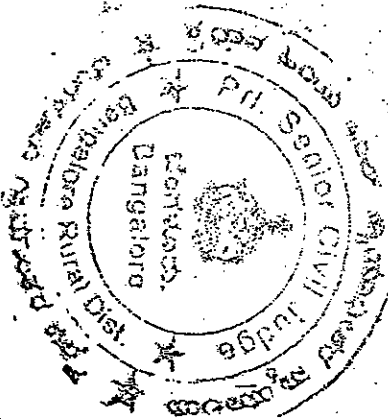


or henchmen or any one from interfering with the plaintiffs and other villages peaceful possession and enjoyment of the suit schedule property and from alienating the suit schedule property with cost.

3. The plaintiff contended that the suit property is described as Gomal land bearing Sy.No.159 measuring 26 acres 39 guntas of land situated at Kadabagere Village, Bangalore North Taluk. The suit land is used for free pasturage for the village cattle and the same has been continuously used by the villagers for grazing of about 2000 cattle owned by the villagers. The said suit land has been used for free pasturage and grazing of cattle from the time immemorial and the villagers have also constructed a Gokatte at a cost of about Rs.10,000/- to Rs.12,000/- for the use of the cattle more than 30 years back. Further contended that Government of Mysore earlier had granted an extent of 8 acres of land out of the suit land in favour of the defendant dated 21.8.1963. The said grant land forms part of the suit land. The plaintiff plaintiffs and the villagers filed the writ petition No.1570/64 before the Hon'ble High Court, Bangalore questioning the legality of the grant in favour of the defendant. The said writ petition was allowed by the Hon'ble High Court on 21.2.1966/ quashing the grant order of the Government



Hence the grant made in favour of the defendant stood cancelled and the schedule property vested with right of pasturage in the villagers as a general indefeasible right. The plaintiffs and villagers are making use of the schedule property for free pasturage and grazing the cattle. The defendant has no manner of right, title interest or possession over the suit property. Since the date of cancellation the defendant kept quiet and about one month back the defendant is attempts to prevent the villagers from grazing their cattle on the suit schedule property under the guise of defunct Saguvali Chit. Even though grant order has been cancelled by the Hon'ble High Court, the revenue records stood in the name of the defendant, but the said records have no legal effect and in no way affecting the nature of land or the rights of the villagers. The defendant on the Saguvali chit trying to alienate the suit land on the false ground that the suit land is the personal property. The defendant being an advocate having the support of the politicians and anti-social elements is bent upon preventing the villagers from making use of the schedule property for grazing their cattle. Hence they have constrained to file the present suit for permanent injunction.



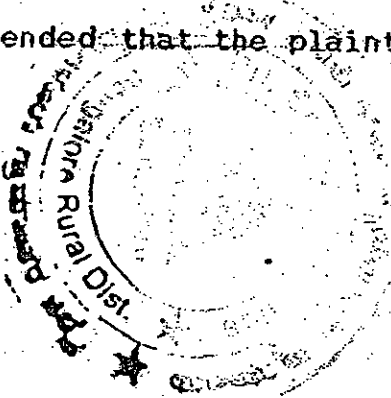
135

4. In pursuance of the suit summons, the defendant appeared personally and filed the written statement denying the entire plaint averment as false. He denied that the suit schedule property measuring 26 acres 39 guntas is in use of villagers since time immemorial. But out of the suit schedule land 8 acres of land with boundaries mentioned herein is allotted to this defendant and the defendant is in possession of the granted land since from 30 years and remaining portion of 18 acres 39 guntas of land are the Hiduvali lands in bits of the Manchanabele land displaced 31 persons. Neither the plaintiffs nor the Kadabagere Villagers have any right of pasturage in the suit Sy.No.159 26 acres 39 guntas lands and the order passed in the writ petition by the Hon'ble High Court is a infractuous without effecting the schedule lands respective Hiduvali legal characters. Further this defendant denied the existence of the alleged Gokatte in the suit Sy.No. But he contended that there is a water pit situated out side the Hinduvali lands and the said water pit built by the adjacent land owner including the defendant contributing the fund. Further he contended that there are other three big Gomal lands in Sy.No.20 measuring 43 acres 39 guntas, Sy.No.22 measuring 48 acres 37 guntas and Sy.No.80 measuring 33 acres 19 guntas total extent of 126 acres 5 guntas and



136

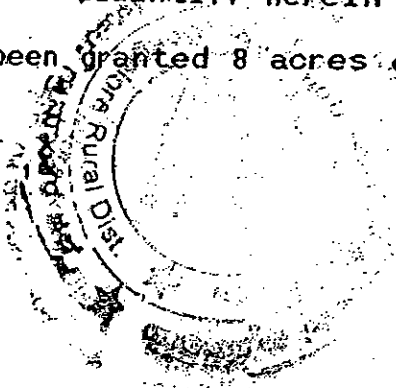
there are four big Gokattes, two big village water tanks with tank beds located besides Arkavathi River water and river bed, all the Gomal lands and water sources for the villagers including the plaintiffs are all situate within about 3 furlongs from the Kadabagere Village. In most of the Kadabagere Villagers land they have their own cattle grazing plots. Further contended that the Hon'ble High Court in the W.P.No.1570/64 dated 16.12.1966 while canceling the Government order opined that the Government in granting the land has not observed the land grant rules and it has not stated that the Government has no powers. During the pendency of the writ petition Mysore Land Revenue Code 1888 and its land grant rules were repealed and the Mysore/Karnataka Land Revenue Act 1964 and its rules were came into effect on 1.4.1964 and the Karnataka Land Grant Rules 1969 came into effect on 12.6.1969. The successive Government have never cancelled the earlier Government order by another Government order and never question the Saguvali chit dated 4.10.1963 issued to the defendant and hence this defendant Hduvali rights with possession, cultivation and enjoyment over the granted land and by virtue of the grant order and Saguvali chit this defendant name was mutated in the revenue records. Further this defendant contended that the plaintiffs have suppressed the real

La
5/18

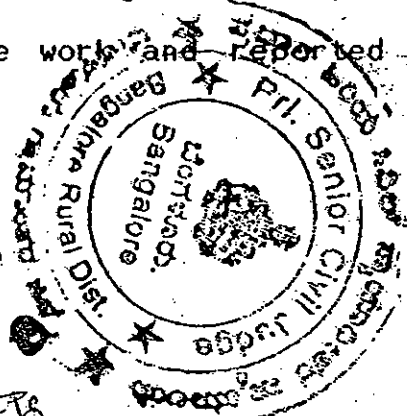
fact that this defendant filing the suit before the Munsiff Court Nelamangala in O.S.No.124/94 and he obtained temporary injunction order against the plaintiffs and other persons for their high handed trespass and prevention of survey work on 26.5.1994 in the defendant granted land. Nearby suit land so many residential houses, school building were constructed. The plaintiffs and some other persons with highhanded persons trespassed into the land of defendant and filed the criminal case against them. The plaintiffs have no cause of action to file the suit. The plaintiffs have filed the false and frivolous suit to harass this defendant. Hence this defendant prayed to dismiss the suit with exemplary costs.

5. The brief facts of the plaintiff's case in O.S.No.124/94(old) new O.S.No.97/2001. The defendant in O.S.No.204/94 has filed this suit against the defendants who are plaintiffs in O.S.No.204/94 for the relief of permanent injunction restraining the defendants from interfering in his peaceful possession and enjoyment of the suit schedule land with cost of the suit.

6. The plaintiff herein contended that the plaintiff has been granted 8 acres of dry land out of Sy.No.159

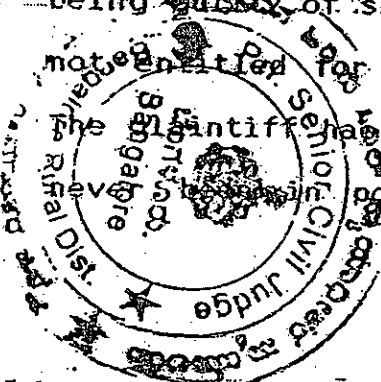


which totally measures 26 acres add guntas of land of Kadabagere Village, Dasanapura Holbi, Bangalore North Taluk. The suit property more fully described in the schedule with the boundaries and the then Government of Mysore by G.O.No.RD 250 LBD 63, dated 21.8.1963 granted the land in favour of the plaintiff and in pursuance of the said order the Tahsildar Nelamangala has issued Saguvali chit No.SC.408 dated 4.10.1963. Since the date of Saguvali chit the suit land was handed over to the plaintiff by the Tahsildar and plaintiff has been in possession, cultivation and enjoyment of the suit schedule land as absolute owner till today and accordingly, his name was mutated in all the revenue records as mentioned in the plaint averments. The plaintiff is in possession and enjoyment of the suit schedule property for more than 30 years as absolute owner on 26.5.1994 at about 9.30 a.m., when the ADLR office Surveyor, his peon along with the plaintiff and his two servants went to the schedule land for finalising the survey, the defendant along with 25 rowdies of Kadabagere Village trespassing into the plaintiffs land and abusing him in foul language and threatened the plaintiff, surveyor and the servant and obstructed their survey work stating that the suit land is their gomal land, consequently the surveyor stopped the work and reported the same to the ADLR. The

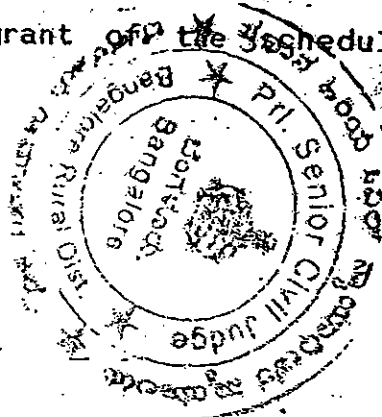


plaintiff learnt that defendants along with their supporter have instigated their rowdy henchmen to occupy the suit land and put up individual sheds and then on the next day morning the plaintiff complained to the Nelamangala police and the police have enquired in this regard. The defendants are the powerful persons, they bent upon disturbing the plaintiff peaceful possession and enjoyment of the suit land with intent to knock off the land granted to the plaintiff. Hence plaintiff has constrained to file the suit for permanent injunction against the defendants.

7. In pursuance of the suit summons, the defendants appeared through their advocate and filed the written statement. The first defendant has filed the written statement and memo by other defendants to adopt the written statement of defendant No.1. In the written statement they have denied the entire plaint averments as false and the suit for permanent injunction is not maintainable and the plaintiff has not approached the court with clean hands and he has suppressed the material facts and misrepresented the facts and as such being guilty of suppressio veri and suggestio falsi is not entitled for the relief of permanent injunction. The plaintiff has no title to the suit land and he had no possession and enjoyment of the suit

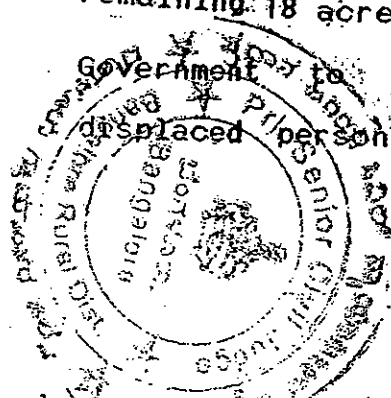


land. The boundaries mentioned in the schedule to the plaint are not correct. The suit schedule properties measuring 8 acres is a part and parcel of the total extent of 26 acres 39 guntas in lsy.159 of Kadabagere Village and same is a gomal land meant for free pasturage of the village cattle and the same has been used by the villagers for grazing of about 2000 cattle from time immemorial and the villagers have also constructed Gokatte at the cost of Rs.10,000/- to Rs.12,000/- for the use and benefit of the village cattle about 30 years back. Further contended that the Government of Mysore earlier had granted 8 acres of land out of Sy.No.159 in favour of the plaintiff, but the said grant order has been challenged by the five villagers before the Hon'ble High Court in the writ petition No.1570/64. The Hon'ble High Court allowed the writ petition by quashing the Government order dated 21.8.1963. By virtue of the Hon'ble High Court order the grant of schedule property is stood cancelled and schedule property vested in the villagers with the right of pasturage and the villagers including the defendants have not indefeasible right over the property. The plaintiff has not challenged the order passed by the Hon'ble High Court in writ petition. Hence the said order had become final. There is no fresh grant of the schedule property made by the



15.8

Government in favour of the plaintiff subsequent to the order dated 16.12.1966 in the writ petition. The defendants and other villagers are making use of the suit schedule property for free pasturage and grazing of cattle. The plaintiff has no right, title, interest or possession over the suit schedule property and the plaintiff is the permanent resident of Bangalore City. After cancellation of the grant order by the Hon'ble High Court, the said grant become invalid and the said order do not confirm any title on the and the saguvali chit issued by the Tahsildar has also no value in view of the order passed by the Hon'ble High Court. Further this defendant denied that the plaintiff is in possession of the suit land and revenue documents evidenced the plaintiff's possession, cultivation and enjoyment of the suit land are all false. Further this defendant denied that on 26.5.1994 at about 9.30 a.m., the plaintiff along with ADLR, Surveyor went to the suit land for finalising the survey matter and this defendant and other 25 rowdies trespassed into the suit land and threatened the plaintiff and his servant and they were made obstruction are all false. It is false to say that some of the villagers have occupied remaining 18 acres of land in Sy.No.159 granted by the Government to the Manchanabele village project displaced persons. Further it is denied that the



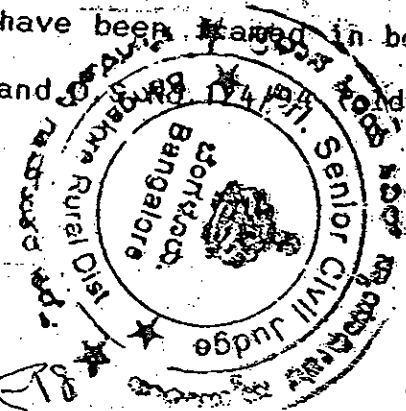
142

14

O.S.No.204/94

plaintiff lodged the complaint against the defendants before the police. The plaintiff has not cause of action to file the present suit. Further contended that the Asst. Commissioner by his order dated 21.9.1994 has ordered cancellation of the entry made in the name of the plaintiff in the revenue records in respect of the suit schedule property, clearly indicates that the plaintiff has neither title nor possession over the schedule property. The defendants and villagers have filed the suit in O.S.No.204/94 on the file of II Addl. Civil Judge, Bangalore Rural District, Bangalore against the plaintiff for the relief of permanent injunction in respect of the entire extent of 26 acres 39 guntas in Sy.No.159. The grant of the schedule property in favour of the plaintiff having been quashed by the Hon'ble High Court in the writ petition. Hence the plaintiff neither title nor possession over the schedule property and as such the suit of the plaintiff for the relief of permanent injunction is liable to be dismissed. For all these reasons requested to dismiss the suit of plaintiff with costs.

8. On the basis of above pleadings, following issues have been framed in both the suits i.e. O.S.No.204/94 and O.S.No.97/2001 are;



ISSUES IN O.S.No.204/94

1. Whether the plaintiffs prove that they are in lawful possession and enjoyment of the plaint schedule property?
2. Whether the plaintiffs prove that the defendant interfere with their peaceful possession and enjoyment of the plaint schedule property?
3. Whether the plaintiffs prove that they are entitled to permanent injunction restraining the defendant from alienating or interfering with the plaint schedule property?
4. What order or decree?

ISSUES IN O.S.No.124/94 (OLD)
NEW O.S.No.97/2001

1. Whether the plaintiff proves that he is in lawful possession over the suit land on the date of suit?
2. Whether the plaintiff proves that the defendants have obstructed in his peaceful possession and enjoyment of the suit schedule land?
3. Whether the plaintiff proves that he is entitled for the relief of permanent injunction as prayed in the plaint?
4. What order or decree?

9. In support of the plaintiffs case in O.S.No.204/94 first and 3rd plaintiffs got examined as PW.1 and 2 and two witnesses as PW.3 and PW.4 and got marked Ex.P1 to P6 documents. The defendant in O.S.No.204/94 who is plaintiff in O.S.No.124/94 (old) new O.S.No.97/2001 got examined himself as DW.1 and got marked Ex.D1 to D17 documents and got closed his side.



Heard the arguments from both sides. The defendant ~~advocate~~ filed the written argument. Perused the oral and documentary evidence placed before the court by both parties and the written argument filed by the defendant.

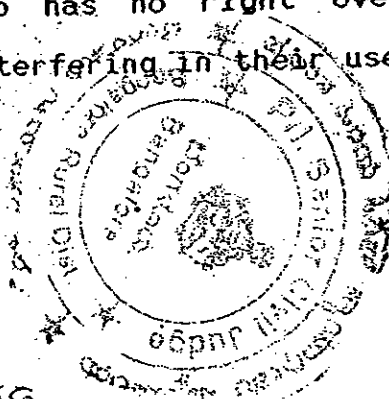
10. My findings on the above issues in both the suit O.S.No.204/94 and O.S.No. 124/94 (old) new O.S.No.97/2001 are common as follows:-

1. In the Negative
2. In the Negative
3. In the Negative
4. As per the final order

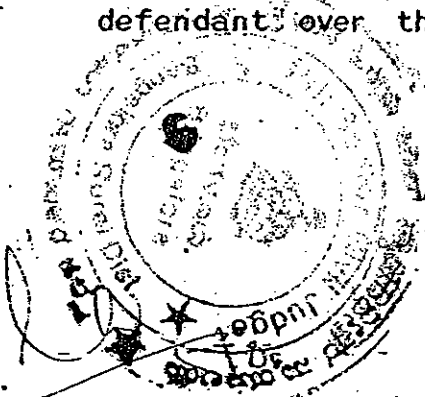
For the following:

REASONS

11. ISSUE No.1 IN BOTH THE SUITS:- Issue No.1 in both the suits taken together for consideration. Since issue No.1 in both the suits inter-linked to each other. The plaintiffs in O.S.No.204/94 have filed the suit in the representative capacity against the defendant seeking for the relief of permanent injunction claiming that suit Sy.No.159 totally measures 26 acres 39 guntas is a Government gomal land, it is meant for grazing the cattle of the Kadabagere Villagers and the defendant who has no right over the suit schedule property interfering in their use of the suit schedule property.

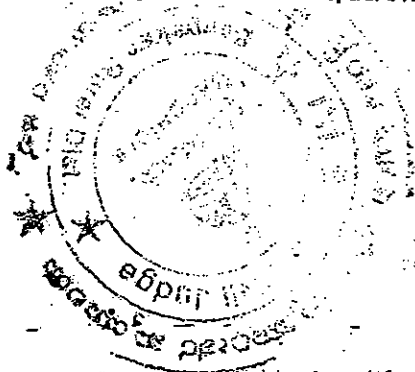


On the other hand, the defendant in the said suit who has filed another suit in O.S.No.124/94 (old) new O.S.No.97/2001 for the relief of permanent injunction claiming that he is the owner in possession of 8 acres of land in suit Sy.No.159 by virtue of the grant made by the then the Government of Mysore in his favour in the year 1963. Since the date of grant he is in possession and enjoyment of the said land in his favour and defendants in the said suit were interfering in his peaceful possession and enjoyment of the said land. Further he has contended that the remaining portion of Sy.No.159 measuring 18 acres 13 guntas is also allotted to the displaced Manchanabele ^{Village} ~~land~~ persons and the said land is not at all a gomal land and no villagers were using the said land for grazing the cattle. Further he has taken contention that surrounding Kadabagere village there are other four survey numbers total measures 126 acres is a Government land and the villagers of the Kadabagere Village and surrounding villagers were using the said gomal land and suit Sy.No.159 and surrounding ^{used as} ~~its land already~~ house sites, school building and bank buildings were come up. So the plaintiffs and other villagers were not at all used the suit schedule property for grazing the cattle. Now in view of the rival claims made by the plaintiffs and defendant over the suit schedule property court by

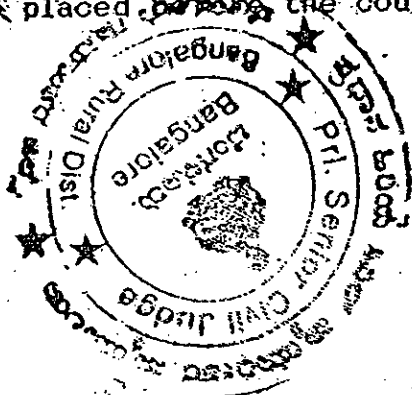


assessing the oral and documentary evidence placed before the court has to decide which parties are successful in proving their case is a point for consideration in this case.

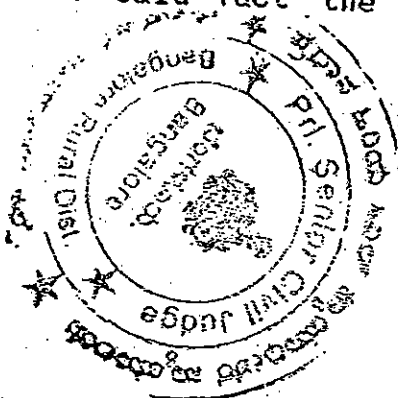
12. In order to prove the case of the plaintiff in O.S.No.204/94 the plaintiff No.1 examined as PW.1 partly. Subsequently PW.1 died, so he was not tendered for cross-examination. So his evidence cannot be considered, since this witness is not subjected to cross-examination. Thereafter the plaintiff No.3 has been examined as PW.2. He has spoken before the court whatever averred in the plaint stating that suit Sy.No.159 measuring 27 acres is a gomal land and villagers using the suit land for grazing the cattle. Medahalli, Bettahali, Kithanahalli and Kadabagere Villagers were grazing their cattle in the suit land. Further he has stated that they have constructed one Gokatte in the suit survey number. Further he has spoken that in the year 1963 the defendant came to the said suit land contending that 8 acres of land was granted to him in the suit Sy.No. and thereafter the villagers have challenged the grant order made in favour of the defendant before the Hon'ble High Court by filing writ petition and the said writ petition was allowed in the year 1966 quashing the grant order made



in favour of the defendant. From the date of order passed in the writ petition they were grazing the cattle in the entire Sy.No. Further he has spoken that again in the year 1994 the defendant came to the suit land to measure the land by creating some documents, at that time villagers restrained him ^{Not} to measure the land. Further he speaks regarding lodging complaint before the police and revenue authorities. Further he speaks regarding production of documents at Ex.P1 to P5 before the court. In the cross-examination of PW.2 he denied that suggestion that defendant has made the granted land fit for cultivation and he was raising the crops. He admits that near the suit land several apartments came up. In support of the plaintiffs case, the plaintiffs have examined two witnesses one Hanumalah and Muniyappa as PW.3 and PW.4, both the witnesses are the resident of Kadabagere Village. They have spoken in a similar way stating that suit schedule property Sy.No.159 measuring 26 acres 39 guntas is a gomal land, it is meant for free pasturage for the village cattle and the villagers have been continuously used for grazing their cattle and the defendants have no right over the suit schedule property. Whether the evidence of PW.2 to 4 corroborating with the documentary evidence placed before the court has to be looked into.



13. In support of the plaintiffs case, the plaintiffs have produced the certified copy of the order passed in W.P.No.1570/64 at Ex.P1. From this document it is clear that the writ petition filed by the villagers has been allowed by the Hon'ble High Court and the grant order made by the Government in respect of 8 acres in suit Sy.No. in favour of the defendant has been quashed in the year 1966. The evidence of PW.2 to that effect is corroborating with this document. Further the plaintiffs produced the Ex.P2 RTC extract for the year 1974-75 to 1976-77 pertains to suit survey number. In the said RTC extract it is mentioned that suit survey number is a Government gomal land. Further Ex.P3 is also RTC extract for the year 1977-78 in the said RTC extract also same thing is mentioned. Ex.P4 and P5 are the RTC extract for the year 1993-94, but the said RTC extracts are in torned conditions and they are not in a condition to refer the said document. Further the plaintiff advocate during the course of cross-examination of DW.1 got marked the order passed by the Asst.Commissioner at Ex.P6. Ex.P2 to P6 does not discloses that suit survey number totally measures 26 acres 39 guntas is still available for grazing the cattles of the villagers. Since the documents and evidence of defendant discloses otherwise. In order to establish the said fact the plaintiffs have neither



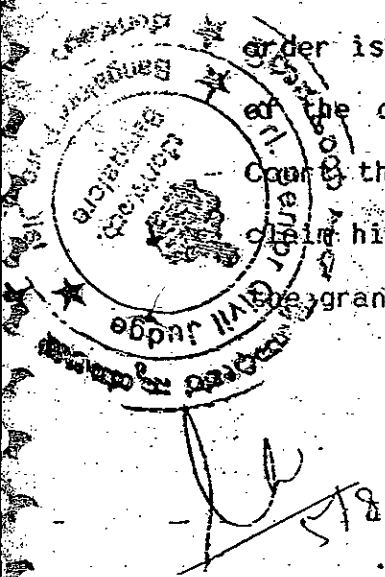
made the Government as party to the suit nor examined any of the revenue officials at least Village Accountant in support of their case. On the other hand, the defendant in the main suit and who is the plaintiff in O.S.No.124/94 (old) new O.S.No.97/2001 examined as DW.1. He has categorically denied the case made out by the plaintiff. He has spoken that in the suit schedule property the then the Government of Mysore granted 8 acres of land to him and Saguvalli chit also issued on 4.10.1963 and mutation was also effected in his name. Since the date of grant he is in possession of the granted land and by spending huge amount developed the land and made the land fit for cultivation. Further he has spoken that in Sy.No.159 remaining extent measures 18 acres 27 guntas also been granted to Manchanabele displaced persons in the year 1994 and the plaintiffs were not at all in possession of the entire suit survey number. He has spoken that he is cultivating the suit land personally by engaging the coolies and he plough the land with the help of bullocks and tractor. The plaintiff has filed false and frivolous suit. In the cross-examination also DW.1 admits that grant order has been quashed in the writ petition and he has not preferred any writ appeal against the said order. Further in the cross-examination he has clearly admitted that he has not produced any document to show



150

64

the boundary of the land granted to him and in the Saguvali chit the boundaries are not mentioned. Further he admits that he has produced the sketch copy. Further he denied that after quashing the grant order in the writ petition he is not in possession of the suit land. He has not produced any document before the court to show that he is in possession of the land from 1994. This defendant DW.1 is basing his claim entirely on the grant order made by the Government in his favour in the year 1963. No doubt the plaintiff has produced the grant certificate at Ex.P1, it reflects that the Government has granted 8 acres of land in Sy.No.159 at the upset price of Rs.30/- per acre in favour of the DW.1 for the purpose of growing fruit bearing trees. It is not in dispute that the plaintiffs and some villagers have challenged the grant order before the Hon'ble High Court in W.P.No.1570/64 and the Hon'ble High Court has quashed the grant order made in favour of the defendant by allowing the writ petition. The defendant has not challenged the order passed by the Hon'ble High Court by filing writ appeal. So the said order is become final. When the grant order in favour of the defendant has been quashed by the Hon'ble High Court the defendant cannot rely on the same order to claim his right over the granted land. No doubt as per the grant certificate the defendant name was mutated in



the revenue records as per Ex.D2. Further he has produced the RTC extract at Ex.D3 and Ex.D4 for the year 1968-69 to 1973-74 wherein this defendant name is shown as owner and possessor in column No.9 and 12. Ex.D5 is also RTC extract for the year 1989-90, Ex.D6 is the RTC extract for the year 1990-91 and Ex.D7 is also RTC extract for the year 1993-94 wherein the name of the defendant is appearing in column No.9 and 12. Further he has produced the receipt patta book at Ex.D8 and Krushi Pass book at Ex.D9 and record of right at Ex.D10 and index of land at Ex.D11 and by virtue of the grant order his name was entered in the revenue records. When the grant order itself is quashed by the Hon'ble High Court in the writ petition the entry made in the name of defendant in the revenue records has no value in the eye of law. Further the defendant has produced the notice issued by the PLD Bank Nelamangala and the receipt at Ex.D12 and 12 (a) and D13. It is on the record that this defendant ^{has owned} ~~having~~ land adjacent to the suit land measuring 4 acres add guntas. This document does not dispute for which purpose, on which land he has taken loan from the said bank. Further the defendant has produced the order passed by the Deputy Commissioner dated 6.6.1995 at Ex.D14 and in the said order, the Deputy Commissioner has held that this defendant preferred the revision before the Deputy



Commissioner against the order passed by the Asst. Commissioner deleting his name from the revenue records. The said revision has been allowed by the Deputy Commissioner and observed that Asst. Commissioner has no power to initiate the impugned proceeding against the respondents. So the said order passed by the Asst. Commissioner is set aside and he has reported the matter for taking action in this regard. So from this order it reveals that even though grant order has been quashed by the Hon'ble High Court in the writ petition, the Government has not taken any action in respect of the granted land in favour of the defendant. Under such circumstances whether the granted land vested with the defendant or with the Government is not made clear by the either party. Further the defendant has produced the certified copy of the judgment and decree passed in O.S.No.394/98 at Ex.D15. On going through the judgment and decree passed in O.S.No.394/98 on the file of this court it reveals that the present defendant has filed the suit against the Government of Karnataka represented by its Chief-Secretary, Deputy Commissioner, Asst. Commissioner and Tahsildar for declaration to declare that he is the owner and possessor of the granted land by way of adverse possession and also sought for permanent injunction and mandatory injunction. Since the defendants have

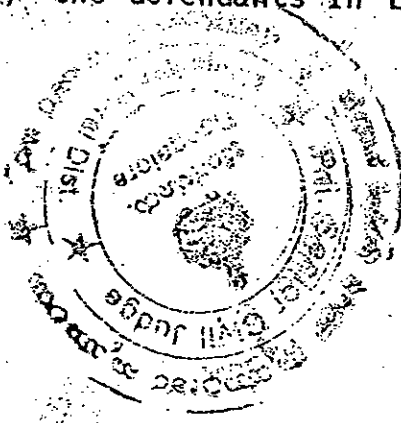


remained ^{suit}exparte in the said suit and the said is decreed. NO doubt the plaintiffs were not party to the suit, but the granted land belongs to the Government and the Government is a party to the suit, they have not contested the suit. So suit came to be decreed in favour of the defendant DW.1. Since the plaintiffs were not party to that suit the said decree is not binding on these plaintiffs. Further in order to evidence the fact that in Sy.No.159 the Government has granted land to different persons. This defendant has produced two RTC extracts at Ex.D16 and Ex.D17 for the year 2000-2001 and in Ex.D16 the name of Hosur Thimmiah S/o Honnagirigowda is entered to the extent of 2 acres and in Ex.D18 out of the suit survey number 20 guntas of land was granted to Guddada Thimmaiah S/o Thimmaiah with a condition that he should not alienate the said land for 15 years. In view of Ex.D16 and D17 the claim of the plaintiff that entire Sy.No.159 measuring 26 acres 39 guntas is still gomal land, it is used by the villagers of Kadabagere Village false to the grounds. These RTC extracts have got presumptive value, no rebuttal evidence is placed by the plaintiff to disbelieve the entries made in the Ex.D16 and Ex.D17. So these documents supports the contention of the defendants that the Government has granted the suit Sy.No.159 to different persons bit by bit. So by



assessing the oral and documentary evidence placed by the from both sides it is crystal clear that none of the parties are able to prove their respective cases made out in their plaint. The only oral evidence of PW.2 to PW.4 is not suffice to hold that the entire suit survey numbed is still available for grazing the cattle and they are using the suit land for the said purpose as on the date of suit. Hence, the plaintiffs in O.S.No.204/94 have failed to prove issue No.1 and plaintiff in O.S.No.124/94(old) new O.S.No.97/2001 also failed to prove his possession over the granted land as on the date of suit and he has not examined any neighbouring land owners. Admittedly his name was entered in the RTC extracts prior to 1994 only and thereafter his name was deleted. The revenue documents are not the title documents. When the grant order of this defendant has been quashed by the Hon'ble High Court in the writ petition subsequent entries are no value. So he has not placed any acceptable evidence to establish his possession over the granted land. Hence, he too has failed to prove issue No.1. Accordingly, I answer issue No.1 in the NEGATIVE in both the suits.

14. ISSUE No.2 IN BOTH THE SUITS:- In view my finding on issue No.1 in both the suits the question of interference by the defendants in both the suits does



not arise. Further in both the suits the parties have not adduced acceptable evidence regarding the alleged interference as contended in their plaint. Hence the plaintiffs have failed to prove issue No.2 in both the suits. Accordingly, I answer issue No.1 in the NEGATIVE in both the suits.

15. ISSUE No.3 IN BOTH THE SUITS:- Under issue No.1 in O.S.No.204/94 the plaintiffs have failed to establish that the entire suit Sy.No.159 measuring 26 acres 39 guntas is a gomal land is existing as on the date of suit till today. So in the absence of that the plaintiffs in the said suit are not entitled for the relief of permanent injunction in respect of the entire suit survey number. Further so far as plaintiff in O.S.No.124/94 (old) new O.S.No.97/2001 is concerned, by virtue of the order passed by the Hon'ble High Court in W.P.No.1570/64 the grant order made in favour of the plaintiff in the said suit has been quashed, automatically the possession of the granted land ^{learned} to be vested with the Government as per the grant rules and there is no need that the Government has to pass separate order to that effect. Admittedly as per the evidence of ADW, still regrant proceeding is pending. Under such circumstances his possession over the granted land is also doubtful. Moreover the learned



counsel for the plaintiff in O.S.No.204/94 argued that no injunction can be granted in respect of the Government gomal land. So the plaintiff is not entitled to injunction in respect of the land which is proved to be gomal land. In support of his argument he has relied on the ruling reported in 1978 (2) KLJ 135. Hence requested to dismiss the said suit. On the other hand, the learned senior counsel for the plaintiff who conducted the case, argued that the granted land to him is not a gomal land, it is a kharab land, he can maintain the suit for permanent injunction. I have gone through the argument canvassed by both sides advocate and the ruling relied by the plaintiff counsel. DW.1 in his cross-examination clearly admitted that in Ex.D11 it is mentioned that the suit land is a Government gomal land. Ex.D11 is the index of land it is his own document there is a recital in the said document that Sy.No.159 is a Government gomal land. In view of this document the contention of the plaintiff in O.S.No.124/94 (old) New O.S.No.97/2001 that it is not a gomal land is not acceptable one. In the above decision relied by the plaintiff's counsel the Hon'ble High Court has clearly held that plaintiff is not entitled to injunction in respect of the land which is proved to be gomal land, on the ground that he was in possession of the suit land on the date of suit. Further held



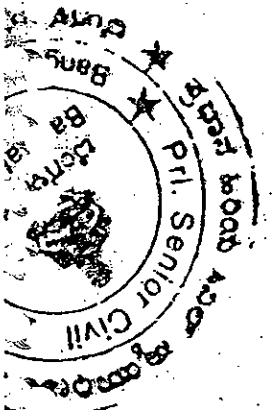
159

that gomal land being land reserved for the use of the village cattle, one villagers cannot exclude others from the use of the such a land. The principles enanchiated in the above decision aptly applicable to the case on hand. By placing reliance on the above decision I am of the opinion that the plaintiff in O.S.No.124/94 is not entitled for the relief of permanent injunction against the villagers. Hence from assessing the entire oral and documentary evidence placed before the court by both sides, I am of the considered opinion that in both the suits the plaintiffs are not entitled for the relief of permanent injunction as prayed in the plaint. Accordingly, I answer issue No.3 in both the suits in the NEGATIVE.

16. ISSUE No.4 IN BOTH THE SUITS. In view of my findings on the above issues and for the reasons stated above, the suit filed by the plaintiffs in both the suit are liable to be dismissed. Accordingly, I proceed to pass the following:

ORDER

The suit filed by plaintiffs in O.S.No.204/94 and plaintiff in O.S.No.124/94 (old) New O.S.No.97/2001 are hereby dismissed.



Handwritten signature and initials

Under the facts and circumstances of the case, I direct both parties to bear their own costs.

The original judgement shall be kept in O.S.No.204/94 and copy of the same shall be kept in O.S.No.124/94 (old) new O.S.NO.97/2001.

(Dictated to the Stenographer, transcribed by him, corrected, signed and then pronounced by me in the open court this the 5th day of August 2003)

(S.M. PATIL)

II Addl.Civil Judge (Sr.Dvn)
Bangalore Rural District,
Bangalore.

ANNEXURE

1. List of witnesses examined for the plaintiffs:

PW.1 Doddashivanna
PW.2 Narasimhalah
PW.3 Hanumaiah
PW.4 Muniyappa

2. List of documents exhibited for the plaintiffs:

Ex.P1 : Copy of order in writ petition
Ex.P2 to P5 : RTC extracts
Ex.P6 : Copy of order of the Asst.Commissioner

3. List of witnesses examined for the defendants:

DW.1 M.T. Ramalingaiah



La
5/8

4. List of documents exhibited for the defendants:

- Ex.D1 : Grant certificate
Ex.D2 : Mutation extract
Ex.D3 to D7: RTC extracts
Ex.D8 : Receipt Patta book
Ex.D9 : Krushi Pass book
Ex.D10 : Record of rights
Ex.D11 : Index of lands
Ex.D12 : Demand notice
Ex.D13 : Society receipts
Ex.D14 : Order copy of the Deputy Commissioner
Ex.D15 : Judgment and decree copy in O.S.No.394/98
Ex.D16 : RTC extract
Ex.D17 : RTC extract

(S.M.PATIL)

II Addl.Civil Judge (Sr.Dvn)
Bangalore Rural District,
Bangalore.

stg*.

TRUE COPY

EXAMINER



MUTATION REGISTER

160 -

ANNEXURE-2

15/11/2019

Sl. No.	Reference to Preliminary Record of Record of Rights	Nature of Right	Survey No. Sub-Division	Date of issue of Notice	Remarks of the Enquiry officer	Reference to Preliminary Record of Record of Rights
1509	1509/2-629	1509/2-629	1509/2-629	8-11	Accepted by party	1509/2-629
1509	1509/2-629	1509/2-629	1509/2-629	10-11	Accepted by party	1509/2-629



1509/2-629

1509/2-629

- Annexure-R2

ಹಕ್ಕು ಬದಲಾವಣೆ ರಿಜಿಸ್ಟರ್

ಗ್ರಾಮ : ಕಡಬಗೆರೆ
ಹೋಬಳಿ ದಾಸನಪುರ

ತಾಲ್ಲೂಕು ನೆಲಮಂಗಲ
ಜಿಲ್ಲಾ ಬೆಂಗಳೂರು

ನಂ	ಪ್ರಿಲಮಿನರಿ ರೆಕಾರ್ಡ್ ಅಥವಾ ರೆಕಾರ್ಡ್ ಆಫ್ ರೈಟ್ಸ್	ಹಕ್ಕಿನ ತರಹ ಅಥವಾ ಸ್ವಭಾವ	ಸರ್ವೆ ನಂಬರು ಹಿನ್ನೆ ನಂಬರು	ನೋಟೀಸುಗಳು ಕೊಟ್ಟ ತಾರೀಖು	ಪ್ರಿಲಮಿನರಿ ರೆಕಾರ್ಡ್ ಅಥವಾ ರೆಕಾರ್ಡ್ ಆಫ್ ರೈಟ್ಸ್ ರಿಜಿಸ್ಟರಿನ ದಾಖಲೆ
7/63-64	259 2-6-39 ಸರ್ಕಾರಿ ಗೋಮಾಳ	ಶ್ರೀ. ಎಂ.ಟಿ. ರಾಮಚಂದ್ರಯ್ಯ ಜನ್ಮ ದೊಡ್ಡ ತಮ್ಮಯ್ಯನವರಿಗೆ ಗೌರ್ಮೆಂಟ್ ಆರ್ಡರ್ ನಂ. ಆರ್.ಡಿ. 250 ಎಲ್ ಬಿ ಡಿ 63 ಬಾಲ್ಯಾಂ 21-8-1963 ನೇ ಆರ್ಡರ್ ಮೇರೆಗೆ ಎ 1 ಕ್ಕೆ 30/- ರೂಗಳಂತೆ ಕಿಮ್ಮತ್ತಿಗೆ ಮಂಜೂರು ಮಾಡಿರುತ್ತೆ. ತಹಲ್‌ನಲ್ಲಿ ಸಾಹೇಬರ ನಂಬರು ಎಲ್.ಎನ್.ಡಿ. ಎಸ್‌ಆರ್ 397/60-61 ದಿ. 4-10-63 ಹಣ್ಣಿನ ಮರಗಳನ್ನು ಬೆಳೆಸುವುದಕ್ಕೋಸ್ಕರ ಮುಂಚೆ - ಇರುತ್ತೆ.	159 ರಲ್ಲಿ	8-00/10-00	Accepted subjected to measurement Sd/- Tasildar Nelamangala RR No. 1287

ನಕಲು
ಸಹಿ
ತಹಸೀಲ್ದಾರ್
ನೆಲಮಂಗಲ ತಾಲ್ಲೂಕು

162

MUTATION REGISTER

Translated Copy of Annexure-R2

Village: Kadabagere
Hobli: Dasanapura

Taluk: Nelamanagala
District : Bangalore

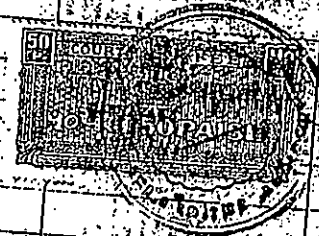
No	Preliminary Record or Record of Rights	Type or nature of Rights	Survey Number Hissa Number	Date of Issue of Notice	Entry in Preliminary Record or Record of Rights
7/63-64	159 2-6-39 Government Gomal	It has been sanctioned for Sri M T Ramalingayya, S/o Dodda Tammayya as per Government Order No: RD 250 LBD 63 Volume 21-8-1963 for A1 for off set value of Rs.30/-. In register No: LND SR 397/60-61 dated: 4-10-63 for growing fruit trees.	In 159	8-00/10-00	Accepted subjected to measurement Sd/- Tahsildar Nelamangala RR No: 1287

Copy
Sd/-
Tahsildar
Nelamangala Taluk

Serial No. ಸಂಖ್ಯೆ	Name of the parties concerned and nature of right ಸಂಬಂಧಿಸಿದ ಪಕ್ಷ ಮತ್ತು ಹಕ್ಕಿನ ಸ್ವಭಾವ	Survey No. and Sub-division ಸಂಖ್ಯೆ ಮತ್ತು ಭಾಗ	Remarks and Notes ಪರಿಶೀಲನೆ ಮತ್ತು ವಿವರ	Reference to Mutation Register ಮ್ಯೂಟೇಷನ್ ರಿಜಿಸ್ಟರ್‌ಗೆ ಸಂಬಂಧ	Reference to Inheritance Register ಇನ್‌ಹೆರಿಟೆನ್ಸ್ ರಿಜಿಸ್ಟರ್‌ಗೆ ಸಂಬಂಧ
1	...	...	...	...	...
2	...	...	...	...	...
3	...	...	...	...	...
4	...	...	...	...	...
5	...	...	...	...	...
6	...	...	...	...	...
7	...	...	...	...	...
8	...	...	...	...	...
9	...	...	...	...	...
10	...	...	...	...	...
11	...	...	...	...	...
12	...	...	...	...	...
13	...	...	...	...	...
14	...	...	...	...	...
15	...	...	...	...	...
16	...	...	...	...	...
17	...	...	...	...	...
18	...	...	...	...	...
19	...	...	...	...	...
20	...	...	...	...	...
21	...	...	...	...	...
22	...	...	...	...	...
23	...	...	...	...	...
24	...	...	...	...	...
25	...	...	...	...	...
26	...	...	...	...	...
27	...	...	...	...	...
28	...	...	...	...	...
29	...	...	...	...	...
30	...	...	...	...	...
31	...	...	...	...	...
32	...	...	...	...	...
33	...	...	...	...	...
34	...	...	...	...	...
35	...	...	...	...	...
36	...	...	...	...	...
37	...	...	...	...	...
38	...	...	...	...	...
39	...	...	...	...	...
40	...	...	...	...	...
41	...	...	...	...	...
42	...	...	...	...	...
43	...	...	...	...	...
44	...	...	...	...	...
45	...	...	...	...	...
46	...	...	...	...	...
47	...	...	...	...	...
48	...	...	...	...	...
49	...	...	...	...	...
50	...	...	...	...	...
51	...	...	...	...	...
52	...	...	...	...	...
53	...	...	...	...	...
54	...	...	...	...	...
55	...	...	...	...	...
56	...	...	...	...	...
57	...	...	...	...	...
58	...	...	...	...	...
59	...	...	...	...	...
60	...	...	...	...	...
61	...	...	...	...	...
62	...	...	...	...	...
63	...	...	...	...	...
64	...	...	...	...	...
65	...	...	...	...	...
66	...	...	...	...	...
67	...	...	...	...	...
68	...	...	...	...	...
69	...	...	...	...	...
70	...	...	...	...	...
71	...	...	...	...	...
72	...	...	...	...	...
73	...	...	...	...	...
74	...	...	...	...	...
75	...	...	...	...	...
76	...	...	...	...	...
77	...	...	...	...	...
78	...	...	...	...	...
79	...	...	...	...	...
80	...	...	...	...	...
81	...	...	...	...	...
82	...	...	...	...	...
83	...	...	...	...	...
84	...	...	...	...	...
85	...	...	...	...	...
86	...	...	...	...	...
87	...	...	...	...	...
88	...	...	...	...	...
89	...	...	...	...	...
90	...	...	...	...	...
91	...	...	...	...	...
92	...	...	...	...	...
93	...	...	...	...	...
94	...	...	...	...	...
95	...	...	...	...	...
96	...	...	...	...	...
97	...	...	...	...	...
98	...	...	...	...	...
99	...	...	...	...	...
100	...	...	...	...	...

EX-10

DECLARATION



Handwritten signature and notes in the right margin.

164

Typed COPY
g Annexure-R3

ಹಕ್ಕು ಬದಲಾವಣೆ ರಿಜಿಸ್ಟರ್

ಗ್ರಾಮ : ಕಡಬಗೆರೆ
ಹೋಬಳಿ ದಾಸನಪುರ

ತಾಲ್ಲೂಕು ನೆಲಮಂಗಲ
ಜಿಲ್ಲಾ ಬೆಂಗಳೂರು

ನಂ	ಹಕ್ಕುದಾರರ ಹೆಸರು ಮತ್ತು ಹಕ್ಕಿನ ಸ್ವಭಾವ	ಸಂಬಂಧವುಳ್ಳ ಸರ್ವೆ ನಂ. ಮತ್ತು ಸಬ್ ನಂ.	ಷರಾ ಮತ್ತು ಟಿಪ್ಪಣಿ	ಮ್ಯುಟೇಷನ್ ರಿಜಿಸ್ಟರು ದಾಖಲೆ	ಇನ್‌ಹೆರಿಟೆಜ್ ರಿಜಿಸ್ಟರಿಗೆ ದಾಖಲೆ
1287	ಶ್ರೀ. ಎಂ.ಟಿ. ರಾಮಅಂಗಯ್ಯ ಜನ್ ದೊಡ್ಡ ತಮ್ಮಯ್ಯನವರಿಗೆ ಗೌರ್ಮೆಂಟ್ ಆಡರ್ ನಂ. ಆರ್.ಡಿ. 250 ಎಲ್. ಬಿ.ಡಿ.63 ತಾ21-3-1963ನೇ ಅಡರ್ ಮೇರೆಗೆ ಎ 1 ಕ್ಕೆ 30/- ರೂಗಳಂತೆ ಕಿಮ್ಮತ್ತಿಗೆ ಹಣ್ಣು ಮರಗಳನ್ನು ಬೆಳೆದು ವುದಕ್ಕೋಸ್ಕರ ಮಂಜೂರಾಗಿರುತ್ತೆ.	159		7/63-64	

ನಕಲು
ಸಹಿ
ತಹಸೀಲ್ದಾರ್
ನೆಲಮಂಗಲ ತಾಲ್ಲೂಕು

165

MUTATION REGISTER

Translated Copy of Annexure-R3

Village: Kadabagere
Hobli: Dasanapura

Taluk: Nelamanagala
District : Bangalore

No	Name of Title Holder and Type of Rights	Concerned Sy No and Sub No	Remarks and Note	Mutation Register Record	Entry in In heritage Register
1287	It has been sanctioned for Sri M T Ramalingayya S/o Dodda Tammayya as per Government Order No: RD 250 LBD 63 Volume 21-8-1963 for A1 for off set value of Rs 30/- for growing fruit trees.	159		7/63-64	

Copy
Sd/-
Tahsildar
Nelamangala Taluk

[illegible]

[illegible]

11/15/73
 11/15/73
 11/15/73

ಮೊಟ್ಟೆ ೧೦೦೦೦೦
~~ಮೊಟ್ಟೆ ೧೦೦೦೦೦~~
 ೧೦೦೦೦೦

ಬಂಧು(ಪ್ರಾಣಿ) -
ಹುಟ್ಟುಹಬ್ಬ -

50

2

2000 2001

2002 2003

2004 2005

2006 2007

2008 2009

2010 2011

2012 2013

2014 2015

2016 2017

2018 2019

2020 2021

2022 2023

2024 2025

2026 2027

2028 2029

2030 2031

2032 2033

2034 2035

2036 2037

2038 2039

2040 2041

2042 2043

2044 2045

2046 2047

2048 2049

2050 2051

2052 2053

2054 2055

2056 2057

2058 2059

2060 2061

2062 2063

2064 2065

2066 2067

2068 2069

2070 2071

2072 2073

2074 2075

2076 2077

2078 2079

2080 2081

2082 2083

2084 2085

2086 2087

2088 2089

2090 2091

2092 2093

2094 2095

2096 2097

2098 2099

2100 2101

2102 2103

2104 2105

2106 2107

2108 2109

2110 2111

2112 2113

2114 2115

2116 2117

2118 2119

2120 2121

2122 2123

2124 2125

2126 2127

2128 2129

2130 2131

2132 2133

2134 2135

2136 2137

2138 2139

2140 2141

2142 2143

2144 2145

2146 2147

2148 2149

2150 2151

2152 2153

2154 2155

2156 2157

2158 2159

2160 2161

2162 2163

2164 2165

2166 2167

2168 2169

2170 2171

2172 2173

2174 2175

2176 2177

2178 2179

2180 2181

2182 2183

2184 2185

2186 2187

2188 2189

2190 2191

2192 2193

2194 2195

2196 2197

2198 2199

2200 2201

2202 2203

2204 2205

2206 2207

2208 2209

2210 2211

2212 2213

2214 2215

2216 2217

2218 2219

2220 2221

2222 2223

2224 2225

2226 2227

2228 2229

2230 2231

2232 2233

2234 2235

2236 2237

2238 2239

2240 2241

2242 2243

2244 2245

2246 2247

2248 2249

2250 2251

2252 2253

2254 2255

2256 2257

2258 2259

2260 2261

2262 2263

2264 2265

2266 2267

2268 2269

2270 2271

2272 2273

2274 2275

2276 2277

2278 2279

2280 2281

2282 2283

2284 2285

2286 2287

2288 2289

2290 2291

2292 2293

2294 2295

2296 2297

2298 2299

2300 2301

2302 2303

2304 2305

2306 2307

2308 2309

2310 2311

2312 2313

2314 2315

2316 2317

2318 2319

2320 2321

2322 2323

2324 2325

2326 2327

2328 2329

2330 2331

2332 2333

2334 2335

2336 2337

2338 2339

2340 2341

2342 2343

2344 2345

2346 2347

2348 2349

2350 2351

2352 2353

2354 2355

2356 2357

2358 2359

2360 2361

2362 2363

2364 2365

2366 2367

2368 2369

2370 2371

2372 2373

2374 2375

2376 2377

2378 2379

2380 2381

2382 2383

2384 2385

2386 2387

2388 2389

2390 2391

2392 2393

2394 2395

2396 2397

2398 2399

2400 2401

2402 2403

2404 2405

2406 2407

2408 2409

2410 2411

2412 2413

2414 2415

2416 2417

2418 2419

2420 2421

2422 2423

2424 2425

2426 2427

2428 2429

2430 2431

2432 2433

2434 2435

2436 2437

2438 2439

2440 2441

2442 2443

2444 2445

2446 2447

2448 2449

2450 2451

2452 2453

2454 2455

2456 2457

2458 2459

2460 2461

2462 2463

2464 2465

2466 2467

2468 2469

2470 2471

2472 2473

2474 2475

2476 2477

2478 2479

2480 2481

2482 2483

2484 2485

2486 2487

2488 2489

2490 2491

2492 2493

2494 2495

2496 2497

2498 2499

2500 2501

2502 2503

2504 2505

2506 2507

2508 2509

2510 2511

2512 2513

2514 2515

2516 2517

2518 2519

2520 2521

2522 2523

2524 2525

2526 2527

2528 2529

2530 2531

2532 2533

2534 2535

2536 2537

2538 2539

2540 2541

2542 2543

2544 2545

2546 2547

2548 2549

2550 2551

2552 2553

2554 2555

2556 2557

2558 2559

2560 2561

2562 2563

2564 2565

2566 2567

2568 2569

2570 2571

2572 2573

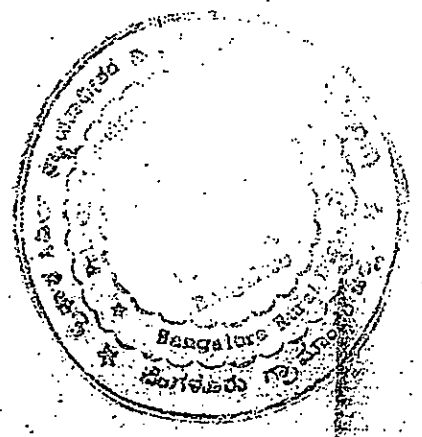
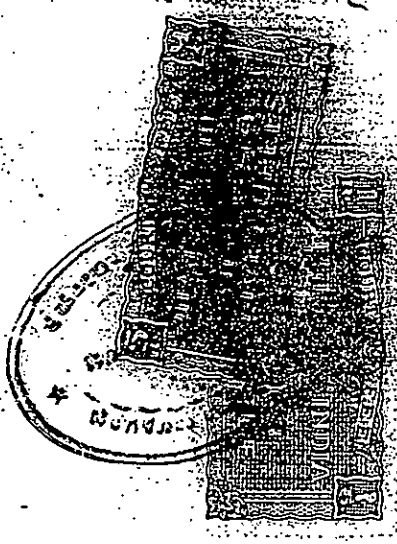
2574 2575

2576 2577

2578 2579

2580 2581

2582 2583



168

Typed copy
Annexure-R4

ರೆಕಾರ್ಡ್ ಆಫ್ ರೈಟ್ಸ್, ಗೇಣಿ ಮತ್ತು ಪಹಣಿ ಪತ್ರಿಕೆ (RTC)

ತಾಲ್ಲೂಕು : ಬೆಂಗಳೂರು ಗ್ರಾಮಾಂತರ

ಹೋಬಳಿ: ದಾಸನಪುರ

ಗ್ರಾಮ : ಕಡಬಗೆರೆ

1. ಸರ್ವೆ ನಂ. 159 ಪೈಕಿ	3. ಖೇತುವಾರು ಒಟ್ಟು ವಿಸ್ತೀರ್ಣ ಮೋಟ ಖರಾಬ ಮೋಟ ಖರಾಬ ಉಳಿದದ್ದು	ಎ. ಗು. ಹೆ. ಹೆ 8-00	4. ಕಂದಾಯ ರೂ. ಪೈ ಅ) ಭೂ ಕಂದಾಯ 10-00 ಬ) ಜೋಡಿ ಕ) ಸೆಸ್ಸುಗಳು ಡ) ನೀರಿನ ರೇಟು ಒಟ್ಟು 10-00	9. ಕುಬ್ಜದಾರ ಅಥವಾ ಸ್ವಾಧೀನದಾರನ ಹೆಸರು ಮತ್ತು ವಿಳಾಸ ಎಂ.ಟಿ. ರಾಮಲಿಂಗಯ್ಯ ಖಾತೆ ನಂ.	10. ಕುಬ್ಜದಾರ ಸ್ವಾಧೀನತೆಯ ರೀತಿ 11. ಇತರ ಹಕ್ಕುಗಳು ಮತ್ತು ಖುಣಗಳು						
5. ಮಣ್ಣಿನ ಸಮೂಹ ಕೆಂಪು	7. ಮರಗಳ ಸಂಖ್ಯೆ ಹೆಸರು ಸಂಖ್ಯೆ ಅ.ನ ನೀರಾವರಿಯ ಮೂಲ ಮುಂಗಾರು ಹಿಂಗಾರು ಬಾಗಾಯ್ತು ಒಟ್ಟು ಎ ಗುಂ ಎ ಗುಂ ಎ ಗುಂ ಎ ಗುಂ	12. ಗೇಣಿಯ ವಿವರಗಳು: ಸದರಿ ವರ್ಷದ ಬೆಳೆ ವಿವರ ಇನ್ನು ದಾಖಲಿಸಿಲ್ಲದ ಕಾರಣ ಹಿಂದಿನ ವರ್ಷದ ಬೆಳೆ ವಿವರ ಮುದ್ರಿಸಲಾಗಿದೆ									
6. ಪಟ್ಟಾ ಸರ್ಕಾರಿ	13. ಭೂಮಿಯ ಉಪಯೋಗ ಬೆಳೆಗಳ ವಿವರ										
ವರ್ಷ ಮತ್ತು ಕಾಲ 1	ವ್ಯವಸಾಯಗಾರನ ಹೆಸರು ಮತ್ತು ವಿಳಾಸ 2	ಸಾಗುವಳಿ ಯಪದ್ಧತಿ 3	ಗೇಣಿಯ ವಿವರ ವಿಸ್ತೀರ್ಣ ಗುತ್ತಿಗೆ 4 5 ಎ ಗೆ	ಭೂಮಿಯ ಉಪಯೋಗ ವರ್ಗ ವಿಸ್ತೀರ್ಣ 6 7 ಎ ಗು	ಖುಷ್ಕ ತರಿ ಬಾಗಾಯ್ತು 8	ಬೆಳೆಯ ಹೆಸರು 9	ವಿಸ್ತೀರ್ಣ ಆಮಿಶ್ರ ಮಿಶ್ರ ಒಟ್ಟು 10 11 12 ಎ ಗು ಎ ಗು ಎ ಗು	ನೀರಾ ವರಿಯ ಮೂಲ 13	ಎಕರೆಗೆ ಉತ್ಪತ್ತಿಯ ಅಂದಾಜು (ಬರಗಾಲ ಮುಣಗಳು) 14	ಮಿಶ್ರಬೆಳೆಗಳ ಒಟ್ಟು ಮಿಶ್ರಣದ ಹೆಸರು 15	ವಿಸ್ತೀರ್ಣ 16 ಎ ಗು
68-69	ಖುದ್ದು	1	-	-	-	ಹಾರಕ ಹುರಳ ರಾಗಿ ಸಾಸಿವೆ ಭತ್ತ	2-0 2-0 2-0 0-4 1-32 8-00	ಮಳೆ			

169

69-70								ಸಾಸಿವೆ ಭತ್ತ ಪುರಳ ರಾಗಿ ಹರಳು	0-4 2-00 2-00 0-4 1-3						
70-71	ಖುದ್ದು	ಬಂಜರು						ಬಂಜರು	8-00						
71-72	ಖುದ್ದು														
72-73	ಎನ್. ಟಿ. ರಾಮಲಿಂಗಯ್ಯ							ಹುರಳ	8-00					ಮಳೆ	

ಸಹಿ
ತಹಶೀಲ್ದಾರ್
ನೆಲಮಂಗಲ ತಾಲ್ಲೂಕು

RECORD OF RIGHTS, TENANCY AND PAHANI FORM (R.T.C.)

Taluk : Bangalore Rural

Hobli: Dasanapura

Village: Kadabagere

1. Survey No. 159		3. Khethavaru		A C		4. Tax		Rs		9. Name of Khatedar or Occupant, Father's Name And address:		10. Khata No. or type of ownership		11. Other rights and alienations. <u>Rights:</u>	
2. Hissa		Total Area Phut Kharab (A)		8-00		Land Tax		10-00		M T Ramalingayya					
		Phut Kharab (B)		8-00		Cesses									
		Balance				Water Rate									
						Total		10-00							
5. colour of Sand Red		7. No. of trees				8. Extent of wet land as per Khatedar									
6. Patta Cultivation Government		Name Nil	No, Nil	A., S	Water source	Monsoon	Winter	Gar den	Total						

171

12. Details of tenancy								13. Use of land and details of crop.							
Year And Period	Name of cultivator and his address.	Type of Cultivation	Details of Tenancy		Use of land		Dry, Wet Garden	Name Of The crop	Extent			Source of Water	Produce Per acre	Total of mixed crops	
			extent	Tenancy	Category	Extent A-C			Half mix	Mix	Total			Name Of Mixture	Extent
1	2	3	4	5	6	7	8	9	10	11	12	13	14	15	16
68-69	Own	1	-	-	-			Haraka Horse Gram Ragi Sesame Paddy	2-00 2-00 2-00 0-4 1-32 8-00			Rain			
69-70								Sesame Paddy Horse Gram Ragi Castor oil plant	0-4 2-00 2-00 0-4 1-3						
70-71	Own	Barren						Barren	8-00						
71-72	Own														
72-73	N T Ramalingayya							Horse gra	8-00			Rain			

Sd/-
Tahsildar
Nelamangala Talu

172 Answer-25

ಪ್ರತಿಬಂಧಕ ಕ್ರಮಗಳ ವಿವರ : ಅಂ. ೪ : ಸಂಖ್ಯೆ 42:94-95

ಪ್ರತಿಬಂಧಕ ಕ್ರಮಗಳ ವಿವರ : ಅಂ. ೪ : ಸಂಖ್ಯೆ 42:94-95

ಪ್ರತಿಬಂಧಕ ಕ್ರಮಗಳ ವಿವರ : ಅಂ. ೪ : ಸಂಖ್ಯೆ 42:94-95

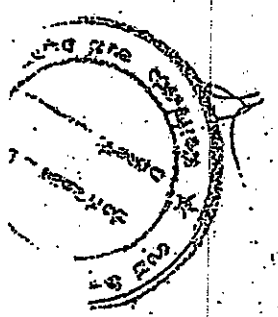
ಪ್ರತಿಬಂಧಕ ಕ್ರಮಗಳ ವಿವರ : ಅಂ. ೪ : ಸಂಖ್ಯೆ 42:94-95

ಪ್ರತಿಬಂಧಕ ಕ್ರಮಗಳ ವಿವರ : ಅಂ. ೪ : ಸಂಖ್ಯೆ 42:94-95

ಪ್ರತಿಬಂಧಕ ಕ್ರಮಗಳ ವಿವರ : ಅಂ. ೪ : ಸಂಖ್ಯೆ 42:94-95

ಪ್ರತಿಬಂಧಕ ಕ್ರಮಗಳ ವಿವರ : ಅಂ. ೪ : ಸಂಖ್ಯೆ 42:94-95

ಪ್ರತಿಬಂಧಕ ಕ್ರಮಗಳ ವಿವರ : ಅಂ. ೪ : ಸಂಖ್ಯೆ 42:94-95



ಪು: ತಿ. ನಂ. ೪೨



(2) ತಹಶೀಲ್ದಾರರು ತನಗೆ ಅಲ ಬಗ್ಗೆ ತಿಳಿಸುವಂತೆ ಹೇಳಿ ಅಂತಹ ಪತ್ರವನ್ನು
ತನ್ನ ಸುಪ. ವಿಭಾಗದ ಅಧಿಕಾರಿಗಳಿಗೆ ವರದಿ ಮಾಡಿ, ಅದರಲ್ಲಿರುವ ವಿವರಗಳನ್ನು
ಅರ.ಆರ.ಬಿ.ಸಿ.ಆರ್-42/34-35 ರಿನಂವರ್ 1-6-34ರಲ್ಲಿ ನೋಡಬೇಕು
ಎಂದು ನೋಡುವಂತೆ ಮುಖ್ಯಸ್ಥರಿಗೆ ವರದಿ ಮಾಡುವುದು.

(3) ನಿರ್ವಹಣಾ ತನಗೆ ಸಂಬಂಧಿಸಿದ ಮಹತ್ವದ ವಿಷಯಗಳನ್ನು ರಿಪೋರ್ಟ್ ಮಾಡುವ
ಬಿಡುಗಡೆ, ಇದಕ್ಕೆ ಮುಕ್ತಾಯ, ರಚನೆ, ಅಥವಾ ಪರಿಶೀಲನೆ ಮಾಡುವುದಿಲ್ಲ.

[illegible]

ଉଦ୍ଦେଶ୍ୟ

ಪ್ರಸಾರವನ್ನು ಪರಿಶೀಲಿಸಲಾಗಿದೆ. ಪ್ರತಿವಾರಗಳೂ ಸರಿ ಸುಮಾರು ಉತ್ಪಾದನೆಯಾಗುತ್ತಿರುವುದು ನೋಡಲಾಗಿದೆ. ಮುಂಬಿನಲ್ಲಿ ಪಕ್ಕದ ಕುಗ್ಗುಳು ಕವಲಾಯಿತು ನಕಲುಗಳನ್ನು ಪರಿಶೀಲಿಸಿರುತ್ತೆ.

సర్కారు ఆదేశ నం. 250, తల. బి. డి. 63, తేదీ 21-8-63
1570, 1964 తేదీ 16-12-65

1970-1964 దినాంక 16-12-1950 ఆదేశము వహించియున్నది. ఈ పన్నుదారు
ప్రతిభాపత్రము ప్ర.సా.వి.క. జమీన్దార్లను బంగర ముద్రము ఆగి ముద్రించుటకై
చేయబడినదిగా గమనించు. ఈ పన్నుదారు

67. ಹಾಗೂ 135ರ ಅಡಿಯಲ್ಲಿ ಪ್ರತಿವಾರಗಳ ನೆನರಿಗೆ ಪ್ರಾಚಾರಿಗಿರುವ ಖಾತೆಯನ್ನು ಪರಿಶೀಲಿಸುವುದಾಗಿ ಅದೇಶ ಮಾಡಲಾಗಿದೆ. ಆ ಜಮೀನಿನ ಖಾತೆಯನ್ನು ನಕಾರಾತ್ಮಕವಾಗಿ ದಾಖಲೆಪಡಿಸುವಂತಹ ಅಡವಿಸಲಾಗಿದೆ. ಪರಿಶೀಲಿಸಿದರೆ ಸುತ್ತರ ತಾಯ್ನಾಕು ರವರು ಈ ಅಪರಾಧವನ್ನು ಎಸಗಿ ನಿರಪರಾಧರಾಗುವುದಾಗಿದೆ.

ಆ. ಸಂ. ದಿನಾಂಕ: 9-9-2000. ಈ ಆದೇಶವನ್ನು, ಭಾರತದ ಸರ್ಕಾರದ

Salt:

Copy

ಉಪ ವಿಭಾಗಾಧಿಕಾರಿಗಳು
 ಬೆಂಗಳೂರು ಉಪ ವಿಭಾಗ
 ಬೆಂಗಳೂರು

ಉಪ ವಿಭಾಗಾಧಿಕಾರಿಗಳು
ಬೆಂಗಳೂರು ಉಪ ವಿಭಾಗ
1. ಸಂಪನ್ಮೂಲ

7/18/94

TRUE COPY

ADVOCATE Copy applied by *M. T. Ramalingam*
 Copy applied on *3-10-84*
 Copy prepared by *[signature]*
 Copy compared by *[signature]*
 Copy ready on *11-10-84*

Typed copy of ANN - R5.

1740

ಪ್ರಕರಣ ಸಂಖ್ಯೆ : ಆರ್. ಆರ್.ಟಿ. : ಸಿಆರ್ 42: 94-95

ವಾದಿಗಳು

ಪ್ರತಿವಾದಿಗಳು

ರಾಜ್ಯ ಸರ್ಕಾರ

ಶ್ರೀ. ಎಂ.ಟಿ. ರಾಮಲಿಂಗಯ್ಯ

ವಕೀಲರು,

ನಂ. 918, 18 ನೇ ಎ ಮೈನ್ ರಸ್ತೆ

5ನೇ ಬ್ಲಾಕ್, ರಾಜಾಜಿನಗರ,

ಬೆಂಗಳೂರು

ವಿಷಯ:ಬೆಂಗಳೂರು ಉತ್ತರ ತಾಲ್ಲೂಕು, ದಾಸನಪುರ ಹೋಬಳಿ, ಕಡಬಗೆರೆ ಗ್ರಾಮದ ಸ.ನಂ. 159 ರಲ್ಲಿ 8-00 ಎಕರೆ ಜಮೀನಿನ ಬಾಬು ಆತೆ ಮತ್ತು ಪಹಣಿ ತಪ್ಪಾಗಿ ಎಂ.ಟಿ. ರಾಮಲಿಂಗಯ್ಯನವರ ಹೆಸರಿಗೆ ಮುಂದುವರೆ ಯುವುದನ್ನು ರದ್ದುಪಡಿಸುವ ಬಗ್ಗೆ ಹಾಗೂ ಜಮೀನಿನಲ್ಲಿ ಸರ್ಕಾರಕ್ಕೆ ತೆಗೆದುಕೊಳ್ಳುವ ಬಗ್ಗೆ.

ಪ್ರಸ್ತಾವನೆ :-

ತಹಶೀಲ್ದಾರರು, ಉತ್ತರ ತಾಲ್ಲೂಕು, ಅವರ ಪತ್ರ ಸಂ. ಆರ್. ಆರ್. ಟಿ.

94-95 ದಿನಾಂಕ : 3-6-94 ರ ಪತ್ರದಲ್ಲಿ ಬೇಗೂರು ಉತ್ತರ ತಾಲ್ಲೂಕು,

ದಾಸನಪುರ ಹೋಬಳಿ, ಕಡಬಗೆರೆ ಗ್ರಾಮದ ಸ.ನಂ. 159 ರಲ್ಲಿ 8-00 ಎಕರೆ

ಜಮೀನು, ಸರ್ಕಾರದ ನಂ. ಆರ್.ಡಿ. 250: ಎಲ್.ಟಿ.ಡಿ. 63 ದಿನಾಂಕ : 21-

8-63 ರಂತೆ ಶ್ರೀ ಎಂ.ಟಿ. ರಾಮಲಿಂಗಯ್ಯ ಎಂಬುವವರಿಗೆ ಮಂಜೂರಿಯಾಗಿ

ಎಂ. ಆರ್. 7:63-64 ರಂತೆ ಮ್ಯಾಟೀಶನ್ ಖಾತೆ ಆಗೂ ಪಹಣಿ ದಾಕಲೆ

ಬರುತ್ತಿದ್ದು, ಈ ಜಮೀನಿನ ಮಂಜೂರಾಯಿತಿ ಪ್ರಕರಣ ದಾಖಲಾಗಿದ್ದು ರಿಟ್

ಪಿಟಿಷನ್ ನಂ.1570:64 ದಿನಾಂಕ16-12-66 ರಲ್ಲಿ ದರಖಾಸ್ತು ಮಂಜೂರಾತಿ

ಯನ್ನು ಉಚ್ಚ ನ್ಯಾಯಾಲಯವು ವಜಾಕರಿಸಿರುತ್ತೆಂದು ಆದರು ದರಖಾಸ್ತು

ಮಂಜೂರಿದಾರರಾಗಿದ್ದ ಎಂ.ಟಿ. ರಾಮಲಿಂಗಯ್ಯನವರ ಹೆಸರಿಗೆ ಖಾತೆ ಪಹಣಿ

ಬರುತ್ತಿದ್ದು, ಜಮೀನಿನ ಕಂದಾಯ ಕಟ್ಟುತ್ತಾ ಬರುತ್ತಿರುತ್ತಾರೆಂದು ಭೂ

195

ಮಂಜೂರಾತಿ ವಜಾ ಆಗಿರುವ ಹಿನ್ನೆಲೆಯಲ್ಲಿ ಈ ಖಾತೆ ಹಾಗೂ ಪಹಣಿಯನ್ನು
ವಜಾಕರಿಸಬೇಕೆಂದು ಕೋರಿರುತ್ತಾರೆ.

ಈ ವರದಿ ಮೇರೆಗೆ ಶ್ರೀಯುತ ಎಂ.ಟಿ. ರಾಮಲಿಂಗಯ್ಯರವರಿಗೆ
ತಿಳುವಳಿಕೆ ನೀಡಿ ಈ ಬಗ್ಗೆ ಅವರ ಪ್ರತಿಜ್ಞೆ ಇದ್ದಲ್ಲಿ ಸಲ್ಲಿಸಬಹುದೆಂದು
ವಿಚಾರಣೆಗೆ ಹಾಜರಾಗತಕ್ಕದ್ದೆಂದು ತಿಳಿಯಪಡಿಸಿರುತ್ತೆ.

ಶ್ರೀಯುತ ರಾಮಲಿಂಗಯ್ಯನವರು ಅವರ ದಿನಾಂಕ : 23-6-94 ರ
ಅವರ ಅಖತ ಉತ್ತರದಲ್ಲಿ ಕೆಳಕಂಡಂತೆ ತಿಳಿಸಿರುತ್ತಾರೆ.

1) ಕಡಬಗೆರೆ ಗ್ರಾಮದ ಸ.ನಂ. 159 ರಲ್ಲಿ ಸರ್ಕಾರದ ಆದೇಶ ನಂ.
ಆರ್.ಡಿ. 250 ಎಲ್.ಜಿ.ಡಿ. 03 ದಿನಾಂಕ 31-3-63 ರಲ್ಲಿ 8-00 ಎಕರೆ
ಜಮೀನನ್ನು ಮಂಜೂರು ಮಾಡಿದ್ದು ಆ ಮೇರೆಗೆ ತಾನು ಖಾತೆಯನ್ನು ಪಡೆದು
ಜಮೀನಿಗೆ ಕಂದಾಯ ಪಾವತಿ ಮಾಡುತ್ತ ಬರುತ್ತಿದ್ದು ಪಹಣಿ ಸಹ ತನ್ನ
ಹೆಸರಿನಲ್ಲಿಯೇ ಬರುತ್ತಿರುತ್ತೆ.

2) ತಹಶೀಲ್ದಾರರು ತನಗೆ ಈ ಬಗ್ಗೆ ತಿಳುವಳಿಕೆ ಈತನ ಖಾತೆ
ವಜಾಕರಿಸಲು ತಿಳಿಸಿ ಉಪ ವಿಭಾಗಾಧಿಕಾರಿಗಳಿಗೆ ವರದಿ ಸಲ್ಲಿಸಿ ವಿಭಾಗಾಧಿ
ಕಾರಿಗಳು ಆರ್.ಆರ್.ಟಿ.ಸಿ ಆರ್ 42:94-95 ದಿನಾಂಕ: 15-6-94 ರಲ್ಲಿ
ನೋಟೀಸು ನೀಡುವಂತೆ ಮಾಡಿರುವುದು ಸರಿಯಲ್ಲ.

3) ಸರ್ಕಾರವು ತನಗೆ ಭೂ ಮಂಜೂರಾತಿ ಮಾಡಿರುವುದನ್ನು
ರದ್ದುಪಡಿಸಬೇಕಾದಲ್ಲಿ ಇದಕ್ಕೆ ಮತ್ತೊಂದು ಆದೇಶ ಹೊರಡಿಸಬೇಕಾಗಿರುತ್ತೆ.

4) ಇತ್ತೀಚೆಗೆ ತನಗೆ ಆಗದಂತವರು ಕೆಲವರು ತನ್ನನ್ನು ಜಮೀನಿನ ಸುಬರ್ದಿನಿಂದ ಹೊರಹಾಕಲು ಪ್ರಯತ್ನಿಸಿದ್ದರ ಮೇರೆಗೆ ತಾನು ಅವರ ವಿರುದ್ಧ ಮುನಿಸೀಪ್ ನ್ಯಾಯಾಲಯದಲ್ಲಿ ಇಂಜಕ್ಷನ್ ಆದೇಶ ಪಡೆದಿರುತ್ತೇನೆ. ಈ ತರಹ ಎಲ್ಲಾ ವಿಚಾರಗಳ ಹಿನ್ನೆಲೆಯಲ್ಲಿ ಈ ಪ್ರಕರಣವನ್ನು ಇಲ್ಲಿಗೆ ಮುಕ್ತಾಯ ಗೊಳಿಸಬಹುದಾಗಿರುತ್ತೆ.

ಆದೇಶ

ಪ್ರಕರಣವನ್ನು ಪರಿಶೀಲಿಸಲಾಗಿದೆ. ಪ್ರತಿವಾದಿಗಳು ಸಲ್ಲಿಸಿರುವ ಉತ್ತರವನ್ನು ಹಾಗೂ ಲಗತ್ತಿಸಿರುವ ಸರ್ಕಾರದ ಆದೇಶ, ಮ್ಯುಟೇಶನ್ ಪಹಣಿ ಹಾಗೂ ಕಂದಾಯ ಪಾವತಿ ರಸೀತಿ ಇವುಗಳ ನಕಲುಗಳನ್ನು ಪರಿಶೀಲಿಸಿರುತ್ತೆ.

ಸರ್ಕಾರವು ಆದೇಶ ನಂ. ಆರ್.ಡಿ. 250 ಎಲ್.ಜಿ. ಡಿ. 63 ದಿನಾಂಕ 21-08-63 ರಲ್ಲಿ ಭೂ ಮಂಜೂರಾತಿ ಮಾಡಿದ ರಿಟ್ ಅರ್ಜಿ ನಂ. 1570:1964 ದಿನಾಂಕ 16-12-65 ರ ಆದೇಶದಲ್ಲಿ ವಜಾಕರಿಸಿರುತ್ತೆ. ಈ ಹಿನ್ನೆಲೆಯಲ್ಲಿ ಪ್ರತಿವಾದಿಗಳು ಪ್ರಸ್ತಾವಿತ ಜಮೀನನ್ನು ಬಗರ್ ಹುಕ್ಕುಂ ಆಗಿ ಹೊಂದಿರುತ್ತಾರೆಂದು ಪರಿಗಣಿಸಬೇಕಾಗಿರುತ್ತೆ. ಈ ಹಿನ್ನೆಲೆಯಲ್ಲಿ ಭೂ ಕಂದಾಯ ಕಾಯ್ದೆ ಕಲಂ 25, 67 ಹಾಗೂ 136 ರ ಅಡಿಯಲ್ಲಿ ಪ್ರತಿವಾದಿಗಳ ಹೆಸರಿಗೆ ದಾಖಲಾಗಿರುವ ಖಾತೆಯನ್ನು ವಜಾಕರಿಸಿರುವುದಾಗಿ ಆದೇಶ ಮಾಡಲಾಗಿದೆ. ಈ ಜಮೀನಿನ ಖಾತೆಯನ್ನು ಸರ್ಕಾರದ ಹೆಸರಿಗೆ ದಾಖಲು ಮಾಡಲು ಸಹ ಆದೇಶಿಸಲಾಗಿದೆ. ತಹಶೀಲ್ದಾರರು ಉತ್ತರ ತಾಲ್ಲೂಕುರವರು ಈ ಆದೇಶವನ್ನು ಜಾರಿಗೆ ನೀಡಲು ಸೂಚಿಸಲಾಗಿದೆ.

ಈ ದಿನ ದಿನಾಂಕ : 12-9-94 ರಂದು ಈ ಆದೇಶವನ್ನು ಘೋಷಿಸಲಾಗಿದೆ.

ಸಹಿ	ಸಹಿ
ಉಪವಿಭಾಗಾಧಿಕಾರಿಗಳು	ಉಪವಿಭಾಗಾಧಿಕಾರಿಗಳು
ಬೆಂಗಳೂರು ಉಪವಿಭಾಗ	ಬೆಂಗಳೂರು ಉಪವಿಭಾಗ
ಬೆಂಗಳೂರು	ಬೆಂಗಳೂರು

177
53
Translated Copy of Annexure-R5

Case No: RRT: CR 42: 94-95

Plaintiffs

State Government

Respondents

Sri. M T Ramalingayya

Advocate

No: 918, 18th A Main Road

5th Block Rajajinagara

Bangalore

Sub: Regarding cancelling Khata and Pahani of 8-00 acre land in Sy No: 159 Kadabagere Village, Dasanapura Hobli Bangalore North Taluk wrongly registered to the name of M T Ramalingayya and taking the land into the custody of Government.

Proposal:-

8-00 acre land bearing Sy No: 159 in Kadabagere Village, Dasanapura Hobli, Begur North Taluk has been sanctioned to Sri. M T Ramalingayya in letter No: RRT 94-95 dated: 3-6-94 of Tahsildar, North Taluk as per the Government Order No: RD 250 LTD 63 dated: 21-08-63 and Mutation khata and Pahani has been registered to their name as per MR 7: 63-64. The Darakhasthu sanction case of this land has been filed in Writ Petition No: 1570: 64 dated: 16-12-66 and the Darakhasthu sanction has been dismissed in High Court. But, khata and Pahani is continued to the name of Darakhasthu grantee M T Ramalingayya. The said is paying the revenue of the land.

178



Since land grant has been discarded, appealed to dismiss this khata and Pahani.

As per this report, the notice has been issued to Sri. M T Ramalingayya, if he has any explanation about this can submit and informed to attend the enquiry.

In their reply of dated: 23-06-94 of Sri. Ramalingayya has stated as below:-

1. 8-00 acre land in Sy No: 159, Kadabagere Village has been granted in Government Order No: RD 250 LBD 03 dated: 31-03-63. As per this, the khata has been registered to his name and he is paying the revenue to said land and Pahani is his name.
2. It is not correct that Tahsildar has submitted report to Assistant Commissioner to dismiss his khata and made Assistant Commissioner to issued notice in RRTC R 42: 94-95 dated: 15-6-94.
3. If government have to cancel my land grant, it is required to issue another order.
4. Since recently some people have tried to push me out of possession of my land, I have received Injunction order from Munsif court against them. In this background, this case can be closed here.

179 -

~~15~~

ORDER

This case has been examined. The reply submitted by respondents and copy of Government order, Mutation, Pahani and tax paid receipts enclosed are examined.

The land grant made in Government Order No: RD 250 LBD 63 Dated: 21-08-63 has been dismissed in the Writ Petition No: 1570: 1964 dated: 16-12-65. In this background, it is required to consider the respondents have Bagar Hukkm with this land. In this background, it has been ordered by dismissing the khata registered to the name of respondents under Section 25, 67 and 136 as per Land Revenue Act. It has ordered to register the khata of this land to the name of Government. It has instructed to Tahsildar, North Taluk to issue the order.

This order has been pronounced on date: 12-9-94.

Sd/-
Assistant Commissioner
Bangalore Sub division
Bangalore

1801

~~1801~~ =

IN THE HIGH COURT OF KARNATAKA; AT BANGALORE

WP.NO. 535/2022

BETWEEN:

Dr. Vineeth.B.R
D/o Late M.T.Ramalingaiah
Aged about 71 Years
R/at NO.1427, 2nd Cross,
Bandigowda Layout,
Mandya City - 571 401

.... PETITIONER

AND

1. The State of Karnataka
Rep by Secreary
Department of Revenue
Vikasa Soudha
Dr B.R.Ambedkar Veedhi
Bangalore - 560 001.

2. The Deputy Commissioner
Bangalore North
Kempegowda Road
Bangalore- 560 009

3. The Asst. Commissioner
Bangalore North Sub Division
Kempegowda Road
Bangalore - 560 009

4. The Tahasildar
Nelamangala Taluk
Bangalore North
Bangalore- 562 123

5. The Special Tahasildar
Bangalore North Taluk
Bangalore - 562 123.

...RESPONDENTS

**APPLICATION UNDER ARTICLE 226 & 227 OF THE
CONSTITUTION OF INDIA READ WITH ORDER -I RULE
10(2) OF THE CODE OF CIVIL PROCEDURE FOR
IMPLEADMENT**

The applicants most respectfully submit as under:

-181-

2

128

1. The Village Kadabagere erstwhile in the Taluk of Nelamangala, presently it is in the revenue jurisdiction of Bangalore North Taluk. The land bearing Sy.No.159 measuring an extent of 17 Acres 19 Guntas is reserved to provide basic infrastructures to the TEN (10) Villages surrounding to provide Hospital, School, Veterinary Hospital, Reading Room and Play Ground for the children.
2. In the year 1964, some of the well meaning personalities in the village have assailed illegal grant made in favour of strangers, the writ petition and other procedures filed different formers are detailed hereunder:

- a) W.P.No.1570/1964
- b) W.P.No.32578/2019
- c) RTC
- d) O.S.No.204/1994 & O.S.No.124/1994

Copies of the orders passed in the above referred cases are herewith produced and marked at **ANNEXURE-R1 to R3.**

3. The Village Kadabagere is sandwiched between Bangalore Urban metropolitan area and Nelamangala Rural area, presently, the entire lands surrounding Kadabagere has been developed by the private revenue site developers without obtaining necessary conversion and sanctions from the competent authority.

179

182

4. It is submitted that, the land in the revenue jurisdiction of Kadabagere bearing Sy.No.159, as per revenue records the extent 17 Acres 19 Guntas is a Government land (erstwhile Gomala). The Village Panchayath and Government, on the representation made by the respondents of Kadabagere have agreed to make use of the land for public purpose and reserved for the following facilities.

- i. Hospital
- ii. Schools
- iii. Police Station
- iv. Ambedkar Bhavan for Downtrodden Community
- v. Children Play Ground
- vi. Crematorium & for
- vii. Women & Children Re-habilitation

The Representation made by the Villagers with the District Authorities on 03/9/2022 and paper publication is herewith produced and marked at **ANNEXURE-R4**.

5. It is submitted that, the petitioner in the above writ petition claiming as legal heirs of one M.T. Ramalingaiah of Mandya City under Grant Certificate of the year 1963 is before this Hon'ble Court in the above writ petition. The Grant Certificate and subsequent developments are not truly placed before this Hon'ble Court, by suppressing true and correct facts, the petitioner, residents of Mandya have sought writ of certiorari to quash the endorsement dated

183

~~180~~

4

27/4/2021, the original suit filed in O.S.No.394/1998 is ex-parte decree.

6. It is submitted that, the applicants in order to place true and correct facts and to assist this Hon'ble Court to render true justice, leave may be granted to implead as Co-respondents in order to protect and safeguard the Village property from the hands of the fictitious claim made by the petitioner of Mandya, the applicants are necessary parties for effectual adjudication.

WHEREFORE, the applicants most respectfully pray that this Hon'ble Court be pleased to pass appropriate order to implead the applicants as co-parceners, in the interest of justice and equity.

PROPOSED IMPLEADING APPLICANTS:

1. Sri Narasimhaiah

S/o Era Channaiah
Aged about 71 years
R/at Kadabagere Village
Dasanapura Hobli,
Nelamangala Taluk.
Pim:562123

2. The Kadabagere Kriya Samithi

Kadabagere Village,
Dasanapura Hobli
Nelamangala Taluk.
Pim:562123
Represented by its
President



BANGALORE
DATE 30/01/2023

ADVOCATE FOR IMPLEADING APPLICANTS
M. SHIVAPRAKASH

184

IN THE HIGH COURT OF KARNATAKA; AT BANGALORE.

WP.NO.535/2022

BETWEEN:

Sri. Dr. Vineeth .BR

.. PETITIONERS/
Impleading Applicants

AND

State of Karnataka & Others

..RESPONDENTS

VERIFYING AFFIDAVIT

I, Narashimhaiah, s/o Era Chennaiah aged about 71 years residing at Kadabagere Village, Dasanapura Hobli, Nelamangala Taluk-562123 on a visit to Bangalore, do hereby solemnly affirm and state on oath as follows:

1. I state that I am the Impleading Applicant No.1 in the above case. I know the facts and circumstances of the case, the other applicants have authorized me to swear this affidavit, hence, I am swearing the contents of this affidavit.
2. I state that the averments made in application Paras 1 to 6 are true and correct.
3. I state that, the annexure annexed in the application at annexure R1 to R4 are true and correct copies.

VERIFICATION

I, Marasimhaiah, the deponent herein do hereby verify and declare that what is stated above is true and correct to the best of my knowledge, information and belief.

Identified by me

Advocate
Bangalore.

Date: 30/11/2023
No. of corrections

ಕರ್ನಾಟಕ

ಅಧ್ಯಕ್ಷರು
ಕಡಬಗಿರಿ ಕ್ರಿಯಾ ಸಮಿತಿ

185

182

ANNEXURE - R

THIRTYFIVE PAISE

ಮೂವತ್ತೈದು ಪೈಸೆ

पैंतीस पैसे

COPY STAMP

C.R. NO: 8239/AU

By Sri: Venkataramiah,
Petitioner

IN THE HIGH COURT OF MYSORE AT BANGALORE

Dated the 16th day of December 1966

Present

Ind Addl. Civil
Bangalore District
Bangalore

The Hon'ble Mr. Justice T.K. Tukol

and

The Hon'ble Mr. Justice C. Honniah

WRIT PETITION NO. 1570 OF 1964

1. Venkataramanah,
Chairman, Village Panchayati,
Kadabagere, Nelamangala Taluk.
2. K.C. Doddashivanna,
Agriculturist, Kadabagere.
3. M. Ramiah,
Agriculturist, Kadabagere.
4. G. Shivanna,
Agriculturist, Kadabagere.
5. Kalappa,
Agriculturist, Kadabagere.

...Petitioners

(By Sri S.K. Venkataranga Iyengar;
SRI H.N. Narayan and Sri S. Krishniah
Advocates for the Petitioners)

186

103



-2-

1. The State of Mysore
by its Chief Secretary,
Vidhana Soudha,
Bangalore-1.
2. M.T. Ramalingiah,
Asst. Professor,
Govt. Law College, Bangalore. .. Respondents

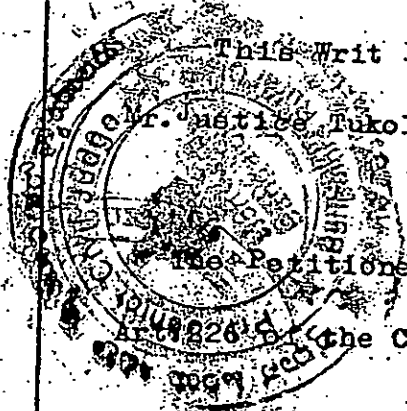
(By Sri M. Rangaswamy for High Court Special
Government Pleader for 1st and Sri K. Rama
Subbaiah Advocate for 2nd Respondent)

Writ Petition under Article 226 of the Constitution
of India with an affidavit praying that in the circumstances
stated therein this Court may be pleased to quash the
Government Order No. RD 250 LBD 63 dated 21.8.1963 (under
which eight acres of land were granted to the Second
Respondent) and to quash the grant of land etc.,

This Writ Petition coming on for hearing this day,
Mr. Justice Tukol made the following:-

ORDER

The Petitioners have approached this Court under
Article 226 of the Constitution for a Writ of certiorari



or

167

1800

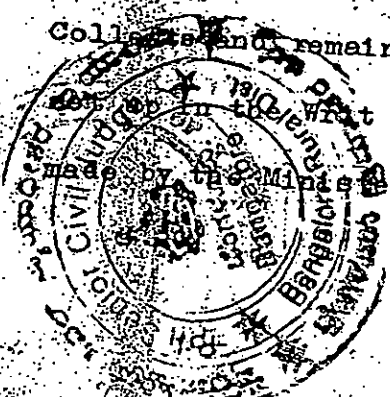


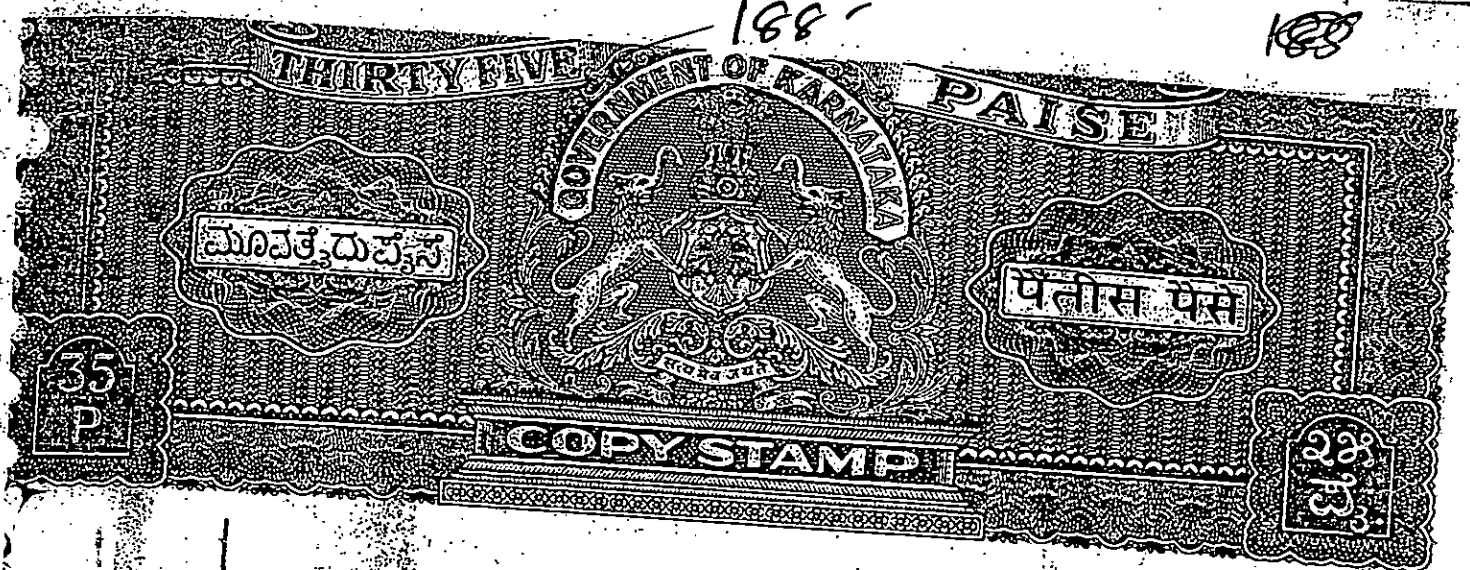
-3-

or other appropriate writ quashing the Government Order No.RD.250 LDB 63, dated 21st August 1963, under which eight acres of land were granted by the State Government (respondent No.1) to the second respondent at an upset price of Rs.30/- per acre.

2. The main grievance of the petitioners is that Survey No.159 of Kadabagere village has been assigned as gomal land for free pasturage for the village cattle and that the same was being used by the villagers for about 1500 heads of cattle owned by different persons in the village. They have stated that they had constructed a 'gokatte' at a cost of about Rs.10,000/- to Rs.12,000/- for the use of such cattle. But that fact has been disputed by the respondents, though respondent No.1 has admitted in his counter affidavit that there is only a shallow pit in that Survey Number in which the rainwater collects and remains for some time. The ground of attack made by the first Petition is that the grant had been made by the Minister for Revenue and as such was contrary

to

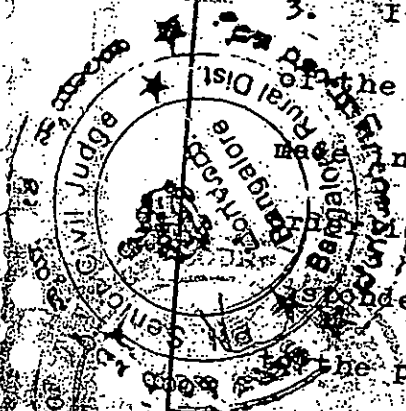


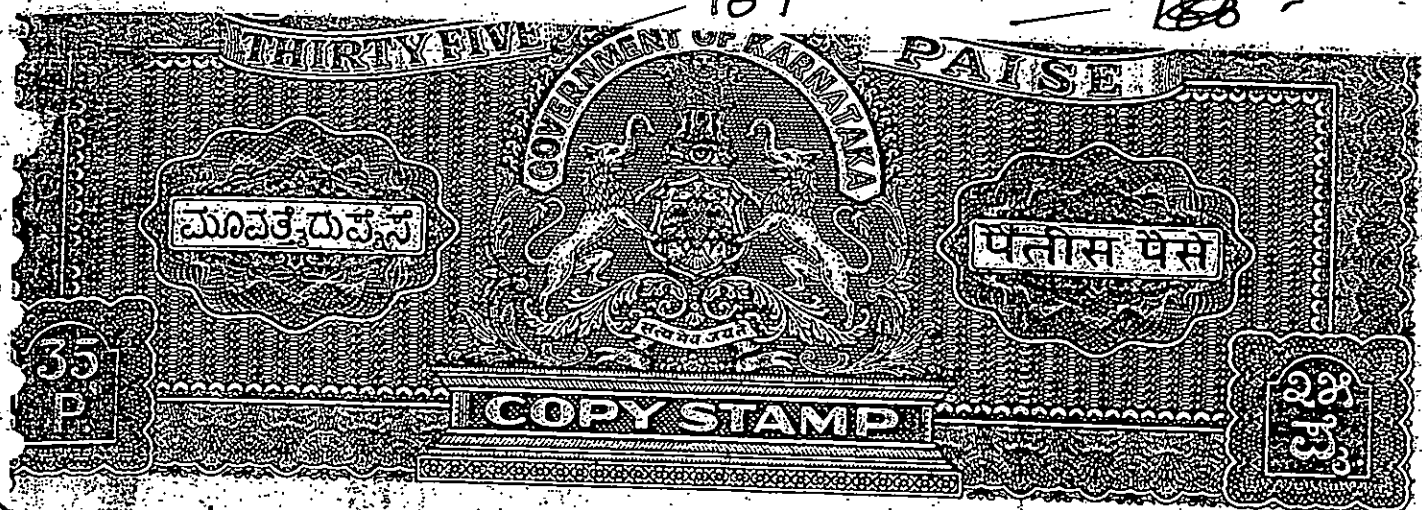


-4-

to the land Grant rules. According to the petitioners, the grant was without jurisdiction and was liable to be set aside. Both the respondents have asserted that the grant made under the impugned order was a valid one and that the transgression of the Rules complained of was inconsequential. While the first respondent has sought to defend the order on the ground that it was an administrative order excluding the jurisdiction of this Court from interference, the second respondent has sought to defend it on the ground that the order passed by the Government was in accordance with the recommendations made by the Divisional Commissioner who had been approached in appeal against the order of rejection passed by the Deputy Commissioner, Bangalore.

3. It is unnecessary to enter into the various details of the circumstances under which the grant came to be made in favour of respondent No.2. A copy of the Annexure IV to the counter affidavit filed by respondent No.2 and the preamble to that order refers to the previous correspondence and orders which ultimately culminated





-5-

culminated in the making of the impugned grant. It is clear from that order that respondent No.2's prayer for grant of twelve acres of land out of Survey No.159 of Kadabagere village was rejected by the Deputy Commissioner on July 16, 1962 on the ground that the gomal for the village cattle was insufficient. Respondent No.2 then presented a petition to the State Government stating that he was the holder of the adjacent land and that the land applied for should be granted to him as he intended to plant fruit-bearing trees. The fact that a similar application had been made and rejected by the Deputy Commissioner was mentioned in that application; it was styled is an appeal against the order of the Deputy Commissioner. The Government, however, returned the petition instructing respondent No.2 to approach the proper authority. The same application having been presented to the Divisional Commissioner, the later recommended the grant of eight acres of land in favour No.2 an upset price of Rs.30/- per acre, as in his view though the gomal for the village cattle was insufficient,



-6-

insufficient, the survey number was of no use as it was full of rocks and stones. It was thereafter that the first respondent passed the following order on August 21, 1963.

" Sanction is accorded to the appropriation of 8 acres (eight acres) of land out of S.No. 159 of Kadabagere village, Nelamangala Tq. and to its grant in favour of Sri. M.T.Ramalingiah at an upset price of Rs.30/- (Rupees thirty only) per acre for growing fruit trees."

A copy of this order was forwarded to the Deputy Commissioner and in due course a saguvali chit was executed by respondent No.2. It is unnecessary to refer to certain allegations made in the Writ petition against the Revenue Minister, because they are not very relevant for determination of the point at issue.

However, we may refer to the following portion of the affidavit filed by the Minister:

"..This



-7-

"... This impugned order was passed by me after perusal of the records on the merits of the case. The only consideration which weighed most in his favour was that he was an educated youngman whose case deserved sympathetic consideration. x x x."

It can be, therefore, assumed as an accepted fact that the order of grant was made by the Minister, though the same had been recommended by the Divisional Commissioner.

4. It is under these circumstances that we are called upon to pronounce on the legality of the grant. In exercise of the powers conferred by Sec.233 of the Mysore Land Revenue Code, 1888, the Government of Mysore promulgated the Mysore Land Revenue (Amendment) Rules, 1960 on May 10, 1960. Rule 42 deals with the powers of the different Revenue Officers in respect of grant of lands, having reference to the nature and extent of land proposed to be granted. Sub-rule (2) which is relevant, empowers the Assistant Commissioner



-8-

in charge of a Taluka or any Assistant Commissioner appointed by the Government to a District, to whom the duties and powers of the Deputy Commissioner as regards the grant of unoccupied lands are assigned, to grant eight acres of dry land, provided the market value of such land including the value of trees thereon does not exceed Rs.1,000/-. Sub-rule (3) defines the limits on the powers of the Deputy Commissioner to make such grants. Sub-rule (4) which was referred to during the course of his arguments by the learned counsel for respondent No.2, lays down that "no grant of land shall be made by the Deputy Commissioner or other officer, in any case other than those specified above, or in excess of the extent prescribed above except with the previous sanction of the Government." It would be obvious from this rule that it imposed two limitations on the powers of the authorities mentioned in the earlier clauses of Rule 42. - (1) the previous sanction of the Government has to be obtained for making a grant if it is a case other than the one specified in the aforesaid clauses;

(2) the previous sanction of Government is also necessary where



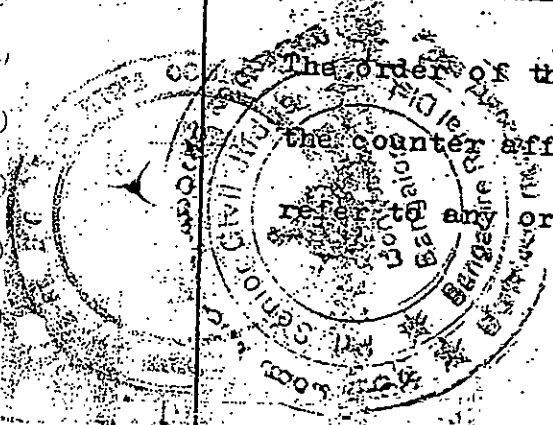
-9-

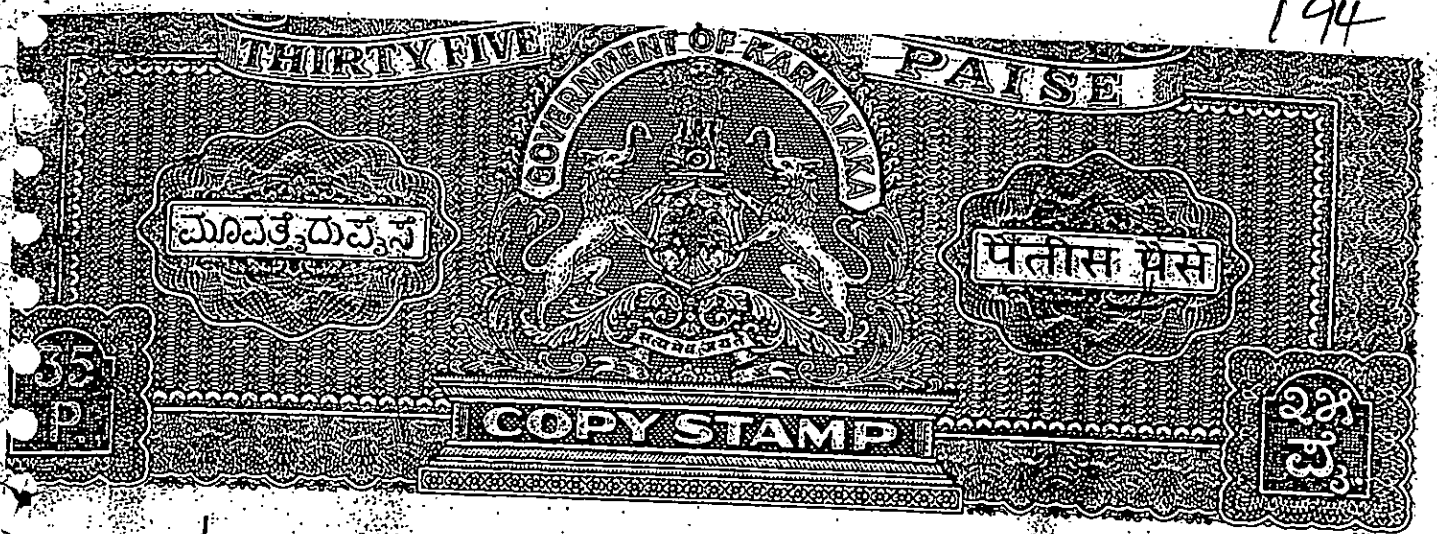
where the grant to be made is in excess of the extent prescribed above. Rule 43 prescribes the procedure for disposal of lands for cultivation. The only other relevant rule is Rule 43(L) which specifies the powers of the Government under the Rules. It reads:-

" Notwithstanding anything contained in the preceding Rules the Government may suo motu or on the recommendation of the Divisional Commissioner or the Deputy Commissioner, if it is of opinion that in the circumstances of any case or class of cases it is just and reasonable to relax any of the foregoing provision of these Rules, it may by order direct such relaxation subject to such conditions as may be prescribed in the order, and thereupon land may be granted in such a case in accordance with such direction." (the underlining is ours).

The order of the State Government at Annexure IV to the counter affidavit of respondent No.2 does not refer to an order relaxing the operation of any of

the





-10-

the ~~Land~~ Grant Rules. In the absence of such order of relaxation, the impugned grant will have to be struck down in view of the decision of this Court in HANUMANTHA v. HANUMANTHA (1963(1) Mysore Law Journal, 17). In that case four acres of land had been granted by the Government without passing any order relaxing the Rules. The grant was struck down on the ground that the power to grant four acres of dry land vested in the Tahsildar and that the grant made by the Government was not within its competence as there was no relaxation of the Rules in exercise of the powers under Rule 45(L). The Learned Advocate for respondent No.2 read the following passage as supporting his contention that it is not necessary that the order of grant should expressly contain an order relaxing the Rules:-

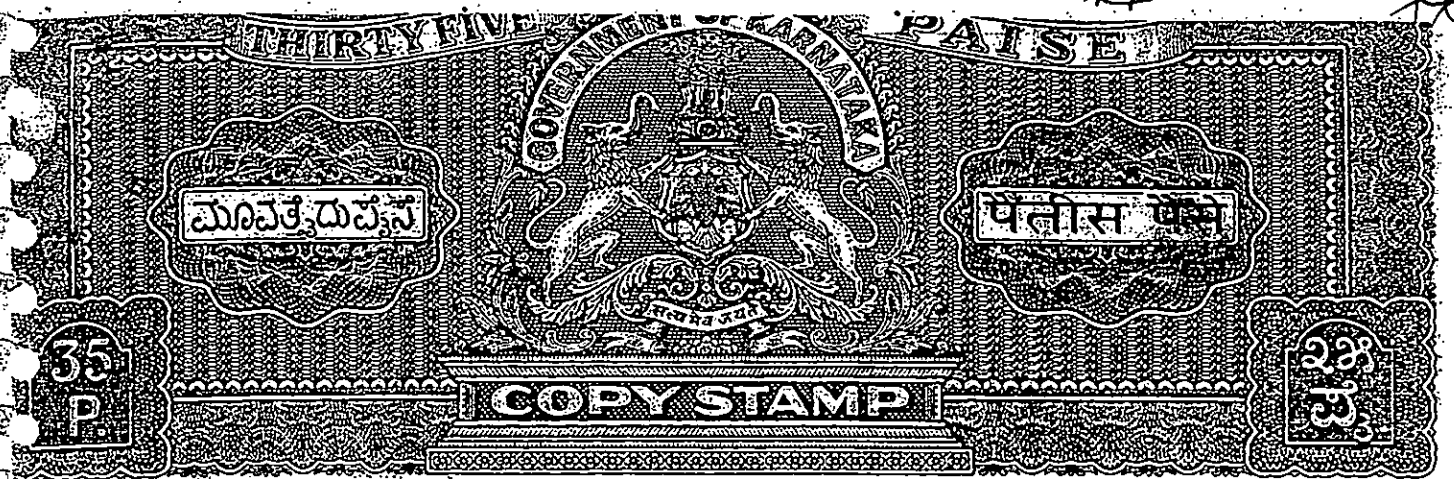
"... The clear meaning of this rule is that that power may be exercised by the Government if it is otherwise permissible to do so only after the application of their mind to the question whether there are circumstances in



195

KPD

18

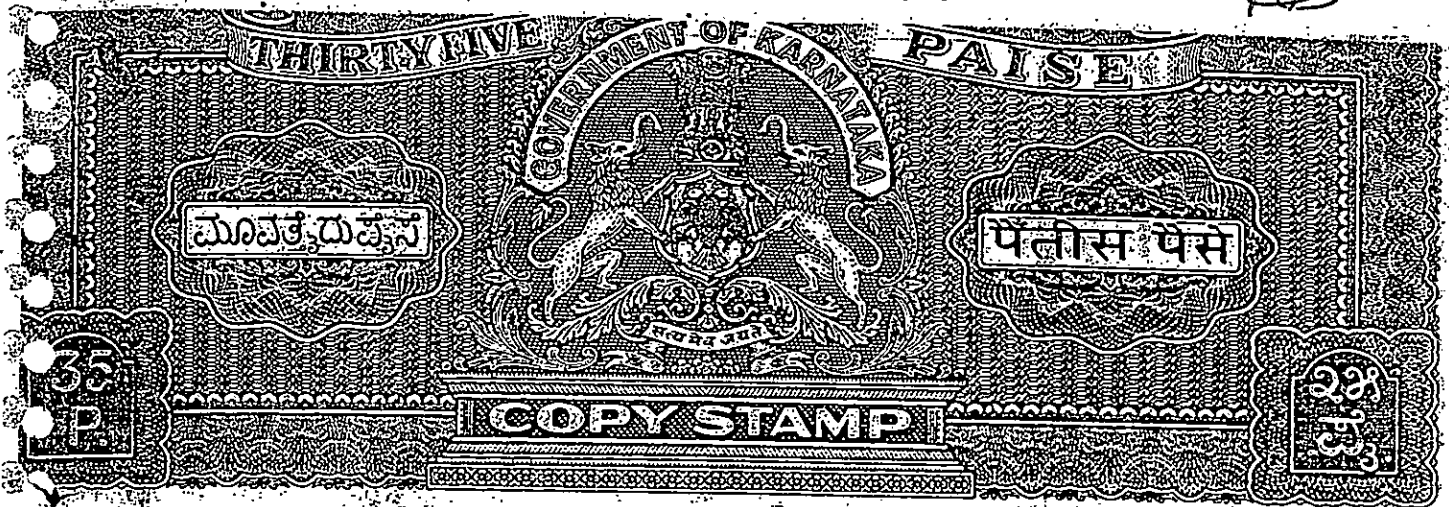


-11-

in a given case or class of cases which justify the relaxation of the rules. If I had been satisfied that there was such application of the mind on the part of the Government to the question whether rule 42 had to be relaxed which was the rule which had to be relaxed in this case before a grant could be made to respondent 1, I might have found very little difficulty, unless the relaxation, if the Government had made it under rule 43-L, had been challenged on some other ground, to come to the conclusion that the grant made to respondent 1 was one made pursuant to a relaxation made under Rule 43-L. x x".

We are unable to understand how the aforesaid passage can be of any assistance to respondent No.2. All that has been stated therein is that if there had been sufficient indication in the order that the Government had applied its mind to the circumstances which justify the relaxation of the Rules, the grant would be upheld unless the order of relaxation made itself was challenged. The rule itself presents no difficulty for interpretation. To confine ourselves only to the relevant ground,



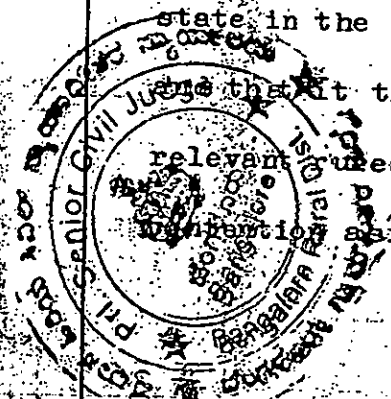


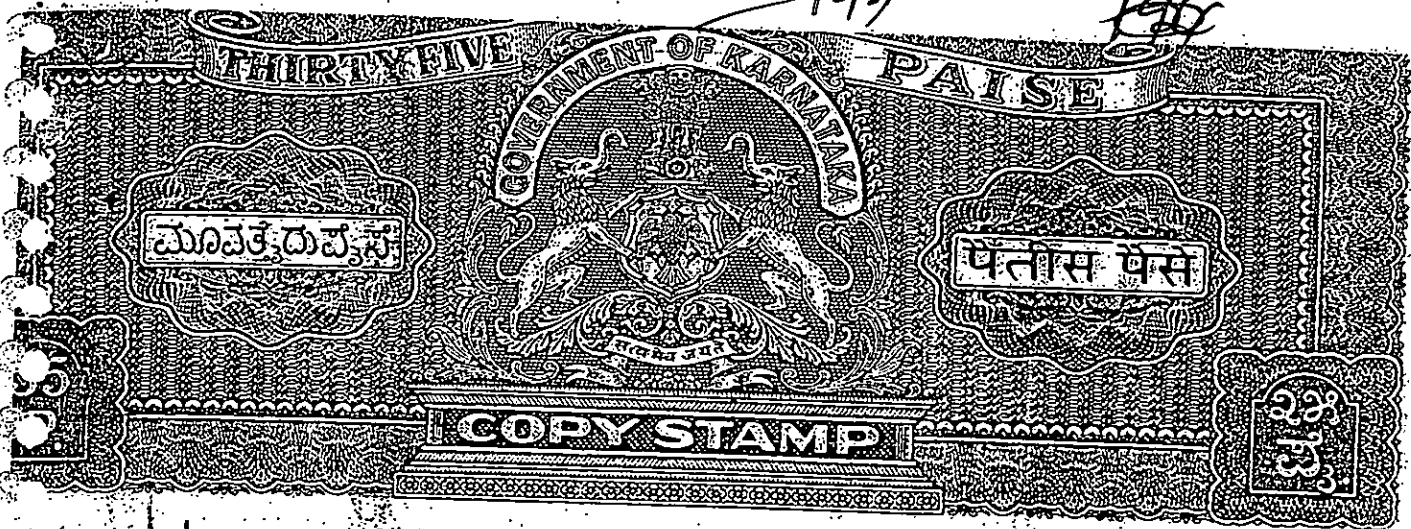
-12-

ground, the following requirements are to be satisfied before the Government itself could exercise the power to make the grant delegated by Rule 42 to various authorities. They are - (1) the Government should be of the opinion that in the case before them or in the class of cases before them, it is just and reasonable to relax any of the foregoing provisions of the Rules; (2) If it is of such opinion, then it has to direct by an order that such relaxation was being made subject to the conditions to be specified therein; and (3) it is only "thereupon" that land may be granted in a particular case or class of cases in accordance with such direction. In the present case, the order gives no clue to screw out any such opinion and order on the part of the Government.

6. The learned Government Pleader however submitted that it was not necessary for the Government to expressly state in the order that it had formed such an opinion that it thought it just and reasonable to relax the relevant rules. We have no hesitation in rejecting this contention as it goes counter to the express words

contained





-13-

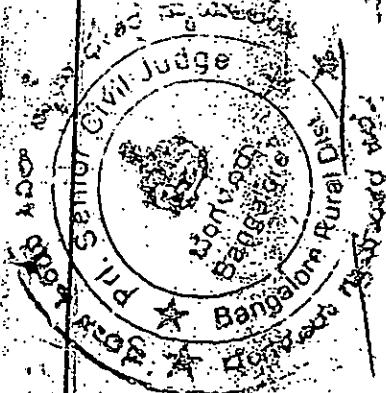
contained in Rule 43(L). The relaxation of the Rules has to be by an order; the order has to specify the conditions subject to which the relaxation has been made; it is only after such an order has been passed that the Government gets jurisdiction to make the grant itself. This conclusion of ours is borne out by the use of the word 'thereupon' occurring in the last clause of that Rule. In the present case, none of the requirements of Rule 43(L) having been satisfied, we have no doubt that the grant deserves to be struck down on the basis of the decision of this Court already referred to.

7. In this context, we would like to refer to the following proposition laid down by Rule 42 itself:

It states -

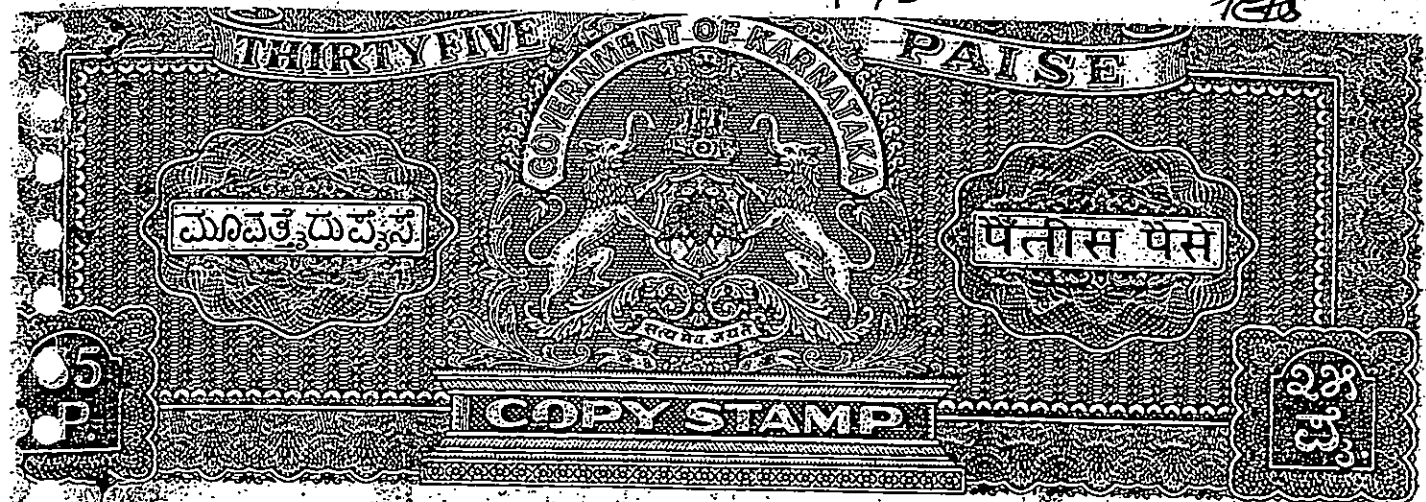
" The powers of the different Revenue Officers as regards the grant of land under these rules shall be as follows and any grant made in contravention of these provisions shall be void, and any person occupying any land under such a grant shall be dealt with under Section 59 of the Code."

The



198

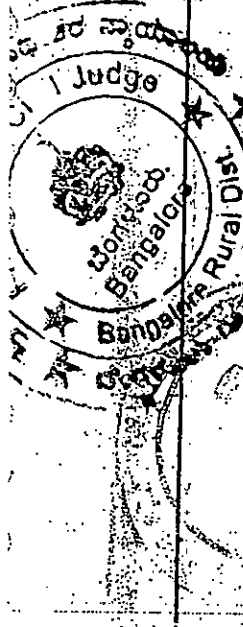
198

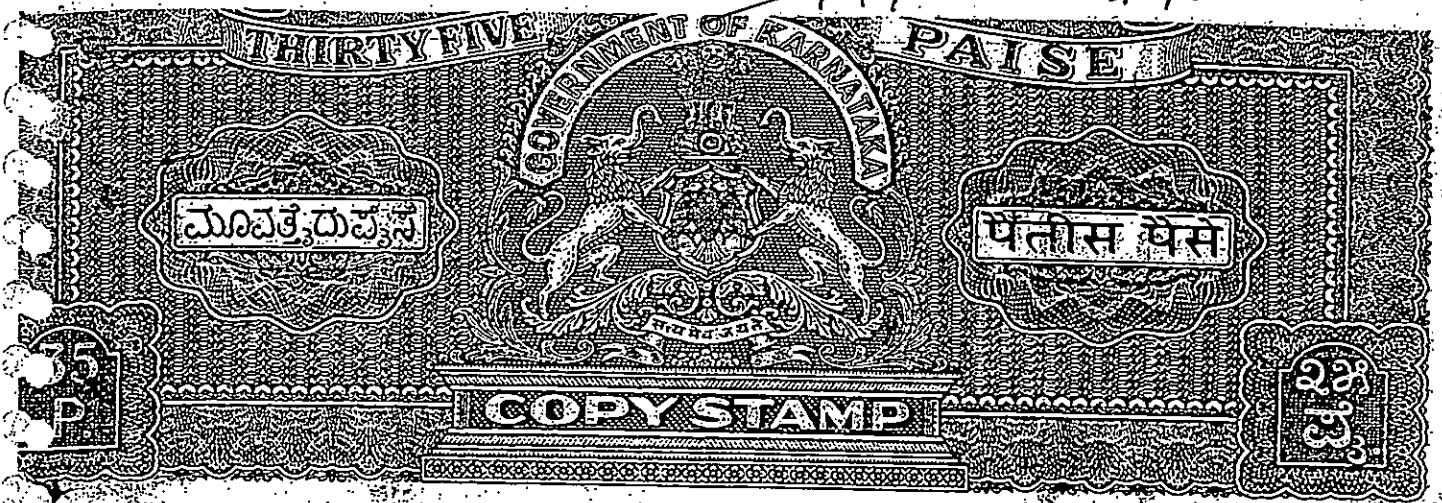


-14-

The ratio of this provision is that a grant made by any of the Revenue Officers is contravention of the Rules is void and the grantee occupying any land in pursuance of any such grant not only renders himself liable to be evicted by the Deputy Commissioner but also to pay such penalties for unauthorised occupation as are specified in Sec.59 of the Code. We are unable to see how a grant made by Government "without jurisdiction" can clothe the grantee with any valid right to occupy or cultivate the land.

8. It was contended on behalf of respondent No.2 that the grant was made by the Government not in exercise of its power under Rule 43(L) but that the Government merely accorded its sanction to the recommendation made by the Divisional Commissioner who was the appellate authority. The rules themselves do not provide for any appeal against the order of rejection passed by the Tahalidar, Assistant Commissioner or the Deputy Commissioner. Sustenance for this argument was however found from Sec.210 of the Mysore Land Revenue Code which lays down that "in the absence of any express provision of this Act or of any





-15-

any law for the time being in force to the contrary, an appeal shall lie from any decision or order passed by a Revenue Officer under this Act, or any other law for the time being in force, to that officer's immediate superior authority, whether such decision or order may itself have been passed on appeal from a subordinate officer's decision or order or not."

9. We have therefore to see whether the grant could be sustained on this ground. If respondent No.2 had approached the Divisional Commissioner as the appellate authority, Sec.210 of the Mysore Land Revenue Code requires him to confirm or set aside the order of the Deputy Commissioner and to pass an order making a grant in the event of his allowing the appeal. In the present case, the Divisional Commissioner neither allowed the appeal nor rejected it. Mr. Ramasubbiah the learned Counsel for respondent No.2 however submitted that the Divisional Commissioner made the recommendation to the State Government and that the seal of approval set by the State Government was Tantamount to an order passed by

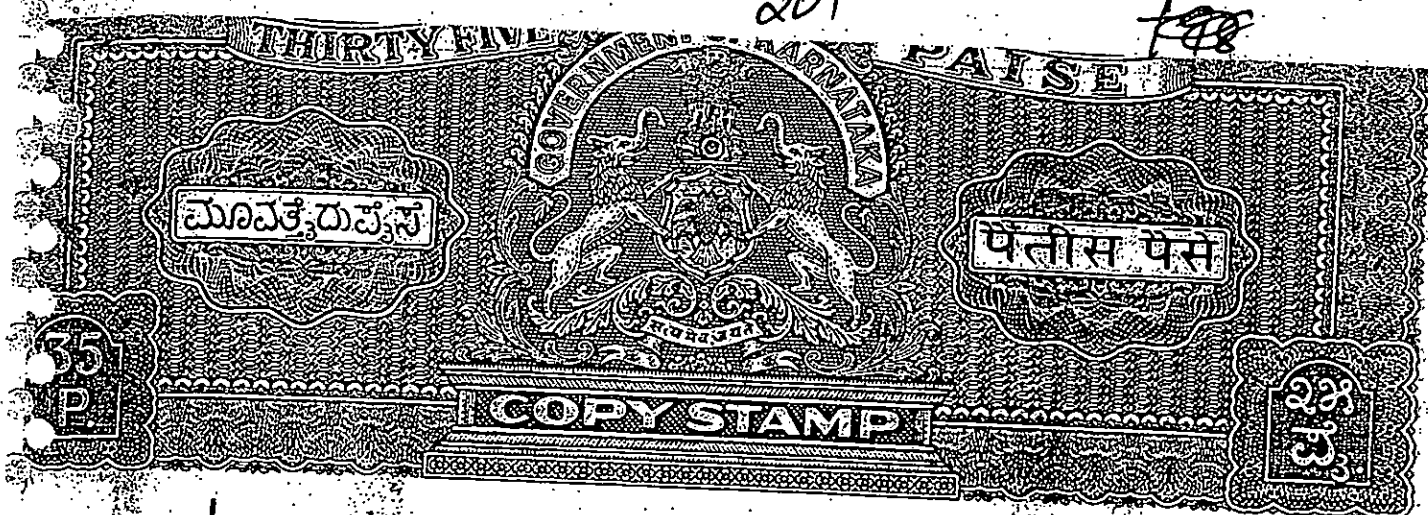


-16-

by the Divisional Commissioner in appeal. There is no substance in this argument. In making his recommendation, the Divisional Commissioner abdicated his powers and jurisdiction, while the Government acted without jurisdiction in making the grant as it exercised a power which is not vested in it. Considered therefore from any point of view, the impugned grant deserves to be struck down.

10. It was next contended by the learned counsel for respondent No.2 that the State Government had power to order appropriation of eight acres of land and that the subsequent recommendation by the Divisional Commissioner was consistent with the provisions of the Mysore Land Revenue Code. In this connection our attention was drawn to Secs.36 and 39 of the Code. The learned Government Pleader appearing for respondent No.1 has also relied upon these Sections to support his contention that making a grant of land was an administrative act not amenable to the writ jurisdiction of this Court. He further submitted that in the absence of any lis, the Government should be deemed to have passed the order purely in exercise

of



-17-

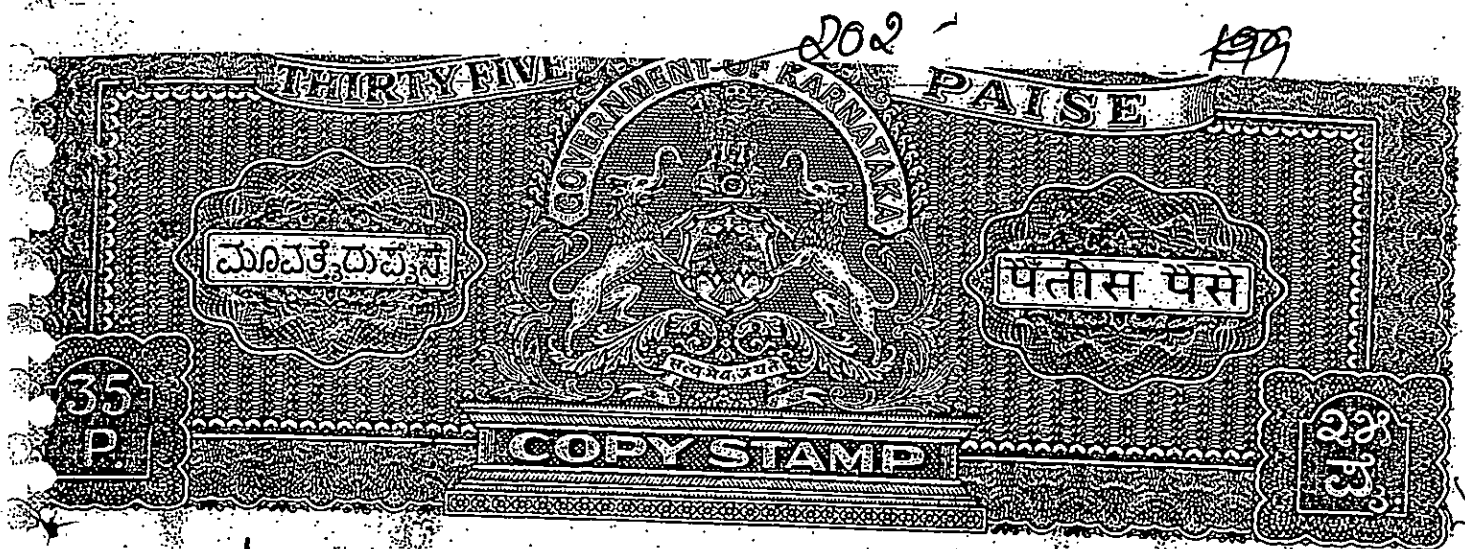
of its administrative function and that the said order cannot be called in question by the Petitioners.

11. Now we proceed to examine both these contentions simultaneously as they are interconnected and involve consideration of the provisions contained in Section 36, 39 and 40 of the Mysore Land Revenue Code. Section 36 ^{lays} ~~lays~~ down in its first part that public roads, lanes and paths, bridges etc., and lands which are not the property of individuals or of aggregates of individuals shall be the property of the Government. The latter portion of this Section is material and we therefore quote the same:-

"... it shall be lawful for the Deputy Commissioner subject to the orders of the Revenue Commissioner to dispose of them, in such manner, as may be authorised by general rules sanctioned by Government, subject always to the right of way, and all other rights of the public or individuals legally subsisting."

It is manifest that the power to dispose of Government

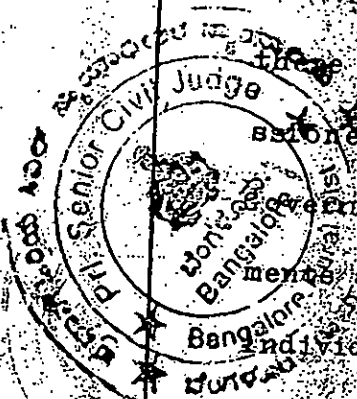
land

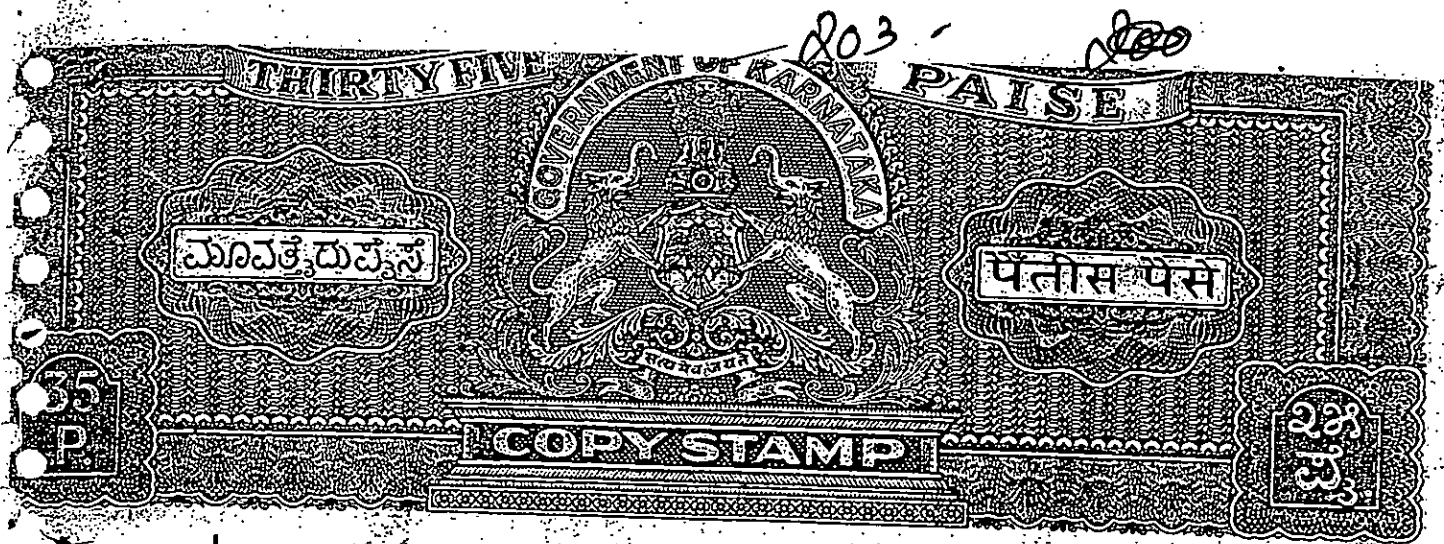


-18-

land is vested in the Deputy Commissioner. This power is subject to the orders of the Revenue Commissioner; besides, the order of disposal has to be in accordance with the Rules sanctioned by the Government and secondly the grant will always be subject to the right of way and all other rights of the public or individuals legally subsisting. Section 39 empowers the Deputy Commissioner and the Survey Officers named therein to set apart lands - the property of the Government of the type mentioned in Sec. 36 - for free pasturage for the village cattle, for forest reserves or for other public or municipal purposes. It has also been expressly laid down in the last clause of this Section that in the disposal of land under Section 36 due regard shall be had to all such special assignments.

12. The legal position that can be deducted from these two Sections is that even though the Deputy Commissioner has power to make grant of lands vested in the Government, he has to take notice of prior special assignments and subsisting rights either of the public or of individuals. The power vested in the various authorities mentioned

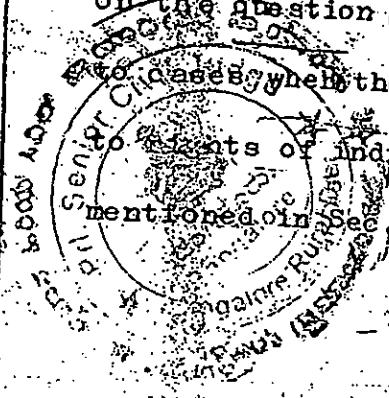


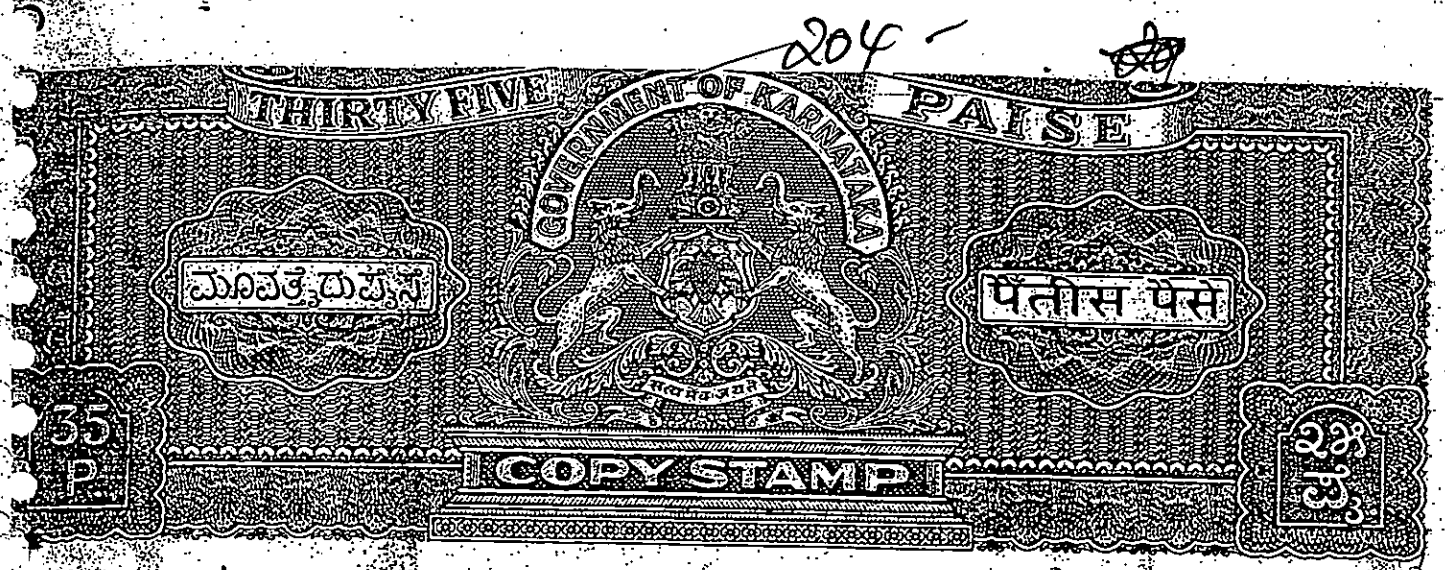


-19-

mentioned in Rule 42 is a statutory power. Even if the Government exercises the power of making a grant under Rule 43(L) that too is a statutory power exercisable in conformity with the Rules and the directions contained in the order relaxing the provisions of Rule 42 in a particular case or class of cases. If therefore a statutory authority exercises its power in derogation of Rules governing or regulating that power, or, if as in the present case the Government exercised its power without conforming to the mandatory requirements of Section 43(L), any action or grant so taken or made will not be legal and cannot be countenanced by courts of law when they are questioned before them.

The only other point that remains to be considered is whether there is any lis involved in a proceeding taken for making such grant. We do not desire to pronounce on the question generally, but would like to confine ourselves to cases where the land proposed to be granted is subject to rights of individuals or group of individuals as mentioned in Sec. 36 and 39 of the Code. It is not disputed -
and



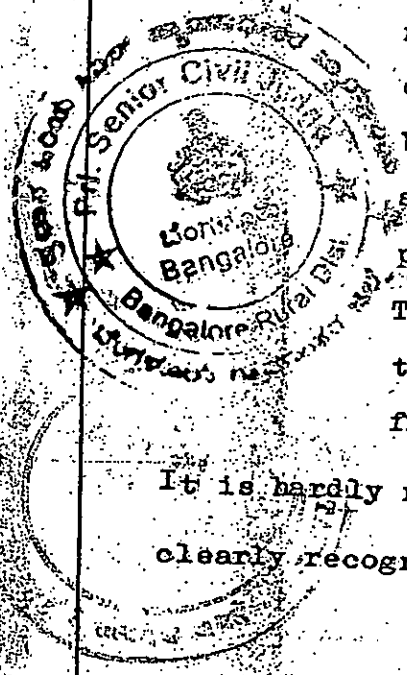


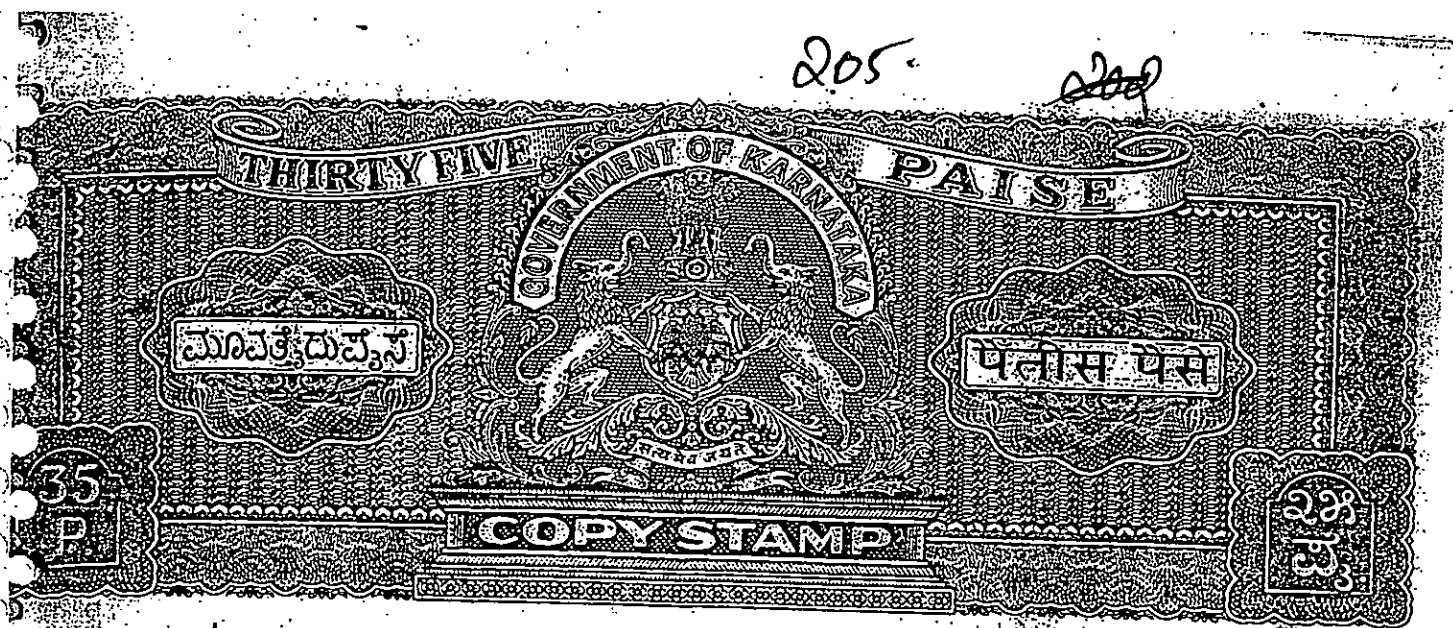
-20-

and in fact it is made clear from the records - that Survey No.159 of Kadabagere village is a gomal land reserved for free pasturage of the village cattle. What is the nature of the right which the villagers possess in such land has been recognised in Sec.40 of the Mysore Land Revenue Code. It reads -

" The right of grazing on free pasturage lands shall extent only to the cattle of the village or villages to which such lands belong or have been assigned, either by custom or by an express order of the Survey Officer or the Deputy Commissioner, and shall be regulated by rules to be made from time to time, either generally or in any particular instance, prescribed by the Deputy Commissioner, subject to such general rules, if any, as may be prescribed by the Revenue Commissioner. The Deputy Commissioner's decision as to the said right of grazing shall be final."

It is hardly necessary to point out that this Section clearly recognises the rights of grazing on free pasturage lands

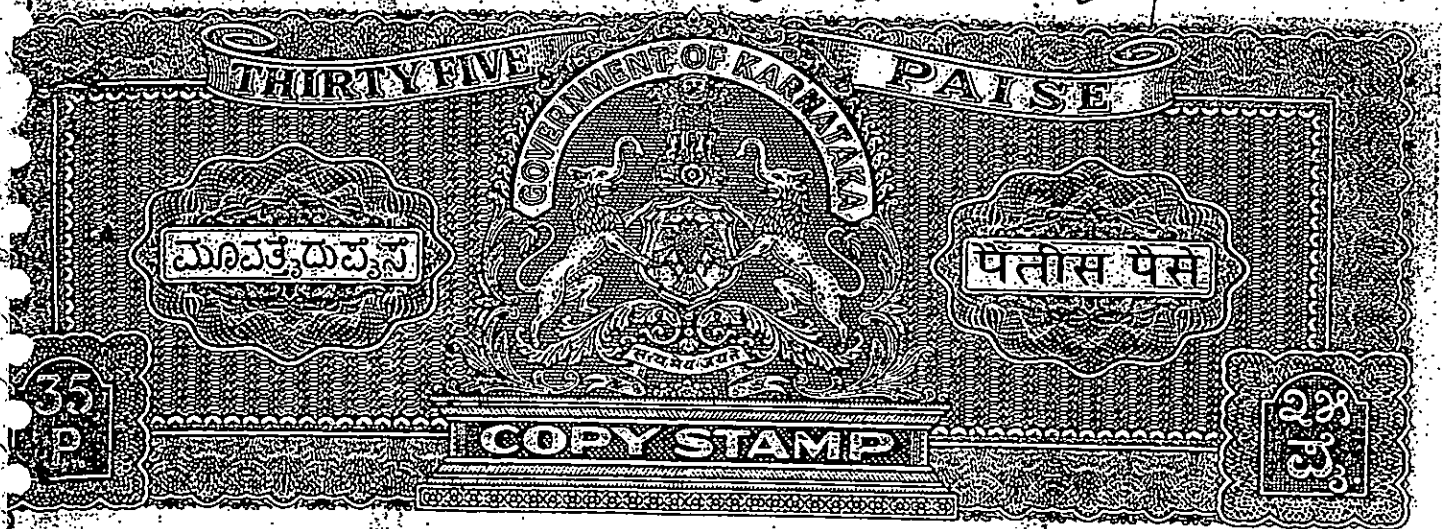




-21-

lands of cattle belonging to a particular village where they have been assigned either by custom or by express order of the Survey Officer or Deputy Commissioner. It cannot therefore be denied that the residents of such a village have got a subsisting right. They can therefore oppose or put forward their claims when any portion of such land is sought to be diverted for any other purpose. In CHIKKAHANUMIAH AND OTHERS v. STATE OF MYSORE AND OTHERS (Writ Petition No.1961 of 1963) decided on September 30, 1965, this Court held that villagers have a right to graze their cattle on the gomal lands of their village and have also a right to be heard in the matter before any order of disposal of the said lands is made depriving them of the right of pasturage. In support of this conclusion, their Lordships quoted the following passage from an earlier decision in Writ Petition No.294 of 1957 ..

" Sec.40 of the Land Revenue Code gives a right to the villagers to have a free pasturage of their cattle on the lands

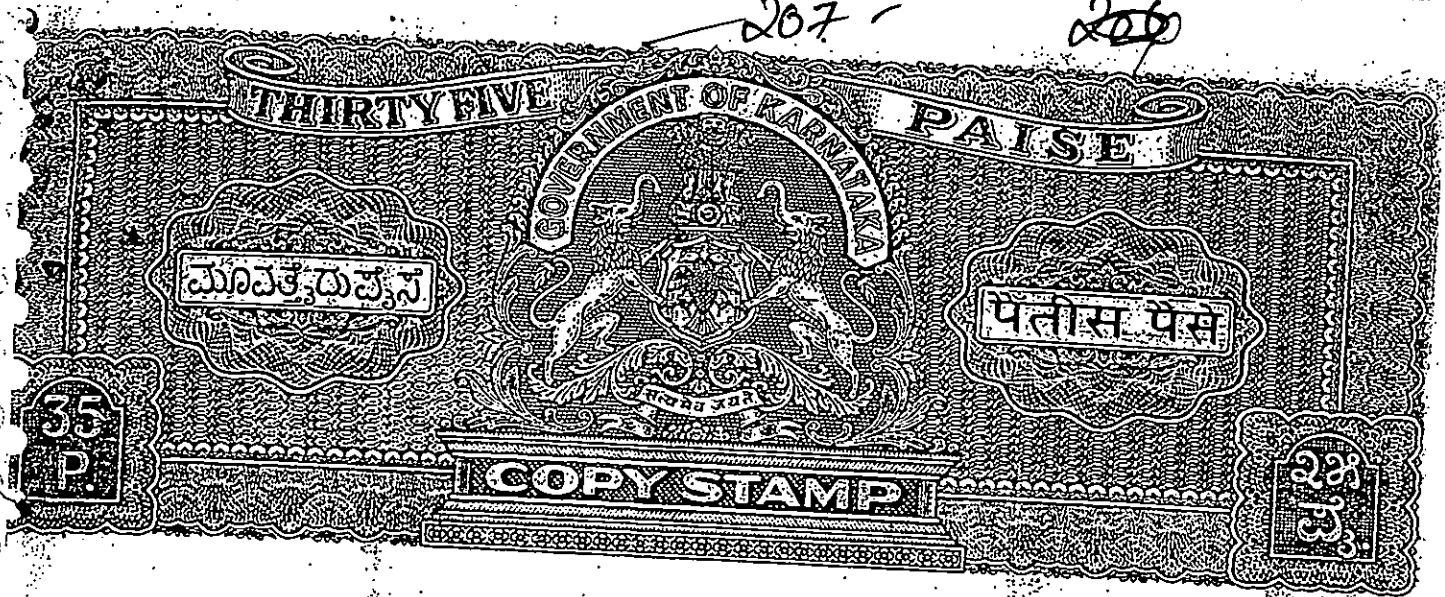


lands of the village which have been assigned for that purpose. It is clear therefore, that lands having been once assigned for the purpose of pasturage, a right of grazing on those lands is created in favour of the villagers. The villagers, therefore, have a say in the matter and it would be inappropriate to make any order without hearing the villagers."

We are quoting this passage only to indicate that when a person applies for grant of land, the whole or part of which is reserved for public use or purpose, or is subject to any kind of right of an individual or group of individuals, any proceeding taken for deciding whether a grant should or should not be made, will necessarily involve a lis and the power exercisable in this regard will be of a quasi-judicial nature.

14. Our reasons for holding that such a proceeding is quasi-judicial in nature are - (1) we have shown above that the proceeding involves consideration of rights of individuals or group of individuals subsisting on such land; (2) Rules 41 to 43-M relating to the

making



-23-

making of grant of lands prescribed a procedure requiring the authority making the grant to take account of the numerous factors enumerated therein. He has to consider the nature of the land, the existence of trees and the market value of the same. He has to bear in mind the position of the applicant as mentioned in Rule 43-C. He has to respect the order of priorities indicated in Rule 43-F. Lastly, he has to decide upon the condition or conditions mentioned in Rule 43-G to which the grant shall be subject. (3) Any order passed by him shall be subject to appeal provided by Sec.210 of the Code.

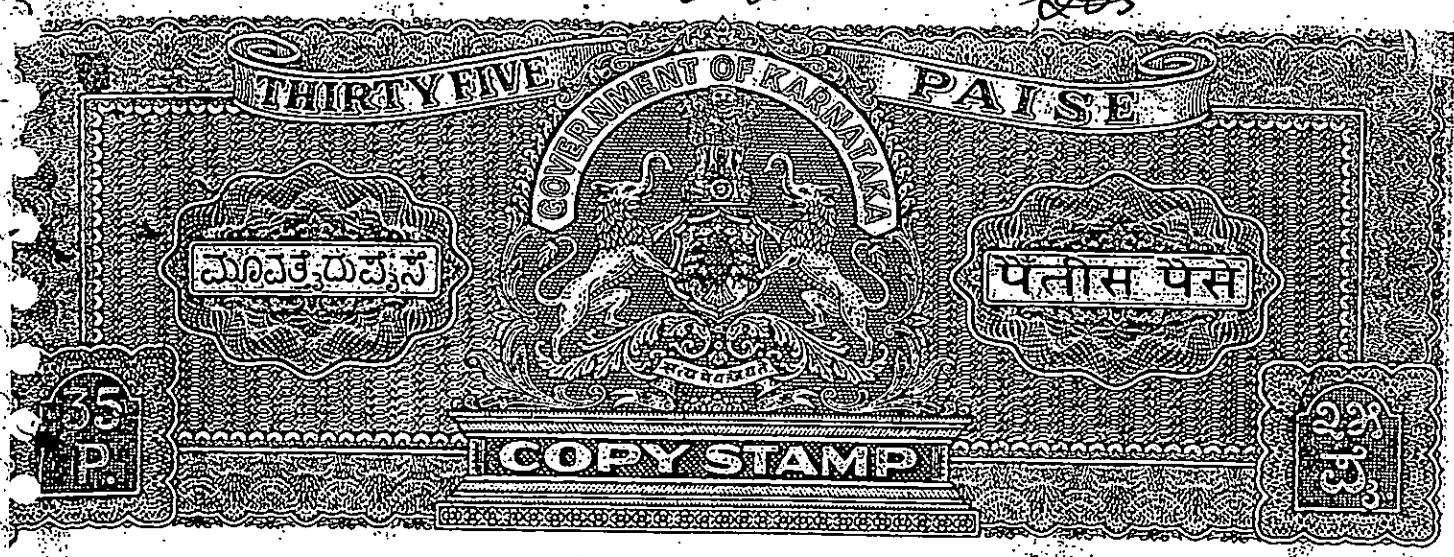
15. We may incidentally mention that the learned Government Pleader has drawn our attention to Art.298 of the Constitution to Support the contention that the grant made by the Government is an executive act. That Article lays down -

" The executive power of the Union and of each State shall extend to the carrying on any trade or business and to the acquisition, holding and disposal of property and the making of contracts for any purpose: Provided.

Produced for on the	Applicant told to appear to receive copy on the	Copy delivered on the
Produced on the to produce	Applicant appeared to receive copy on the	Copied by
by the	Copy ready on the	Examined by
Copying Sheets supplied on the		
Additional sheets		

208 -

209



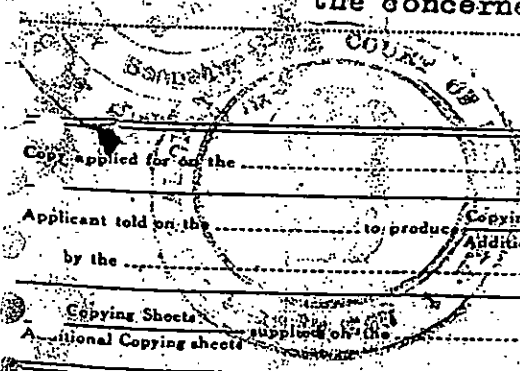
-24-

Provided that -

(a) x x x x

(b) The said executive power of each State shall, in so far as such trade or business or such purpose is not one with respect to which the State Legislature may make laws be subject to legislation by Parliament."

This Article was substituted in place of the original by the Constitution (Seventh Amendment) Act, 1956, to make it clear that the Union Government and the State Governments are competent to carry on any commercial or industrial undertaking, to hold, acquire and dispose of property, or make contracts irrespective of the fact that the matter is within the legislative competence of the Union or the State as the case may be. This executive power of the Union and of the State will be subject to legislation by the State in case the Union carries on the concerned activity in any State, while any activity carried

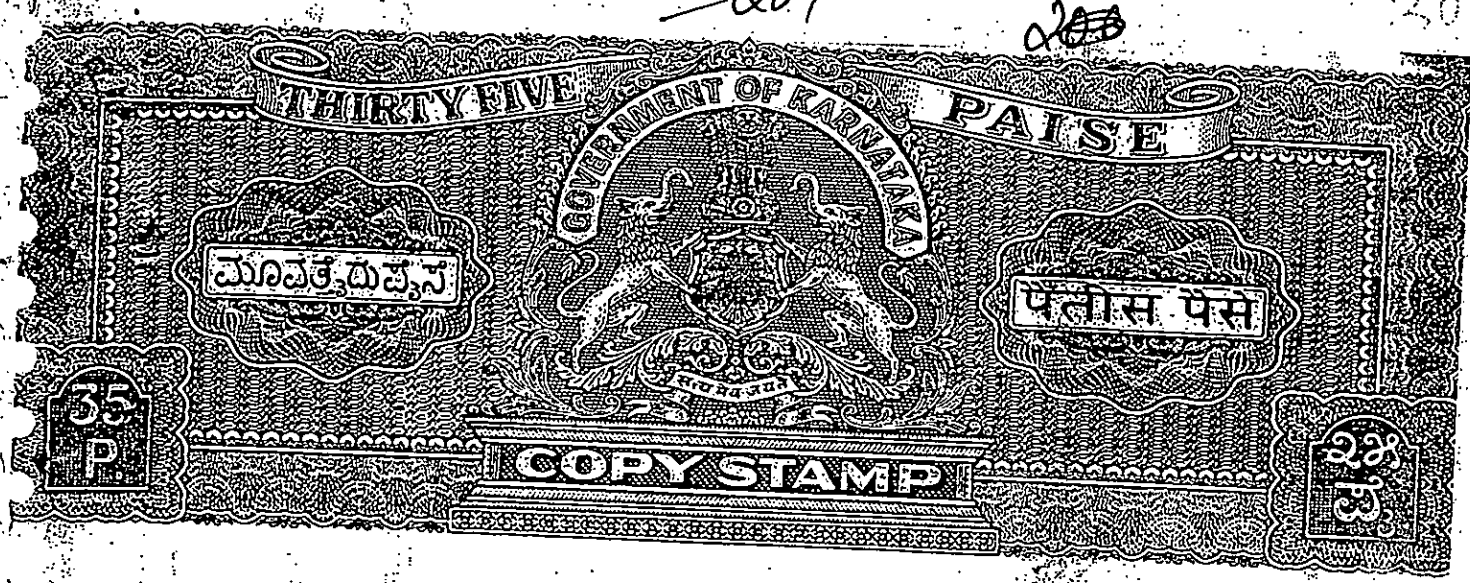


Copy applied for on the _____	Applicant told to appear to receive copy on the _____	Copy delivered on the _____
Applicant told on the _____ to produce _____	Applicant appeared to receive copy on the _____	Copied by _____
by the _____	Copy ready on the _____	Examined by _____
Copying Sheets _____		
Additional Copying sheets _____		

-209-

203

30



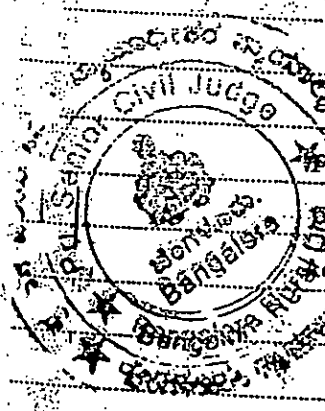
-25-

carried on by a State will be governed by the law made by the Parliament is so far as such trade or business falls outside the legislative competence of the State Legislature. This Article is not applicable to disposal of land which is covered by Entry No. 18 of Legislative List II of Schedule VI of the Constitution. We have already pointed out the relevant provisions of the Mysore Land Revenue Code and the Rules framed under Sec. 233 to show that the proprietary rights of the State in Lands and the power of the Government to make grant of such lands are matters governed by statutes and rules. power has therefore to be exercised in conformity with the provisions of the Code and of the Rules. As already stated, the grant made in the present case is not in conformity with the Rules and has therefore to be struck down.

16. For these reasons, we allow the writ petition and issue an appropriate writ quashing the impugned order passed by the first respondent on August 21, 1963. The petitioner shall get his costs from respondent No. 1. Advocate's Fee Rs. 100/-.

Sd/-T.K. Tukol,
Judge.

Sd/-C. Honniah,
Judge.



MEMORANDUM

Copy delivered on the	Applicant told to appear to receive copy on the	Copy delivered on the
Applicant told on the to produce Copying sheets Additional sheets	Applicant appeared to receive copy on the	Copied by
Copying Sheets supplied on the Additional Copying sheets	Copy ready on the	Examined by

IN THE HIGH COURT OF KARNATAKA; AT BANGALORE.

(ORIGINAL JURISDICTION)

WRIT PETITION No. 32578/2019

BETWEEN:

Kadabagere Kriya samithi®
O/at. Kadabagere Village,
Dasanapura Hobli,
Bangalore North Taluk.
Rep by its Vice President
H.K Govindaraju
Aged about 60 years

...PETITIONER

AND

1. The State of Karnataka
Rep. by the Chief Secretary
Vidhana Soudha
Bangalore- 560 001.

2. The Principal Secretary
Department of Revenue
State of Karnataka
M. S. Building
Bangalore- 560 001.

3. The Deputy Commissioner
Bangalore Urban District,
Kandhaya Bhavan,
K.G. Road,
Bangalore-560009.

4. The Asst. Commissioner
Bangalore North Sub-Dvn,
Kandhaya Bhavan,
K.G. Road,
Bangalore-560009.

5. The Tahasildar,
Bangalore North Taluk,
Kandhaya Bhavan,
K.G. Road,
Bangalore-560009.

6. Dr. B.R. Vinith

D/o Late M.T Ramlingiaha
Aged about 45 Years

7. Dr. B.R. Vani

D/o Late M.T Ramlingiaha
Aged about 43 Years

Respondent No. 6 and 7 are
Both residing at No. 918,
18 'A' Main A Road,
5th Block Rajaginagar,
Bangalore - 560010

... RESPONDENTS

**MEMORANDUM OF WRIT PETITION UNDER ARTICLE
226 & 227 OF CONSTITUTION OF INDIA**

The Petitioner most respectfully submit as under:

1. The Petitioner Samithi/Committee constituted to safeguard, protect the larger interest of in and around Kadabagere Village and to save the Gomala reserved for the public use in Kadabagere Village, Dasanapura Hobli, Bangalore North Taluk, hence the present petition filed for the **larger interest of public**, copy of the registration of Samithi is herewith produced and marked at **ANNEXURE-A**. The land bearing Sy.No.159 of Kadabagere Village totally measuring an extent of 26A.39gs., classified as Government Gomal Land. Evidencing that the **RTC's** are herewith produced and marked at **ANNEXURE-B1 to B2**.

2. The Petitioner state that, the land bearing Sy.No.159 reserved for the Government Gomala, the said land reserved for utility of the villagers and other adjacent villages, the said land has not been released from its original nature of Gomala.

3. This Petition is presented bringing to the notice of this Hon'ble Court the serious illegalities, fraud perpetrated by the Respondent No. 6 to 8 against Government authorities. The respondents No. 6 to 8 joined hands with the local revenue officials of the jurisdiction and have manipulated, tampered public documents to grab the public property classified and reserved as Ghomal land of Kadabagere, the property is well within the Bangalore Metropolitan area and in the Bangalore Development Authority.

4. It is submitted that, the respondent No. 6 colluded with the revenue officials created and forged some revenue documents and granted an extent of 8 Acre 12 Guntas, in this regard earlier, the villagers approached this Hon'ble Court in W.P.No.1570/1964, this Hon'ble Court upon hearing the matter was pleased to pass ^{ed} considerable order and quash the grant made in favour of

213 213

respondent No.6, copy of the order in W.P. 1570/64 is herewith produced and marked at ANNEXURE-C.

4. It is submitted that, in pursuance of the order passed by this Hon'ble Court, the authorities restore the land and cancelled the entries made in favour of Respondent No.6 in all revenue records, copy of the order dated 11-09-1994 is herewith produced and marked at ANNEXURE-D. Mean time said Ramalingaih filed a Suit in O.S.No. 124/1994 (new No.97/2001) for the relief of Permanent Injunction, the Hon'ble trial Court upon hearing the matter clubbed with (O.S.No.204/94 passed considerable order and dismissed the suit, vide order dated 05-08-2003, copy of the same is herewith produced and marked at ANNEXURE-E, the said Ramalingaih suppressed the earlier suit, again approached the Hon'ble Court behind back filed Original Suit for the relief of declaration in O.S. No.394/1998 by way of adverse possession and managed the authorities obtain ex-parte Judgment/order from the Civil Court, copy of the order passed in O.S. No. 394/98 is herewith produced and marked at ANNEXURE-F.

5. The state Government notified the land bearing Sy.No.159 as Gomal (Green Field) of Kadabagere village,

Pustracation

14/9/97

~~211~~ 214 - 35

the said land was reserved for pasteurization not cultivated by any person personally, evidencing that photographs reflect the present topography of the land in question, few photographs are herewith produced and marked at ANNEXURE-F.

7. It is submitted that, on the several complaints the respondent revenue authority conducted enquiry suo-moto upon verifying the original records, the authorities was pleased to pass considerable order and came to conclusion that the documents produced by the respondent No.8 are forged and concocted documents, directed the Tahsildar to take necessary steps in the matter, copy of the order dated 18.06.2013 is herewith produced and marked at ANNEXURE-H. Pursuant to the direction, the revenue authorities conducted survey and prepared a sketch, in the said Sketch clearly shows that the portion of the land has been encroached by the respondent No. 6 to 7, copy of the sketch is herewith enclosed and marked at ANNEXURE-J.

8. It is submitted that the petitioner immediately made detailed representation to the concerned authorities to protect and preserve the Gomal Land, copy of the representation presented onaddressed to the

~~212~~ 215-

Government is herewith produced and marked at ANNEXURE-K.

9. The Respondent Authorities have not responded to the petitioners representation at Annexure-K, thus aggrieved by inaction on the part of respondent authorities, this Memorandum of Writ Petition presented in the larger interest of public in Kadabagere Village amongst following other grounds.

10. The petitioners have not filed any other writ petition before this Hon'ble Court, earlier, on which this writ petition is filed and there are no proceedings pending in any other Court or Authority in respect of the subject matter of the petition.

11. The petitioners have no other alternative, except to approach this Hon'ble Court this Memorandum of Writ Petition amongst following other grounds.

12.

GROUND

i. This Hon'ble Court in an earlier judgment in Writ Appeal No. WA 1353/2006 and Writ Petition in W P No.3813/2005 dated 18/11/2006, the Deputy Commissioner shall identify the Gomal and other

216- 213 38

reserved lands to consider whether extent have to be retained or reduced or diverted based on cattle population and requirement and shall de-reserved the same for consideration of regularization but in the instant case nothing has taken into consideration, it is an act of mischief, the misrepresentation by the parties joining hands with authorities, thus a serious lapse warrants issue of appropriate writ.

ii. The Respondents in this matter has played fraud in misrepresentation of true and correct facts, knowing fully well the earlier proceedings / earlier orders, the Respondent No. 7 committed a serious act of fraud this Hon'ble court by passing appropriate order against respondent No.6 - M. T. Ramalingaiah, since deceased by LR's to be penalised.

iii. The Respondent authorities having fixed boundaries and measurement ought to have verified the records before passing the order, thus a serious lapse warrants interference.

iv. The Respondent authorities are obligated under statutes verify, conduct spot inspection by drawing mahazar, but in the instant case and orders, no such

217 ~~218~~

element is forthcoming, thus a serious fraud by Respondent No.6 to the public authority which calls for appropriate order and direction at the hands of this Hon'ble Court.

v. The Government of Mysore later Government of Karnataka under Karnataka land Revenue Act Section 71 classified vast extent of land bearing Sy.No.159 assigned for Special purpose as Ghomal, the authorities shall protect the Government lands, it is property of the State, it shall not be otherwise use without sanction of the Government U/s 69, but in the instant case the authorities have arbitrarily allowed the respondent No.6 to 8, to tamper, manipulate the revenue documents, thus a serious illegality calls for issue of appropriate writ at the hands of this Hon'ble Court.

vi. It is the duty of the authorities and essence of village life in preserving the lands reserved u/s 71 and Rule 108(i) of Karnataka land Revenue Rules, the Respondent Revenue authorities are in charge of these lands are obligated under statutes to protect and preserve specially reserved by the Government, in order to utilise the lands for other purposes the authorities on

218 -

sanction by the Government shall de-reserve to that effect, there is no order, thus a serious illegality by Respondent authorities in usurping valuable lands classified and preserved, thus calls for interference and passing of appropriate writ.

13.

GROUND FOR INTERIM RELIEF

The petitioner have produced vital material documents to establish prima-facie, the land bearing Sy.No.159 measuring an extent of 26 A.39gs., situated at Kadabagere Village, Bangalore North Taluk, is Gomal land reserved for Pasteurization and public use, the balance of convenience lies in favour of the petitioner, in the event of not granting interim order, more hardship and inconvenience would be caused to the petitioners.

14.

PRAYER

1. Call for the entire records in respect of the land bearing Sy. Nos. 159 of Kadabagere Village, Dasanapura Hobli, Bangalore North Taluk to an extent of 17 Acres 19 Guntas;

219

~~215~~

41

- ii. To issue Writ of Mandamus directing the Respondent No.2 to ~~to~~ authorities to initiate appropriate enquiry and to preserve the land bearing Sy.No.159 measuring 17 Acres 19 Guntas of Kadabagere as specified u/s 71 of KLR Act.
- iii. To issue Writ of Mandamus directing the Respondent No.2 to 6 to give effect to survey sketch prepared by the authorities at ANNEXURE-✓ and to remove the encroachment made in the land bearing Sy.No.159 of Kadabagere village, Dasanapura Hobli, Bangalore North Taluk, as specified U/s 71 of KLR Act.
- iv. Pass such other order/s as this Hon'ble Court deems fit and proper in the circumstances of the case.

Bangalore,
Date:

ADVOCATE FOR PETITIONER
M. SHIVAPRAKASH

ADDRESS FOR SERVICE:

M.SHIVAPRAKASH
K.RAVISHANKAR,
M/S JANARDANA & JANARDANA,
NO.105, 3RD CROSS,
GANDHINAGAR,
BANGALORE-560 009

0 To Till Date ANNI MORE - R.

•

13. ಭೂಮಿಯ ಉಪಯೋಗ ಮತ್ತು ಬೆಳೆಗಳ ವಿವರ

ಪಕವಿಯ ನೈಜತೆಯನ್ನು <http://landrecords.karnataka.gov.in/rtcverification> ಪೇಜ್ ಸೈಟಿನಲ್ಲಿ ಅಥವಾ KA BHOOMI <RTC UniqueNumber> ಟೈಪ್ ಮಾಡಿ 161 ನಂ ಸಂಖ್ಯೆ ಕಳುಹಿಸಿ ಪರಿಶೀಲಿಸಬಹುದು.

221

218

Translated Copy of Annexure **R3**

RECORD OF RIGHTS, TENANCY AND PAHANI FORM(R.T.C.)
Taluk : Bangalore Rural Hobli: Dasanapura Village: Kadabagere

1. Survey No. 159	3. Khethavaru		A C		4. Tax	Rs		9. Name of Khatedar or Occupant, Father's Name And address: Government Gomal K. Srinivasamurthy S/o Late Kalegowda	Extent	Khata No	10. Type of ownership	11. Other rights and alienations.				
	Total Area		44.19.00.00		Land Tax Jodi Cesses Water Rate	19-00						17.19	12	Merge	<u>Rights:</u>	Alienations
	Phut Kharab (A)		0.00.00.00													
	Phut Kharab (B)		0.00.00.00													
2. Hissa	Balance		44.19.00.00		Total		19-00		0.20	1	MR 34/2010- 2011 Merge	It has been included in account of Government Gomal land as per Assistant Commissioner Order No: RRT/2/NA/7/0 7-08 dated:18- 06-13 High Court Order W.P				
5. colour of Sand Red		7. No. of trees				8. Extent of wet land as per Khatedar										
6. Patta Cultivation Government		Name Nil	No, Nil	A, S	Water source	Monsoon	Winter	Gar den	Total							

222

219

12. Details of tenancy								13. Use of land and details of crop.							
Year And Period	Name of cultivator and his address.	Type of Cultivation	Details of Tenancy		Use of land		Dry, Wet Garden	Name Of The crop	Extent			Source of Water	Produce Per acre	Total of mixed crops	
			extent	Tenancy	Category	Extent A-C			Half mix	Mix	Total			Name Of Mixture	Extent
1	2	3	4	5	6	7	8	9	10	11	12	13	14	15	16
2018-19 Monsoon	Government Gomal	Own	17.19					No Crop Info	0.00	0.00		Rain			
	K Srinivasa Murthy	Own	0.20					Ragi	0.00	0.00		Rain			
	Late Kalegowda														
	K Srinivasa Murthy	Own	1.00					Ragi	0.00	0.00		Rain			
	Late Kalegowda														
	K Srinivasa Murthy	Own	1.00					Ragi	0.00	0.00		Rain			
	Late Kalegowda														
	Korayya Honnayya	Own	1.00					Ragi	0.00	0.00		Rain			

ನೋಂದಣಿ ಸಂಖ್ಯೆ:ಡಿಆರ್‌ಬಿ1/ಎಸ್‌ಒಆರ್/555/2018-2018, ದಿನಾಂಕ: 26.12.2018

ಕಡಬಗೆರೆ ಕ್ರಿಯಾ ಸಮಿತಿ (ರಿ)

ANNEXURE - R₄

ಕಡಬಗೆರೆ ಗ್ರಾಮ, ದಾಸನಪುರ ಹೋಬಳಿ, ಬೆಂಗಳೂರು ಉತ್ತರ ತಾಲ್ಲೂಕು, ಬೆಂಗಳೂರು-562130

ನರಸಹಿಂಹಯ್ಯ
ಅಧ್ಯಕ್ಷರು

9731170380

ಹೆಚ್.ಕೆ.ಗೋವಿಂದರಾಜ

ಉಪಾಧ್ಯಕ್ಷರು

9945451329

ಗಂಗರಾಜು

ಕಾರ್ಯದರ್ಶಿ

9845575481

ಕ್ರಮ ಸಂಖ್ಯೆ:

ರವರಿಗೆ,

1. ಜಿಲ್ಲಾಧಿಕಾರಿಗಳು

ಬೆಂಗಳೂರು ನಗರ ಜಿಲ್ಲೆ

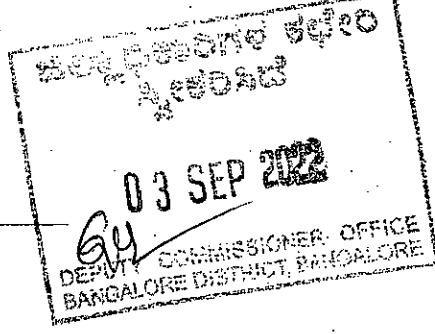
2. ತಹಶೀಲ್ದಾರ್

ಬೆಂಗಳೂರು ಉತ್ತರ ತಾಲ್ಲೂಕು

3. ಉಪ ತಹಶೀಲ್ದಾರ್

ಮಾದನಾಯಕನಹಳ್ಳಿ,

ಬೆಂಗಳೂರು ಉತ್ತರ ತಾಲ್ಲೂಕು.



ದಿನಾಂಕ:
3/9/2022

ಹನುಮೇಗೌಡ

ಖಜಾಂಚಿ

9844804241

ನಿರ್ದೇಶಕರು:

ಕೆ.ಸಿ. ಶಿವರಾಂ

ಮುನ್ಸಿಂಗಯ್ಯ

ರವಿಕುಮಾರ್. ಕೆ

ರಾಮಚಂದ್ರಪ್ಪ

ಲಕ್ಷ್ಮೀನಾರಾಯಣ

ರಾಮಾಂಜನಯ್ಯ

ಕೆ. ರಾಮಯ್ಯ

ನಾಗರಾಜು

ಬೆಟ್ಟಸ್ವಾಮಿಗೌಡ

ತಿಲಕ್

ಹನುಮಂತರಾಜು

ಶ್ರೀನಿವಾಸ

ಹೆಚ್.ನಾಗರಾಜು

ರಾಜಣ್ಣ

ಮಾನ್ಯರೇ,

ತಹಶೀಲ್ದಾರರವರ ಕಛೇರಿ

ಬೆಂಗಳೂರು ಉತ್ತರ ತಾಲ್ಲೂಕು

03 SEP 2022

ಕರ್ನಾಟಕ ಉಚ್ಚ ನ್ಯಾಯಾಲಯದಲ್ಲಿ ಕಡಬಗೆರೆ ಗ್ರಾಮ ಸರ್ಕಾರಿ

ಗೋಮಾಳದಲ್ಲಿ ಸರ್ವೆ ನಂ.159 ರ ಹಾಗೂ ಎಂ.ಟಿ.

ರಾಮಲಿಂಗಯ್ಯ ವಿರುದ್ಧ ಮೊಕದ್ದಮೆ ದಾಖಲಿಸಿರುವ ಸಂಖ್ಯೆ:

WP32578/2019 ರ ಬಗ್ಗೆ.

ಈ ಮೊಟ್ಟಮೊದಲ ವಿಷಯಕ್ಕೆ ಸಂಬಂಧಿಸಿದಂತೆ ತಮ್ಮಲ್ಲಿ ತಿಳಿಸುವುದೇನೆಂದರೆ,

ಈ ನಮ್ಮ ಕಡಬಗೆರೆ ಕ್ರಿಯಾ ಸಮಿತಿಯು ಒಂದು ಸರ್ಕಾರೇತರ ಸಂಸ್ಥೆಯಾಗಿದ್ದು

ಭೂಕಬಳಿಕೆದಾರರಿಂದ ಸರ್ಕಾರದ ಸ್ವತ್ತುಗಳನ್ನು ಸಂರಕ್ಷಿಸುವ ನಿಟ್ಟಿನಲ್ಲಿ ಕೆಲಸ

ಮಾಡುತ್ತಿರುತ್ತದೆ. ಮತ್ತು ವಿವಿಧ ನ್ಯಾಯಾಲಯಗಳಲ್ಲಿ ಭೂಕಬಳಿಕೆದಾರರ ವಿರುದ್ಧ

ಮೊಕದ್ದಮೆಗಳನ್ನು ಹೂಡಿ ಇವರ ವಿರುದ್ಧ ಹೋರಾಟ ಮಾಡುತ್ತಿರುತ್ತೇವೆ.

(ಅಡಕ-ಎ).

ಎಂ.ಟಿ. ರಾಮಲಿಂಗಯ್ಯ ಎಂಬುವವರು ಕಡಬಗೆರೆ ಸರ್ಕಾರಿ ಗೋಮಾಳ

ಸರ್ವೆ ನಂ.159 ರಲ್ಲಿ 8 ಎಕರೆ 12 ಗುಂಟೆ ಜಮೀನನ್ನು 1963 ರಲ್ಲಿ ಸರ್ಕಾರದ

ವತಿಯಿಂದ ಮಂಜೂರು ಮಾಡಿಕೊಂಡಿದ್ದು. ಇದನ್ನು ನಮ್ಮ ಊರಿನವರು

ಕರ್ನಾಟಕ ಉಚ್ಚನ್ಯಾಯಾಲಯದಲ್ಲಿ ಪ್ರಶ್ನೆ ಮಾಡಿದ್ದು W.P.ನಂ.1570/1964 ಈ

ಸರ್ಕಾರದ ಆದೇಶವನ್ನು ಉಚ್ಚನ್ಯಾಯಾಲಯವು 1966 ರಂದು

ವಜಾಗೊಳಿಸಿರುತ್ತದೆ. (ಲಗತ್ತಿಸಿದೆ-ಬಿ). ದಿನಾಂಕ: 08.11.1994 ರಂದು ಆರ್.ಟಿ.ಸಿ

ಕಡಬಗೆರೆ ಕ್ರಿಯಾ ಸಮಿತಿ (ರಿ)

ಕಡಬಗೆರೆ ಗ್ರಾಮ, ದಾಸನಪುರ ಹೋಬಳಿ, ಬೆಂಗಳೂರು ಉತ್ತರ ತಾಲ್ಲೂಕು, ಬೆಂಗಳೂರು-562130

ನರಸಹಿಂಹಯ್ಯ

ಅಧ್ಯಕ್ಷರು

9731170380

ಹೆಚ್.ಕೆ.ಗೋವಿಂದರಾಜು

ಉಪಾಧ್ಯಕ್ಷರು

9945451329

ಗಂಗರಾಜು

ಕಾರ್ಯದರ್ಶಿ

9845575481

ಹನುಮೇಗೌಡ

ಖಜಾಂಚಿ

9844804241

ನಿರ್ದೇಶಕರು:

ಕೆ.ಸಿ. ಶಿವರಾಂ

ಶಾ.ರವೀಂದ್ರ ಗೌಡ

ಮುನಿಗೌಡಯ್ಯ

ರವಿಕುಮಾರ್. ಕೆ

ರಾಮಚಂದ್ರಪ್ಪ

ಲಕ್ಷ್ಮೀನಾರಾಯಣ

ರಾಮಾಂಜನಯ್ಯ

ಕೆ. ರಾಮಯ್ಯ

ನಾಗರಾಜು

ಪಟ್ಟಪ್ಪಾಮಿಗೌಡ

ಲಕ್

ನುಮಂತರಾಜು

ನಿವಾಸ

ಹೆಚ್.ನಾಗರಾಜು

ಗಾಜಣ್ಣ

ಕ್ರಮ ಸಂಖ್ಯೆ:

ದಿನಾಂಕ:

ಯಲ್ಲೂ ಸಹ ಇವರ ಹೆಸರನ್ನು ವಜಾಗೊಳಿಸಿರುತ್ತದೆ. (ಲಗತ್ತಿಸಿದೆ-ಸಿ). ಎಂ.ಟಿ ರಾಮಲಿಂಗಯ್ಯನವರು ಬೆಂಗಳೂರು ನಗರ ಜಿಲ್ಲಾಧಿಕಾರಿಯವರ ಬಳಿ ಮೊಕದ್ದಮೆಯನ್ನು ದಾಖಲಿಸಿ ಸಂಖ್ಯೆ: REV(P)11/94-95 ದಿನಾಂಕ: 06.06.1995 ರಂದು ಆದೇಶ ಪಡೆದು (ಲಗತ್ತಿಸಿದೆ-ಡಿ). ತದನಂತರ ಬೆಂಗಳೂರು ನಗರ ಎರಡನೇ ಅಪರ ಸಿವಿಲ್ ನ್ಯಾಯಾಲಯದಲ್ಲಿ ಓ.ಎಸ್.ನಂ.394/98 (ಲಗತ್ತಿಸಿದೆ-ಇ) ಮೊಕದ್ದಮೆಯನ್ನು ಹೂಡಿದ್ದು ಜಿಲ್ಲಾಧಿಕಾರಿಯವರ ಆದೇಶವನ್ನು ಪ್ರಶ್ನೆ ಮಾಡಿರುತ್ತಾರೆ. ಮತ್ತು ಇವರಿಗೆ ಅನುಕೂಲವಾಗುವಂತೆ Ex Party ಆದೇಶವನ್ನು ಪಡೆದು ತದನಂತರ ಕರ್ನಾಟಕ ಉಚ್ಚನ್ಯಾಯಾಲಯದಲ್ಲಿ ಮೊಕದ್ದಮೆ ನಂ. W.P.10137/2008 ಹೂಡಿ ದಿನಾಂಕ: 19.03.2009 ರಂದು ಇವರ ಹೆಸರಿಗೆ ಖಾತೆ ಮಾಡುವುದಕ್ಕೆ ಸರ್ಕಾರದ ವಿವೇಚನೆಗೆ ಬಿಟ್ಟು ಆದೇಶ ಹೊರಡಿಸಿರುತ್ತದೆ. (ಲಗತ್ತಿಸಿದೆ-ಎಫ್).

ಈ ಹಿಂದೆ ಎಂ.ಟಿ ರಾಮಲಿಂಗಯ್ಯ ಎಂಬುವವರು ನೆಲಮಂಗಲ ತಾಲ್ಲೂಕು, ನ್ಯಾಯಾಲಯದಲ್ಲಿ (JMFC) ಕಡಬಗೆರೆ ಗ್ರಾಮದವರ ಮೇಲೆ ಮೊಕದ್ದಮೆ ಹೂಡಿದ್ದು ನಂ.ಓ.ಎಸ್124/1994 (ಲಗತ್ತಿಸಿದೆ-ಜಿ). ಮತ್ತು ಕಡಬಗೆರೆ ಗ್ರಾಮದವರು ರಾಮಲಿಂಗಯ್ಯನವರ ಮೇಲೆ ಬೆಂಗಳೂರು ನಗರ ಎರಡನೇ ಅಪರ ಸಿವಿಲ್ ನ್ಯಾಯಾಲಯದಲ್ಲಿ ಮೊಕದ್ದಮೆ ಹೂಡಿದ್ದರ ಸಂಖ್ಯೆ: ಓ.ಎಸ್204/1994 (ಲಗತ್ತಿಸಿದೆ-ಹೆಚ್). ಇವರೆಡು ಮೊಕದ್ದಮೆಗಳನ್ನು ಬೆಂಗಳೂರು ನಗರ ಅಪರ ಸಿವಿಲ್ ನ್ಯಾಯಾಲಯವು ಒಟ್ಟುಗೂಡಿಸಿ ಹೊಸ ಸಂಖ್ಯೆ ಓ.ಎಸ್97/2001 (ಲಗತ್ತಿಸಿದೆ-ಐ) ಕೊಟ್ಟು ದಿನಾಂಕ: 05.08.2003 ರಂದು ಆದೇಶ ಹೊರಡಿಸಿರುತ್ತದೆ. ಈ ಆದೇಶದನ್ವಯ ಕರ್ನಾಟಕ ಉಚ್ಚ ನ್ಯಾಯಾಲಯದ ಆದೇಶ ಸಂಖ್ಯೆ W.P.No.1570/1966 ನ್ನು ಎತ್ತಿಹಿಡಿದು ಎಂ.ಟಿ ರಾಮಲಿಂಗಯ್ಯ ನವರಿಗೆ ಈ 8 ಎಕರೆ 12 ಗುಂಟೆ ಜಮೀನಿನಲ್ಲಿ ಯಾವುದೇ ಹಕ್ಕು ಇರುವುದಿಲ್ಲ ಎಂದು ಆದೇಶಿಸಿರುತ್ತದೆ.

೦೨೨

೨೨೨

ನೋಂದಣಿ ಸಂಖ್ಯೆ: ಡಿಆರ್‌ಬಿ/ಎಸ್‌ಒಆರ್/555/2018-2019, ದಿನಾಂಕ 26/12/2018

ಕಡಬಗೆರೆ ಕ್ರಿಯಾ ಸಮಿತಿ (ರಿ)

ಕಡಬಗೆರೆ ಗ್ರಾಮ, ದಾಸನಪುರ ಹೋಬಳಿ, ಬೆಂಗಳೂರು ಉತ್ತರ ತಾಲ್ಲೂಕು, ಬೆಂಗಳೂರು-562130

ನಿರಸಿಂಹಯ್ಯ
ಅಧ್ಯಕ್ಷರು

731170380

ಕೆ.ಕೆ.ಗೋವಿಂದರಾಜ

ಉಪಾಧ್ಯಕ್ಷರು

9945451329

ಗಂಗರಾಜು

ಕಾರ್ಯದರ್ಶಿ

9845575481

ಹನುಮೇಗೌಡ

ಖಜಾಂಚಿ

84 4241

ಸದೇಶಕರು:

ಸಿ.ಶಿವಧಾಂ:

ಬನಿಗಂಗಯ್ಯ

ಎಕುಮಾರ್.ಕೆ

ಮಾಚಂದ್ರಪ್ಪ

ಅಕ್ಷೀನಾರಾಯಣ

ಗಾಮಾಂಜನಯ್ಯ

ಕೆ.ರಾಮಯ್ಯ

ನಾಗರಾಜು

ಬೆಟ್ಟಸ್ವಾಮಿಗೌಡ ತಿಲಕ್

ಹನುಮಂತರಾಜು

ಶ್ರೀನಿವಾಸ

ಎಚ್.ನಾಗರಾಜು

ಎ.ಜಣ್ಣ

ಕ್ರಮ ಸಂಖ್ಯೆ:

ದಿನಾಂಕ:

ಇಲ್ಲಿ ನ್ಯಾಯಾಲಯಕ್ಕೆ ಮೋಸ ಮಾಡಿ ನ್ಯಾಯಾಲಯದ ಕಣ್ಣಿಗೆ ಮಣ್ಣು ಎರೆಚಿ ಹಿಂದಿನ ಮೊಕದ್ದಮೆ ಓ.ಎಸ್.394/98 ರ 2001 ರ ಆದೇಶವನ್ನು ಉಚ್ಚನ್ಯಾಯಾಲಯಕ್ಕೆ ತೋರಿಸಿ ಆದೇಶ ಬಂದಿರುವುದರಿಂದ ಇದಕ್ಕೆ ಯಾವುದೇ ಮಾನ್ಯತೆ ಇರುವುದಿಲ್ಲ. ಎಂ.ಟಿ.ರಾಮಲಿಂಗಯ್ಯ ಎಂಬುವವರು ಪೌತಿ ಆಗಿದ್ದು ಇವರ ಸಹಿಯನ್ನು ಯಾರೋ ನಕಲಿ ಮಾಡಿ ಜಿ.ಪಿ.ಎ ತೆಗೆದುಕೊಂಡಿರುವುದಾಗಿ ಮತ್ತು ಈ ಜಿ.ಪಿ.ಎ ನೋಂದಾಯಿಸಿರುವುದಿಲ್ಲವೆಂದು ನಮಗೆ ಮಾಹಿತಿ ಬಂದಿರುತ್ತದೆ. ಇವರ ವಾರಸುದಾರರಿಗೂ ಸಹ ಏನೂ ತಿಳಿದಿಲ್ಲವೆಂದು ನಮಗೆ ಮಾಹಿತಿ ಬಂದಿರುತ್ತದೆ. ಆದುದರಿಂದ ತಾವುಗಳು ಫೋಲೀಸ್ ವತಿಯಿಂದ ತನಿಖೆ ನಡೆಸಬೇಕಾಗಿರುತ್ತದೆ.

ಈ ಕ್ರಿಯಾ ಸಮಿತಿಯವರು ಇದೇಲ್ಲವನ್ನು ಸವಿವಿವರವಾಗಿ ವಿವರಿಸಿ ಕರ್ನಾಟಕ ಉಚ್ಚನ್ಯಾಯಾಲಯದಲ್ಲಿ W.P.32578/2019 (ಲಗತ್ತಿಸಿದ-ಎ) ರಂದು ಎಂ.ಟಿ.ರಾಮಲಿಂಗಯ್ಯ ರವರ ವಿರುದ್ಧ ಮೊಕದ್ದಮೆಯನ್ನು ಹೂಡಿರುತ್ತೇವೆ. ಬೆಂಗಳೂರು ನಗರ ಸಿವಿಲ್ ನ್ಯಾಯಾಲಯದ ಪ್ರಕರಣದ ಸಂಖ್ಯೆ O.S 97/2001 (ಅಡಕ - ಐ)ರಲ್ಲಿ, ಕರ್ನಾಟಕ ಉಚ್ಚನ್ಯಾಯಾಲಯದ ಪ್ರಕರಣದ ಸಂಖ್ಯೆ W.P.1570/1964 (ಅಡಕ-ಬಿ)ನ ಎತ್ತಿ ಹಿಡಿದು ಎಂ.ಟಿ.ರಾಮಲಿಂಗಯ್ಯನವರಿಗೆ ಈ ವಿವಾದಿತ ಸ್ವತ್ತಿನಲ್ಲಿ ಯಾವುದೇ ಅಧಿಕಾರವಿರುವುದಿಲ್ಲವೆಂದು ಆದೇಶಿಸಿರುವುದರಿಂದ, ಎಂ.ಟಿ.ರಾಮಲಿಂಗಯ್ಯನವರಿಗೆ ಅಥವಾ ಇವರ ವಾರಸುದಾರಿಗೆ ಇವೆಲ್ಲಾ ಕಾರಣಗಳಿಂದ "ನಿಮಗೆ ಈ ವಿವಾದಿತ ಸ್ವತ್ತನ್ನು ನಿಮ್ಮ ಹೆಸರಿಗೆ ಖಾತೆ ಮಾಡುವುದಕ್ಕೆ ಬರುವುದಿಲ್ಲವೆಂದು ತಾವುಗಳು ಹಿಂಬರಹದ ಪತ್ರವನ್ನು" ಬರೆದು ಪ್ರತಿಯನ್ನು ನಾವು ಉಚ್ಚ ನ್ಯಾಯಾಲಯದಲ್ಲಿ ಹೂಡಿರುವ

ಕಡಬಗೆರೆ ಕ್ರಿಯಾ ಸಮಿತಿ (ರಿ)

ಕಡಬಗೆರೆ ಗ್ರಾಮ, ದಾಸನಪುರ ಹೋಬಳಿ, ಬೆಂಗಳೂರು ಉತ್ತರ ತಾಲ್ಲೂಕು, ಬೆಂಗಳೂರು-562130

ಸರಸಿಂಹಯ್ಯ
ಅಧ್ಯಕ್ಷರು

731170380

ಕೆ.ಕೆ.ಗೋವಿಂದರಾಜ

ಉಪಾಧ್ಯಕ್ಷರು

9945451329

ಗಂಗರಾಜು

ಕಾರ್ಯದರ್ಶಿ

9845575481

ಹನುಮೇಗೌಡ

ಖಜಾಂಚಿ

84 74241

ಸದೇಶಕರು:

ಸಿ.ಶಿವರಾಂ:

ಉನಿಗೌಡಂಗಯ್ಯ

ವಿಹುಮಾರ್.ಕೆ

ಗಾಮಚಂದ್ರಪ್ಪ

ಅಕ್ಷೀನಾರಾಯಣ

ಗಾಮಾಂಜನಯ್ಯ

ಕೆ.ರಾಮಯ್ಯ

ನಾಗರಾಜು

ಬೆಟ್ಟಸ್ವಾಮಿಗೌಡ ತಿಲಕ್

ಹನುಮಂತರಾಜು

ಶ್ರೀನಿವಾಸ

ಎಚ್.ಗಂಗರಾಜು

ಎಜಣ್ಣ

ಕ್ರಮ ಸಂಖ್ಯೆ:

ದಿನಾಂಕ:

W.P. No.32578/2019 ಗೆ ಸಲ್ಲಿಸಬೇಕಾಗಿರುತ್ತದೆ. ಆದರೆ ಇದುವರೆವಿಗೂ ಈ ಕೆಲಸವನ್ನು ತಾವುಗಳು ಮಾಡಿರುವುದಿಲ್ಲವಾದುದರಿಂದ ನೀವು ಸಹ ಭಾಗಳ್ಳರ ಜೊತೆ ಶಾಮೀಲಾಗಿರುವಿರಿ ಎಂದು ಸಂಶಯ ಹುಟ್ಟುತ್ತದೆ.

ಕರ್ನಾಟಕ ಉಚ್ಚ ನ್ಯಾಯಾಲಯದ W.P. 10137/2008 ಆದೇಶದಲ್ಲಿ ಸ್ಪಷ್ಟ ಆದೇಶವಿಲ್ಲದುದರಿಂದ (ಅಡಕ-ಎಫ್) ಸರ್ಕಾರಕ್ಕೆ ಅನುಕೂಲವಾಗುವುದರಿಂದ ರಾಮಲಿಂಗಯ್ಯನವರಿಗೆ, ಇವರ ವಾರಸುದಾರರಿಗೆ ಅಥವಾ ಜಿ.ಪಿ.ಎ ದಾರರಿಗೆ ತಾವು ಖಾತೆ ಮಾಡಬಾರದು ಎಂದು ವಿನಂತಿಸುತ್ತೇವೆ.

ಕೋನು ಲ್ಲಾಂಫಿ ರ್ಲಾಂಫಿ
ಗೌರೀಶಿಖ

ವಂದನೆಗಳೊಂದಿಗೆ,

ತಮ್ಮ ವಿಶ್ವಾಸಿಗಳು

ಅಧ್ಯಕ್ಷರು
ಕಡಬಗೆರೆ ಕ್ರಿಯಾ ಸಮಿತಿ

ನರಸಿಂಹಯ್ಯ

ಅಧ್ಯಕ್ಷರು
ಕಡಬಗೆರೆ ಕ್ರಿಯಾ ಸಮಿತಿ

227
~~227~~

Translated Copy of Annexure-*RA*

Registration No: DRB1/SOR/555/2018-2018 Date: 26-12-2018

Kadabagere Action Committee (Reg)

Kadabagere Village, Dasanapura Hobli, Bangalore North
Taluk, Bangalore - 562 130

Sl. No.	Date: 3-9-2022
To,	
1. Deputy Commissioner Bangalore Urban District	
2. Tahsildar Bangalore North Taluk	
3. Upa Tahsildar Madanayakanahalli Bangalore North Taluk	
Respected,	
Sub: Regarding WP 32578/2019 filed against M T Ramalingayya in Honourable High Court in respect of Government Gomal land in SY No: 159 in Kadabagere Village	
As concerned to aforesaid subject, hereby informing you that our Kadabagere Action Committee is Non -Governmental Organization. This organization is working in order to protect the government properties from land grabbers. We are fighting against the land grabbers by filing cases against them in various court. (Enclosure-A).	

228

~~228~~

	8 acre 12 gunta Government Gomal land in Sy No: 159 in Kadabagere Village has been sanctioned to M T Ramalingayya from the Government in the year 1963. Our villagers have questioned this in Honourable High Court of Karnataka in WP No: 1570/1964. High Court has dismissed this Government order in the year 1966 (Enclosure-B). On date: 8-11-1994 his name has been discarded in RTC also. (Enclosure-C). M T Ramalingayya has filed Case No: REV (P) 11/94-95 dated: 6-6-1995 in Deputy Commissioner Court, Bangalore City (Enclosure -D). Later, again filed OS No: 394/98 in Second Additional Civil Court Bangalore by questioning the Deputy Commissioner's order. (Enclosure-E). They have received Ex party order as convenient for the said and later filed WP No: 10137/2008 in High Court of Karnataka, issued order on date: 19-03-2009 by leaving to the understanding of Government for registering the khata to their name. (Enclosure-F) Previously M T Ramalingayya has filed OS No: 124/1994 against villagers of Kadabagere in JMFC
--	---

229 -

228 -

Court, Nelamangala Taluk (Enclosure -G). And Kadabagere Villagers have filed OS No: OS 204/1994 in 2nd Additional Civil Court Bangalore City against Ramalingayya (Enclosure-H). These two suits are merged in new OS No: 97/2001 by Additional Civil Court , Bangalore City and issued on date: 05-08-2003 (Enclosure-I). As per this order, has upheld the order of Honourable High Court of Karnataka in WP No: 1570/1966 and ordered that MT Ramalingayya do not have any rights and interest over this 8 acre 12 gunta land. Since order has been obtained by showing the previous order in OS No: 394/98 of 2001 of Honourable High Court by deceiving the court. Therefore, it is not valid. M T Ramalingayya has been passed away. We have received information that GPA has been obtained by forging his signature and this GPA is not registered. We have received information that even his legal heirs do not know about this. Therefore, you have to conduct investigation from Police.
--

230

~~225~~

This Action Committee has explained all this in detail and filed WP No: 32578/2019 (Enclosure-A) against M T Ramalingayya. In OS No: 97/2001 of Civil Court Bangalore City (Enclosure-I) has upheld the WP No: 1570/1964 (Enclosure-B) of High Court of Karnataka, by ordering that M T Ramalingayya do not have any powers in the disputed property, you have to write an endorsement copy to M T Ramalingayya or his legal heirs that "due to all these reasons, the khata of disputed property cannot registered to your name and it is required to be submitted in WP No: 32578/209 filed in Honourable High Court. But, till now you have not done this work, it is suspicious that you have also joined hands with land grabbers.

Since there is no clear order in the order of High Court of Karnataka in WP No: 10137/2008, (Enclosure-F), and will be convenient for the government, hereby appealing with you to not to register khata to Ramalingaya, his legal heirs or GPA holders.

231 -

~~228~~ -

	Thanking You,
	Yours Sincerely President Kadabagere Action Committee
	Sd/- (Narasimhayya) President Kadabagere Action Committee

IN THE HIGH COURT OF KARNATAKA AT BANGALORE

WRIT APPEAL No. /2023

BETWEEN:

Sri.Narasimhaiah & another

...APPELLANTS

AND

The State of Karnataka & others

...RESPONDENTS

INDEX

SL. NO.	PARTICULARS	PAGE NO.
1	MEMO	232
2		

BANGALORE

DATE: /07/2023

ADVOCATE FOR APPELLANTS

IN THE HIGH COURT OF KARNATAKA AT BANGALORE**WRIT APPEAL No.****/2023****BETWEEN:***Sri.Narasimhaiah & another***...APPELLANTS****AND***The State of Karnataka & others***...RESPONDENTS****MEMO**

The appellants most respectfully submits that, the present appellants who appear respondent No.6 & 7 in the Writ proceedings, the said respondents/appellants were not filed statement of objections to the Writ Petition No. 535/2022, hence the memo same may be accepted, to meet the ends of justice.

BANGALORE**DATE: /07/2023****ADVOCATE FOR APPELLANTS**

IN THE HIGH COURT OF KARNATAKA AT BANGALORE

PRESENTATION FORM

W.A. No. /2023

ADVOCATE:

Sri.Murthy.D.L

BANGALORE DISTRICT

BETWEEN

Sri. Narasimhaiah & another

-VERSUS-

State of Karnataka & others

SL. NO.	DESCRIPTION OF PAPER PRESENTED	COURT FEE AFFIXED
----------------	---------------------------------------	--------------------------

1.	APPLICATION FOR STAY	Rs. /-
----	----------------------	--------

2.	AFFIDAVIT	
----	-----------	--

TOTAL		Rs. /-
-------	--	--------

PRESENTED BY

OTHER SIDE SERVED

ADVOCATE FOR PETITIONER

RECEIVED PAPER WITH COURT FEE

LALES AS ABOVE

DATE: -07-2023 BANGALORE RECEIVING CLERK

IN THE HIGH COURT OF KARNATAKA AT BANGALORE

WRIT APPEAL No.

/2023

BETWEEN:

Sri.Narasimhaiah & another

...APPELLANTS

AND

The State of Karnataka & others

...RESPONDENTS

INDEX

SL. NO.	PARTICULARS	PAGE NO.
1	APPLICATION FOR STAY	234 - 235
2	AFFIDAVIT	236 - 238

BANGALORE

DATE: /07/2023

ADVOCATE FOR APPELLANTS

236

IN THE HIGH COURT OF KARNATAKA AT BANGALORE

WRIT APPEAL No. _____/2023 (KLR)

BETWEEN:

1. Sri.Narasimhaiah

S/o Era Channaiah

Aged about 72 Years

R/at Kadabagere Village

Dasanapura Hobli

Nelamangala Taluk-562 123.

2. The Kadabagere Kriya Samithi

Kadabagere Village,

Dasanapura Hobli

Nelamangala Taluk

PIN: 562 123

Rep.by its President.

...Appellants

AND:

1. The State of Karnataka

Represented By Secretary,

Department of Revenue

Vikasa Soudha,

Dr.B.R.Ambedkar Veedhi

Bangalore - 560 001

2. The Deputy Commissioner

Bangalore North

Kempegowda Road,

Bangalore- 560 009.

3. The Assistant Commissioner

Bangalore North Sub Division

Kempegowda Road,

Bangalore- 560 009.

4. The Tahasildar

Nelamangala Taluk

Bangalore North

Bangalore- 562 123.

5. The Special Tahasildar

Bangalore North Taluk

Bangalore- 562 123

235

6. Dr.Vineeth.B.R.

D/o Late M.T.Ramalingaiah

Aged about 54 Years

R/at No.1427, 2nd Cross

Bandigowda Layout

Mandya City- 571 401

.Respondents

**APPLICATION UNDER ORDER XLI RULE 5 OF THE
CODE OF CIVIL PROCEDURE.**

That for the reasons sworn to in the accompanying affidavit the appellant most respectfully pray this Hon'ble Court be pleased to stay of all further proceedings in pursuance of the order passed by learned single Judge in **W.P.No.535/2022 (KLR-LG) Dated.06-02-2023**, to meet the ends of justice.

BANGALORE

DATE: /07/2023

ADVOCATE FOR APPELLANTS

236

IN THE HIGH COURT OF KARNATAKA AT BANGALORE

WRIT APPEAL No.

/2023

BETWEEN:

Sri.Narasimhaiah & another

...APPELLANTS

AND

The State of Karnataka & others

...RESPONDENTS

AFFIDAVIT

I, Narasimhaiah S/o Era Channaiah, Aged 72 years, R/at. Kadabagere Village, Dasanapura Hobli, Nelamangala Taluk, Bangalore Rural District, do hereby solemnly affirm and state on oath as follows;

1. *I state I am the Appellant.1 in the above case and I am well conversant with the facts and circumstances of the case, I authorised to swear on behalf other appellant, hence I swear to this Affidavit.*

2. *I state that, We are the residents of Kadabagere Village, the land bearing Sy.No.159 originally measuring an extent of 26 Acres 39 Guntas, out of this land, Water Project by the Government in which, portion has been accommodated for rehabilitation, the remaining extent of 17 Acres 19 Guntas continued in the ownership of Government, originally the land is classified as GOMAL land, in and around of the Village Kadabagere, presently Bangalore North Taluk is fully developed with residential layouts and thick population, taking into consideration all these aspects, the Village Panchayath and Villagers made several*

representations to provide amenities in the land viz., Hospital, School, Women Rehabilitation Centre, Community Hall, Play Ground and other public utility purposes. The Representations made and the manner in which the grant was made by the fraudulent method has been explained and placed before the Hon'ble Court.

3. I state that, the respondent No.6/petitioner having played fraud, the Hon'ble Court by exercising extraordinary jurisdiction under Article 226 in support of Law declared in S.P.Changalvaraya Naidu -Vs- Jagannath Rao - State of Andhra Pradesh 1994 - Vol.2 SCC Page 1 - fraud vitiates, the entire proceedings and the Courts shall recall and revoke the orders and judgments. The ratio is squarely applicable to present case in hand to the Learned Single Judge by ignoring these facts provided to allow the writ petition by granting relief for restoration of the entries solely and decree passed Ex-parte in O.S.No.394/1998, the respondent No.6 taking advantage of the order passed by the learned single Judge, they tried to make revenue entries in his name in respect of Sy.No.159 measuring an extent of 8Acres of Kadabagere Village, Bangalore North Taluk, hence the accompanying application for stay.

4. I state that, if the accompanying application is allowed, no harm or prejudice would be caused to the respondents. On the other hand, we will be put to

238

great hardship and inconvenience, if the accompanying application is not allowed.

Hence, I most respectfully pray that this Hon'ble Court be pleased to allow the accompanying application as prayed for, in the interest of justice and equity.

IDENTIFIED BY ME

ADVOCATE
BENGALURU
DATE: .07.2023

DEPONENT

IN THE HIGH COURT OF KARNATAKA AT BANGALORE

PRESENTATION FORM

W.A. No. /2023

ADVOCATE:

Sri.Murthy.D.L

BANGALORE DISTRICT

BETWEEN

Sri. Narasimhaiah & another

-VERSUS-

State of Karnataka & others

SL. NO.	DESCRIPTION OF PAPER PRESENTED	COURT FEE AFFIXED
----------------	---------------------------------------	--------------------------

1.	APPLICATION U/s 5 of limitation Act	
----	-------------------------------------	--

Rs. /-

2.	AFFIDAVIT	
----	-----------	--

TOTAL

Rs. /-

PRESENTED BY

OTHER SIDE SERVED

ADVOCATE FOR PETITIONER

RECEIVED PAPER WITH COURT FEE

LALES AS ABOVE

DATE: -07-2023

BANGALORE

RECEIVING

CLERK

IN THE HIGH COURT OF KARNATAKA AT BANGALORE

WRIT APPEAL No.

/2023

BETWEEN:

Sri.Narasimhaiah & another

...APPELLANTS

AND

The State of Karnataka & others

...RESPONDENTS

INDEX

SL. NO.	PARTICULARS	PAGE NO.
1	APPLICATION under section 5 of limitation Act	
2	AFFIDAVIT	

BANGALORE

DATE: /07/2023

ADVOCATE FOR APPELLANTS

IN THE HIGH COURT OF KARNATAKA AT BANGALORE**WRIT APPEAL No. _____/2023 (KLR)****BETWEEN:****1. Sri.Narasimhaiah**

S/o Era Channaiah
Aged about 72 Years
R/at Kadabagere Village
Dasanapura Hobli
Nelamangala Taluk-562 123.

2. The Kadabagere Kriya Samithi

Kadabagere Village,
Dasanapura Hobli
Nelamangala Taluk
PIN: 562 123
Rep.by its President.

...Appellants**AND:****1. The State of Karnataka**

Represented By Secretary,
Department of Revenue
Vikasa Soudha,
Dr.B.R.Ambedkar Veedhi
Bangalore - 560 001

2. The Deputy Commissioner

Bangalore North
Kempegowda Road,
Bangalore- 560 009.

3. The Assistant Commissioner

Bangalore North Sub Division
Kempegowda Road,
Bangalore- 560 009.

4. The Tahasildar

Nelamangala Taluk
Bangalore North
Bangalore- 562 123.

5. The Special Tahasildar

Bangalore North Taluk
Bangalore- 562 123

240

6. Dr. Vineeth.B.R.

D/o Late M.T.Ramalingaiah

Aged about 54 Years

R/at No.1427, 2nd Cross

Bandigowda Layout

Mandya City- 571 401

.Respondents

**APPLICATION UNDER SECTION 5 OF THE
LIMITATION ACT.**

That for the reasons sworn to in the accompanying affidavit the appellants most respectfully pray this Hon'ble Court be pleased to condone the delay of 1 day in filing the above appeal, in the interest of Justice and equity.

BANGALORE

DATE: /07/2023

ADVOCATE FOR APPELLANTS

241

IN THE HIGH COURT OF KARNATAKA AT BANGALORE

WRIT APPEAL No.

/2023

BETWEEN:

Sri.Narasimhaiah & another

...APPELLANTS

AND

The State of Karnataka & others

...RESPONDENTS

AFFIDAVIT

I, Narasimhaiah S/o Era Channaiah, Aged 72 years, R/at. Kadabagere Village, Dasanapura Hobli, Nelamangala Taluk, Bangalore Rural District, do hereby solemnly affirm and state on oath as follows;

1. I state I am the Appellant.1 in the above case and I am well conversant with the facts and circumstances of the case, I authorised to swear on behalf other appellant, hence I swear to this Affidavit.

2. I state that, We are the residents of Kadabagere Village, the land bearing Sy.No.159 originally measuring an extent of 26 Acres 39 Guntas, out of this land, Water Project by the Government in which, portion has been accommodated for rehabilitation, the remaining extent of 17 Acres 19 Guntas continued in the ownership of Government, originally the land is classified as GOMAL land, in and around of the Village Kadabagere, presently Bangalore North Taluk is fully developed with residential layouts and thick population, taking into consideration all these aspects, the Village Panchayath and Villagers made several

representations to provide amenities in the land viz., Hospital, School, Women Rehabilitation Centre, Community Hall, Play Ground and other public utility purposes. The Representations made and the manner in which the grant was made by the fraudulent method has been explained and placed before the Hon'ble Court.

3. I state that, the respondent No.6/petitioner having played fraud, the Hon'ble Court by exercising extraordinary jurisdiction under Article 226 in support of Law declared in S.P.Changalvaraya Naidu -Vs- Jagannath Rao - State of Andhra Pradesh 1994 - Vol.2 SCC Page 1 - fraud vitiates, the entire proceedings and the Courts shall recall and revoke the orders and judgments. The ratio is squarely applicable to present case in hand to the Learned Single Judge by ignoring these facts provided to allow the writ petition by granting relief for restoration of the entries solely and decree passed Ex-parte in O.S.No.394/1998, in order to obtain certified copy of the final order, I was made necessary application on 10-03-2023, the final order has been ready on 16-03-2023, in the above circumstances, calculate the delay days as on the date of release, there is no delay accrued, but office has not give the said exemption, the delay days calculated as on the date of final order, hence notified delay of one day, moreover there is a voluminous documents in the file to translate the said Kannada documents, hence there is a delay in filing of

the appeal , hence the accompanying application for condonation of delay.

4. I state that, if the accompanying application is allowed, no harm or prejudice would be caused to the respondents. On the other hand, we will be put to great hardship and inconvenience, if the accompanying application is not allowed.

Hence, I most respectfully pray that this Hon'ble Court be pleased to allow the accompanying application as prayed for, in the interest of justice and equity.

IDENTIFIED BY ME

ADVOCATE
BENGALURU
DATE: .07.2023

DEPONENT